

2026

FACULTY of
LAW



UNIVERSITY of the WESTERN CAPE
IYUNIVESITHI yaseNTSHONA KOLONI
UNIVERSITEIT van WES-KAAPLAND



UNIVERSITY of the WESTERN CAPE
IYUNIVESITHI yaseNTSHONA KOLONI
UNIVERSITEIT van WES-KAAPLAND

2026

Faculty of Law

NOTICE

All particulars in this Calendar are applicable from 2026. The University reserves the right to amend any regulation or provision at any time without prior notice.

Although every attempt has been made to ensure that the information is accurate, the University does not accept any liability concerning inaccuracies of any of the contents in the Calendar.

Please check the University website, www.uwc.ac.za for the latest version of this Calendar.

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HOW TO USE THIS CALENDAR

The following provides an overview of the structure of this Calendar to guide users.

General Information

This section provides the contact information for the Faculty and University.

Degrees and Diplomas conferred in the Faculty

This section provides information on each of the qualifications conferred in the Faculty.

Explanation of the National Qualifications Framework (NQF)

This is a brief section on the NQF levels and qualification types.

Faculty Board and Faculty Office Staff

This section lists staff members who constitute the Faculty Board and Faculty Office staff members.

Lecturing and Technical Staff

A comprehensive Faculty staff listing per Department, Centre, Institute, School or Unit is provided.

Rules for Programmes

This section provides information on the rules for each academic programme at undergraduate and postgraduate level offered by the faculty. In each year level, and depending on the programme for which a student is registered, they are required to complete and pass a certain number of credits in order to promote to the next level of study. Promotion requirements per programme can be found in this section. These rules should be read in conjunction with the academic rules (Section 3) of the General Calendar (Part 1). Students should acquaint themselves with the rules in both Calendars and annually check for rule and curriculum changes.

Module Descriptors

This section provides information on all the modules offered by the faculty at undergraduate and postgraduate level. Module descriptors contain information which relate to the main outcomes and content for each module, including the credit value and NQF level of the module and pre-requisite and co-requisite modules. It is set in alphanumeric order per undergraduate and postgraduate offering. An alphabetical listing of all modules can be found in the module descriptor index.

Pre-requisite and Co-requisite Modules

A pre-requisite module is a module that must be passed prior to a student being admitted to a higher module or the following year of study as associated in the faculty yearbook.

A co-requisite module is a module that must be passed prior to or simultaneously with another associated module before credit can be granted for the latter module. Requirements are provided in each module descriptor.

Explanation of Symbols and Remarks on Academic Transcript

This section provides an explanation of the symbols used and the remarks on the academic transcript.

GENERAL INFORMATION

CORRESPONDENCE WITH THE UNIVERSITY

All postal correspondence should be addressed to the relevant person or department at:

The University of the Western Cape
Private Bag X17
Bellville
7535

Should you not know the person or department, please direct all correspondence to the Registrar.

Faculty related enquiries can be directly forwarded to:

Faculty of Law Helpdesk
The University of the Western Cape
Private Bag X17
Bellville
7535

Faculty Helpdesk
Tel: +27 (0)21 959 3291

Undergraduate Enquiries:
Postgraduate Enquiries:

lawundergradeng@uwc.ac.za
lawpostgradeng@uwc.ac.za

CONTACT NUMBERS

UWC Contact Centre:
E-mail:

+27 (0)21 959 3900/1/2/3
info@uwc.ac.za

THE UNIVERSITY'S WEBSITE

www.uwc.ac.za

CALENDAR

The Calendar is obtainable in the following separate parts:

- Part 1 General Information
- Part 2 Faculty of Natural Sciences
- Part 3 Faculty of Arts and Humanities
- Part 4 Faculty of Economic and Management Sciences
- Part 5 Faculty of Education
- Part 6 Faculty of Dentistry
- Part 7 Faculty of Law
- Part 8 Faculty of Community and Health Sciences
- Part 9 Schedule of Fees (Refer to the Schedule of Fees available on the University website)

DEGREES AND DIPLOMAS CONFERRED BY THE FACULTY

DEGREES

Qualification	Abbreviation	Minimum period of Study
Bachelor of Laws	LLB	4
Bachelor of Arts in Law	BA (Law)	3
Bachelor of Commerce in Law	BCom (Law)	3
Master of Laws*	LLM	1
Master of Philosophy*	MPhil	1
Doctor of Philosophy*	PhD	2
Doctor of Laws*	LLD	2

DIPLOMAS AND CERTIFICATES

Advanced Diploma in Labour Law	AdvDip (Labour Law)	1
Postgraduate Diploma in Environmental Law and Management (Distance Learning)	PGDip (Environmental Law and Management) (Distance Learning)	1
Postgraduate Diploma in Fintech Law and Regulation	PGDip (Fintech Law and Regulation)	1
Postgraduate Diploma in Labour Law	PGDip (Labour Law)	1
Postgraduate Diploma in Public Law	PGDip (Public Law)	1
Postgraduate Diploma in Tax Law	PGDip (Tax Law)	1
Higher Certificate in Forensic Examination	HCert (Forensic Examination)	1

* Please refer to the programme information for specialisations.

EXPLANATION OF THE NATIONAL QUALIFICATIONS FRAMEWORK

The National Qualifications Framework (NQF) is “a *single integrated system for the classification, registration, publication and articulation of quality-assured national qualifications*” as stipulated in Section 4 of the NQF Act, 2008 (Act No 67 of 2008).

The National Qualifications Framework (NQF) has ten levels of which Higher Education qualifications occupy 6 levels of the NQF, namely levels 5 to 10.

Levels 5 to 7 comprise the undergraduate qualifications (with the exception of the Professional Bachelor's degree at Level 8) and levels 8 to 10 comprise the postgraduate qualifications.

NQF LEVELS	QUALIFICATION TYPES
5	Higher Certificate
6	Advanced Certificate Diploma
7	Advanced Diploma Bachelor's Degree
8	Honours Degree Postgraduate Diploma Professional Bachelor's Degree
9	Master's Degree Professional Master's Degree
10	Doctoral Degree Professional Doctoral Degree

As cited in the Higher Education Qualifications Sub-Framework (CHE, 2013)

FACULTY BOARD AND FACULTY OFFICE STAFF

Ex Officio Members: The Rector, Vice Rector/s, Registrar and Dean

Profs: JR de Ville (Chairperson), D Collier, J de Visser, A Diala, Y Fessha, J-M Iyi, V Lawack, W le Roux, BD Mezmur, F Moosa, N Moosa, JD Mujuzi, L Mwambene, K van Marle, S-M Viljoen

Assoc Profs: M Abduroaf, C Albertus, UM Assim, Y Basson, A Booley, T Chigwata, AJ Hamman, R Henrico, MM Koekemoer, T Kondo, PM Lenaghan, ED Malherbe, L Muntingh, Y Mupangavanhu, R Nanima, W Nortje, D Oriakhogba, A van der Berg, MS Wandrag

Drs: DL Beyers, K Chinnian, T Chonco-Spambo, L Draga, S Fick, E Huysamen, C Jacobs, MS Kasker, B Kengni, B Lemine, K Loedolf, S Mabunda, L Manie, A Munyai, L Mushoriwa, P Ndlovu, T Njoko, E Olivier, CA Potberg, J Redpath, N Sibanda, M Tlale, J van de Rheeede,

Mmes: T Lehlekiso, H Jeftha, V Johannes, G Mirugi-Mukundi, C Sanger, T Oliphant, B Qumbu

Messrs: S Jassiem, A Miggels, G Pillay, M Sungay

DEAN'S OFFICE STAFF

Dean:

JR de Ville, BCom LLB (PU for CHE) LLD (SU)

Deputy Deans:

BD Mezmur, LLB (Addis Ababa) LLM (UP) LLD (UWC)

Vacant

Learning and Teaching Specialist:

CA Potberg, BTech Hons (Peninsula Technikon)

MEd DED (CPUT) LLB (Cum Laude) (UNISA)

Dean's Administrator:

CF Davids

Faculty Manager:

HP Jeftha, BAdmin Hons MPA (UWC)

Faculty Officers:

K Wakefield, BA Hons (UWC)

N Modzanane, BSocSci BA Hons (UFS)

V Johannes, LLB (UWC)

T Oliphant, NDip Legal Secretary (Northlink College) Higher Certificate in Law LLB (UNISA)

Administrative Officer:

H Zimri

STUDENT RESOURCE CENTRE

IT Technician

D Smith, NDip (CPUT) AdvDip (Management)

BCom Hons (UWC)

FACULTY OFFICE STAFF

Senior Faculty Officer:

R Meyer, BCom Hons (UWC)

Faculty Officers:

G Meyer, HCFE AdvDip PG Dip (UWC)

L van Graan, BA Hons (UWC)

Y Velebayi, BSc Hons BCom (Cum Laude) PGDip

(Computer Software and Media Application)

(UWC)

Administrative Officers:

E Cakata NDip (Internal Auditing) (WSU) AdvDip (Accounting Science) (UNISA)

W Dilgee

N Hans, B-Tech Logistics (UNISA)

S Masimila, BSC (Hons) (UWC)

L Loubser

LECTURING AND TECHNICAL STAFF

CRIMINAL JUSTICE AND PROCEDURE

Head of Department:	R Nanima, Dip LP (LDC) LLB (Makerere) LLM LLD (UWC)
Professor:	JD Mujuzi, LLB (Makerere) LLM (UP) LLM (Free State) LLD (UWC)
Associate Professors:	C Albertus, LLB (Cum Laude) LLM LLD (UWC) AJ Hamman, BA LLB LLM LLD (UWC) R Nanima, Dip LP (LDC) LLB (Makerere) LLM LLD (UWC)
Extraordinary Professors:	W Nortje, LLB (NWU) LLM LLD (UWC) M Pieth, PhD (Basel University) Barrister of Law UK RJ Uphoff, BA (Wisconsin) MSc (London School of Economics) JD (Wisconsin)
Senior Lecturers:	K Chinnian, BA (Law) LLB LLM LLD PGDip (Higher Education T&L) (Cum Laude) (UWC) S Mabunda, LLB (WITS) LLM LLD (UWC/Humboldt University)
Lecturers:	DL Beyers, LLB LLM LLD (UWC) T Lehlekiso LLB (UCT) LLM (Leiden) T Njoko, LLB (Wits) LLM (UKZN) LLD (UWC) C Sanger, LLB (UWC) LLM (UCLA)
Administrator:	EL Witten, B SocSci (UCT)

MERCANTILE AND LABOUR LAW

Head of Department:	MS Wandrag, B Iuris LLB LLM (UFS) LLM (Cantab)
Professors:	D Collier, BA (Law) LLB (Rhodes) LLM (UCT) PhD (UCT) V Lawack, B Iuris LLB LLM (UPE) LLD (UNISA) F Moosa, B Proc LLB (UWC) LLM (UCT) LLD (UWC)
Associate Professors:	Y Basson, LLB LLM LLD (UWC) MM Koekemoer, BCom LLB (PU for CHE) LLM LLD (UP) T Kondo, BCom LLB LLM LLD (UWC) PM Lenaghan, BLC LLB (UP) LLM LLD (UWC) ED Malherbe, BA LLB LLM (SU) LLD (UWC) MS Wandrag, B Iuris LLB LLM (UFS) LLM (Cantab) Vacant
Extraordinary Professors:	P Benjamin, BA LLB (UCT) LLM (Warwick) D Davis, BCom LLB (Cum Laude) (UCT) MPhil (Cambridge) JJ du Plessis, B Proc LLB LLM LLD (UFS) L de Koker, B Iur LLB LLM (UFS) LLM (Cantab) LLD (UFS)

	K Mwenda, LLB (Zambia) BCL MPhil (Oxford) MBA (Hull) PhD (Warwick) LLD (Rhodes) DSc (Econ) (Hull)
Adjunct Professor:	R Brits, BCom LLB LLD (SU) E Kameni, LLB (Buea) LLM (UWC) LLM (Harvard) LLD (UP)
Professor Emeritus:	D du Toit, BA LLB (UCT) LLD (Leiden)
Senior Lecturers:	P Ndlovu, LLB (Fort Hare) LLM LLD (UWC) E Olivier, LLB LLM (Cum Laude) LLD (UWC) N Sibanda, LLB (Fort Hare) LLM (SU) LLD (UWC) J van de Rheede, LLB (UWC) LLM (UCT) PhD (UWC) E Huysamen, LLB LLM (Cum Laude) (SU)
Lecturer:	K Loedolf, LLB LLM LLD (UWC)
Research Fellow	A Osiki, LLB (Ibadan) PGDip (NLS Nigeria) LLM PhD (UCT)
Administrator:	O Xako, NDip BTech (CPUT)

PRIVATE LAW

Head of Department:	Y Mupangavanhu, LLB (UFH) LLM LLD (UWC)
Professors:	A Diala, LLB Hons (ESUT) PGDip (NLS) LLM (UP) PhD (UCT) N Moosa, BA LLB LLM LLD (UWC) L Mwambene, Dip N LLB Honours (Malawi) LLM LLD (UWC) S-M Viljoen, BCom (Law) LLB LLD (SU)
Associate Professors:	M Abduroaif, LLB Shariah (Islamic University of Madinah) LLB LLM LLD (UWC) A Booley, LLB LLM LLD (UWC) Y Mupangavanhu, LLB (UFH) LLM LLD (UWC) D Oriakhogba, LLB LLM (University of Benin) PhD (UCT)
Extraordinary Professor:	J Scherpe, First State Examination (Freie) Second State Examination (Hamburg) PhD (Summa Cum Laude) (Hamburg) MJur (Oxford) MA PhD (Cambridge)
Senior Lecturers:	B Hoops, LLB LLM (Univ Bremen and Oldenburg, Univ Groningen) PhD (Univ Groningen) C Jacobs, LLB (UWC) LLM (UP) PhD (Leiden) L Manie, LLB LLM LLD (UWC)
Lecturers:	B Qumbu, LLB (UFS) LLM (NWU) A Miggels, LLB LLM (UWC) M Sungay, LLB LLM (UWC) Vacant
Adjunct Lecturers:	M Hendricks, BA PGDip (Higher Ed) (UWC) Hon (Psych) MA (Clinical Psych) MA (Ethics) (SU) LLB (Unisa)

Administrator:	A Kleinsmidt, NDip (Radiography) (Cape Peninsula Technicon) BA (UWC) LLB (Wits) LLM (Wits) PGDip (Applied Ethics) (SU) Cert (Medical Law) (LSSA) M Nelson, BAdmin (UWC)
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PUBLIC LAW AND JURISPRUDENCE

Head of Department:	Y Fessha, LLB (Addis Ababa) LLM (UP) PhD (UWC)
Professors:	J de Ville, BCom LLB (PU for CHE) LLD (SU) W le Roux, BLC LLB (UP) BA Hon (RAU) LLD (UP)
Research Chair in Gender, Transformation and Worldmaking:	K van Marle, BLC LLB (UP) LLM (Cum Laude) LLD (Unisa)
Research Chair in Constitutional Design in Divided Societies:	Y Fessha, LLB (Addis Ababa) LLM (UP) PhD (UWC)
Associate Professors:	UM Assim, LLB (Nigeria) LLM (UP) LLD (UWC) A van der Berg, LLB LLM (NWU) PhD (NWU/ Tilburg) R Henrico, B Proc (Wits) LLB LLM (Cum Laude) (UJ) LLD (NWU)
Extraordinary Professors:	CW Maris, LLB PhD (Cum Laude) (Amsterdam) K Kössler, Mag. iur. Mag. Phil. Dr. iur. (Univ Innsbruck) D Steiger, Dr. iur. (Univ Potsdam) Habilitation (Freie Univ, Berlin)
Emeritus Professor:	J Sloth-Nielsen, BA LLB (SU) LLM (UCT) PhD (UWC)
Senior Lecturers:	S Fick, LLB LLM (SU) PhD (UCT) B Lemine LLB LLM (UWC) MTech (CPUT) PG Dip PhD (UWC)
Adjunct Senior Lecturer:	Vacant
Lecturers:	T Chonco - Spambo, LLB (Wits) LLM (UWC) L Draga, LLB (Summa Cum Laude) LLM (University of Missouri) LLD (UWC) MS Kasker, LLB LLM LLD (UWC) B Kengni, LLB (University of Yaounde II) LLM (UWC) PhD (UCT)
Administrator:	LB Thomas

RESEARCH UNIT FOR LEGAL CONSTITUTIONAL INTERPRETATION AND THEORY (RULCI)

Director:	K van Marle, BLC LLB (UP) LLM (Cum Laude) LLD (Unisa)
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DULLAH OMAR INSTITUTE FOR CONSTITUTIONAL LAW, GOVERNANCE AND HUMAN RIGHTS

Director and Associate Professor:	L Muntingh, MA (SU) PhD (UWC)
Extraordinary Professors:	H Kummeling, LLB LLD (Radboud, Nijmegen) X Philippe, LLB LLM PhD (Aix-Marseille) ZA Ayele, LLB (Addis Ababa) LLM LLD (UWC)
Emeritus Professor:	NC Steytler, BA LLB (SU) LLM (London) PhD (UKZN) Dr H.C. (Fribourg)
Adjunct Professors:	T Lorzio, LLB (Bologna) LLM PhD (UCT) S Berrisford, BA LLB M City & Regional Planning (UCT) MPhil (Cambridge)
SARCHI Chair in Multilevel Government, Law and Development:	J de Visser, LLB (Utrecht) LLM (UWC) LLD (Utrecht)
Postdoctoral Researcher:	J Wright, LLB (NWU) LLM (NWU) PhD (NWU)
Multi-level Government Project Head:	T Chigwata, LLB (Zimbabwe) LLM PhD (UWC)
Professor:	J de Visser, LLB (Utrecht) LLM (UWC) LLD (Utrecht)
Researcher:	T Chonco-Spambo, LLB (Wits) LLM (UWC)
Children's Rights Project Project Head:	BD Mezmur, LLB (Addis Ababa) LLM (UP) LLD (UWC)
Africa Criminal Justice Reform (ACJR) Project Head:	L Muntingh, MA (SU) PhD (UWC)
Senior Researcher:	J Redpath, BSc LLB (UCT) PhD (UWC)
Researcher:	J Mangwanda, B Political Science (UP) BA Hons (UP) MA (UP)
Socio-Economic Rights Project (SERP) Project Head:	Vacant
Researcher:	G Mirugi-Mukundi, LLB (Makerere) LLM (UP)
Finance Manager:	Sadieka Najaar, ADM (UWC)
Office Administrator:	D Gordon
Communications Administrator:	K Saptio
Bookkeeper:	Vacant
Project Administrators:	C Nitsckie L Wellen

LAW CLINIC

Director:	S Jassiem, LLB LLM (UWC)
Attorneys:	L Barnes, LLB (UWC) S Naidu, LLB (UWC) G Pillay, BA BSc Dip As (UCT) LLB LLM (UWC) S Rippenaar, LLB LLM (UWC) GL van Niekerk, LLB (UWC)
Office Administrator:	Z Abdulla
Administrative Assistant:	S Ndiye, BA BA Hons (Dev Studies) (UWC)

AFRICAN CENTRE FOR TRANSNATIONAL CRIMINAL JUSTICE

Director:	J-M Iyi, LLB (Benin) BL (Hons) (Nig) LLM (Ibadan) PhD (Wits)
Professor:	J-M Iyi, LLB (Benin) BL (Hons) (NIG) LLM (Ibadan) PhD (Wits)
Associate Professor:	W Nortje, LLB (NWU) LLM LLD (UWC)
Adjunct Professors:	J Aluoch, LLB (Nairobi) MA (Boston) PGDip (Laws) (Nairobi) V Nerlich, First and Second State Examination in Law (Universities of Bayreuth and Humboldt) LLM (UWC) Doctor Iuris (Humboldt University) SH Adjolahoun, BA (Law) B (Public Administration and Law) (Université d'Abomey-Calavi) LLB (USAM, Béninniversité Pierre Mendès) LLM LLD (UP)
Senior Lecturer:	A Munyai, LLB (Univen) LLM LLD (NWU)
Researcher:	Vacant
Senior Researcher:	TL Mushoriwa, LLB (Zimbabwe) LLM (UNISA) PhD (UKZN)
Research Fellows:	T Fiskatoris, LLB (Athens) LLM (Grenoble) PhD (Middlesex) E Omorogbe, LLB (Warwick) BL (Nigeria) LLM (London) PhD (Kent)
Administrator:	T Oliphant, NDip (Legal Secretary) (Northlink College) Higher Certificate in Law LLB (UNISA)

CENTRE FOR LEGAL INTEGRATION IN AFRICA

Director:	A Diala, LLB Hons (ESUT) PGDip (NLS) LLM (UP) PhD (UCT)
Extraordinary Professor	JM Ubink, BA MA PhD (Leiden)
Researcher:	M Tlale, LLB (NUL) LLM LLD (NWU)

MUSLIM PERSONAL LAW UNIT

Professor:	N Moosa, BA LLB LLM LLD (UWC).
Associate Professors:	M Abduroaaf, LLB Shariah (Islamic University of Madinah) LLB LLM LLD (UWC) A Booley, LLB LLM LLD (UWC)
Senior Lecturer:	L Manie, LLB LLM LLD (UWC)
Administrator:	M Sungay LLB LLM (UWC)

CENTRE FOR TRANSFORMATIVE REGULATION OF WORK

Director:	D Collier, BA (Law) LLB (Rhodes) LLM (UCT) PhD (UCT)
Extraordinary Professors:	P Benjamin, BA LLB (UCT) LLM (Univ. Warwick)
Emeritus Professor:	D du Toit, BA LLB (UCT) LLD (Leiden)
Administrator:	I Naidoo
Social Law Project	
Project Head:	F Mullagee, BA (UCT) BA Hons (UWC) BPhil (SU)
Academic Coordinator:	D Collier, BA (Law) LLB (Rhodes) LLM PhD (UCT)
Education Programme Coordinator:	R Ronnie, LLM (UNISA)
Office Manager:	A Swartz, Dip Th (SABCol) NDip BM (INTEC)
Education Administration/Reception:	L Schuller
Education Support/Lecturer:	E Booy, LLM (UWC)
Labour Law Online	
Clinician	R Beukes, LLB LLM (UWC)

GLOBAL ENVIRONMENTAL LAW CENTRE (GELC)

Director:	A van der Berg, LLB LLM (NWU) PhD (NWU/Tilburg)
Extraordinary Professors:	J Verschuuren, LLM PhD (Cum Laude) (Tilburg) W Scholtz, BA LLB (PU for CHE) Doctorate in Law (Leiden) J Bäuml, LLM (UWC) Dr. iur. (Univ Potsdam)
Adjunct Senior Lecturer:	A Wilson, LLB (UJ) LLM (Lewis & Clark Law School, OR, USA)
Researcher:	RM Steenkamp, LLB LLM LLD (NWU)
Adjunct Lecturer:	Vacant

HONORARY PROFESSORS

Honorary Professors:	CJR Dugard, BA LLB (SU) LLB Dipl in International Law LLD (Cantab) LLD hc (Natal, Cape Town, Pretoria, Port Elizabeth and Witwatersrand) Prof Emeritus (Witwatersrand) SC S Majiedt, BA (Law) LLB (UWC) M Navsa, BA LLB (UWC) J Murphy, BA LLB PGDip (UCT)
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CENTRE FOR AFRICAN FINTECH, INNOVATION AND LAW (CAFIL)

Director:	V Lawack, B Iuris LLB LLM (UPE) LLD (UNISA)
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RULES FOR UNDERGRADUATE PROGRAMMES

BACHELOR OF LAWS (7162)

H.1 ADMISSION

Unless Senate decides otherwise, a student shall be required to meet the following criteria to be enrolled for the **Bachelor of Laws Degree – (LLB)**:

H.1.1 Minimum admission requirements for applicants who matriculated from 2008

As only a limited number of students can be admitted to the programme, an applicant shall be subject to a selection procedure.

When selecting students for placement in the LLB Curriculum Programme, the Faculty will consider the following factors:

- (i) UWC points score; and
- (ii) performance in Mathematics or Mathematical Literacy; and
- (iii) performance in English.

An applicant who qualifies for the 4-year programme can also be placed in the 5-year programme based on criteria as decided on by Senate.

- (a) The National Senior Certificate for Bachelor's Degree study with a score of no fewer than 37 points calculated according to the University's approved points system, as well as the following specific subject requirements:
 - Level 4 (50-59%) in English (Home or First Additional Language), and
 - Level 3 (40-49%) in another Language (Home or First Additional Language), and
 - Level 3 (40-49%) in Mathematics or Level 5 (60-69%) in Mathematical Literacy

OR

- (b) A qualification or level of competence which the Senate of the University has deemed to be equivalent to the requirements stipulated in (a) above.

H.1.2 Minimum admission requirements for applicants who matriculated before 2008

- (a) A Matriculation Exemption with a minimum of a C aggregate.

OR

- (b) A qualification or level of competence which the Senate of the University has deemed to be equivalent to the requirements stipulated in (a) above.

H.1.3 Alternative admission

Alternative admission requirements in terms of Recognition of Prior Learning (RPL)

An applicant who completed the NSC in 2008 or thereafter, but has not obtained an endorsement, shall be considered for alternative admission after the age of 23. Such an applicant shall be required to complete an RPL portfolio development course and submit to a process where relevant learning and/or experience shall be assessed.

An applicant who is 23 years or older and does not have a matriculation certificate or NSC, but who may have obtained other qualifications or experience that may be deemed to be equivalent to admission criteria for the particular study programmes, shall also be required to complete an RPL portfolio development course or an RPL portfolio process as agreed upon, and to submit to a process where such learning, qualification, and/or experience shall be assessed.

H.2 SELECTION

Final selection shall be based on an applicant meeting the criteria as determined by the Faculty.

H.3 DURATION

Unless Senate decides otherwise, the duration of the programme shall be four years full-time.

H.4 CURRICULUM

H.4.1 Level 1

Module Name	Module Code	Credits
Compulsory		
Basic Skills for Law 101	BSL101	15
English for Educational Development 101 (Law)	EED101	15
Law of Persons 112	LOP112	15
Family Law 121	FAM121	15
Introduction to Law 111	ILL111	15
Introduction to Law 121	ILL121	15
Sub-total		90
Electives (select one group)		
Group 1		
Ethics 111	ETH111	15
Ethics 121	ETH121	15
Group 2		
History 153	HIS153	15
History 154	HIS154	15
Group 3		
Xhosa Language Acquisition 111	XHA111	15
Xhosa Language Acquisition 121	XHA121	15

Group 4

Introduction to Psychology 111	PSY111	7.5
Brain and Behaviour 112	PSY112	7.5
Psychology of Child Development 121	PSY121	7.5
Introduction to Research Methods 123	PSY123	7.5

Group 5

Introduction to Economics and Business 131	IEB131	15
Principles of Business Management 131/132	MAN131/132	15

Group 6

Political Studies 131	POL131	15
SA Politics and the Environment 142	POL142	15
	Sub-total	30
	Total	120

H.4.2 Level 2

Module Name	Module Code	Credits
Compulsory		
Criminal Law 202	CRL202	20
Constitutional Law 202	CON202	20
Interpretation of Statutes 221	STI221	15
Law of Criminal Procedure 204	LCP204	20
Law of Delict 201	DEL201	20
Law of Property 211	THI211	15
Law of Succession 211	SUC211	10
	Total	120

H.4.3 Level 3

Module Name	Module Code	Credits
Compulsory		
Administrative Law 311	ADL311	15
Law of Civil Procedure 302	CIV302	20
Law of Contract 301	CNT301	20
Customary Law 311	CUS311	10
Law of Insolvency 311	INS311	10
Labour Law 321	LAB321	15
Public International Law 321	PUB321	10
Research Methodology 311	RSM311	5
Jurisprudence 312	JUR312	15
	Total	120

H.4.4 Level 4

Module Name	Module Code	Credits
Compulsory		
Corporate Law 401	COR401	20
Commercial Transactions Law 421	CTL421	10
Law of Evidence 402	EVI402	20

Legal Process 411 (footnotes 1 and 2)	LPP411	10
Preparing for Legal Practice 401	PLP401	10
Research Paper 431	REP431	10
	Sub-total	80
Electives (select modules to the value of 40 credits)		
Advanced Criminal Law 431	CRL431	10
Advanced Family Law 431	FAM431	10
Advanced Labour Law 431	LBL431	10
Advanced Law of Civil Procedure 412 (not offered in 2026)	ACP412	10
Advanced Law of Contract 431 (not offered in 2026)	CNT431	10
Advanced Law of Criminal Procedure 412	ACR412	10
Advanced Public Law 431	ADL431	10
Alternative Dispute Resolution 431	ADR431	10
Child Justice 431	CHJ431	10
Clinical Law 431 ¹	CLN431	20
*Comparative Law	CCR412	10
*Comparative Criminal Justice 411	CRJ411	10
Competition Law 431	CPT431	10
Conflict of Laws 431 (not offered in 2026)	CNL431	10
Constitutional Litigation 431 (not offered in 2026)	CLL431	10
Conveyancing 431	CNY431	10
Digitalising Labour Law 431 ² (not offered in 2026)	LAB431	10
Entrepreneurial Legal Practice 431 ²	ELP431	10
Environmental Law 431	ENV431	10
Gender Law 431	GEN431	10
Intellectual Property Law 431	IPL431	10
International Business Law 431	IBL431	10
Internet Law 431	INT431	10
Law and Social Transformation 431	CRI431	10
Housing, Land and Property Reform 431 (not offered in 2026)	LLW431	10
Law of Economic Crime 431	LEC431	10
Law of Insurance 431	LOI431	10
Law of Sale & Lease 431 (not offered in 2026)	SAL431	10
Law of Trusts 431 (not offered in 2026)	TRU431	10
Law of Unjustified Enrichment 431 (not offered in 2026)	UNJ431	10
Legal and Religious Pluralism 431	LPL431	10
Regional Integration 431	EUR431	10
Social Security Law 431	SSL431	10
South African Bill of Rights 431	SAB431	10
Tax Law 431	TXL431	10
	Sub-total	40
	Total	120
	FINAL TOTAL	480

¹ A student who selects Clinical Law as an elective is exempt from Legal Process, and must take three additional electives.

² A student who selects Digitalising Labour Law or Entrepreneurial Legal Practice as an elective is exempt from Legal Process, and must take four additional electives.

* Missouri Programme

H.4.A LLB Programme (Alternative)

A student who has completed a Bachelor's degree will be granted an exemption from Basic Skills for Law 101 (BSL101), English for Educational Development 101 (EED101), and the non-legal modules equivalent to **60 credits** in the first year of study of the LLB programme. This student is required to complete the following curriculum:

Exemption modules include:

Module Name	Module Code	Credits
Basic Skills for Law 101	BSL101	15
English for Educational Development 101	EED101	15
Non-legal modules 010	NLD010	30
	Sub-total	60

H.4.A.1 Level 2 (first year of registration)

Module Name	Module Code	Credits
Compulsory		
Constitutional Law 202	CON202	20
Criminal Law 202	CRL202	20
Family Law 121	FAM121	15
Introduction to Law 111	ILL111	15
Introduction to Law 121	ILL121	15
Law of Delict 201	DEL201	20
Law of Persons 112	L0P112	15
Law of Property 211	THI211	15
Law of Succession 211	SUC211	10
	Sub-total	145

H.4.A.2 Level 3 (second year of registration)

Module Name	Module Code	Credits
Compulsory		
Administrative Law 311	ADL311	15
Customary Law 311	CUS311	10
Interpretation of Statutes 221	STI221	15
Labour Law 321	LAB321	15
Law of Civil Procedure 302	CIV302	20
Law of Contract 301	CNT301	20
Law of Criminal Procedure 204	LCP204	20
Law of Insolvency 311	INS311	10
Public International Law 321	PUB321	10
Research Methodology 311	RSM311	5
	Sub-total	140

H.4.A.3 Level 4 (third year of registration)

Module Name	Module Code	Credits
Compulsory		
Commercial Transactions Law 421	CTL421	10
Corporate Law 401	COR401	20
Law of Evidence 402	EVI402	20
Legal Process 411 (footnotes 1 and 2)	LPP411	10
Preparing for Legal Practice 401	PLP401	10

Research Paper 431	REP431	10
Jurisprudence 312	JUR312	15
	Sub-total	95

Electives (select modules to the value of 40 credits)

Clinical Law 431 ¹	CLN431	20
Advanced Criminal Law 431	CRL431	10
Advanced Family Law 431	FAM431	10
Advanced Labour Law 431	LBL431	10
Advanced Law of Civil Procedure 412 (not offered in 2026)	ACP412	10
Advanced Law of Contract 431 (not offered in 2026)	CNT431	10
Advanced Law of Criminal Procedure 412	ACR412	10
Advanced Public Law 431	ADL431	10
Alternative Dispute Resolution 431	ADR431	10
Child Justice 431	CHJ431	10
*Comparative Criminal Justice 411	CRJ411	10
Competition Law 431	CPT431	10
Conflict of Laws 431 (not offered in 2026)	CNL431	10
Constitutional Litigation 431 (not offered in 2026)	CLL431	10
Conveyancing 431	CNY431	10
Digitalising Labour Law 431 ² (not offered in 2026)	LAB431	10
Entrepreneurial Legal Practice 431 ²	ELP431	10
Environmental Law 431	ENV431	10
Gender Law 431	GEN431	10
Intellectual Property Law 431	IPL431	10
International Business Law 431	IBL431	10
Internet Law 431	INT431	10
Law and Social Transformation 431	CRI431	10
*Comparative Law 432	CCR432	
Housing, Land and Property Reform 431 (not offered in 2026)	LLW431	10
Law of Economic Crime 431	LEC431	10
Law of Insurance 431	LOI431	10
Law of Sale & Lease 431 (not offered in 2026)	SAL431	10
Law of Trusts 431 (not offered in 2026)	TRU431	10
Law of Unjustified Enrichment 431 (not offered in 2026)	UNJ431	10
Legal and Religious Pluralism 431	LPL431	10
Regional Integration 431	EUR431	10
Social Security Law 431	SSL431	10
South African Bill of Rights 431	SAB431	10
Tax Law 431	TXL431	10
	Sub-total	40
	Total	135
	FINAL TOTAL	480

¹ A student who selects Clinical Law as an elective is exempt from Legal Process, and must take three additional electives.

² A student who selects Digitalising Labour Law or Entrepreneurial Legal Practice as an elective is exempt from Legal Process, and must take four additional electives.

* Missouri Programme

H.5 ASSESSMENT

Assessment is governed by Rule A.5 as stipulated in the University Calendar: General Information Part 1.

H.6 PROMOTION RULES

Unless Senate decides otherwise and subject to Rule A.3.2.3 or as provided for in the Faculty rules:

H.6.1 Level 1

A student shall be promoted to Level 2 of study on obtaining at least 90 credits.

H.6.2 Level 2

A student shall be promoted to Level 3 of study on obtaining at least 210 credits (or 205 for LLB Alternative) and all Level 1 modules have been passed.

H.6.3 Level 3

A student shall be promoted to Level 4 of study on obtaining at least 330 credits and all Level 1 and Level 2 modules have been passed.

H.6.4 Level 4

A student shall complete the degree once 480 credits are obtained and all the requirements for the degree are met. For the LLB Alternative, 480 credits includes the 60 exemption credits.

H.7 ADVANCE REGISTRATION

H.7.1 A student may register for modules in advance at the next study level only if they do not have more than 45 credits outstanding from the current or a lower study level.

H.7.2 A student who has not promoted shall not register for modules amounting to more than 90 credits. These credits include all the outstanding modules for the current level as well as modules from the next study level.

H.8 RENEWAL OF REGISTRATION

Renewal of registration shall be governed by Rule A.3.2.3, as stipulated in the University Calendar: General Information Part 1 or as provided for in the faculty rules as contained in this Calendar.

H.9 SPECIAL REQUIREMENTS FOR THE PROGRAMME

H.9.1 A student may not be registered for any module, including an elective, if such module/elective clashes in the lecture and/or test and/or examination timetables with any other module/elective for which the student is registered.

H.9.2 The Faculty does not accept responsibility for clashes in lecture and/or test and/or examination timetables resulting from a departure from the prescribed curriculum or

from a concession made in respect of elective modules in Rules H.4.4 and H.4.A.3. The Faculty will make no concessions to students whose choice of modules results in such clashes.

- H.9.3** The number of students registering for an elective shall be determined by the Faculty.
- H.9.4** Elective modules may not necessarily be offered every year.
- H.9.5** Semester modules will not necessarily be offered in the semester indicated.
- H.9.6** For the purposes of Rule A.5.1.6 (c), the determination of which modules are “exit-level” modules shall be subject to the discretion of Senate, upon recommendation from the Faculty Board.
- H.9.7** A student may be required to submit a research paper for any module, which may constitute a part of the final examination in that module.
- H.9.8** Notwithstanding the provisions of Rule H.6.2, a student who completed their BCom (Law) or BA (Law) degree at any University and registers for the LLB degree will be admitted to study Level 3 on registration in spite of not having passed all Level 1 modules or not having obtained a minimum of 220 credits.
- H.9.9** The module Comparative Criminal Justice 411 (CRJ411) will be presented by way of seminars and lectures. Registration will be limited to such numbers as determined by the Faculty of Law whose decision shall be final. Application for registration must be made timeously by such date determined by the Faculty of Law. All applications for admission to this module will be considered on academic merit and such other factor/s as the Faculty of Law may deem necessary.
- H.9.10** Notwithstanding the provisions of Rule H.6.1, a student who completed their Bachelors degree and registers for the LLB degree will be admitted to study Level 2 on registration in spite of not having passed all Level 1 modules or not having obtained a minimum of 90 credits.

MODULES LIST PER YEAR LEVEL:

MODULE TYPE:

Compulsory (**C**), Electives (**E**), Year Module (**YR**), Semester Module (**S**), Pre-requisites and Co-requisites, Service Module (**SM**)

ASSESSMENT TYPE:

Continuous Assessment (**CA**) or Final Assessment (**FA**) or Continuous Assessment and Final Assessment (**CFA**)

Module Code	Module Name	Compulsory/ Elective	Level	Credits	NQF Level	Duration	Pre-Requisite	Co-Requsite	Assessment Type	Service Module
BSL101	Basic Skills for Law 101	C	1	15	5	YR	None	None	CFA	
EED101	English for Educational Development 101	C	1	15	5	YR	None	None	CFA	SM
ETH111	Ethics 111	E	1	15	5	S1	None	None	CFA	SM
ETH121	Ethics 121	E	1	15	5	S2	None	None	CFA	SM
FAM121	Family Law 121	C	1	15	5	S2	None	None	CFA	
HIS153	History 153	E	1	15	5	S1	None	None	CFA	SM
HIS154	History 154	E	1	15	5	S2	None	None	CFA	SM
IEB131	Introduction to Economics and Business 131	E	1	15	5	S1	None	None	CFA	SM
ILL111	Introduction to Law 111	C	1	15	5	S1	None	None	CFA	
ILL121	Introduction to Law 121	C	1	15	5	S2	None	None	CFA	
LOP112	Law of Persons 112	C	1	15	5	S1	None	None	CFA	
MAN131/ MAN132	Principles of Business Management 131/132	E	1	15	5	S1/ S2	Non-EMS Students IEB131	None	CFA	SM
POL131	Political Studies 131	E	1	15	5	S1	None	None	CFA	SM
POL142	SA Politics and the Environment 142	E	1	15	5	S2	None	None	CFA	SM
PSY111	Introduction to Psychology 111	E	1	7.5	5	S1	None	None	CFA	SM
PSY112	Brain and Behaviour 112	E	1	7.5	5	S1	None	None	CFA	SM
PSY121	Psychology of Child Development 121	E	1	7.5	5	S2	None	None	CFA	SM
PSY123	Introduction to Research Methods 123	E	1	7.5	5	S2	None	None	CFA	SM
XHA111	Xhosa Language Acquisition 111	E	1	15	5	S1	None	None	CFA	SM

Module Code	Module Name	Compulsory/ Elective	Level	Credits	NQF Level	Duration	Pre-Requisite	Co-Requisite	Assessment Type	Service Module
XHA121	Xhosa Language Acquisition 121	E	1	15	5	S2	XHA111	None	CFA	SM
CON202	Constitutional Law 202	C	2	20	6	YR	None	None	CFA	
CRL202	Criminal Law 202	C	2	20	6	YR	None	None	CFA	
DEL201	Law of Delict 201	C	2	20	6	YR	None	None	CFA	
LCP204	Law of Criminal Procedure 204	C	2	20	6	YR	None	None	CFA	
STI221	Interpretation of Statutes 221	C	2	15	6	S2	None	None	CFA	
SUC211	Law of Succession 211	C	2	10	6	S1	None	None	CFA	
THI211	Law of Property 211	C	2	15	6	S1	None	None	CFA	
ADL311	Administrative Law 311	C	3	15	7	S2	None	None	CFA	
CIV302	Law of Civil Procedure 302	C	3	20	7	YR	None	None	CFA	
CNT301	Law of Contract 301	C	3	20	7	YR	None	None	CFA	
CUS311	Customary Law 311	C	3	10	7	S1	None	None	CFA	
INS311	Law of Insolvency 311	C	3	10	7	S1	None	CNT301	CFA	
JUR312	Jurisprudence 312	C	3	15	7	S1	None	None	CA	
LAB321	Labour Law 321	C	3	15	7	S2	None	None	CFA	
PUB321	Public International Law 321	C	3	10	7	S2	None	None	CFA	
RSM311	Research Methodology 311	C	3	5	7	S2	None	None	CA	
ACP412	Advanced Law of Civil Procedure 412	E	4	10	8	S2	CIV302 & CON202	EVI402	CFA	
ACR412	Advanced Law of Criminal Procedure 412	E	4	10	8	S2	LCP204 & CON202	EVI402	CFA	
ADL431	Advanced Public Law 431	E	4	10	8	S1	None	None	CFA	
ADR431	Alternative Dispute Resolution 431	E	4	10	8	S1	LAB321	None	CFA	
CCR412	Comparative Law 412	E	4	10	8	S2	None	None	CFA	
CHJ431	Child Justice 431	E	4	10	8	S1	None	None	CFA	
CLL431	Constitutional Litigation 431	E	4	10	8	S2	CON202	None	CFA	
CLN431	Clinical Law 431	E	4	20	8	YR	CIV302	None	CFA	
CNL431	Conflict of Laws 431	E	4	10	8	S1	None	None	CFA	

Module Code	Module Name	Compulsory/ Elective	Level	Credits	NQF Level	Duration	Pre-Requisite	Co-Requisite	Assessment Type	Service Module
CNT431	Advanced Law of Contract 431	E	4	10	8	S2	CNT301	None	CFA	
CNY431	Conveyancing 431	E	4	10	8	S2	THI211	None	CFA	
COR401	Corporate Law 401	C	4	20	8	YR	CNT301	None	CFA	
CPT431	Competition Law 431	E	4	10	8	S1	None	None	CFA	
CRI431	Law and Social Transformation 431	E	4	10	8	S2	ILL111 & ILL121 & CON202	JUR312	CA	
CRJ411	Comparative Criminal Justice 411*	E	4	10	8	S2	CRL202 & LCP204	None	CFA	
CRL431	Advanced Criminal Law 431	E	4	10	8	S2	THI211	None	CFA	
CTL421	Commercial Transactions Law 421	C	4	10	8	S2	CNT301	None	CFA	
ELP431	Entrepreneurial Legal Practice 431	E	4	10	8	S2	None	None	CA	
ENV431	Environmental Law 431	E	4	10	8	S1	None	None	CFA	
EUR431	Regional Integration 431	E	4	10	8	S2	None	None	CFA	
EVI402	Law of Evidence 402	C	4	20	8	YR	LCP204 or CIV302	None	CFA	
FAM431	Advanced Family Law 431	E	4	10	8	S1	FAM121	None	CFA	
GEN431	Gender Law 431	E	4	10	8	S1	JUR312	None	CA	
IBL431	International Business Law 431	E	4	10	8	S2	CNT301	None	CFA	
INT431	Internet Law 431	E	4	10	8	S1	CNT301	None	CFA	
IPL431	Intellectual Property Law 431	E	4	10	8	S1	THI211	None	CFA	
LAB431	Digitalising Labour Law 431	E	4	10	8	S2	LAB321	None	CFA	
LBL431	Advanced Labour Law 431	E	4	10	8	S1	LAB321	None	CFA	
LEC431	Law of Economic Crime 431	E	4	10	8	S2	None	None	CFA	
LLW431	Housing, Land and Property Reform 431	E	4	10	8	S2	THI211	None	CA	
LOI431	Law of Insurance 431	E	4	10	8	S2	CNT301	None	CFA	
LPL431	Legal and Religious Pluralism 431	E	4	10	8	S2	None	None	CFA	

Module Code	Module Name	Compulsory/ Elective	Level	Credits	NQF Level	Duration	Pre-Requisite	Co-Requisite	Assessment Type	Service Module
LPP411	Legal Process 411	C	4	10	8	S1	CIV302	None	CFA	
PLP401	Preparing for Legal Practice 401	C	4	10	8	YR	None	None	CFA	
REP431	Research Paper 431	C	4	10	8	YR	None	RSM311	FA	
SAB431	South African Bill of Rights 431	E	4	10	8	S1	CON202	None	CFA	
SAL431	Law of Sale & Lease 431	E	4	10	8	S2	CNT301	None	CFA	
SSL431	Social Security Law 431	E	4	10	8	S1	LAB321	None	CFA	
TRU431	Law of Trusts 431	E	4	10	8	S2	SUC211 & CNT301	None	CFA	
TXL431	Tax Law 431	E	4	10	8	S2	None	None	CFA	
UNJ431	Law of Unjustified Enrichment 431	E	4	10	8	S1	CNT301 & DEL201	None	CFA	

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H.10 ADMISSION

Unless Senate decides otherwise, a student shall be required to meet the following criteria to be enrolled for the **Bachelor of Laws Degree – (LLB)**:

H.10.1 Minimum admission requirements for applicants who matriculated from 2008

As only a limited number of students can be admitted to the programme, an applicant shall be subject to a selection procedure.

When selecting a student for placement in the LLB Curriculum Programme, the Faculty will consider the following factors:

- (i) UWC points score; and
- (ii) performance in Mathematics or Mathematical Literacy; and
- (iii) performance in English.

An applicant who qualifies for the 4-year programme can also be placed in the 5-year programme based on criteria as decided on by Senate.

- (a) The National Senior Certificate for Bachelor's Degree study with a score of no fewer than 37 points calculated according to the University's approved points system, as well as the following specific subject requirements:
 - Level 4 (50-59%) in English (Home or First Additional Language), and
 - Level 3 (40-49%) in another Language (Home or First Additional Language), and
 - Level 3 (40-49%) in Mathematics or Level 5 (60-69%) Mathematical Literacy

OR

- (b) A qualification or level of competence which the Senate of the University has deemed to be equivalent to the requirements stipulated in (a) above.

H.10.2 Minimum admission requirements for applicants who matriculated before 2008

- (a) A Matriculation Exemption with a minimum of a D aggregate or Conditional Exemption or an Age Exemption.

OR

- (b) A qualification or level of competence which the Senate of the University has deemed to be equivalent to the requirements stipulated in (a) above.

H.10.3 Alternative admission requirements in terms of Recognition of Prior Learning (RPL)

An applicant who completed the NSC in 2008 or thereafter, but has not obtained an endorsement, shall be considered for alternative admission after the age of 23. Such an applicant

shall be required to complete an RPL portfolio development course and submit to a process where relevant learning and/or experience shall be assessed.

An applicant who is 23 years or older and does not have a matriculation certificate or NSC, but who may have obtained other qualifications or experience that may be deemed to be equivalent to admission criteria for the particular study programmes, shall also be required to complete an RPL portfolio development course or an RPL portfolio process as agreed upon, and to submit to a process where such learning, qualification, and/or experience shall be assessed.

H.11 SELECTION

Final selection shall be based on an applicant meeting the criteria as determined by the Faculty.

H.12 DURATION

Unless Senate decides otherwise, the duration of the programme shall be five years full-time.

H.13 CURRICULUM

H.13.1 Level 1

Module Name	Module Code	Credits
Compulsory		
Introduction to Law 100 (ECP)	ILL100	15
Introduction to Law 200 (ECP)	ILL200	15
Basic Skills for Law 100 (ECP)	BSL100	15
	Total	45

H.13.2 Level 2

Module Name	Module Code	Credits
Compulsory		
English for Educational Development 101 (Law)	EED101	15
Family Law 100 (ECP)	FAM100	15
Law of Persons 100 (ECP)	LOP100	15
	Sub-total	45

Electives (select one group)

Group 1

Ethics 111	ETH111	15
Ethics 121	ETH121	15

Group 2

History 153	HIS153	15
History 154	HIS154	15

Group 3

Xhosa Language Acquisition 111	XHA111	15
Xhosa Language Acquisition 121	XHA121	15

Group 4

Introduction to Psychology 111	PSY111	7.5
Brain and Behaviour 112	PSY112	7.5

Psychology of Child Development 121	PSY121	7.5
Introduction to Research Methods 123	PSY123	7.5
Group 5		
Introduction to Economics and Business 131	IEB131	15
Principles of Business Management 131/132	MAN131/132	15
Group 6		
Political Studies 131	POL131	15
SA Politics and the Environment 142	POL142	15
	Sub-total	30
	Total	75

H.13.3 Level 3

Module Name	Module Code	Credits
Compulsory		
Criminal Law 202	CRL202	20
Constitutional Law 202	CON202	20
Law of Criminal Procedure 204	LCP204	20
Interpretation of Statutes 221	STI221	15
Law of Property 211	THI211	15
Law of Succession 211	SUC211	10
Law of Delict 201	DEL201	20
	Total	120

H.13.4 Level 4

Module Name	Module Code	Credits
Compulsory		
Law of Civil Procedure 302	CIV302	20
Law of Contract 301	CNT301	20
Customary Law 311	CUS311	10
Administrative Law 311	ADL311	15
Law of Insolvency 311	INS311	10
Labour Law 321	LAB321	15
Public International Law 321	PUB321	10
Research Methodology 311	RSM311	5
Jurisprudence 312	JUR312	15
	Total	120

H.13.5 Level 5

Module Name	Module Code	Credits
Compulsory		
Commercial Transactions Law 421	CTL421	10
Corporate Law 401	COR401	20
Law of Evidence 402	EVI402	20
Legal Process 411 (footnotes 1 and 2)	LPP411	10
Preparing for Legal Practice 401	PLP401	10
Research Paper 431	REP431	10
	Sub-total	80

Electives (select modules to the value of 40 credits)

Advanced Criminal Law 431	CRL431	10
Advanced Family Law 431	FAM431	10
Advanced Labour Law 431	LBL431	10
Advanced Law of Civil Procedure 412 (not offered in 2026)	ACP412	10
Advanced Law of Contract 431 (not offered in 2026)	CNT431	10
Advanced Law of Criminal Procedure 412	ACR412	10
Advanced Public Law 431	ADL431	10
Alternative Dispute Resolution 431	ADR431	10
Child Justice 431	CHJ431	10
Clinical Law 431 ¹	CLN431	20
Competition Law 431	CPT431	10
Conflict of Laws 431 (not offered in 2026)	CNL431	10
Constitutional Litigation 431 (not offered in 2026)	CLL431	10
Conveyancing 431	CNY431	10
*Comparative Law	CCR412	
*Comparative Criminal Justice 411	CRJ411	10
Digitalising Labour Law 431 ² (not offered in 2026)	LAB431	10
Entrepreneurial Legal Practice 431 ²	ELP431	10
Environmental Law 431	ENV431	10
Gender Law 431	GEN431	10
Intellectual Property Law 431	IPL431	10
International Business Law 431	IBL431	10
Internet Law 431	INT431	10
Law and Social Transformation 431	CRI431	10
Housing, Land and Property Reform 431 (not offered in 2026)	LLW431	10
Law of Economic Crime 431	LEC431	10
Law of Insurance 431	LOI431	10
Law of Sale & Lease 431 (not offered in 2026)	SAL431	10
Law of Trusts 431 (not offered in 2026)	TRU431	10
Law of Unjustified Enrichment 431 (not offered in 2026)	UNJ431	10
Legal and Religious Pluralism 431	LPL431	10
Regional Integration 431	EUR431	10
Social Security Law 431	SSL431	10
South African Bill of Rights 431	SAB431	10
Tax Law 431	TXL431	10
	Sub-total	40
	Total	120
	FINAL TOTAL	480

H.14 ASSESSMENT

Assessment is governed by Rule A.5 as stipulated in the University Calendar: General Information Part 1.

¹ A student who selects Clinical Law as an elective is exempt from Legal Process, and must take three additional electives

² A student who selects Digitalising Labour Law or Entrepreneurial Legal Practice as an elective is exempt from Legal Process, and must take four additional electives.

* Missouri programmes

H.15 PROMOTION RULES

Unless Senate decides otherwise and subject to Rule A.3.2.3 or as provided for in the Faculty rules:

H.15.1 Level 1

A student shall be promoted to Level 2 of study on obtaining at least 30 credits.

H.15.2 Level 2

A student shall be promoted to Level 3 of study on obtaining at least 90 credits and all Level 1 modules have been passed.

H.15.3 Level 3

A student shall be promoted to Level 4 of study on obtaining at least 210 credits and all Levels 1 and 2 modules have been passed.

H.15.4 Level 4

A student shall be promoted to Level 5 of study on obtaining at least 330 credits and all Level 3 modules have been passed.

H.15.5 Level 5

A student shall complete the degree once 480 credits are obtained and all the requirements for the degree are met.

H.16 ADVANCE REGISTRATION

H.16.1 No advance registration is permitted for modules at Level 2 of study except for the module English for Educational Development (EED101).

H.16.2 A student may register in advance for modules at Level 3 of study only if they do not have more than 15 credits outstanding from the current or lower level of study.

H.16.3 A student may register in advance for modules at Levels 4 and 5 of study only if they do not have more than 45 credits outstanding from the current or lower level of study.

H.16.4 A student who has not promoted shall not take more than 90 credits in total at Levels 3, 4 and 5 of study, consisting of outstanding credits plus anticipated credits. Such a student must register for all outstanding credits.

H.17 RENEWAL OF REGISTRATION

Renewal of registration shall be governed by Rule A.3.2.3, as stipulated in the University Calendar: General Information Part 1 or as provided for in the faculty rules as contained in this Calendar.

H.18 SPECIAL REQUIREMENTS FOR THE PROGRAMME

- H.18.1** A student may not be registered for any module, including an elective, if such module/elective clashes in the lecture and/or test and/or examination timetables with any other module/elective for which the student is registered.
- H.18.2** The Faculty does not accept responsibility for clashes in lecture and/or test and/or examination timetables resulting from a departure from the prescribed curriculum or from a concession made in respect of elective modules in Rule H.13.5. The Faculty will make no concessions to students whose choice of modules results in such clashes.
- H.18.3** The number of students registering for an elective shall be determined by the Faculty.
- H.18.4** Any of the modules referred to as part-time or elective modules may not necessarily be offered every year.
- H.18.5** Semester modules will not necessarily be offered in the semester indicated.
- H.18.6** For the purpose of Rule A.5.1.6 (c), the determination of which modules are "exit-level" modules shall be subject to the discretion of Senate, upon recommendation from the Faculty Board.
- H.18.7** A student may be required to submit a research paper for any module, which may constitute a part of the final examination in that module.

MODULES LIST PER YEAR LEVEL:

MODULE TYPE:

Compulsory (C), Electives (E), Year Module (YR), Semester Module (S), Pre-requisites and Co-requisites, Service Module (SM)

ASSESSMENT TYPE:

Continuous Assessment (CA) or Final Assessment (FA) or Continuous Assessment and Final Assessment (CFA)

Module Code	Module Name	Compulsory/ Elective	Level	Credits	NQF Level	Duration	Pre-Requisite	Co-Requisite	Assessment Type	Service Module
BSL100	Basic Skills for Law 100 (ECP)	C	1	15	5	YR	None	None	CFA	
ILL100	Introduction to Law 100 (ECP)	C	1	15	5	S1	None	None	CFA	
ILL200	Introduction to Law 200 (ECP)	C	1	15	5	S2	None	None	CFA	
EED101	English for Educational Development 101 (Law)	C	2	15	5	YR	None	None	CFA	SM
ETH111	Ethics 111	E	2	15	5	S1	None	None	CFA	SM
ETH121	Ethics 121	E	2	15	5	S2	None	None	CFA	SM
FAM100	Family Law 100 (ECP)	C	2	15	5	S2	None	None	CFA	

Module Code	Module Name	Compulsory/ Elective	Level	Credits	NQF Level	Duration	Pre-Requisite	Co-Requisite	Assessment Type	Service Module
HIS153	History 153	E	2	15	5	S1	None	None	CFA	SM
HIS154	History 154	E	2	15	5	S2	None	None	CFA	SM
IEB131	Introduction to Economics and Business 131	E	2	15	5	S1	None	None	CFA	SM
LOP100	Law of Persons 100 (ECP)	C	2	15	5	S1	None	None	CFA	
MAN131/ MAN132	Principles of Business Management 131/132	E	2	15	5	S1/ S2	Non-EMS Students IEB131	None	CFA	SM
POL131	Political Studies 131	E	2	15	5	S1	None	None	CFA	SM
POL142	SA Politics and the Environment 142	E	2	15	5	S2	None	None	CFA	SM
PSY111	Introduction to Psychology 111	E	2	7.5	5	S1	None	None	CFA	SM
PSY112	Brain and Behaviour 112	E	2	7.5	5	S1	None	None	CFA	SM
PSY121	Psychology of Child Development 121	E	2	7.5	5	S2	None	None	CFA	SM
PSY123	Introduction to Research Methods 123	E	2	7.5	5	S2	None	None	CFA	SM
XHA111	Xhosa Language Acquisition 111	E	2	15	5	S1	None	None	CFA	SM
XHA121	Xhosa Language Acquisition 121	E	2	15	5	S2	XHA111	None	CFA	SM
CON202	Constitutional Law 202	C	3	20	6	YR	None	None	CFA	
CRL202	Criminal Law 202	C	3	20	6	YR	None	None	CFA	
DEL201	Law of Delict 201	C	3	20	6	YR	None	None	CFA	
LCP204	Law of Criminal Procedure 204	C	3	20	6	YR	None	None	CFA	
STI221	Interpretation of Statutes 221	C	3	15	6	S2	None	None	CFA	
SUC211	Law of Succession 211	C	3	10	6	S1	None	None	CFA	
THI211	Law of Property 211	C	3	15	6	S1	None	None	CFA	
ADL311	Administrative Law 311	C	4	15	7	S2	None	None	CFA	
CIV302	Law of Civil Procedure 302	C	4	20	7	YR	None	None	CFA	
CNT301	Law of Contract 301	C	4	20	7	YR	None	None	CFA	
CUS311	Customary Law 311	C	4	10	7	S1	None	None	CFA	
INS311	Law of Insolvency 311	C	4	10	7	S1	None	CNT301	CFA	

Module Code	Module Name	Compulsory/ Elective	Level	Credits	NQF Level	Duration	Pre-Requisite	Co-Requisite	Assessment Type	Service Module
JUR312	Jurisprudence 312	C	4	15	7	S1	None	None	CA	
LAB321	Labour Law 321	C	4	15	7	S2	None	None	CFA	
PUB321	Public International Law 321	C	4	10	7	S2	None	None	CFA	
RSM311	Research Methodology 311	C	4	5	7	S2	None	None	CA	
ACP412	Advanced Law of Civil Procedure 412	E	5	10	8	S2	CIV302 & CON202	EVI402	CFA	
ACR412	Advanced Law of Criminal Procedure 412	E	5	10	8	S2	LCP204 & CON202	EVI402	CFA	
ADL431	Advanced Public Law 431	E	5	10	8	S1	None	None	CFA	
ADR431	Alternative Dispute Resolution 431	E	5	10	8	S1	LAB321	None	CFA	
CCR412	Comparative Law 412*	E	5	10	8	S2	None	None	CFA	
CHJ431	Child Justice 431	E	5	10	8	S1	None	None	CFA	
CLL431	Constitutional Litigation 431	E	5	10	8	S2	CON202	None	CFA	
CLN431	Clinical Law 431	E	5	20	8	YR	CIV302	None	CFA	
CNL431	Conflict of Laws 431	E	5	10	8	S1	None	None	CFA	
CNT431	Advanced Law of Contract 431	E	5	10	8	S2	CNT301	None	CFA	
CNY431	Conveyancing 431	E	5	10	8	S2	THI211	None	CFA	
COR401	Corporate Law 401	C	5	20	8	YR	CNT301	None	CFA	
CPT431	Competition Law 431	E	5	10	8	S1	None	None	CFA	
CRI431	Law and Social Transformation 431	E	5	10	8	S2	ILL111 & ILL121 & CON202	JUR312	CA	
CRJ411	Comparative Criminal Justice 411*	E	5	10	8	S2	CRL202 & LCP204	None	CFA	
CRL431	Advanced Criminal Law 431	E	5	10	8	S2	THI211	None	CFA	
CTL421	Commercial Transactions Law 421	C	5	10	8	S2	CNT301	None	CFA	
ELP431	Entrepreneurial Legal Practice 431	E	5	10	8	S2	None	None	CA	
ENV431	Environmental Law 431	E	5	10	8	S1	None	None	CFA	

Module Code	Module Name	Compulsory/ Elective	Level	Credits	NQF Level	Duration	Pre-Requisite	Co-Requisite	Assessment Type	Service Module
EUR431	Regional Integration 431	E	5	10	8	S2	None	None	CFA	
EVI402	Law of Evidence 402	C	5	20	8	YR	LCP204 or CIV302	None	CFA	
FAM431	Advanced Family Law 431	E	5	10	8	S1	FAM121	None	CFA	
GEN431	Gender Law 431	E	5	10	8	S1	JUR312	None	CA	
IBL431	International Business Law 431	E	5	10	8	S2	CNT301	None	CFA	
INT431	Internet Law 431	E	5	10	8	S1	CNT301	None	CFA	
IPL431	Intellectual Property Law 431	E	5	10	8	S1	THI211	None	CFA	
LAB431	Digitalising Labour Law 431	E	5	10	8	S2	LAB321	None	CFA	
LBL431	Advanced Labour Law 431	E	5	10	8	S1	LAB321	None	CFA	
LEC431	Law of Economic Crime 431	E	5	10	8	S2	None	None	CFA	
LLW431	Housing, Land and Property Reform 431	E	5	10	8	S2	THI211	None	CA	
LOI431	Law of Insurance 431	E	5	10	8	S2	CNT301	None	CFA	
LPL431	Legal and Religious Pluralism 431	E	5	10	8	S2	None	None	CFA	
LPP411	Legal Process 411	C	5	10	8	S1	CIV302	None	CFA	
PLP401	Preparing for Legal Practice 401	C	5	10	8	YR	None	None	CFA	
REP431	Research Paper 431	C	5	10	8	YR	None	RSM311	FA	
SAB431	South African Bill of Rights 431	E	5	10	8	S1	CON202	None	CFA	
SAL431	Law of Sale & Lease 431	E	5	10	8	S2	CNT301	None	CFA	
SSL431	Social Security Law 431	E	5	10	8	S1	LAB321	None	CFA	
TRU431	Law of Trusts 431	E	5	10	8	S2	SUC211 & CNT301	None	CFA	
TXL431	Tax Law 431	E	5	10	8	S2	None	None	CFA	
UNJ431	Law of Unjustified Enrichment 431	E	5	10	8	S1	CNT301 & DEL201	None	CFA	

BACHELOR OF ARTS IN LAW (7221)

H.19 ADMISSION

Unless Senate decides otherwise, a student shall be required to meet the following criteria to be enrolled for the **Bachelor of Arts in Law Degree – BA (Law)**:

H.19.1 Minimum admission requirements for applicants who matriculated from 2008

As only a limited number of students can be admitted to the programme, an applicant shall be subject to a selection procedure.

When selecting an applicant for placement in the BA (Law) Programme, the Faculty will consider the following factors:

- (i) UWC points score; and
 - (ii) performance in Mathematics or Mathematical Literacy; and
 - (iii) performance in English.
- (a) The National Senior Certificate for Bachelor's Degree study with a score of no fewer than 37 points calculated according to the University's approved points system, as well as the following specific subject requirements:
- Level 4 (50-59%) in English (Home or First Additional Language), and
 - Level 3 (40-49%) in another Language (Home or First Additional Language), and
 - Level 3 (40-49%) in Mathematics or Level 5 (60-69%) in Mathematical Literacy

OR

- (b) A qualification or level of competence which the Senate of the University has deemed to be equivalent to the requirements stipulated in (a) above.

H.19.2 Alternative admission

Alternative admission requirements in terms of Recognition of Prior Learning (RPL)

An applicant who completed the NSC in 2008 or thereafter, but has not obtained an endorsement, shall be considered for alternative admission after the age of 23. Such an applicant shall be required to complete an RPL portfolio development course and submit to a process where relevant learning and/or experience shall be assessed.

An applicant who is 23 years or older and does not have a matriculation certificate or NSC, but who may have obtained other qualifications or experience that may be deemed to be equivalent to admission criteria for the particular study programmes, shall also be required to complete an RPL portfolio development course or an RPL portfolio process as agreed upon, and to submit to a process where such learning, qualification, and/or experience shall be assessed.

H.20 SELECTION

Final selection shall be based on an applicant meeting the criteria as determined by the Faculty.

H.21 DURATION

Unless Senate decides otherwise, the duration of the programme shall be three years full-time.

H.22 CURRICULUM

H.22.1 Level 1

Module Name	Module Code	Credits
Compulsory		
Introduction to Law 111	ILL111	15
Introduction to Law 121	ILL121	15
	Sub-total	30
Electives (select three groups)		
Group 1: English		
English 111	ENG111	15
English 121	ENG121	15
Group 2: Philosophy		
Philosophy 111	PHI111	15
Philosophy 122	PHI122	15
Group 3: Sociology		
Sociology 151	SOC151	15
Sociology 152	SOC152	15
Group 4: Political Studies		
Political Studies 131	POL131	15
SA Politics and the Environment 142	POL142	15
Group 5: Psychology		
Introduction to Psychology 111	PSY111	7.5
Brain and Behaviour 112	PSY112	7.5
Psychology of Child Development 121	PSY121	7.5
Introduction to Research Methods 123	PSY123	7.5
Group 6: Forensic and General Linguistics		
Forensic and General Linguistics 111	FGL111	15
Forensic and General Linguistics 121	FGL121	15
	Sub-total	90
	Total	120

H.22.2 Level 2

Module Name	Module Code	Credits
Compulsory		
Law of Persons 112	LOP112	15
Basic Skills for Law 101	BSL101	15
Family Law 121	FAM121	15

Law of Property 211	THI211	15
Constitutional Law 202	CON202	20
	Sub-total	80

Electives (select one group)

Group 1:English

English 211	ENG211	20
English 221	ENG221	20

Group 2:Sociology

Sociology 233	SOC233	20
Sociology 234	SOC234	20

Group 3:Philosophy

Philosophy 212	PHI212	10
Philosophy 213	PHI213	10
Philosophy 221	PHI221	10
Philosophy 222	PHI222	10

Group 4:Psychology

Study of Human Development 211	PSY211	10
Intro to Psychopathology 213	PSY213	10
Introduction to Psychological Interventions 214	PSY214	10
Research Methods and Statistics 221	PSY221	10

Group 5:Political Studies

Political Studies 231	POL231	20
Political Studies 235 (not offered in 2026)	POL235	20

Group 6:Forensic and General Linguistics

Forensic and General Linguistics 211	FGL211	40
	Sub-total	40
	Total	120

H.22.3 Level 3

Module Name

Compulsory

Module Name	Module Code	Credits
Law of Delict 201	DEL201	20
Criminal Law 202	CRL202	20
Labour Law 321	LAB321	15
Law of Contract 301	CNT301	20
Interpretation of Statutes 221	STI221	15
	Sub-total	90

Electives (40 credits chosen from one subject group below or 60 credits if Political Studies is chosen)

Group 1: English

English 311	ENG311	20
English 321	ENG321	20

Group 2: Sociology

Sociology 323	SOC323	20
Sociology 324	SOC324	20

Group 3: Philosophy

Philosophy 311	PHI311	10
Philosophy 312	PHI312	10
Philosophy 321	PHI321	10
Philosophy 322	PHI322	10

Group 4: Psychology

Psychopathology 311	PSY311	10
Introduction to Personality Theories 312	PSY312	10
Research Methods and Statistics 321	PSY321	10
Social Psychology 322	PSY322	10

Group 5: Political Studies

Political Studies 332	POL332	30
Political Studies 334 (not offered in 2026)	POL334	30

Group 6 Forensic and General Linguistics

Forensic and General Linguistics 311	FGL311	40
	Sub-total	40-60
	Total	130-150
	FINAL TOTAL	370-390

H.23 ASSESSMENT

Assessment is governed by Rule A.5 as stipulated in the University Calendar: General Information Part 1.

H.24 PROMOTION RULES

Unless Senate decides otherwise and subject to Rule A.3.2.3 or as provided for in the Faculty rules:

H.24.1 Level 1

A student shall be promoted to Level 2 of study on obtaining at least 90 credits of which at least 15 credits are obtained in the compulsory modules.

H.24.2 Level 2

A student shall be promoted to Level 3 of study on obtaining at least 200 credits of which at least 65 credits are obtained in the compulsory modules.

H.24.3 Level 3

A student shall complete the degree once 370-390 credits are obtained and all the requirements for the degree are met.

H.25 ADVANCE REGISTRATION

H.25.1 A student who has obtained at least 75 credits at the 1st Level of study will be allowed to register for a maximum of 40 credits at level 2, provided that the prerequisites and co-requisites for the level 2 modules are met. Students in this category may not register for more than 90 credits in total for the year.

H.25.2 A student who has obtained at least 160 credits at the 1st Level and at the 2nd Level of study will be allowed to register for a maximum of 40 credits at level 3, provided that the level 3 modules are met. Students in this category may not register for more than 80 credits in total for the year.

H.26 RENEWAL OF REGISTRATION

Renewal of registration shall be governed by Rule A.3.2.3, as stipulated in the University Calendar: General Information Part 1 or as provided for in the Faculty rules.

H.27 SPECIAL REQUIREMENTS FOR THE PROGRAMME

There are no special requirements for this programme.

MODULES LIST PER YEAR LEVEL:

MODULE TYPE:

Compulsory (C), Electives (E), Year Module (YR), Semester Module (S), Pre-requisites and Co-requisites, Service Module (SM)

ASSESSMENT TYPE:

Continuous Assessment (CA) or Final Assessment (FA) or Continuous Assessment and Final Assessment (CFA)

Module Code	Module Name	Compulsory/ Elective	Level	Credits	NQF Level	Duration	Pre-Requisite	Co-Requisite	Assessment Type	Service Module
ILL111	Introduction to Law 111	C	1	15	5	S1	None	None	CFA	
ILL121	Introduction to Law 121	C	1	15	5	S2	None	None	CFA	
ENG111	English 111	E	1	15	5	S1	None	None		SM
ENG121	English 121	E		15	5	S2	D for English Higher Grade or C for English Standard Grade	ENG111	CFA	SM
PHI111	Philosophy 111	E	1	15	5	S1	None	None	CFA	SM
PHI122	Philosophy 122	E	1	15	5	S2	None	None	CFA	SM
SOC151	Sociology 151	E	1	15	5	S1	None	None	CFA	SM
SOC152	Sociology 152	E	1	15	5	S2	None	None	CFA	SM

Module Code	Module Name	Compulsory/ Elective	Level	Credits	NQF Level	Duration	Pre-Requisite	Co-Requisite	Assessment Type	Service Module
POL131	Political Studies 131	E	1	15	5	S1	None	None	CFA	SM
POL142	SA Politics and the Environment 142	E	1	15	5	S2	None	None	CFA	SM
PSY111	Introduction to Psychology 111	E	1	7.5	5	S1	None	None	CFA	SM
PSY112	Brain and Behaviour 112	E	1	7.5	5	S1	None	None	CFA	SM
PSY121	Psychology of Child Development 121	E	1	7.5	5	S2	None	None	CFA	SM
PSY123	Introduction to Research Methods 123	E	1	7.5	5	S2	None	None	CFA	SM
FGL111	Forensic and General Linguistics 111	E	1	15	5	S1	None	None	CFA	SM
FGL121	Forensic and General Linguistics 121	E	1	15	5	S2	FGL111	None	CFA	SM
BSL101	Basic Skills for Law 101	C	2	15	5	YR	None	None	CFA	
CON202	Constitutional Law 202	C	2	20	6	YR	None	None	CFA	
FAM121	Family Law 121	C	2	15	5	S2	None	None	CFA	
LOP112	Law of Persons 112	C	2	15	5	S1	None	None	CFA	
THI211	Law of Property 211	C	2	15	6	S1	None	None	CFA	
ENG211	English 211	E	2	20	6	S1	ENG111 & ENG121 or HUM111 & HUM121 (an average final mark of 65% required in Humanities 111/121)	None	CFA	SM
ENG221	English 221	E	2	20	6	S2		None	CFA	SM
FGL211	Forensic and General Linguistics 211	E	2	40	6	YR	FGL111 & FGL121	None	CFA	SM
PHI212	Philosophy 212	E	2	10	6	S1	PHI111/ 122	None	CFA	SM
PHI213	Philosophy 213	E	2	10	6	S1		None	CFA	SM
PHI221	Philosophy 221	E	2	10	6	S2		None	CFA	SM
PHI222	Philosophy 222	E	2	10	6	S2		None	CFA	SM
POL231	Political Studies 231	E	2	20	6	S1	POL131/ GOV132/ POL142	None	CFA	SM
POL235	Political Studies 235	E	2	20	6	S2		None	CFA	SM

Module Code	Module Name	Compulsory/ Elective	Level	Credits	NQF Level	Duration	Pre-Requisite	Co-Requisite	Assessment Type	Service Module
PSY211	Study of Human Development 211	E	2	10	6	S1	None	None	CFA	SM
PSY213	Intro to Psychopathology 213	E	2	10	6	S2	None	None	CFA	SM
PSY214	Introduction to Psychological Interventions 214	E	2	10	6	S1	None	None	CFA	SM
PSY221	Research Methods and Statistics 221	E	2	10	6	S2	None	None	CFA	SM
SOC233	Sociology 233	E	2	20	6	S1	SOC151 & SOC152	SOC234	CFA	SM
SOC234	Sociology 234	E	2	20	6	S2	None	None	CFA	SM
CNT301	Law of Contract 301	C	3	20	7	YR	None	None	CFA	
CRL202	Criminal Law 202	C	3	20	6	YR	None	None	CFA	
DEL201	Law of Delict 201	C	3	20	6	YR	None	None	CFA	
LAB321	Labour Law 321	C	3	15	7	S2	None	None	CFA	
STI221	Interpretation of Statutes 221	C	3	15	6	S2	None	None	CFA	
ENG311	English 311	E	3	20	7	S1	At least two of PHI212/ 213/ 221/ 222	None	CFA	SM
ENG321	English 321	E	3	20	7	S2		None	CFA	SM
PHI311	Philosophy 311	E	3	10	7	S1		None	CFA	SM
PHI312	Philosophy 312	E	3	10	7	S1		None	CFA	SM
PHI321	Philosophy 321	E	3	10	7	S2		None	CFA	SM
PHI322	Philosophy 322	E	3	10	7	S2		None	CFA	SM
POL332	Political Studies 332	E	3	30	7	S1/ S2	One module from the following POL231/ 232/ 233/ 235	None	CFA	SM
POL334	Political Studies 334	E	3	30	7	S1/ S2		None	CFA	SM
PSY311	Psychopathology 311	E	3	10	7	S1	PSY213	None	CFA	SM
PSY312	Introduction to Personality Theories 312	E	3	10	7	S1	None	None	CFA	SM
PSY321	Research Methods and Statistics 321	E	3	10	7	S2	None	None	CFA	SM
PSY322	Social Psychology 322	E	3	10	7	S2	None	None	CFA	SM
SOC323	Sociology 323	E	3	20	7	S1	SOC233 & SOC234	SOC324	CFA	SM
SOC324	Sociology 324	E	3	20	7	S2	SOC234	None	CFA	SM
FGL311	Forensic and General Linguistics 311	E	3	40	7	YR	FGL211	None	CFA	SM

BACHELOR OF COMMERCE IN LAW (7211)

H.28 ADMISSION

Unless Senate decides otherwise, a student shall be required to meet the following criteria to be enrolled for the **Bachelor of Commerce in Law Degree - BCom (Law)**:

H.28.1 Minimum admission requirements for applicants who matriculated from 2008

- (a) The National Senior Certificate for Bachelor's Degree study with 4 subjects at a rating of 4, with a score of no fewer than 30 points calculated according to the University's approved points system, as well as the following specific subject requirements:
- Level 4 (50-59%) in English (Home or First Additional Language), and
 - Level 3 (40-49%) in another Language (Home or First Additional Language), and
 - Level 4 (50-59%) in Mathematics
- (b) A qualification or level of competence which the Senate of the University has deemed to be equivalent to the requirements stipulated in (a) above.

H.28.2 Minimum admission rules for applicants who matriculated prior to 2008

- (a) An applicant must have obtained a Matriculation Exemption Certificate with a minimum of a C - Aggregate (60%) in Grade 12 with the following subject requirements:
- HG (40%) Mathematics or
 - SG (60%) Mathematics

OR

- (b) A qualification or level of competence which the Senate of the University has deemed to be equivalent to the requirements stipulated in (a) above.

H.29 SELECTION

Final selection shall be based on an applicant meeting the criteria as determined by the Faculty.

H.30 DURATION

Unless Senate decides otherwise, the duration of the programme shall extend over three years full-time study.

H.31 CURRICULUM

H.31.1 Level 1

Module Name	Module Code	Credits
Core Modules		
Academic Literacy for Commerce 131/132	ALC131/132	15
Business Statistics 132	BUS132	15
Introduction to Microeconomics 151	ECO151	10

Introduction to Macroeconomics 152	ECO152	10
Financial Accounting 141/143	FIA141/143	15
Introduction to Law 111	ILL111	15
Introduction to Law 121	ILL121	15
Quantitative Skills for Commerce 131/132	QSC131/132	15
	Sub-total	110

Electives (select one module)

Introduction to Psychology in the Workplace 131/132	IPS131/132	15
Principles of Business Management 131/132	MAN131/132	15
	Sub-total	15
	Total	125

H.31.2 Level 2

Module Name

Module Code

Credits

Core Modules

Basic Skills for Law 101	BSL101	15
Constitutional Law 202	CON202	20
Law of Delict 201	DEL201	20
Family Law 121	FAM121	15
Law of Persons 112	LOP112	15
Law of Property 211	THI211	15
	Sub-total	100

Electives (select one group)

Group 1 Industrial Psychology

Career Psychology 231	IPS231	10
Psychometrics 232	IPS232	10
Human Resource Management 233	IPS233	10
Labour Relations 234	IPS234	10

Group 2 Management

Marketing 231	MAN231	10
Operations Management 233	MAN233	10
Entrepreneurship 201	MAN201	10
Finance for Small and Medium Enterprises 206	MAN206	10

Group 3 Economics

Microeconomics 231	ECO231	10
Macroeconomics 232	ECO232	10
Intermediate Mathematical Economics 235	ECO235	10
Econometrics 242	ECO242	10

Group 4 Finance

Marketing 231	MAN231	10
Operations Management 233	MAN233	10
Principles of Finance 211	FIN211	15
Principles of Investment 212	FIN212	15
	Sub-total	40-50
	Total	140-150

H.31.3 Level 3

Module Name	Module Code	Credits
Core Modules		
Law of Contract 301	CNT301	20
Company Law 211	CPL211	10
Law of Insolvency 311	INS311	10
Labour Law 321	LAB321	15
Interpretation of Statutes 221	STI221	15
	Sub-total	70
Electives (select one group)		
Group 1 Economics		
Sub-group 1.1		
Compulsory		
Microeconomics 331	ECO331	15
Macroeconomics 332	ECO332	15
Electives (select two modules)		
Sub-group 1.2 (select two modules)		
Econometrics 311	ECO311	15
International Trade Economics 335	ECO335	15
Public Sector Economics 334	ECO334	15
Development Economics 336	ECO336	15
Group 2 Industrial Psychology		
Organisational Behaviour 331	IPS331	15
Research Methodology 333	IPS333	15
Training Management 337	IPS337	15
Consumer Behaviour 335	IPS335	15
Group 3 Management		
Services Marketing 303	MAN303	15
Strategic Management 304	MAN304	15
Research and Communication for Business 314	MAN314	15
Project Management 325	MAN325	15
Group 4 Finance		
Corporate Finance 311	FIN311	15
Investment Analysis 308	FIN308	15
Financial and Analytical Techniques 305	FIN305	15
International Finance 321	FIN321	15
	Sub-total	60
	Total	130
	FINAL TOTAL	395-405

H.32 ASSESSMENT

Assessment is governed by Rule A.5 as stipulated in the University Calendar: General Information Part 1.

H.33 PROMOTION RULES

Unless Senate decides otherwise and subject to Rule A.3.2.3 or as provided for in the Faculty rules:

H.33.1 Level 1

H.33.1.1 A student is required to pass at least 30 credits to renew their Level 1 registration.

H.33.1.2 After one year of study, a student must have passed Academic Literacy for Commerce (ALC131/132) and Quantitative Skills for Commerce (QSC131/132) in order to promote to Level 2 or renew their registration at Level 1.

H.33.1.3 A student shall be promoted to Level 2 of study on obtaining at least 90 credits.

H.33.1.4 After two years of study, a student must have passed all Level 1 modules in order to promote to the next level.

H.33.2 Level 2

H.33.2.1 A student shall be promoted to Level 3 of study on obtaining at least 210 credits.

H.33.2.2 After three years of study, a student must have passed all Level 2 modules in order to promote.

H.33.3 Level 3

H.33.3.1 A student shall complete the degree once 395-405 credits are obtained and all the requirements for the degree are met.

H.33.3.2 Final promotions are done according to the rules applicable to the degree at the date of first enrolment, provided that the student continues to promote.

H.33.3.3 Where further admission was refused or when a student's studies have been interrupted the latest rules applicable to the degree shall be applied.

H.34 ADVANCE REGISTRATION

H.34.1 A student who has not promoted to Level 2 of study may be allowed to register for a maximum of 100 credits for the year. These credits include all outstanding Level 1 modules, provided all pre-requisites and co-requisites for these modules are met.

H.34.2 A student who has not promoted to Level 3 of study may be allowed to register for a maximum of 100 credits for the year. These credits, include all outstanding Level 2 modules, provided all pre-requisites and co-requisites for these modules are met.

H.35 RENEWAL OF REGISTRATION

Renewal of registration shall be governed by Rule A.3.2.3, as stipulated in the University Calendar: General Information Part 1 or as provided for in the faculty rules as contained in this Calendar.

H.36 SPECIAL REQUIREMENTS FOR THE PROGRAMME

- H.36.1** A full-time student shall not be allowed to enrol for more than 135/140 credits in any year of study.
- H.36.2** The total credit value may only exceed 395 with the permission of Senate.
- H.36.3** A student shall not be allowed in a year of study, to enrol for any combination of modules in which there are class and examination timetable clashes.
- H.36.4** A student who does not pass Academic Literacy for Commerce (ALC131) and/or Quantitative Skills for Commerce (QSC131) in the first semester must repeat and pass Academic Literacy for Commerce (ALC132) and/or Quantitative Skills for Commerce (QSC132) in the second semester of Level 1 to qualify for renewal of registration.
- H.36.5** A student shall not be allowed to enrol for a module if this contravenes module pre-requisite rules.
- H.36.6** If a particular module (providing it is not a compulsory module) has fewer than 15 students registered at the start of the academic year, the Faculty may cancel that module.

MODULES LIST PER YEAR LEVEL:

MODULE TYPE:

Compulsory (C), Electives (E), Year Module (YR), Semester Module (S), Pre-requisites and Co-requisites, Service Module (SM)

ASSESSMENT TYPE:

Continuous Assessment (CA) or Final Assessment (FA) or Continuous Assessment and Final Assessment (CFA)

Module Code	Module Name	Compulsory/ Elective	Level	Credits	NQF Level	Duration	Pre-Requisite	Co-Requisite	Assessment Type	Service Module
ILL111	Introduction to Law 111	C	1	15	5	S1	None	None	CFA	
ILL121	Introduction to Law 121	C	1	15	5	S2	None	None	CFA	
ALC131/ ALC132	Academic Literacy for Commerce 131/132	C	1	15	5	S1/ S2	ALB131 for 4-year programme students only		CFA	SM
BUS132	Business Statistics 132	C	1	15	5	S2	QSC131/ QSC132/ MAM126/ QSA131/ QSF141	None	CFA	SM
ECO151	Introduction to Microeconomics 151	C	1	10	5	S1	QSC131/ QSC132	None	CFA	SM

Module Code	Module Name	Compulsory/ Elective	Level	Credits	NQF Level	Duration	Pre-Requisite	Co-Requisite	Assessment Type	Service Module
ECO152	Introduction to Macroeconomics 152	C	1	10	5	S2	None	QSC131/ QSC132/ MAM126 / MAM127/ QSA131/ QSA132 Non-EMS Students – subject to availability	CFA	SM
FIA141/ FIA143	Financial Accounting 141/ 143	C	1	15	5	S1/ S2	None	QSF132/ QSC131/ QSC132/ QSC131/ QSA131 or MAM126	CFA	SM
QSC131	Quantitative Skills for Commerce 131	C	1	15	5	S1	None	QLC141/ QLC142	CFA	SM
QSC132	Quantitative Skills for Commerce 132	C	1	15	5	S2	None		CFA	SM
IPS131/ IPS132	Introduction to Psychology in the Workplace 131/132	E	1	15	5	S1/ S2	None	None	CFA	SM
MAN131	Principles of Business Management 131	E	1	15	5	S1	Non-EMS Students- IEB131	None	CFA	SM
MAN132	Principles of Business Management 132	E	1	15	5	S2		None	CFA	SM
BSL101	Basic Skills for Law 101	C	2	15	5	YR	None	None	CFA	
CON202	Constitutional Law 202	C	2	20	6	YR	None	None	CFA	
FAM121	Family Law 121	C	2	15	5	S2	None	None	CFA	
LOP112	Law of Persons 112	C	2	15	5	S1	None	None	CFA	
THI211	Law of Property 211	C	2	15	6	S1	None	None	CFA	
DEL201	Law of Delict 201	C	2	20	6	YR	None	None	CFA	
IPS231	Career Psychology 231	E	2	10	6	S2	IPS132 / IPS131	None	CFA	SM
IPS232	Psychometrics 232	E	2	10	6	S2	IPS131/ IPS132 & BUS131 or BUS132	None	CFA	SM
IPS233	Human Resource Management 233	E	2	10	6	S1	IPS132/ IPS131	None	CFA	SM

Module Code	Module Name	Compulsory/ Elective	Level	Credits	NQF Level	Duration	Pre-Requisite	Co-Requisite	Assessment Type	Service Module
IPS234	Labour Relations 234	E	2	10	6	S1	IPS132/ IPS131	None	CFA	SM
MAN231	Marketing 231	E	2	10	6	S1	MAN131 or MAN132	None	CFA	SM
MAN233	Operations Management 233	E	2	10	6	S2	MAN131 or MAN132	None	CFA	SM
MAN201	Entrepreneurship 201	E	2	10	6	S2	None	MAN206	CFA	SM
MAN206	Finance for Small and Medium Enterprises 206	E	2	10	6	S1	MAN131 or MAN132	MAN201	CFA	SM
ECO231	Microeconomics 231	E	2	10	6	S2	ECO241 or ECO151	None	CFA	SM
ECO232	Macroeconomics 232	E	2	10	6	S1	ECO133/ ECO134 or ECO152	None	CFA	SM
ECO235	Intermediate Mathematical Economics 235	E	2	10	6	S2	ECO241 or ECO151	None	CFA	SM
ECO242	Econometrics 242	E	2	10	6	S1	ECO241 or ECO151 and ECO152	ECO231	CFA	SM
MAN231	Marketing 231	E	2	10	6	S1	MAN131 or MAN132	None	CFA	SM
MAN233	Operations Management 233	E	2	10	6	S2	MAN131 or MAN132	None	CFA	SM
FIN211	Principles of Finance 211	E	2	10	6	S1	ECO151 & ECO152	None	CFA	SM
FIN212	Principles of Investment 212	E	2	10	6	S2	ECO151 & ECO152	None	CFA	SM
CNT301	Law of Contract 301	C	3	20	7	YR	None	None	CFA	
LAB321	Labour Law 321	C	3	15	7	S2	None	None	CFA	
STI221	Interpretation of Statutes 221	C	3	15	6	S2	None	None	CFA	
CPL211	Company Law 211	C	3	10	6	S1	None	None	CFA	
INS311	Law of Insolvency 311	C	3	10	7	S1	None	CNT301	CFA	
ECO331	Microeconomics 331	E	3	15	7	S1	ECO231	None	CFA	SM
ECO332	Macroeconomics 332	E	3	15	7	S2	ECO232	None	CFA	SM
ECO311	Econometrics 311	E	3	15	7	S1	ECO242	None	CFA	SM

Module Code	Module Name	Compulsory/ Elective	Level	Credits	NQF Level	Duration	Pre-Requisite	Co-Requisite	Assessment Type	Service Module
ECO335	International Trade Economics 335	E	3	15	7	S2	ECO231 & ECO232	None	CFA	SM
ECO334	Public Sector Economics 334	E	3	15	7	S1	ECO231 & ECO232	None	CFA	SM
ECO336	Development Economics 336	E	3	15	7	S2	ECO232	None	CFA	SM
IPS331	Organisational Behaviour 331	E	3	15	7	S2	Any three of the following (3) modules: IPS231/ 232/ 233/ 234	None	CFA	SM
IPS333	Research Methodology 333	E	3	15	7	S1		None	CFA	SM
IPS337	Training Management 337	E	3	15	7	S2		None	CFA	SM
IPS335	Consumer Behaviour 335	E	3	15	7	S1		None	CFA	SM
MAN303	Services Marketing 303	E	3	15	7	S2	MAN231 & MAN233	None	CFA	SM
MAN304	Strategic Management 304	E	3	15	7	S2	MAN201 & MAN206	MAN314	CFA	SM
MAN314	Research and Communication for Business 314	E	3	15	7	S1	MAN231 & MAN233 or MAN201 & MAN206	MAN304 or MAN325	CFA	SM
MAN325	Project Management 325	E	3	15	7	S1	MAN231 & MAN233	None	CFA	SM
FIN311	Corporate Finance 311	E	3	15	7	S1	FIN211 & FIN212	None	CFA	SM
FIN308	Investment Analysis 308	E	3	15	7	S2	FIN211 & FIN212	None	CFA	SM
FIN305	Financial and Analytical Techniques 305	E	3	15	7	S1	MAN234 & MAN235 or FIN212 & FIN213	MAN312	CFA	SM
FIN321	International Finance 321	E	3	15	7	S2	FIN211 & FIN212	None	CFA	SM

ADVANCED DIPLOMA IN LABOUR LAW (7311)

H.37 ADMISSION

Unless Senate decides otherwise, a student shall be required to meet the following criteria to be enrolled for the **Advanced Diploma in Labour Law – AdvDip (Labour Law)**:

H.37.1 An applicant must be in possession of an appropriate Diploma at NQF Level 6 or a Bachelor's degree at NQF Level 7, or have obtained a qualification that in the opinion of the Senate is of an equivalent standard or

H.37.2 Access to the programme can also be provided in terms of the University's RPL policy (Rule A.2) in terms of the criteria stipulated by Senate.

H.38 SELECTION

Final selection shall be based on an applicant meeting the criteria as determined by the Faculty.

H.39 DURATION

Unless Senate decides otherwise the duration of the programme shall be one year full-time or two years part-time.

H.40 CURRICULUM

Module Name	Module Code	Credits
Introduction to Law 611	LAB611	15
Basic Legal Skills 612	LAB612	15
Basic Principles of Labour Law 613	LAB613	15
Collective Labour Law 614	LAB614	15
Individual Labour Law 615	LAB615	15
Labour Conflict and Dispute Resolution 616	LAB616	15
Workplace Equality and Discrimination 617	LAB617	15
Labour and Social Security Law 618	LAB618	15
FINAL TOTAL		120

H.41 ASSESSMENT

Assessment is governed by Rule A.5 as stipulated in the University Calendar: General Information Part 1.

H.42 PROGRESSION RULES

H.42.1 Full-time

Unless Senate decides otherwise, a full-time student shall complete the programme in one year.

H.42.2 Part-time

Unless Senate decides otherwise, a part-time student shall complete the programme in two consecutive years and accumulate at least 45 credits per annum to proceed with their studies.

H.43 RENEWAL OF REGISTRATION

Renewal of registration shall be governed by Rule A.4.1, as stipulated in the University Calendar: General Information Part 1 or as provided for in the faculty rules as contained in this Calendar.

MODULES LIST PER YEAR LEVEL:

MODULE TYPE:

Compulsory (C), Electives (E), Year Module (YR), Semester Module (S), Pre-requisites and Co-requisites, Service Module (SM)

ASSESSMENT TYPE:

Continuous Assessment (CA) or Final Assessment (FA) or Continuous Assessment and Final Assessment (CFA)

Module Code	Module Name	Compulsory/ Elective	Level	Credits	NQF Level	Duration	Pre-Requisite	Co-Requisite	Assessment Type
LAB611	Introduction to Law 611	C	1	15	7	S1	None	None	CFA
LAB612	Basic Legal Skills 612	C	1	15	7	S1	None	None	CFA
LAB613	Basic Principles of Labour Law 613	C	1	15	7	S1	None	None	CFA
LAB614	Collective Labour Law 614	C	1	15	7	S1	None	None	CFA
LAB615	Individual Labour Law 615	C	1	15	7	S2	None	None	CFA
LAB616	Labour Conflict and Dispute Resolution 616	C	1	15	7	S2	None	None	CFA
LAB617	Workplace Equality and Discrimination 617	C	1	15	7	S2	None	None	CFA
LAB618	Labour and Social Security Law 618	C	1	15	7	S2	None	None	CFA

HIGHER CERTIFICATE IN FORENSIC EXAMINATION (7115)

H.44 ADMISSION

Unless Senate decides otherwise, a student shall be required to meet the following criteria to be enrolled for the **Higher Certificate in Forensic Examination – HCert (Forensic Examination)**:

H.44.1 Minimum admission requirements for applications who matriculated before 2008:

- (a) Matriculation Certificate plus 3 years working experience

OR

- (b) A qualification or level of competence which the Senate of the University has deemed to be the equivalent to the requirements stipulated in (a) above.

H.44.2 Minimum admission requirements for applicants who matriculated from 2008

- (a) Matriculation Certificate plus 3 years working experience with a score of no fewer than 27 points calculated according to the University's approved points systems

OR

- (b) A qualification or level of competence which the Senate of the University has deemed to be the equivalent to the requirements stipulated in (a) above.

H.44.3 Alternative admission requirements in terms of Recognition of Prior Learning (RPL)

An applicant who completed the NSC in 2008 or thereafter, but has not obtained an endorsement, shall be considered for alternative admission after the age of 23. Such an applicant shall be required to complete an RPL portfolio development course and submit to a process where relevant learning and/or experience shall be assessed.

An applicant who is 23 years or older and does not have a matriculation certificate or NSC, but who may have obtained other qualifications or experience that may be deemed to be equivalent to admission criteria for the particular study programmes, shall also be required to complete an RPL portfolio development course or an RPL portfolio process as agreed upon, and to submit to a process where such learning, qualification, and/or experience shall be assessed.

H.45 SELECTION

Final selection shall be based on an applicant meeting the criteria as determined by the Faculty.

H.46 DURATION

Unless Senate decides otherwise, the duration of the programme shall be one year part-time.

H.47 CURRICULUM

Module Name	Module Code	Credits
Administrative Law 113	ADL113	20
Internal Auditing 124	INT124	20
Introduction to Law and Criminal Law 112	CRI112	20
Investigation of Crime 123	INV123	20
Labour Law 112	LAB112	20
Law of Evidence 122	EVI122	20
FINAL TOTAL		120

H.48 ASSESSMENT

Assessment is governed by Rule A.5 as stipulated in the University Calendar: General Information Part 1.

H.49 PROMOTION RULES

Unless Senate decides otherwise, a student shall complete the programme in one year. A student who has passed at least 60 credits may be allowed to proceed with their studies to complete the programme in the following year.

H.50 RENEWAL OF REGISTRATION

Renewal of registration shall be governed by Rule A.4, as stipulated in the University Calendar: General Information Part 1 or as provided in the faculty rules as contained in this Calendar.

H.51 SPECIAL REQUIREMENTS FOR THE PROGRAMME

There are no special requirements for this programme.

MODULES LIST PER YEAR LEVEL:

MODULE TYPE:

Compulsory (C), Electives (E), Year Module (YR), Semester Module (S), Pre-requisites and Co-requisites, Service Module (SM)

ASSESSMENT TYPE:

Continuous Assessment (CA) or Final Assessment (FA) or Continuous Assessment and Final Assessment (CFA)

Module Code	Module Name	Compulsory/ Elective	Level	Credits	NQF Level	Duration	Pre-Requisite	Co-Requisite	Assessment Type
ADL113	Administrative Law 113	C	1	20	5	S1	None	None	CFA
INT124	Internal Auditing 124	C	1	20	5	S2	None	None	CFA
CRI112	Introduction to Law and Criminal Law 112	C	1	20	5	S2	None	None	CFA
INV123	Investigation of Crime 123	C	1	20	5	S2	None	None	CFA
LAB112	Labour Law 112	C	1	20	5	S1	None	None	CFA
EVI122	Law of Evidence 122	C	1	20	5	S1	None	None	CFA

RULES FOR POSTGRADUATE PROGRAMMES

POSTGRADUATE DIPLOMA IN ENVIRONMENTAL LAW AND MANAGEMENT (FULL-TIME -7712)/ (PART-TIME – 7713)

H.52 ADMISSION

Unless Senate decides otherwise, a student shall be required to meet the following criteria to be enrolled for the **Postgraduate Diploma in Environmental Law and Management– PGDip (Environmental Law and Management)**:

- H.52.1** An applicant must be in possession of a qualification at NQF level 7 (in Law, or Science or in Environmental Management/ Policy, or Public Management/ Policy) or have obtained a qualification that in the opinion of the Senate is of an equivalent standard.
- H.52.2** Access to the programme can also be provided in terms of the university's RPL policy (Rule A.2) in terms of the criteria stipulated by Senate.

H.53 SELECTION

Final selection shall be based on an applicant meeting the criteria as determined by the Faculty.

H.54 DURATION

Unless Senate decides otherwise the duration of the programme shall extend over one year full-time and two years part-time.

H.55 CURRICULUM

Module Name	Module Code	Credits
Advanced Environmental Law 711	ENL711	30
Environmental Governance 712	ENL712	30
Environmental Administrative Law 713	ENL713	30
Environmental Management 714	ENL714	30
FINAL TOTAL		120

H.56 ASSESSMENT

Assessment is governed by Rule A.5 as stipulated in the University Calendar: General Information Part 1.

H.57 PROGRESSION RULES

H.57.1 Full-time

Unless Senate decides otherwise, a full-time student shall complete the programme in one year. A student who has passed at least 90 credits may be allowed to proceed with their studies to complete the programme in the following year.

H.57.2 Part-time

Unless Senate decides otherwise, a part-time student shall complete the programme in two consecutive years and accumulate at least 60 credits in the first year in order to proceed with their studies. A student who has accumulated 90 credits within two years may be allowed to proceed with their studies to complete the programme in the following year.

H.58 RENEWAL OF REGISTRATION

Renewal of registration shall be governed by Rule A.4, as stipulated in the University Calendar: General Information Part 1 or as provided for in the Faculty rules.

H.59 SPECIAL REQUIREMENTS FOR THE PROGRAMME

There are no special requirements for this programme.

MODULES LIST PER YEAR LEVEL:

MODULE TYPE:

Compulsory (C), Electives (E), Year Module (YR), Semester Module (S), Pre-requisites and Co-requisites, Service Module (SM)

ASSESSMENT TYPE:

Continuous Assessment (CA); Final Assessment (FA) and Continuous Assessment and Final Assessment (CFA)

Module Code	Module Name	Compulsory	Credits	NQF Level	Duration	Pre-Requisite	Co-Requisite	Assessment Type
ENL711	Advanced Environmental Law 711	C	30	8	S1	None	None	CFA
ENL712	Environmental Governance 712	C	30	8	S1	None	None	CFA
ENL713	Environmental Administrative Law 713	C	30	8	S2	None	None	CFA
ENL714	Environmental Management 714	C	30	8	S2	None	None	CFA

POSTGRADUATE DIPLOMA IN FINTECH LAW AND REGULATION **(Distance Learning) (FULL-TIME - 7702)/ (PART-TIME – 7703)**

H.60 ADMISSION

Unless Senate decides otherwise, a student shall be required to meet the following criteria to be enrolled for the **Postgraduate Diploma in Fintech Law and Regulation – PGDip (Fintech Law and Regulation)**:

H.60.1 An applicant must be in possession of a qualification at NQF level 7 or have obtained a qualification that in the opinion of the Senate is of an equivalent standard.

H.60.2 Access to the programme can also be provided in terms of the university's RPL policy (Rule A.2) in terms of the criteria stipulated by Senate.

H.61 SELECTION

Final selection shall be based on an applicant meeting the criteria as determined by the Faculty.

H.62 DURATION

Unless Senate decides otherwise the duration of the programme shall extend over one year full-time and two years part-time.

H.63 CURRICULUM

Module Name	Module Code	Credits
Concepts in Fintech Law 711	FTL711	30
Banking and Financial Regulation 712	FTL712	30
Fintech Payment Regulation 713	FTL713	30
Trade-offs in Fintech Regulation 714	FTL714	30
FINAL TOTAL		120

H.64 ASSESSMENT

Assessment is governed by Rule A.5 as stipulated in the University Calendar: General Information Part 1.

H.65 PROGRESSION RULES

H.65.1 Full-time

Unless Senate decides otherwise, a full-time student shall complete the programme in one year. A full-time student who has passed at least 60 credits may be allowed to proceed with their studies to complete the programme in the following year.

H.65.2 Part-time

Unless Senate decides otherwise, a part-time student shall complete the programme in two consecutive years and accumulate at least 30 credits in the first year in order to proceed with their studies.

H.66 RENEWAL OF REGISTRATION

Renewal of registration shall be governed by Rule A.4, as stipulated in the University Calendar: General Information Part 1 or as provided for in the Faculty rules.

H.67 SPECIAL REQUIREMENTS FOR THE PROGRAMME

There are no special requirements for this programme.

MODULES LIST PER YEAR LEVEL:

MODULE TYPE:

Compulsory (**C**), Electives (**E**), Year Module (**YR**), Semester Module (**S**), Pre-requisites and Co-requisites, Service Module (**SM**)

ASSESSMENT TYPE:

Continuous Assessment (**CA**) or Final Assessment (**FA**) or Continuous Assessment and Final Assessment (**CFA**)

Module Code	Module Name	Compulsory	Credits	NQF Level	Duration	Pre-Requisite	Co-Requisite	Assessment Type
FTL711	Concepts in Fintech Law 711	C	30	8	S1	None	None	CFA
FTL712	Banking and Financial Regulation 712	C	30	8	S1	None	None	CFA
FTL713	Fintech Payment Regulation 713	C	30	8	S2	None	None	CFA
FTL714	Trade-offs in Fintech Regulation 714	C	30	8	S2	None	None	CFA

POSTGRADUATE DIPLOMA IN LABOUR LAW (7701)

H.67 ADMISSION

Unless Senate decides otherwise, a student shall be required to meet the following criteria to be enrolled for the **Postgraduate Diploma in Labour Law – PGDip (Labour Law)**:

H.67.1 An applicant must be in possession of a Bachelor of Laws Degree obtained from a South African University or have obtained another qualification which in the opinion of the Senate is of an equivalent standard (See also Rule A.2.1.4).

H.68 SELECTION

Final selection shall be based on an applicant meeting the criteria as determined by the Faculty.

H.69 DURATION

Unless Senate decides otherwise, the duration of the programme shall be one year full-time or two years part-time.

H.70 CURRICULUM

Module Name	Module Code	Credits
Labour Law in Context 711	PGL711	30
The Right to Fair Labour Practices 712	PGL712	30
Labour Dispute Resolution 721	PGL721	30
Advanced Dispute Resolution Procedure 722	PGL722	30
FINAL TOTAL		120

H.71 ASSESSMENT

H.71.1 Assessment is governed by Rule A.5 as stipulated in the University Calendar: General Information Part 1.

H.71.2 Unless the Faculty Board otherwise decides, a student, in respect of modules enrolled for at this University, must:

H.71.2.1 submit at least one research essay of approximately 5 000 words for every module or equivalent form of assessment of the student's research ability (which shall be submitted for assessment at least two calendar weeks before the dates scheduled for the examination referred to in Rule H.71.2.2), and

H.71.2.2 sit for an examination or final assessment in each module, the format of which shall be determined by the relevant academic department.

H.72 PROGRESSION RULES

H.72.1 Full-time

Unless Senate decides otherwise, a full-time student shall complete the programme in one year. A student who has passed at least 90 credits may be allowed to proceed with their studies to complete the programme in the following year.

H.72.2 Part-time

Unless Senate decides otherwise, a part-time student shall complete the programme in two consecutive years and accumulate at least 60 credits in the first year in order to proceed with their studies. A student who has accumulated 90 credits within two years may be allowed to proceed with their studies to complete the programme in the following year.

H.73 RENEWAL OF REGISTRATION

Renewal of registration shall be governed by Rule A.4.1, as stipulated in the University Calendar: General Information Part 1 or as provided for in the faculty rules as contained in this Calendar.

MODULES LIST PER YEAR LEVEL:

MODULE TYPE:

Compulsory (C), Electives (E), Year Module (YR), Semester Module (S), Pre-requisites and Co-requisites, Service Module (SM)

ASSESSMENT TYPE:

Continuous Assessment (CA) or Final Assessment (FA) or Continuous Assessment and Final Assessment (CFA)

Module Code	Module Name	Compulsory	Credits	NQF Level	Duration	Pre-Requisite	Co-Requisite	Assessment Type
PGL711	Labour Law in Context 711	C	30	8	S1	None	None	CFA
PGL712	The Right to Fair Labour Practices 712	C	30	8	S1	None	None	CFA
PGL721	Labour Dispute Resolution 721	C	30	8	S2	None	None	CFA
PGL722	Advanced Dispute Resolution Procedure 722	C	30	8	S1	None	None	CFA

POSTGRADUATE DIPLOMA IN PUBLIC LAW (7711)

H.74 ADMISSION

Unless Senate decides otherwise, a student shall be required to meet the following criteria to be enrolled for the **Postgraduate Diploma in Public Law – PGDip (Public Law)**:

H.74.1 An applicant must be in possession of a qualification at NQF Level 7 or have obtained a qualification that in the opinion of the Senate is of an equivalent standard. (See also Rule A.2.1.4).

H.74.2 Access to the programme can also be provided in terms of the University's RPL policy (Rule A.2) in terms of the criteria stipulated by Senate.

H.75 SELECTION

Final selection shall be based on an applicant meeting the criteria as determined by the Faculty.

H.76 DURATION

Unless Senate decides otherwise, the duration of the programme shall be one year full-time or two years part-time.

H.77 CURRICULUM

Module Name	Module Code	Credits
Compulsory Modules		
Administrative Law 711	ADL711	30
Constitutional Law 713	CLL713	30
	Sub-total	60
Electives (select one group)		
Group 1		
Local Government 712	LGL712	30
Multi-level Governance 714	MLG714	30
Group 2		
Criminal Justice Systems and Human Rights in Africa 711	CRJ711	30
Detention and Oversight 711	PUB711	30
	Sub-total	60
	FINAL TOTAL	120

H.78 ASSESSMENT

H.78.1 Assessment is governed by Rule A.5 as stipulated in the University Calendar: General Information Part 1.

H.78.2 Unless the Faculty Board otherwise decides, a student, in respect of modules enrolled for at this University, must:

H.78.2.1 participate in a variety of formative assessments, including assignments, presentations, and tests, will be used. Feedback will be given to students on their strengths and weaknesses, as well as the progress they are making,

H.78.2.2 sit for an examination or final assessment in each module, the format of which shall be determined by the relevant academic department.

H.78.3 An integrated assessment approach is envisaged in terms of which both the theoretical knowledge of students and their acquired skills will be assessed by way of tests, exams, practical assignments, case studies, and portfolios.

H.79 PROGRESSION RULES

H.79.1 Full-time

Unless Senate decides otherwise, a full-time student shall complete the programme in one year. A student who has passed at least 60 credits may be allowed to proceed with their studies to complete the programme in the following year.

H.79.2 Part-time

Unless Senate decides otherwise, a part-time student shall complete the programme in two consecutive years and accumulate at least 30 credits in the first year in order to proceed with their studies. A student who has accumulated 90 credits within two years may be allowed to proceed with their studies to complete the programme in the following year.

H.80 RENEWAL OF REGISTRATION

Renewal of registration shall be governed by Rule A.4.1, as stipulated in the University Calendar: General Information Part 1 or as provided for in the faculty rules as contained in this Calendar.

MODULES LIST PER YEAR LEVEL:

MODULE TYPE:

Compulsory (**C**), Electives (**E**), Year Module (**YR**), Semester Module (**S**), Pre-requisites and Co-requisites, Service Module (**SM**)

ASSESSMENT TYPE:

Continuous Assessment (**CA**) or Final Assessment (**FA**) or Continuous Assessment and Final Assessment (**CFA**)

Module Code	Module Name	Compulsory	Credits	NQF Level	Duration	Pre-Requisite	Co-Requisite	Assessment Type
ADL711	Administrative Law 711	C	30	8	S1	None	None	CFA
CLL713	Constitutional Law 713	C	30	8	S2	None	None	CFA
LGL712	Local Government 712	E	30	8	S1	None	None	CFA
MLG714	Multi-level Governance 714	E	30	8	S2	None	None	CFA
CRJ711	Criminal Justice Systems and Human Rights in Africa 711	E	30	8	S2	None	None	CFA
PUB711	Detention and Oversight 711	E	30	8	S1	None	None	CFA

POSTGRADUATE DIPLOMA IN TAX LAW (FULL-TIME - 7721) / (PART-TIME - 7722)

H.81 ADMISSION

Unless Senate decides otherwise, a student shall be required to meet the following criteria to be enrolled for the **Postgraduate Diploma in Tax Law – PGDip (Tax Law)**:

- H.81.1** An applicant must be in possession of a qualification at NQF level 7 or have obtained a qualification that in the opinion of the Senate is of an equivalent standard.
- H.81.2** Access to the programme can also be provided in terms of the university's RPL policy (Rule A.2) in terms of the criteria stipulated by Senate

H.82 SELECTION

Final selection shall be based on an applicant meeting the criteria as determined by the Faculty.

H.83 DURATION

Unless Senate decides otherwise the duration of the programme shall extend over one year full-time and two years part time.

H.84 CURRICULUM

Module Name	Module Code	Credits
Advanced Income Tax Law 711	TXL711	30
International Tax Law 712	TXL712	30
Tax Administration Law 713	TXL713	30
Estate Planning Law 714	TXL714	30
FINAL TOTAL		120

H.85 ASSESSMENT

- H.85.1** Assessment is governed by Rule A.5 as stipulated in the University Calendar: General Information Part 1.
- H.85.2** All assessment activities across all modules will be scheduled online and will comprise a combination of various assessment methods (such as, tests, presentations in class, assignments, and a final exam. The assessment strategy of the programme is in line with the UWC Flexible Learning and Teaching provisioning policy and the UWC Assessment Policy.
- H.85.3** In accordance with UWC's Assessment Policy, the formative assessment in the modules will comprise at least two (2) learning opportunities, each of which will be weighted proportionately in the computation of a student's final coursework mark (CAM) which will, in turn, determine whether a student qualifies to undertake the summative assessment in this module (as per UWC's Assessment Policy).

- H.85.4** The formative assessment will count 50% towards the final mark achieved by students in the modules. The other 50% is contributed by the summative assessment. The nature of the formative assessment will comprise a combination of a written test and/or an assignment and/or a class presentation.
- H.85.5** The assessment of learning is equally weighted as the aggregate of formative assessment tasks. In other words, the summative assessment counts 50% towards the final mark achieved by a student.
- H.85.6** The summative assessment is intended to take the form of a take home exam paper prepared by the lecturer and approved by an internal as well as external examiner appointed in accordance with UWC's Assessment Policy.
- H.85.7** An integrated assessment approach is envisaged in terms of which both the theoretical knowledge of learners and their acquired skills will be assessed by way of tests, exams, practical assignments, case studies, and portfolios.

H.86 PROGRESSION RULES

H.86.1 Full-time

Unless Senate decides otherwise, a full-time student shall complete the programme in one year. A student who has passed at least 90 credits in year 1, may be allowed to complete the programme in the following year.

H.86.2 Part-time

Unless Senate decides otherwise, a part-time student shall complete the programme in two consecutive years and accumulate at least 60 credits in the first year to promote to the second year of their studies. A student who accumulates at least 90 credits within two years, may be permitted to proceed with their studies to complete the programme.

H.87 RENEWAL OF REGISTRATION

Renewal of registration shall be governed by Rule A.4, as stipulated in the University Calendar: General Information Part 1 or as provided for in the Faculty rules.

H.88 SPECIAL REQUIREMENTS FOR THE PROGRAMME

There are no special requirements for this programme.

MODULES LIST PER YEAR LEVEL:

MODULE TYPE:

Compulsory (C), Electives (E), Year Module (YR), Semester Module (S), Pre-requisites and Co-requisites, Service Module (SM)

ASSESSMENT TYPE:

Continuous Assessment (CA) or Final Assessment (FA) or Continuous Assessment and Final Assessment (CFA)

Module Code	Module Name	Compulsory	Credits	NQF Level	Duration	Pre-Requisite	Co-Requisite	Assessment Type
TXL711	Advanced Income Tax Law 711	C	30	8	S1	None	None	CFA
TXL712	International Tax Law 712	C	30	8	S1	None	None	CFA
TXL713	Tax Administration Law 713	C	30	8	S2	None	None	CFA
TXL714	Estate Planning Law 714	C	30	8	S2	None	None	CFA

MASTER OF LAWS (STRUCTURED - 7801) / (THESIS - 7821)

H.89 ADMISSION

Unless Senate decides otherwise, a student shall be required to meet the following criteria to be enrolled for the **Master of Laws Degree – LLM (as indicated in H.92.1)**:

- H.89.1** an applicant must be in possession of a Bachelor of Laws Degree obtained from a South African University or have obtained a Postgraduate Diploma in Law or have obtained another qualification which in the opinion of the Senate is of an equivalent standard (See also Rule A.2.1.4)
- H.89.2** an applicant may be required to submit evidence of their ability in the proposed field of study, as well as their research ability, if the Faculty requires it.
- H.89.3** an applicant must fulfil such further minimum requirements as the Faculty Board may determine from time to time.
- H.89.4** a foreign/international applicant shall be required to submit evidence of their English proficiency even if English was their language of instruction.

Minimum Scores

- IELTS 6.5 (with 6.0 in each section)
- TOEFL 600 (with 55 in each section and 4.0 in TWE)
- TOEFL IBT 100 (with at least 20 in each section)
- A degree from a foreign English medium university, with appropriate motivation, may be accepted in some circumstances.

H.90 SELECTION

Final selection shall be based on an applicant meeting the criteria as determined by the Faculty.

H.91 DURATION

Unless Senate decides otherwise, the duration of the programme shall be one year full-time or two years part-time, with a maximum period of study of three years.

H.92 CURRICULUM

H.92.1 The Master's of Laws programme is offered in the following areas of specialisation:

- Comparative Constitutional Law
- Comparative Labour Law
- Criminal Justice
- Disability Law (not offered in 2026)
- Environment Law
- Human Rights Protection
- Law, State and Multi-level Government
- Mercantile Law

H.92.2 A student registered for the LLM Degree in the Faculty of Law may follow any of the following Modes:

- **MODE I:** Four Modules and a Research Paper
- **MODE II:** Two Modules and a Mini-Thesis (not offered to new students from 2027)
- **MODE III:** Full-Thesis

H.92.3 MODE I: Four Modules and a Research Paper (7801)

H.92.3.1 Comparative Constitutional Law

Module Name	Module Code	Credits
Compulsory		
Research Paper 805 (1 st Enrolment)	CLL805	60
Research Paper 806 (2 nd Enrolment)	CLL806	
Comparative Constitutional Law 811	CCL811	30
Constitutional Design in Divided Societies 811	CDS811	30
Constitutional Rights Interpretation 800	CIN800	30
Constitutional Law, Politics and Theory 811	CIN811	30
FINAL TOTAL		180

H.92.3.2 Comparative Labour Law

Module Name	Module Code	Credits
Compulsory		
Research Paper 805 (1 st Enrolment)	LAB805	60
Research Paper 806 (2 nd Enrolment)	LAB806	
Electives (select four modules)		
Competition Law and Work 812	CPT812	30
Disability Law and the Workplace 812	DLP812	30
Dispute Resolution 811	DPR811	30
The Extension of Social Protection 811	ESP811	30
Labour Law in the New Global Market 811	LAB811	30
Law of Unfair Dismissal 812	LAB812	30
FINAL TOTAL		180

H.92.3.3 Criminal Justice

Group 1 (Transnational Criminal Justice)

Module Name	Module Code	Credits
Compulsory		
Research Paper 805 (1 st Enrolment)	TCJ805	60
Research Paper 806 (2 nd Enrolment)	TCJ806	
International Anti-Corruption Law 812	IAL812	30
International Criminal Law 811	IHR811	30
International Anti-Money Laundering Law 811	OML811	30
Transitional Justice 812	IHR812	30
FINAL TOTAL		180

Group 2

Module Name	Module Code	Credits
Compulsory		
Research Paper 805 (1 st Enrolment)	TCJ805	60
Research Paper 806 (2 nd Enrolment)	TCJ806	
Anti-Corruption Law 811	ACL811	30
Constitutional Rights and Criminal Justice 812	CLL812	30
Anti-Money Laundering Law 811	AML811	30
Punishment and Sentencing 812	LPS812	30
FINAL TOTAL		180

H.92.3.4 Environment Law

Module Name	Module Code	Credits
Compulsory		
Research Paper 805 (1 st Enrolment)	IEL805	60
Research Paper 806 (2 nd Enrolment)	IEL806	
Climate Law and Governance 818	CLL818	30
Constitutional Law and Nature 819	CLL819	30
Animal Law and Rights 821	CLL821	30
International Environmental Law 811	IEL811	30
Advanced Environmental Law 812	IEL812	30
FINAL TOTAL		180

H.92.3.5 Human Rights Protection

Module Name	Module Code	Credits
Compulsory		
Research Paper 805 (1 st Enrolment)	IHR805	60
Research Paper 806 (2 nd Enrolment)	IHR806	
International Protection of Human Rights Law 814	IHR814	30
	Sub-total	90
Electives (select three modules)		
Gender Equality and Women's Rights 815	CLL815	30
Legal and Cultural Pluralism 816	CLL816	30
Children's Rights 817	CLL817	30
International Family Law 811	FAM811	30
International Humanitarian Law 815	IHR815	30
Global Human Rights Issues 816	IHR816	30
Islamic Law and Jurisprudence 811	PRL811	30
Economic, Social and Cultural Rights 811	SER811	30
Constitutional Property Law 811 (not offered in 2026)	CPL811	30
Land Reform and Housing Law 812 (not offered in 2026)	CPL812	30
	Sub-total	90
FINAL TOTAL		180

H.92.3.6 Mercantile Law

Module Name	Module Code	Credits
Compulsory		
Research Paper 805 (1 st Enrolment)	MER805	60
Research Paper 806 (2 nd Enrolment)	MER806	
	Sub-total	60
Electives (select four modules)		
Corporate Governance and Remedies 811	COR811	30
Corporate Financial Regulation 812	COR812	30
Corporate Insolvency Law 813	COR813	30
Competition Law and Regulation 811	CPT811	30
Mergers and Acquisitions 813	CPT813	30
Competition and Information Law 814	CPT814	30
Comparative Regional Integration and Development 813	IHR813	30
International Trade 811	ITB811	30
International Taxation Law 811	ITT811	30
Dispute Settlement in International Transactions 811 (not offered in 2026)	SIT811	30
Tax Administration 812	TLA812	30
	Sub-total	120
	FINAL TOTAL	180

H.92.3.7 Law, State and Multi-level Government

Module Name	Module Code	Credits
Compulsory		
Research Paper 805 (1 st Enrolment)	MLG805	60
Research Paper 806 (2 nd Enrolment)	MLG806	
Multi-level Governance 814	CLL814	30
Rule of Law and Good Governance 811	LGG811	30
Local Government 812	LGL812	30
	Sub-total	150
Electives (select one module)		
Constitutional Law Practice 811 (full-time only)	CLL811	30
Constitutional Design in Divided Societies 811	CDS811	30
	Sub-total	30
	FINAL TOTAL	180

H.92.4 MODE II: Two Modules and a Mini-Thesis (7801) (not offered to new students from 2027)

H.92.4.1 Comparative Constitutional Law

Module Name	Module Code	Credits
Compulsory		
Mini-Thesis 803 (1 st Enrolment)	CLL803	120
Mini-Thesis 804 (2 nd Enrolment)	CLL804	
Comparative Constitutional Law 811	CCL811	30
	Sub-total	150

Electives (select one module)

Constitutional Design in Divided Societies 811	CDS811	30
Constitutional Law, Politics and Theory 811	CIN811	30
Constitutional Rights Interpretation 800	CIN800	30
	Sub-total	30

FINAL TOTAL 180

H.92.4.2 Comparative Labour Law**Module Name****Module Code****Credits****Compulsory**

Mini-Thesis 803 (1 st Enrolment)	LAB803	120
Mini-Thesis 804 (2 nd Enrolment)	LAB804	
	Sub-total	120

Electives (select two modules)

Competition Law and Work 812	CPT812	30
Disability Law and the Workplace 812	DLP812	30
Dispute Resolution 811	DPR811	30
Law of Unfair Dismissal 812	LAB812	30
Labour Law in the New Global Market 811	LAB811	30
The Extension of Social Protection 811	ESP811	30
	Sub-total	60

FINAL TOTAL 180

H.92.4.3 Criminal Justice**Module Name****Module Code****Credits****Compulsory**

Mini-Thesis 803 (1 st Enrolment)	CLL803	120
Mini-Thesis 804 (2 nd Enrolment)	CLL804	
Anti-Corruption Law 811	ACL811	30
Anti-Money Laundering Law 811	AML811	30

FINAL TOTAL 180

H.92.4.4 Disability Law (not offered in 2026)**Module Name****Module Code****Credits****Compulsory**

Mini-Thesis 803 (1 st Enrolment)	DSL803	120
Mini-Thesis 804 (2 nd Enrolment)	DSL804	
Introduction to Disability Law and Policy 811	DLP811	30
UN Disability Convention and Optional Protocol 812	DPC812	30

FINAL TOTAL 180

H.92.4.5 Environment Law

Module Name	Module Code	Credits
Compulsory		
Mini-Thesis 803 (1 st Enrolment)	IEL803	120
Mini-Thesis 804 (2 nd Enrolment)	IEL804	
	Sub-total	120
Electives (select two modules)		
Advanced Environmental Law 812	IEL812	30
International Environmental Law 811	IEL811	30
Climate Law and Governance 818	CLL818	30
Constitutional Law and Nature 819	CLL819	30
Animal Law and Rights 821	CLL821	30
	FINAL TOTAL	180

H.92.4.6 Human Rights Protection

Module Name	Module Code	Credits
Compulsory		
Mini-Thesis 803 (1 st Enrolment)	IHR803	120
Mini-Thesis 804 (2 nd Enrolment)	IHR804	
International Protection of Human Rights Law 814	IHR814	30
	Sub-total	150
Electives (select one module)		
Gender Equality and Women's Rights 815	CLL815	30
Legal and Cultural Pluralism 816	CLL816	30
Children's Rights 817	CLL817	30
International Family Law 811	FAM811	30
International Humanitarian Law 815	IHR815	30
Global Human Rights Issues 816	IHR816	30
Islamic Law and Jurisprudence 811	PRL811	30
Economic, Social and Cultural Rights 811	SER811	30
Constitutional Property Law 811 (not offered in 2026)	CPL811	30
Land Reform and Housing Law 812 (not offered in 2026)	CPL812	30
	Sub-total	30
	FINAL TOTAL	180

H.92.4.7 Mercantile Law

Module Name	Module Code	Credits
Compulsory		
Mini-Thesis 803 (1 st Enrolment)	MER803	120
Mini-Thesis 804 (2 nd Enrolment)	MER804	
	Sub-total	120
Electives (select two modules)		
Corporate Governance and Remedies 811	COR811	30
Competition and Information Law 814	CPT814	30

Comparative Regional Integration and Development 813	IHR813	30
International Trade 811	ITB811	30
International Taxation Law 811	ITT811	30
Dispute Settlement in International Transactions 811 (not offered in 2026)	SIT811	30
Tax Administration 812	TLA812	30
Competition Law and Regulation 811	CPT811	30
Mergers and Acquisitions 813	CPT813	30
Corporate Financial Regulation 812	COR812	30
Corporate Insolvency Law 813	COR813	30
	Sub-total	60
	FINAL TOTAL	180

H.92.4.8 Law, State and Multi-level Government

Module Name	Module Code	Credits
Compulsory		
Mini-Thesis 803 (1 st Enrolment)	MLG803	
Mini-Thesis 804 (2 nd Enrolment)	MLG804	120
Multi-level Governance 814	CLL814	30
Local Government 812	LGL812	30
	FINAL TOTAL	180

H.92.5 Mode III: Full-Thesis

H.92.5.1 LLM without specialisation (7822)

Subject to Rule H.96.3, a student can complete the LLM (Thesis) in any topic approved by the Faculty.

Module Name	Credits
LLM (Thesis)	180

H.92.5.2 LLM with specialisation (7821)

Subject to Rule H.96.3, a student can complete the following specialised LLM programme by full thesis:

Module Name	Module Code	Credits
Comparative Constitutional Law 801/802	CLL801/802	180
Disability Law 801/802	DSL801/802	180
Environment Law 801/802	IEL801/802	180
Human Rights Protection 801/802	IHR801/802	180
Comparative Labour Law 801/802	LAB801/802	180
Mercantile Law 801/802	MER801/802	180
Law, State and Multi-level Government 801/802	MLG801/802	180
Criminal Justice 801/802	TCJ801/802	180
	FINAL TOTAL	180

H.93 ASSESSMENT

H.93.1 Assessment is governed by Rule A.5 as stipulated in the University Calendar: General Information Part 1.

H.93.2 Unless the Faculty Board otherwise decides, a student, in respect of modules enrolled for at this University, must:

H.93.2.1 submit at least one research essay of approximately 5 000 words for every module or equivalent form of assessment of the student's research ability (which shall be submitted for assessment at least two calendar weeks before the dates scheduled for the examination referred to in Rule H.93.2.2), and

H.93.2.2 sit for an examination or final assessment in each module, the format of which shall be determined by the relevant academic department.

H.93.3 In respect of modules enrolled for at another university or Practical Legal School, a student must comply with the assessment requirements of that university or Practical Legal School.

H.94 PROGRESSION RULES

Registration for the following year of study shall be recommended by the supervisor if in their opinion, adequate progress has been made during the current year (See Rule A.3.3).

H.95 RENEWAL OF REGISTRATION

Renewal of registration shall be governed by Rule A.4, as stipulated in the University Calendar: General Information Part 1 or as provided for in the faculty rules as contained in this Calendar.

H.96 SPECIAL REQUIREMENTS FOR THE PROGRAMME

H.96.1 MODE I

H.96.1.1 At least two modules listed in Rule H.92.3 must be chosen from this University.

H.96.1.2 The two further modules may be chosen from the modules offered by any of the universities listed below, provided that the choice is approved by the relevant academic department.

List of Universities:

- University of the Western Cape;
- University of Stellenbosch;
- University of Cape Town;
- University of Humboldt zu Berlin;
- University of La Réunion;
- University of Utrecht;
- University of Leiden;
- Howard University;
- University of Missouri;

- Paul Cezanne University (previously University of Aix-Marseilles III); or
- any other Faculty or School of Law with which the University of the Western Cape has an exchange or co-operation agreement.

H.96.1.3 A student may choose as one of the two modules referred to in Rule H.96.1.2 above the full-time Practical Legal Training course offered by the Law Society of South Africa at any of the venues where it is offered.

H.96.1.4 Research Paper

H.96.1.4.1 A student must present a research paper of approximately 18 000 words which demonstrates their ability to conduct independent research and which is in a format suitable for publication.

H.96.1.4.2 The topic of the research paper must be chosen by the student in consultation with and with the approval of the supervisor concerned.

H.96.1.4.3 Unless extension of time has been granted by the Faculty Board, the research paper must be submitted for assessment within three calendar months after the student has completed the last assessment in the four modules for which they have enrolled.

H.96.1.4.4 No student may present a research paper for assessment unless they have successfully completed at least half of the modules required for the completion of the degree.

H.96.1.4.5 A student may not be readmitted to the programme if they have not presented their research paper for assessment within two years after completion of the coursework, unless an extension has been granted by Senate.

H.96.1.4.6 A student must, for the purposes of assessment, submit two provisional copies of their research paper. The research paper must, as a rule, be typed in double spacing and shall be satisfactorily bound. After approval of the research paper and before the degree is conferred at least one further unbound copy of the research paper, shall be furnished. A summary of the research paper, not exceeding 5 000 words, is also required.

H.96.1.4.7 Together with the submission of a student's research proposal to the Law Higher Degrees Committee, the student must present evidence of participation in research methodology training as determined by the Faculty.

H.96.1.5 A student who has obtained a Postgraduate Diploma in Law may register for the following:

H.96.1.5.1 Two modules other than the modules taken for the diploma, and a research paper.

H.96.1.5.2 The two modules may be chosen from the modules offered by any of the universities listed in Rule H.96.1.2, provided that the choice is approved by the relevant academic department.

H.96.1.5.3 Choose as one of the two modules referred to in Rule H.96.1.2 above the full-time Practical Legal Training Course offered by the Law Society of South Africa at any of the venues where it is offered.

H.96.2 MODE II

H.96.2.1 Modules must be chosen from the modules offered by the University (See the Curriculum at H.92.4), provided further that the choice is approved by the relevant academic department.

H.96.2.2 Mini-Thesis

H.96.2.2.1 A student must present a mini-thesis consisting of approximately 30 000 words which must be a satisfactory contribution to the knowledge of the subject.

H.96.2.2.2 The topic of the mini-thesis must be chosen by the student in consultation with and with the approval of the supervisor concerned.

H.96.2.2.3 The mini-thesis must be presented within twelve months after the end of the academic year in which the student completes their coursework unless the Faculty Board, for valid reasons approves a longer period of time.

H.96.2.2.4 A student may not be readmitted to the programme without permission of Senate if, three years after the completion of the coursework, they have not submitted their mini-thesis.

H.96.2.2.5 For the purposes of assessment, a student must submit two provisional copies of their mini-thesis. The mini-thesis must, as a rule, be typed in double spacing and shall be satisfactorily bound. After approval of the mini-thesis and before the degree is conferred, at least one further unbound copy of the mini-thesis shall be furnished. A summary of the mini-thesis, not exceeding 5 000 words, is also required.

H.96.2.2.6 Together with the submission of the candidate's research proposal to the Law Higher Degrees Committee, the candidate must present evidence of participation in research methodology training as determined by the Faculty.

H.96.3 MODE III

H.96.3.1 A student registered for the LLM (Thesis) programme undertakes supervised programmes of research of not less than one year's duration and must submit a thesis which usually shall not exceed 50 000 words in length for examination.

H.96.3.2 The title of the thesis together with the application for admission to the study for the degree, shall be submitted by them to Senate for its approval.

H.96.3.3 The title of the thesis shall be approved for a period of three years, after which period the student may apply for an extension.

H.96.3.4 A student shall research and write their thesis under the guidance of a supervisor approved by Senate. The Senate may appoint a supervisor or co-supervisor from outside the University.

- H.96.3.5** The thesis shall be a satisfactory contribution to knowledge on a subject of legal interest.
- H.96.3.6** The student may be required to submit, together with their thesis, a copy of every mini-thesis or thesis previously submitted by them for another degree, whether it was accepted or not.
- H.96.3.7** Except with permission from Senate, no thesis shall be submitted unless it is accompanied by a written declaration from the supervisor and co-supervisor (if appointed) in which permission is granted for the assessment of the thesis. Such declaration shall not necessarily imply that the thesis is considered to be acceptable.
- H.96.3.8** The thesis shall be submitted not later than the dates stipulated in the University Calendar.
- H.96.3.9** No thesis which has previously been submitted for a degree at another university shall be accepted, but material taken from publications of the student may be incorporated therein.
- H.96.3.10** Together with the submission of the candidate's research proposal to the Law Higher Degrees Committee, the candidate must present evidence of participation in research methodology training as determined by the Faculty.

MODULES LIST PER YEAR LEVEL:

MODULE TYPE:

Compulsory (C), Electives (E), Year Module (YR), Semester Module (S), Pre-requisites and Co-requisites, Service Module (SM)

ASSESSMENT TYPE:

Continuous Assessment (CA) or Final Assessment (FA) or Continuous Assessment and Final Assessment (CFA)

Module Code	Module Name	Compulsory/ Elective	Credits	NQF Level	Enrolment Year	Duration	Pre-Requisite	Co-Requisite	Assessment Type
ACL811	Anti-Corruption Law 811	C	30	9	1/2	S1	None	None	CFA
AML811	Anti-Money Laundering Law 811	C	30	9	1/2	S1	None	None	CFA
CCL811	Comparative Constitutional Law 811	C	30	9	1/2	S1	None	None	CFA
CDS811	Constitutional Design in Divided Societies 811	C/E	30	9	1/2	S2	None	None	CFA
CIN800	Constitutional Rights Interpretation 800	C/E	30	9	1/2	S1	None	None	CFA
CIN811	Constitutional Law, Politics and Theory 811	C/E	30	9	1/2	S2	None	None	CFA

Module Code	Module Name	Compulsory/ Elective	Credits	NQF Level	Enrolment Year	Duration	Pre-Requisite	Co-Requisite	Assessment Type
CLL801	Comparative Constitutional Law 801	C	180	9	1	YR	None	None	FA
CLL802	Comparative Constitutional Law 802	C		9	2	YR	None	None	FA
CLL803	Mini-Thesis 803	C	120	9	1	YR	None	None	FA
CLL804	Mini-Thesis 804	C		9	2	YR	None	None	FA
CLL805	Research Paper 805	C	60	9	1	YR	None	None	FA
CLL806	Research Paper 806	C		9	2	YR	None	None	FA
CLL811	Constitutional Law Practice 811 (full-time only)	E	30	9	1/2	S2	None	None	CFA
CLL812	Constitutional Rights and Criminal Justice 812	C	30	9	1/2	S2	None	None	CFA
CLL814	Multi-level Governance 814	C	30	9	1/2	S1	None	None	CFA
CLL815	Gender Equality and Women's Rights 815	E	30	9	1/2	S2	None	None	CFA
CLL816	Legal and Cultural Pluralism 816	C/E	30	9	1/2	S1	None	None	CFA
CLL817	Children's Rights 817	E	30	9	1/2	S2	None	None	CFA
CLL818	Climate Law and Governance 818	C/E	30	9	1/2	S2	IEL812	None	CFA
CLL819	Constitutional Law and Nature 819	C/E	30	9	1/2	S1	None	None	CFA
CLL821	Animal Law and Rights 821	C/E	30	9	1/2	S2	CLL819	None	CFA
COR811	Corporate Governance and Remedies 811	E	30	9	1/2	S1	None	None	CFA
COR812	Corporate Financial Regulation 812	E	30	9	1/2	S1	None	None	CFA
COR813	Corporate Insolvency Law 813	E	30	9	1/2	S2	None	None	CFA
CPL811	Constitutional Property Law 811	E	30	9	1/2	S1	None	None	CFA
CPL812	Land Reform and Housing Law 812	E	30	9	1/2	S1	None	None	CFA
CPT811	Competition Law and Regulation 811	E	30	9	1/2	S1	None	None	CFA
CPT812	Competition Law and Work 812	E	30	9	1/2	S2	None	None	CFA
CPT813	Mergers and Acquisitions 813	E	30	9	1/2	S2	None	None	CFA
CPT814	Competition and Information Law 814	E	30	9	1/2	S1	None	None	CFA
DLP812	Disability Law and the Workplace 812	E	30	9	1/2	S1	None	None	CFA
DPR811	Dispute Resolution 811	E	30	9	1/2	S2	None	None	CFA

Module Code	Module Name	Compulsory/ Elective	Credits	NQF Level	Enrolment Year	Duration	Pre-Requisite	Co-Requisite	Assessment Type
DSL801	Disability Law 801	C	180	9	1	YR	None	None	FA
DSL802	Disability Law 802	C		9	2	YR	None	None	FA
ESP811	The Extension of Social Protection 811	E	30	9	1/2	S2	None	None	CFA
FAM811	International Family Law 811	C/E	30	9	1/2	S1	None	CLL817	CFA
IAL812	International Anti- Corruption Law 812	C	30	9	1/2	S2	None	None	CFA
IEL801	Environment Law 801	C	180	9	1	YR	None	None	CFA
IEL802	Environment Law 802	C		9	2	YR	None	None	CFA
IEL803	Mini-Thesis 803	C	120	9	1	YR	None	None	FA
IEL804	Mini-Thesis 804	C		9	2	YR	None	None	FA
IEL805	Research Paper 805	C	60	9	1	YR	None	None	FA
IEL806	Research Paper 806	C		9	2	YR	None	None	FA
IEL811	International Environmental Law 811	C/E	30	9	1/2	S2	None	ENV431 or equivalent	CFA
IEL812	Advanced Environmental Law 812	C/E	30	9	1/2	S1	None	IEL811	CFA
IHR801	Human Rights Protection 801	C	180	9	1	YR	None	None	FA
IHR802	Human Rights Protection 802	C		9	2	YR	None	None	FA
IHR803	Mini-Thesis 803	C	120	9	1	YR	None	None	FA
IHR804	Mini-Thesis 804	C		9	2	YR	None	None	FA
IHR805	Research Paper 805	C	60	9	1	YR	None	None	FA
IHR806	Research Paper 806	C		9	2	YR	None	None	FA
IHR811	International Criminal Law 811	C	30	9	1/2	S1	None	None	CFA
IHR812	Transitional Justice 812	C	30	9	1/2	S1	None	None	CFA
IHR813	Comparative Regional Integration and Development 813	E	30	9	1/2	S2	None	None	CFA
IHR814	International Protection of Human Rights Law 814	C/E	30	9	1/2	S2	None	None	CFA
IHR815	International Humanitarian Law 815	E	30	9	1/2	S2	None	None	CFA
IHR816	Global Human Rights Issues 816	E	30	9	1/2	S2	None	None	CFA
ITB811	International Trade 811	E	30	9	1/2	S2	None	None	CFA
ITT811	International Taxation Law 811	E	30	9	1/2	S1	None	None	CFA
LAB801	Comparative Labour Law 801	C	180	9	1	YR	None	None	FA
LAB802	Comparative Labour Law 802	C		9	2	YR	None	None	FA
LAB803	Mini-Thesis 803	C	120	9	1	YR	None	None	FA

Module Code	Module Name	Compulsory/ Elective	Credits	NQF Level	Enrolment Year	Duration	Pre-Requisite	Co-Requisite	Assessment Type
LAB804	Mini-Thesis 804	C	60	9	2	YR	None	None	FA
LAB805	Research Paper 805	C		9	1	YR	None	None	FA
LAB806	Research Paper 806	C		9	2	YR	None	None	FA
LAB811	Labour Law in the New Global Market 811	E	30	9	1/2	S1	None	None	CFA
LAB812	Law of Unfair Dismissal 812	E	30	9	1/2	S1	None	None	CFA
LGG811	Rule of Law and Good Governance 811	C	30	9	1/2	S2	None	None	CFA
LGL812	Local Government 812	C	30	9	1/2	S1	None	None	CFA
LPF801	Mini-Thesis 801	C	180	9	1	YR	None	None	FA
LPF802	Mini-Thesis 802	C		9	2	YR	None	None	FA
LPF803	Mini-Thesis 803	C	60	9	1	YR	None	None	FA
LPF804	Mini-Thesis 804	C		9	2	YR	None	None	FA
LPS812	Punishment and Sentencing 812	C	30	9	1/2	S2	None	None	CFA
MER801	Mercantile Law 802	C	180	9	1	YR	None	None	FA
MER802	Mercantile Law 802	C		9	2	YR	None	None	FA
MER803	Mini-Thesis 803	C	120	9	1	YR	None	None	FA
MER804	Mini-Thesis 804	C		9	2	YR	None	None	FA
MER805	Research Paper 805	C	60	9	1	YR	None	None	FA
MER806	Research Paper 806	C		9	2	YR	None	None	FA
MLG801	Law, State and Multi-level Government 801	C	180	9	1	YR	None	None	FA
MLG802	Law, State and Multi-level Government 802	C		9	2	YR	None	None	FA
MLG803	Mini-Thesis 803	C	120	9	1	YR	None	None	FA
MLG804	Mini-Thesis 804	C		9	2	YR	None	None	FA
MLG805	Research Paper 805	C	60	9	1	YR	None	None	FA
MLG806	Research Paper 806	C		9	2	YR	None	None	FA
OML811	International Anti-Money Laundering Law 811	C	30	9	1/2	S2	None	None	CFA
PRL811	Islamic Law and Jurisprudence 811	E	30	9	1/2	S2	None	None	CFA
SER811	Economic, Social and Cultural Rights 811	E	30	9	1/2	S2	None	None	CFA
SIT811	Dispute Settlement in International Transactions 811	E	30	9	1/2	S2	None	None	CFA
TCJ801	Criminal Justice 801	C	180	9	1	YR	None	None	FA
TCL802	Criminal Justice 802	C		9	2	YR	None	None	FA
TCJ805	Research Paper 806	C	60	9	1	YR	None	None	FA
TCL806	Research Paper 806	C		9	2	YR	None	None	FA
TLA812	Tax Administration 812	E	30	9	1/2	S2	None	None	CFA

MASTER OF LAWS IN INTERNATIONAL TRADE, INVESTMENT AND BUSINESS LAW (7811)

The LLM programme in International Trade, Investment and Business Law is a collaborative programme between UWC, the University of Pretoria (UP), American University (Washington, DC) and the University of Amsterdam (The Netherlands).

This course focuses on world trade and investment, with a specific focus on the interests of Africa in the context of globalisation. Students with good academic records are invited to apply.

Students register and spend one semester at UWC and one semester at one of the two international partners (special criteria apply).

H.97 ADMISSION

Unless Senate decides otherwise, a student shall be required to meet the following criteria to be enrolled for the **Master of Laws in International Trade, Investment and Business Law Degree - LLM (International Trade, Investment and Business Law)**:

H.97.1 an applicant must be in possession of a first degree in law (LLB or equivalent) and fluent in English. The following documentation must be submitted:

H.97.1.1 curriculum vitae (including full particulars and contact details);

H.97.1.2 a covering letter motivating why you would like to do the course;

H.97.1.3 certified copies of degree certificates;

H.97.1.4 academic transcript listing all subjects taken and marks obtained;

H.97.1.5 two letters of recommendation, and

H.97.1.6 a submission of your financial standing and motivation letter if you wish to be considered for a scholarship.

H.98 SELECTION

Final selection shall be based on an applicant meeting the criteria as determined by the Faculty.

H.99 DURATION

Unless Senate decides otherwise, the duration of the programme shall be one year full-time.

H.100 CURRICULUM

A student registered for the LLM Degree may follow any of the following Modes:

H.100.1 **MODE I: Four Modules and a Research Paper** (not offered in 2026)

Module Name	Module Code	Credits
Compulsory		
Research Paper 805 (1 st Enrolment)	REP805	60
Research Paper 806 (2 nd Enrolment)	REP806	30
International Business and Regional Trade Law 812	ITB812	30
International Economic and Investment Law 813	ITB813	30
Students complete a further two modules at the International partner University		60
FINAL TOTAL		180

H.100.2 **MODE II: Two Modules and a Mini-Thesis** (not offered to new students from 2027)

Module Name	Module Code	Credits
Compulsory		
Mini-Thesis (1 st Enrolment)	MIN803	120
Mini-Thesis (2 nd Enrolment)	MIN804	30
International Business and Regional Trade Law 812	ITB812	30
International Economic and Investment Law 813	ITB813	30
FINAL TOTAL		180

H.101 ASSESSMENT

H.101.1 Assessment is governed by Rule A.5 as stipulated in the University Calendar: General Information Part 1.

H.101.2 Unless the Faculty Board otherwise decides, a student, in respect of modules enrolled for at this University, must:

H.101.2.1 submit at least one research paper essay of approximately 5 000 words for every module or equivalent form of assessment of their research ability (which shall be submitted for assessment at least two calendar weeks before the dates scheduled for the examination referred to in Rule H.101.2.2), and

H.101.2.2 sit for an examination or final assessment in each module, the format of which shall be determined by the relevant academic department.

H.101.3 In respect of modules enrolled for at another university, a student must comply with the assessment requirements of that university.

H.102 PROGRESSION RULES

Registration for the following year of study shall be recommended by the supervisor if in their opinion, adequate progress has been made during the current year (See Rule A.3.3).

H.103 RENEWAL OF REGISTRATION

Renewal of registration shall be governed by Rule A.4, as stipulated in the University Calendar: General Information Part 1 or as provided for in the faculty rules as contained in this Calendar.

H.104 SPECIAL REQUIREMENTS FOR THE PROGRAMME

H.104.1 Research Paper

- H.104.1.1** A student must present a research paper of approximately 18 000 words which demonstrates their ability to conduct independent research and which is in a format suitable for publication.
- H.104.1.2** The topic of the research paper must be chosen by the student in consultation with and with the approval of the supervisor concerned.
- H.104.1.3** Unless extension of time has been granted by the Faculty Board, the research paper must be submitted for assessment within three calendar months after the student has completed the last assessment in the four modules for which they have enrolled.
- H.104.1.4** No student may present a research paper unless they have successfully completed at least half of the number of modules required for the completion of the degree.
- H.104.1.5** A student may not be readmitted to the programme if they have not presented their research paper for assessment within two years after completion of the coursework, unless an extension has been granted by Senate.
- H.104.1.6** Together with the submission of the candidate's research proposal to the Law Higher Degrees Committee, the candidate must present evidence of participation in research methodology training as determined by the Faculty.

H.104.2 Mini-Thesis

- H.104.2.1** A student must present a mini-thesis consisting of approximately 30 000 words which must be a satisfactory contribution to the knowledge of the subject.
- H.104.2.2** The topic of the mini-thesis must be chosen by the student in consultation with and with the approval of the supervisor concerned.
- H.104.2.3** The mini-thesis must be presented within twelve months after the end of the academic year in which the student completes their coursework unless the Faculty Board, for valid reasons approves a longer period of time.
- H.104.2.4** A student may not be readmitted to the programme without permission of Senate if, three years after the completion of the coursework, they have not submitted their mini-thesis.
- H.104.2.5** Together with the submission of the candidate's research proposal to the Law Higher Degrees Committee, the candidate must present evidence of participation in research methodology training as determined by the Faculty.

H.104.3 Funding

Limited scholarships may be available. Should funding be required, include proof of financial status and motivation for financial assistance in application.

MODULES LIST PER YEAR LEVEL:

MODULE TYPE:

Compulsory (**C**), Electives (**E**), Year Module (**YR**), Semester Module (**S**), Pre-requisites and Co-requisites, Service Module (**SM**)

ASSESSMENT TYPE:

Continuous Assessment (**CA**) or Final Assessment (**FA**) or Continuous Assessment and Final Assessment (**CFA**); Service Module (**SM**)

Module Code	Module Name	Compulsory	Credits	NQF Level	Enrolment Year	Duration	Pre-Requisite	Co-Requisite	Assessment Type
ITB812	International Business and Regional Trade Law 812	C	30	9	1/2	S1	None	None	CFA
ITB813	International Economic and Investment Law 813	C	30	9	1/2	S1	None	None	CFA
MIN803	Mini-Thesis 803	C	120	9	1	YR	None	None	FA
MIN804	Mini-Thesis 804	C		9	2	YR	None	None	FA
REP805	Research Paper 805	C	60	9	1	YR	None	None	FA
REP806	Research Paper 806	C		9	2	YR	None	None	FA

MASTER OF LAWS IN LEGAL PLURALISM AND FAMILY LAW **(THESIS - 7831) / (STRUCTURED – 7832)**

H.105 ADMISSION

Unless Senate decides otherwise, a student shall be required to meet the following criteria to be enrolled for the **Master of Laws in Legal Pluralism and Family Law Degree – LLM (Legal Pluralism and Family Law)**:

- H.105.1** an applicant must be in possession of a Bachelor of Laws Degree obtained from a South African University or have obtained a Postgraduate Diploma in Law or have obtained another qualification which in the opinion of the Senate is of an equivalent standard
- H.105.2** an applicant may be required to submit evidence of his/her ability in the proposed field of study, as well as his/her research ability, if the Faculty requires it
- H.105.3** an applicant must fulfil such further minimum requirements as the Faculty Board may determine from time to time.

H.106 SELECTION

Final selection shall be based on an applicant meeting the criteria as determined by the Faculty.

H.107 DURATION

Unless Senate decides otherwise, the duration of the programme shall be one year full-time or two years part-time with a maximum period of study of three years.

H.108 CURRICULUM

H.108.1 A student registered for the LLM Degree in the Faculty of Law may follow any of the following Modes:

- **MODE I:** Mini-thesis and four modules
- **MODE II:** Full research by dissertation

H.108.2 MODE I: Mini-thesis and four modules (7832)

Module Name	Module Code	Credits
Compulsory		
Mini-Thesis 803 (1 st enrolment)	LPF803	60
Mini-Thesis 804 (2 nd enrolment)	LPF804	
Legal and Cultural Pluralism 816	CLL816	30
International Family Law 811	FAM811	30
	Sub-total	120

Electives (select two modules)

Children's Rights 817	CLL817	30
International Protection of Human Rights Law 814	IHR814	30
Islamic Law and Jurisprudence 811	PRL811	30
	Sub-total	60
	FINAL TOTAL	180

H.108.3 Mode II: Full research by dissertation (7831)

Module Name	Module Code	Credits
Compulsory		
Legal Pluralism and Family 801 (1 st enrolment)	LPF801	
Legal Pluralism and Family 802 (2 nd enrolment)	LPF802	180
	FINAL TOTAL	180

H.109 ASSESSMENT

H.109.1 Assessment is governed by Rule A.5 as stipulated in the University Calendar: General Information Part 1.

H.109.2 Unless the Faculty Board otherwise decides, a student, in respect of modules enrolled for at this University, must:

H.109.2.1 submit at least one research essay of approximately 5 000 words for every module or equivalent form of assessment of the student's research ability (which shall be submitted for assessment at least two calendar weeks before the dates scheduled for the examination referred to in Rule H.109.2.2), and

H.109.2.2 sit for an examination or final assessment in each module, the format of which shall be determined by the relevant academic department.

H.110 PROGRESSION RULES

Registration for the following year of study shall be recommended by the supervisor if in their opinion adequate progress has been made during the current year (See Rule A.3.3).

H.111 RENEWAL OF REGISTRATION

Renewal of registration shall be governed by Rule A.4, as stipulated in the University Calendar: General Information Part 1 or as provided for in the faculty rules as contained in this Calendar.

H.112 SPECIAL REQUIREMENTS FOR THE PROGRAMME**H.112.1 MODE I: Mini-thesis and four modules**

H.112.1.1 A student must present a mini-thesis consisting of approximately 30 000 words which must be a satisfactory contribution to the knowledge of the subject.

H.112.1.2 The topic of the mini-thesis must be chosen by the student in consultation with and with the approval of the supervisor concerned.

- H.112.1.3** The mini-thesis must be presented within twelve months after the end of the academic year in which the student completes their coursework unless the Faculty Board, for valid reasons approves a longer period of time.
- H.112.1.4** A student may not be readmitted to the programme without permission of Senate if, three years after the completion of the coursework, they have not submitted their mini-thesis.
- H.112.1.5** For the purposes of assessment, a student must submit two provisional copies of their mini-thesis. The mini-thesis must, as a rule, be typed in double spacing and shall be satisfactorily bound. After approval of the mini-thesis and before the degree is conferred, at least one further unbound copy of the mini-thesis shall be furnished. A summary of the mini-thesis, not exceeding 5 000 words, is also required.
- H.112.1.6** Together with the submission of the candidate's research proposal to the Law Higher Degrees Committee, the candidate must present evidence of participation in research methodology training as determined by the Faculty.

H.112.2 Mode II: Full research by dissertation

- H.112.2.1** A student registered for the LLM (Thesis) programme undertakes supervised programmes of research of not less than one year's duration and must submit a thesis which usually shall not exceed 50 000 words in length for examination.
- H.112.2.2** The title of the thesis together with the application for admission to the study for the degree, shall be submitted by them to Senate for its approval.
- H.112.2.3** The title of the thesis shall be approved for a period of three years, after which period the student may apply for an extension.
- H.112.2.4** A student shall research and write their thesis under the guidance of a supervisor approved by Senate. The Senate may appoint a supervisor or co-supervisor from outside the University.
- H.112.2.5** The thesis shall be a satisfactory contribution to knowledge on a subject of legal interest.
- H.112.2.6** The student may be required to submit, together with their thesis, a copy of every mini-thesis or thesis previously submitted by them for another degree, whether it was accepted or not.
- H.112.2.7** Except with permission from Senate, no thesis shall be submitted unless it is accompanied by a written declaration from the supervisor and co-supervisor (if appointed) in which permission is granted for the assessment of the thesis. Such declaration shall not necessarily imply that the thesis is considered to be acceptable.
- H.112.2.8** The thesis shall be submitted not later than the dates stipulated in the University Calendar.

- H.112.2.9** No thesis which has previously been submitted for a degree at another university shall be accepted, but material taken from publications of the student may be incorporated therein.
- H.112.2.10** Together with the submission of the candidate's research proposal to the Law Higher Degrees Committee, the candidate must present evidence of participation in research methodology training as determined by the Faculty.

MODULES LIST PER YEAR LEVEL:

MODULE TYPE:

Compulsory (**C**), Electives (**E**), Year Module (**YR**), Semester Module (**S**), Pre-requisites and Co-requisites, Service Module (**SM**)

ASSESSMENT TYPE:

Continuous Assessment (**CA**) or Final Assessment (**FA**) or Continuous Assessment and Final Assessment (**CFA**)

Module Code	Module Name	Compulsory/ Elective	Credits	NQF Level	Enrolment Year	Duration	Pre-Requisite	Co-Requisite	Assessment Type
CLL816	Legal and Cultural Pluralism 816	C/E	30	9	1/2	S1	None	None	CFA
CLL817	Children's Rights 817	E	30	9	1/2	S2	None	None	CFA
FAM811	International Family Law 811	C/E	30	9	1/2	S1	None	CLL817	CFA
IHR814	International Protection of Human Rights Law 814	C/E	30	9	1/2	S2	None	None	CFA
LPF801	Mini-Thesis 801	C	180	9	1	YR	None	None	FA
LPF802	Mini-Thesis 802	C		9	2	YR	None	None	FA
LPF803	Mini-Thesis 803	C	60	9	1	YR	None	None	FA
LPF804	Mini-Thesis 804	C		9	2	YR	None	None	FA
PRL811	Islamic Law and Jurisprudence 811	E	30	9	1/2	S2	None	None	CFA

MASTER OF PHILOSOPHY (STRUCTURED - 7871) / (THESIS - 7860)

H.113 ADMISSION

Unless Senate decides otherwise, a student shall be required to meet the following criteria to be enrolled for the **Master of Philosophy Degree – MPhil (as indicated in H.116.1)**:

Applicants who have not obtained an LLB or equivalent qualification, but have a degree or diploma of the University or of another tertiary institution, of which the latter degree or diploma, in the opinion of the Faculty of Law and Senate, is of a comparable standard, or who has in any other manner attained a level of competence which, in the opinion of the Faculty of Law and Senate, is adequate for the purpose of admission, may be registered for the Master of Philosophy Degree.

H.114 SELECTION

Final selection shall be based on an applicant meeting the criteria as determined by the Faculty.

H.115 DURATION

Unless Senate decides otherwise, the duration of the programme shall be one year full-time or two years part-time, with a maximum period of study of three years.

H.116 CURRICULUM

H.116.1 The Master of Philosophy programme is offered in the following areas of specialisation:

- Comparative Constitutional Law
- Comparative Labour Law
- Disability Law *(not offered in 2026)*
- Environment Law
- Human Rights Protection
- Law, State and Multi-level Government
- Mercantile Law

H.116.2 A student registered for the Master of Philosophy Degree in the Faculty of Law may follow any of the following Modes:

- MODE I: Four Modules and a Research Paper
- MODE II: Two Modules and a Mini-Thesis *(not offered to new students from 2027)*
- MODE III: Full-Thesis

H.116.3 MODE I: Four Modules and a Research Paper (7871)

H.116.3.1 Comparative Labour Law

Module Name	Module Code	Credits
Compulsory		
Research Paper 805 (1 st Enrolment)	LAB805	60
Research Paper 806 (2 nd Enrolment)	LAB806	
Electives (select four modules)		
Competition Law and Work 812	CPT812	30
Disability Law and the Workplace 812	DLP812	30
Dispute Resolution 811	DPR811	30
The Extension of Social Protection 811	ESP811	30
Labour Law in the New Global Market 811	LAB811	30
Law of Unfair Dismissal 812	LAB812	30
FINAL TOTAL		180

H.116.3.2 Comparative Constitutional Law

Module Name	Module Code	Credits
Compulsory		
Research Paper 805 (1 st Enrolment)	CLL805	60
Research Paper 806 (2 nd Enrolment)	CLL806	
Comparative Constitutional Law 811	CCL811	30
Constitutional Law, Politics and Theory 811	CIN811	30
Constitutional Design in Divided Societies 811	CDS811	30
Constitutional Rights Interpretation 800	CIN800	30
FINAL TOTAL		180

H.116.3.3 Environment Law

Module Name	Module Code	Credits
Compulsory		
Research Paper 805 (1 st Enrolment)	IEL805	60
Research Paper 806 (2 nd Enrolment)	IEL806	
Climate Law and Governance 818	CLL818	30
Constitutional Law and Nature 819	CLL819	30
International Environmental Law 811	IEL811	30
Advanced Environmental Law 812	IEL812	30
FINAL TOTAL		180

H.116.3.4 Human Rights Protection

Module Name	Module Code	Credits
Compulsory		
Research Paper 805 (1 st Enrolment)	IHR805	60
Research Paper 806 (2 nd Enrolment)	IHR806	
International Protection of Human Rights Law 814	IHR814	30
Sub-total		90

Electives (select three modules)

Gender Equality and Women's Rights 815	CLL815	30
Legal and Cultural Pluralism 816	CLL816	30
Children's Rights 817	CLL817	30
Constitutional Property Law 811 (not offered in 2026)	CPL811	30
Land Reform and Housing Law 812 (not offered in 2026)	CPL812	30
International Family Law 811	FAM811	30
International Humanitarian Law 815	IHR815	30
Global Human Rights Issues 816	IHR816	30
Islamic Law and Jurisprudence 811	PRL811	30
Economic, Social and Cultural Rights 811	SER811	30
	Sub-total	90
	FINAL TOTAL	180

H.116.3.5 Criminal Justice**(Transnational Criminal Justice)**

Module Name	Module Code	Credits
Compulsory		
Research Paper 805 (1 st Enrolment)	TCJ805	60
Research Paper 806 (2 nd Enrolment)	TCJ806	30
International Anti-Corruption Law 812	IAL812	30
International Criminal Law 811	IHR811	30
Transitional Justice 812	IHR812	30
International Anti-Money Laundering Law 811	OML811	30
	FINAL TOTAL	180

H.116.3.6 Mercantile Law

Module Name	Module Code	Credits
Compulsory		
Research Paper 805 (1 st Enrolment)	MER805	60
Research Paper 806 (2 nd Enrolment)	MER806	30
	Sub-total	60

Electives (select four modules)

Corporate Governance and Remedies 811	COR811	30
Corporate Financial Regulation 812	COR812	30
Corporate Insolvency Law 813	COR813	30
Competition Law and Regulation 811	CPT811	30
Mergers and Acquisitions 813	CPT813	30
Competition and Information Law 814	CPT814	30
Comparative Regional Integration and Development 813	IHR813	30
International Trade 811	ITB811	30
International Taxation Law 811	ITT811	30
Dispute Settlement in International Transactions 811 (not offered in 2026)	SIT811	30
Tax Administration 812	TLA812	30
	Sub-total	120
	FINAL TOTAL	180

H.116.4 MODE II: Two Modules and a Mini-Thesis (7871) (not offered to new students from 2027)**H.116.4.1 Comparative Labour Law**

Module Name	Module Code	Credits
Compulsory		
Mini-Thesis 803 (1 st Enrolment)	LAB803	
Mini-Thesis 804 (2 nd Enrolment)	LAB804	120
	Sub-total	120
Electives (select two modules)		
Competition Law and Work 812	CPT812	30
Disability Law and the Workplace 812	DLP812	30
Dispute Resolution 811	DPR811	30
The Extension of Social Protection 811	ESP811	30
Labour Law in the New Global Market 811	LAB811	30
Law of Unfair Dismissal 812	LAB812	30
	Sub-total	60
	FINAL TOTAL	180

H.116.4.2 Comparative Constitutional Law

Module Name	Module Code	Credits
Compulsory		
Mini-Thesis 803 (1 st Enrolment)	CLL803	
Mini-Thesis 804 (2 nd Enrolment)	CLL804	120
Comparative Constitutional Law 811	CCL811	30
	Sub-total	150
Electives (select one module)		
Constitutional Design in Divided Societies 811	CDS811	30
Constitutional Law, Politics and Theory 811	CIN811	30
Constitutional Rights Interpretation 800	CIN800	30
	Sub-total	30
	FINAL TOTAL	180

H.116.4.3 Mercantile Law

Module Name	Module Code	Credits
Compulsory		
Mini-Thesis 803 (1 st Enrolment)	MER803	
Mini-Thesis 804 (2 nd Enrolment)	MER804	120
	Sub-total	120
Electives (select two modules)		
Corporate Governance and Remedies 811	COR811	30
Corporate Financial Regulation 812	COR812	30
Corporate Insolvency Law 813	COR813	30
Competition Law and Regulation 811	CPT811	30
Mergers and Acquisitions 813	CPT813	30
Competition and Information Law 814	CPT814	30

Comparative Regional Integration and Development 813	IHR813	30
International Trade 811	ITB811	30
International Taxation Law 811	ITT811	30
Dispute Settlement in International Transactions 811 (not offered in 2026)	SIT811	30
Tax Administration 812	TLA812	30
	Sub-total	60
	FINAL TOTAL	180

H.116.4.4 Disability Law (not offered in 2026)

Module Name	Module Code	Credits
Compulsory		
Mini-Thesis 803 (1 st Enrolment)	DSL803	120
Mini-Thesis 804 (2 nd Enrolment)	DSL804	
Introduction to Disability Law and Policy 811	DLP811	30
UN Disability Convention and Optional Protocol 812	DPC812	30
	FINAL TOTAL	180

H.116.4.5 Environment Law

Module Name	Module Code	Credits
Compulsory		
Mini-Thesis 803 (1 st Enrolment)	IEL803	120
Mini-Thesis 804 (2 nd Enrolment)	IEL804	
Advanced Environmental Law 812	IEL812	30
Electives (select one module)		
Climate Law and Governance 818	CLL818	30
Constitutional Law and Nature 819	CLL819	30
International Environmental Law 811	IEL811	30
	FINAL TOTAL	180

H.116.4.6 Human Rights Protection

Module Name	Module Code	Credits
Compulsory		
Mini-Thesis 803 (1 st Enrolment)	IHR803	120
Mini-Thesis 804 (2 nd Enrolment)	IHR804	
International Protection of Human Rights Law 814	IHR814	30
Electives (select one module)		
Legal and Cultural Pluralism 816	CLL816	30
Children's Rights 817	CLL817	30
Constitutional Property Law 811 (not offered in 2026)	CPL811	30
Land Reform and Housing Law 812 (not offered in 2026)	CPL812	30
International Family Law 811	FAM811	30
International Humanitarian Law 815	IHR815	30

Global Human Rights Issues 816	IHR816	30
Islamic Law and Jurisprudence 811	PRL811	30
Economic, Social and Cultural Rights 811	SER811	30
	Sub-total	90
	FINAL TOTAL	180

H.116.5 MODE III: Full Thesis

H.116.5.1 MPhil without specialisation (7861)

Subject to Rule H.120.3, a student can complete the MPhil (Thesis) in any topic approved by the Faculty.

Module Name	Credits
MPhil (Thesis)	180

H.116.5.2 MPhil with specialisation (7860)

Subject to Rule H.120.3, a student can complete the following specialised MPhil programme by full thesis:

Module Name	Module Code	Credits
Comparative Constitutional Law 801/802	CLL801/802	180
Disability Law 801/802 (not offered in 2026)	DSL801/802	180
Environmental Law 801/802	IEL801/802	180
Human Rights Protection 801/802	IHR801/802	180
Comparative Labour Law 801/802	LAB801/802	180
Mercantile Law 801/802	MER801/802	180
Law, State and Multi-level Government 801/802	MLG801/802	180
Criminal Justice 801/802	TCJ801/802	180
	FINAL TOTAL	180

H.117 ASSESSMENT

H.117.1 Assessment is governed by Rule A.5 as stipulated in the University Calendar: General Information Part 1.

H.117.2 Unless the Faculty Board otherwise decides, a student, in respect of modules enrolled for at this University, must:

H.117.2.1 submit at least one research essay of approximately 5 000 words for every module or equivalent form of assessment of their research ability (which shall be submitted for assessment at least two calendar weeks before the dates scheduled for the examination referred to in Rule H.117.2.2) and

H.117.2.2 sit for an examination or final assessment in each module, the format of which shall be determined by the relevant academic department.

H.117.3 In respect of modules enrolled for at another university or Practical Legal School, a candidate must comply with the assessment requirements of that university or Practical Legal School.

H.118 PROGRESSION RULES

Registration for the following year of study shall be recommended by the supervisor if in their opinion, adequate progress has been made during the current year (See Rule A.3.3).

H.119 RENEWAL OF REGISTRATION

Renewal of registration shall be governed by Rule A.4, as stipulated in the University Calendar: General Information Part 1 or as provided for in the faculty rules as contained in this Calendar.

H.120 SPECIAL REQUIREMENTS FOR THE PROGRAMME

H.120.1 MODE I

H.120.1.1 At least two modules listed in Rule H.116.3 must be chosen from this University.

H.120.1.2 The two further modules may be chosen from the modules offered by any of the universities listed in Rule H.96.1.2, provided that the choice is approved by the relevant academic department.

H.120.1.3 A student may choose as one of the two modules referred to in Rule H.96.1.2 above the full-time Practical Legal Training course offered by the Law Society of South Africa at any of the venues where it is offered.

H.120.1.4 Research Paper

H.120.1.4.1 A student must present a research paper of approximately 18 000 words which demonstrates their ability to conduct independent research and which is in a format suitable for publication.

H.120.1.4.2 The topic of the research paper must be chosen by the student in consultation with and with the approval of the supervisor concerned.

H.120.1.4.3 Unless extension of time has been granted by the Faculty Board, the research paper must be submitted for assessment within three calendar months after the student has completed the last assessment in the four modules for which they have enrolled.

H.120.1.4.4 No student may present a research paper for assessment unless they have successfully completed at least half of the number modules required for the completion of the degree.

H.120.1.4.5 A student may not be readmitted to the programme if they have not presented their research paper for assessment within two years after completion of the coursework, unless an extension has been granted by Senate.

- H.120.1.4.6** Together with the submission of the candidate's research proposal to the Law Higher Degrees Committee, the candidate must present evidence of participation in research methodology training as determined by the Faculty.
- H.120.1.5** A student who has obtained a Postgraduate Diploma in Law may register for the following:
 - H.120.1.5.1** Two modules other than the modules taken for the diploma, and a research paper.
 - H.120.1.5.2** The two modules may be chosen from the modules offered by any of the universities listed in Rule H.96.1.2, provided that the choice is approved by the relevant academic department.
 - H.120.1.5.3** Choose as one of the two modules referred to in Rule H.96.1.2 above the full-time Practical Legal Training Course offered by the Law Society of South Africa at any of the venues where it is offered.

H.120.2 MODE II

- H.120.2.1** Modules must be chosen from the modules offered by the University (see the Curriculum at H.116.4, provided further that the choice is approved by the relevant academic department.
- H.120.2.2 Mini-Thesis**
 - H.120.2.2.1** A student must present a mini-thesis consisting of approximately 30 000 words which must be a satisfactory contribution to the knowledge of the subject.
 - H.120.2.2.2** The topic of the mini-thesis must be chosen by the student in consultation with and with the approval of the supervisor concerned.
 - H.120.2.2.3** The mini-thesis must be presented within twelve months after the end of the academic year in which the student completes their coursework unless the Faculty Board, for valid reasons provides an extension of study.
 - H.120.2.2.4** A student may not be readmitted to the programme without permission of Senate if, three years after the completion of the coursework, they have not submitted their mini-thesis.
 - H.120.2.2.5** Together with the submission of the candidate's research proposal to the Law Higher Degrees Committee, the candidate must present evidence of participation in research methodology training as determined by the Faculty.

H.120.3 MODE III

- H.120.3.1** A student registered for the Master of Philosophy (Thesis) programme undertakes supervised programmes of research of not less than one year's duration and must submit a thesis which usually will not exceed 50 000 words in length for examination.
- H.120.3.2** The title of the thesis together with the student's application for admission to study towards the degree, shall be submitted by them to Senate for its approval.

- H.120.3.3** The title of the thesis shall be approved for a period of three years, after which period the student may apply for an extension.
- H.120.3.4** A student shall research and write their thesis under the guidance of a supervisor approved by Senate. The Senate may appoint a supervisor or co-supervisor from outside the University.
- H.120.3.5** The thesis shall be a satisfactory contribution to knowledge on a subject of legal interest.
- H.120.3.6** A student may be required to submit, together with their thesis, a copy of every mini-thesis or thesis previously submitted by them for another degree, whether it was accepted or not.
- H.120.3.7** Except with permission from Senate, no thesis shall be submitted unless it is accompanied by a written declaration from the supervisor and co-supervisor (if appointed) in which permission is granted for the assessment of the thesis. Such declaration shall not necessarily imply that the thesis is considered to be acceptable.
- H.120.3.8** The thesis shall be submitted no later than the dates stipulated in the University Calendar.
- H.120.3.9** No thesis which has previously been submitted for a degree at another university shall be accepted, but material taken from publications of the student may be incorporated therein.
- H.120.3.10** Together with the submission of the candidate's research proposal to the Law Higher Degrees Committee, the candidate must present evidence of participation in research methodology training as determined by the Faculty.

MODULES LIST PER YEAR LEVEL:

MODULE TYPE:

Compulsory (**C**), Electives (**E**), Year Module (**YR**), Semester Module (**S**), Pre-requisites and Co-requisites, Service Module (**SM**)

ASSESSMENT TYPE:

Continuous Assessment (**CA**) or Final Assessment (**FA**) or Continuous Assessment and Final Assessment (**CFA**)

Module Code	Module Name	Compulsory/ Elective	Credits	NQF Level	Enrolment Year	Duration	Pre-Requisite	Co-Requisite	Assessment Type
CCL811	Comparative Constitutional Law 811	C	30	9	1/2	S1	None	None	CFA
CDS811	Constitutional Design in Divided Societies 811	C/E	30	9	1/2	S2	None	None	CFA
CIN800	Constitutional Rights Interpretation 800	C/E	30	9	1/2	S1	None	None	CFA

Module Code	Module Name	Compulsory/ Elective	Credits	NQF Level	Enrolment Year	Duration	Pre-Requisite	Co-Requisite	Assessment Type
CIN811	Constitutional Law, Politics and Theory 811	C/E	30	9	1/2	S2	None	None	CFA
CLL801	Comparative Constitutional Law 801	C	180	9	1	YR	None	None	FA
CLL802	Comparative Constitutional Law 802	C		9	2	YR	None	None	FA
CLL803	Mini-Thesis 803	C	120	9	1	YR	None	None	FA
CLL804	Mini-Thesis 804	C		9	2	YR	None	None	FA
CLL805	Research Paper 805	C	60	9	1	YR	None	None	FA
CLL806	Research Paper 806	C		9	2	YR	None	None	FA
CLL817	Children's Rights 817	E	30	9	1/2	S2	None	None	CFA
CLL818	Climate Law and Governance 818	C/E	30	9	1/2	S2	IEL812	None	CFA
CLL819	Constitutional Law and Nature 819	C/E	30	9	1/2	S1	None	None	CFA
COR811	Corporate Governance and Remedies 811	E	30	9	1/2	S1	None	None	CFA
COR812	Corporate Financial Regulation 812	E	30	9	1/2	S1	None	None	CFA
COR813	Corporate Insolvency Law 813	E	30	9	1/2	S2	None	None	CFA
CPL811	Constitutional Property Law 811	E	30	9	1/2	S1	None	None	CFA
CPL812	Land Reform and Housing Law 812	E	30	9	1/2	S1	None	None	CFA
CPT811	Competition Law and Regulation 811	E	30	9	1/2	S1	None	None	CFA
CPT812	Competition Law and Work 812	E	30	9	1/2	S2	None	None	CFA
CPT813	Mergers and Acquisitions 813	E	30	9	1/2	S2	None	None	CFA
CPT814	Competition and Information Law 814	E	30	9	1/2	S1	None	None	CFA
DLP812	Disability Law and the Workplace 812	E	30	9	1/2	S1	None	None	CFA
DPR811	Dispute Resolution 811	E	30	9	1/2	S2	None	None	CFA
DSL801	Disability Law 801	C	180	9	1	YR	None	None	FA
DSL802	Disability Law 802	C		9	2	YR	None	None	FA
ESP811	The Extension of Social Protection 811	E	30	9	1/2	S2	None	None	CFA
FAM811	International Family Law 811	C/E	30	9	1/2	S1	None	CLL817	CFA
IAL812	International Anti-Corruption Law 812	C	30	9	1/2	S2	None	None	CFA
IEL801	Environment Law 801	C	180	9	1	YR	None	None	CFA
IEL802	Environment Law 802	C		9	2	YR	None	None	CFA

Module Code	Module Name	Compulsory/ Elective	Credits	NQF Level	Enrolment Year	Duration	Pre-Requisite	Co-Requisite	Assessment Type
IEL803	Mini-Thesis 803	C	120	9	1	YR	None	None	FA
IEL804	Mini-Thesis 804	C		9	2	YR	None	None	FA
IEL805	Research Paper 805	C	60	9	1	YR	None	None	FA
IEL806	Research Paper 806	C		9	2	YR	None	None	FA
IHR801	Human Rights Protection 801	C	180	9	1	YR	None	None	FA
IHR802	Human Rights Protection 802	C		9	2	YR	None	None	FA
IHR803	Mini-Thesis 803	C	120	9	1	YR	None	None	FA
IHR804	Mini-Thesis 804	C		9	2	YR	None	None	FA
IHR805	Research Paper 805	C	60	9	1	YR	None	None	FA
IHR806	Research Paper 806	C		9	2	YR	None	None	FA
IHR813	Comparative Regional Integration and Development 813	E	30	9	1/2	S2	None	None	CFA
IHR814	International Protection of Human Rights Law 814	C/E	30	9	1/2	S2	None	None	CFA
IHR815	International Humanitarian Law 815	E	30	9	1/2	S2	None	None	CFA
IHR816	Global Human Rights Issues 816	E	30	9	1/2	S2	None	None	CFA
ITB811	International Trade 811	E	30	9	1/2	S2	None	None	CFA
ITT811	International Taxation Law 811	E	30	9	1/2	S1	None	None	CFA
LAB801	Comparative Labour Law 801	C	180	9	1	YR	None	None	FA
LAB802	Comparative Labour Law 802	C		9	2	YR	None	None	FA
LAB803	Mini-Thesis 803	C	120	9	1	YR	None	None	FA
LAB804	Mini-Thesis 804	C		9	2	YR	None	None	FA
LAB805	Research Paper 805	C	60	9	1	YR	None	None	FA
LAB806	Research Paper 806	C		9	2	YR	None	None	FA
MER801	Mercantile Law 801	C	180	9	1	YR	None	None	FA
MER802	Mercantile Law 802	C		9	2	YR	None	None	FA
MER803	Mini-Thesis 803	C	120	9	1	YR	None	None	FA
MER804	Mini-Thesis 804	C		9	2	YR	None	None	FA
MER805	Research Paper 805	C	60	9	1	YR	None	None	FA
MER806	Research Paper 806	C		9	2	YR	None	None	FA
MLG805	Research Paper 805	C	60	9	1	YR	None	None	FA
MLG806	Research Paper 806	C		9	2	YR	None	None	FA
OML811	International Anti- Money Laundering Law 811	C	30	9	1/2	S2	None	None	CFA
PRL811	Islamic Law and Jurisprudence 811	E	30	9	1/2	S2	None	None	CFA
SER811	Economic, Social and Cultural Rights 811	E	30	9	1/2	S2	None	None	CFA

Module Code	Module Name	Compulsory/ Elective	Credits	NQF Level	Enrolment Year	Duration	Pre-Requisite	Co-Requisite	Assessment Type
SIT811	Dispute Settlement in International Transactions 811	E	30	9	1/2	S2	None	None	CFA
TCJ801	Criminal Justice 801	C	180	9	1	YR	None	None	FA
TCJ802	Criminal Justice 802	C		9	1	YR	None	None	FA
TCJ805	Research Paper 805	C	60	9	2	YR	None	None	FA
TCJ806	Research Paper 806	C		9	1/2	YR	None	None	FA
TLA812	Tax Administration 812	E	30	9	1/2	S2	None	None	CFA

DOCTOR OF LAWS (7921)

H.121 ADMISSION

Unless Senate decides otherwise, a candidate shall be required to meet the following criteria to be enrolled for the **Doctor of Laws Degree - LLD (as indicated in H.124)**:

H.121.1 a candidate shall have obtained the Bachelor of Laws degree of the University, or have obtained another degree or qualification, which in the opinion of Senate is of equivalent standard;

H.121.2 have had at least one year's appropriate academic and/or practical experience;

H.121.3 submit evidence, to the satisfaction of the Senate, of their ability in the subject.

H.122 SELECTION

Final selection shall be based on an applicant meeting the criteria as determined by the Faculty.

H.123 DURATION

Unless Senate decides otherwise, the degree shall not be conferred on a candidate unless they have been registered as a candidate for the degree for two years. The degree shall not be conferred on a candidate until four years have elapsed from the time of gaining the LLB degree or other equivalent qualification.

H.124 CURRICULUM

The Doctor of Laws programme is offered in the following areas of specialisation:

Comparative Constitutional Law 901/902	CLL901/CLL902
Criminal Justice 901/902	CRJ901/CRJ902
Disability Law 901/902 (not offered in 2026)	DSL901/DSL902
Environment Law 901/902	IEL901/IEL902
International Human Rights Protection 901/902	IHR901/IHR902
Comparative Labour Law 901/902	LAB901/LAB902
Mercantile Law 901/902	MER901/MER902
Law, State and Multi-level Government 901/902	MLG901/MLG902

H.125 ASSESSMENT

H.125.1 Assessment is governed by Rule A.5 as stipulated in the University Calendar: General Information Part 1.

H.125.2 The assessment shall consist of a thesis and, if Senate so prescribes, an oral and/or a written assessment on the subject of the thesis or the field concerned as a whole.

H.125.2.1 In the event of a thesis being rejected, Senate may, permit the candidate to re-submit it for assessment in a revised or extended format.

H.125.2.2 Unless with the approval of Senate, a candidate may not re-submit a thesis for assessment more than once in the same subject.

H.126 PROGRESSION RULES

Registration for the following year of study shall be recommended by the supervisor if in their opinion, adequate progress has been made during the current year (See Rule A.3.4).

H.127 RENEWAL OF REGISTRATION

Renewal of registration shall be governed by Rule A.4, as stipulated in the University Calendar: General Information Part 1 or as provided in the faculty rules as contained in this Calendar.

H.128 SPECIAL REQUIREMENTS FOR THE PROGRAMME

H.128.1 Thesis

H.128.1.1 Before being admitted to study for the degree, the candidate shall submit their application for admission to the study, with the title of the thesis, to Senate.

H.128.1.2 Senate shall appoint:

H.128.1.2.1 A supervisor who, unless Senate decides otherwise, shall be a lecturer at the University, but should Senate appoint a supervisor from outside the University, it may appoint a co-supervisor, from the staff of the University;

H.128.1.2.2 An Assessment Panel consisting of such external and internal subject specialists, as Senate, on the recommendation of the Faculty.

H.128.1.3 The thesis shall show proof of original work and shall be a distinct contribution to the knowledge of and insight into the subject.

H.128.1.4 The title of the thesis shall be approved for a period of five years, after which period the student may apply for an extension.

H.128.1.5 The thesis shall be submitted no later than the dates stipulated in the University Calendar.

H.128.1.6 No thesis, which has been submitted previously for a degree at another university, shall be accepted, but material taken from publications of the candidate may be incorporated therein.

H.128.1.7 The candidate may be required to submit, together with their thesis, any thesis or dissertation previously submitted by them for another degree, whether such previous thesis or dissertation has been accepted or not.

H.128.1.8 Together with the submission of a candidate's research proposal to the Law Higher Degrees Committee, the candidate must present evidence of participation in research methodology training as determined by the Faculty.

MODULES LIST PER YEAR LEVEL:

MODULE TYPE:

Compulsory (**C**), Electives (**E**), Year Module (**YR**), Semester Module (**S**), Pre-requisites and Co-requisites, Service Module (**SM**)

ASSESSMENT TYPE:

Continuous Assessment (**CA**) or Final Assessment (**FA**) or Continuous Assessment and Final Assessment (**CFA**)

Module Code	Module Name	Compulsory/	Credits	NQF Level	Enrolment Year	Duration	Assessment Type
CLL901	Comparative Constitutional Law 901	C	360	10	1	YR	FA
CLL902	Comparative Constitutional Law 902	C		10	1	YR	FA
CRJ901	Criminal Justice 901	C	360	10	2	YR	FA
CRJ902	Criminal Justice 902	C		10	2	YR	FA
DSL901	Disability Law 901	C	360	10	1	YR	FA
DSL902	Disability Law 902	C		10	1	YR	FA
IEL901	Environment Law 901	C	360	10	2	YR	FA
IEL902	Environment Law 902	C		10	2	YR	FA
IHR901	International Human Rights Protection 901	C	360	10	1	YR	FA
IHR902	International Human Rights Protection 902	C		10	1	YR	FA
LAB901	Comparative Labour Law 901	C	360	10	2	YR	FA
LAB902	Comparative Labour Law 902	C		10	2	YR	FA
MER901	Mercantile Law 901	C	360	10	1	YR	FA
MER902	Mercantile Law 902	C		10	1	YR	FA
MLG901	Law, State and Multi-level Government 901	C	360	10	2	YR	FA
MLG902	Law, State and Multi-level Government 902	C		10	2	YR	FA

DOCTOR OF PHILOSOPHY (7901)

H.129 ADMISSION

Unless Senate decides otherwise, a candidate shall be required to meet the following criteria to be enrolled for the **Doctor of Philosophy Degree – PhD (as indicated in H.132)**:

Subject to Rule A.2.5.1, a candidate who has a degree or diploma of the University or of another tertiary institution, of which the latter degree or diploma in the opinion of the Faculty of Law and Senate is of a comparable standard, or who has in any other manner attained a level of competence which, in the opinion of the Faculty of Law and Senate, is adequate for the purpose of admission, may be registered for the PhD degree.

H.130 SELECTION

Final selection shall be based on an applicant meeting the criteria as determined by the Faculty.

H.131 DURATION

Unless Senate decides otherwise, the degree shall not be conferred on a candidate unless they have been registered as a candidate for the degree for two years. The degree shall not be conferred on a candidate until four years have elapsed from the time of gaining the LLB degree or other equivalent qualification.

H.132 CURRICULUM

The thesis written by a law graduate or diplomat must be of an inter-disciplinary nature which is not suitable for an LLD degree, while such thesis written by a non-law graduate or diplomat may be either of such an inter-disciplinary nature or on a topic solely within the field of law.

The Doctor of Philosophy programme is offered in the following areas of specialisation:

Comparative Constitutional Law 901/902	CLL901/CLL902
Disability Law 901/902	DSL901/DSL902
Environment Law 901/902	IEL901/IEL902
International Human Rights Protection 901/902	IHR901/IHR902
Comparative Labour Law 901/902	LAB901/LAB902
Mercantile Law 901/902	MER901/MER902
Law, State and Multi-level Government 901/902	MLG901/MLG902
Criminal Justice 901/902	TCJ901/TCJ902

H.133 ASSESSMENT

H.133.1 Assessment is governed by Rule A.5 as stipulated in the University Calendar: General Information Part 1.

H.133.2 The assessment shall consist of a thesis and, if Senate so prescribes an oral and/or a written assessment on the subject of the thesis or the field concerned as a whole.

H.133.2.1 In the event of a thesis being rejected, Senate may permit the candidate to re-submit it for assessment in a revised or extended format.

H.133.2.2 Unless with the approval of Senate, a candidate may not re-submit a thesis for assessment more than once in the same subject.

H.134 PROGRESSION RULES

Registration for the following year of study shall be recommended by the supervisor if in their opinion, adequate progress has been made during the current year (See Rule A.3.4).

H.135 RENEWAL OF REGISTRATION

Renewal of registration shall be governed by Rule A.4, as stipulated in the University Calendar: General Information Part 1 or as provided in the faculty rules as contained in this Calendar.

H.136 SPECIAL REQUIREMENTS FOR THE PROGRAMME

H.136.1 Thesis

H.136.1.1 Before being admitted to study for the degree, the candidate shall submit their application for admission to the study, with the title of the thesis, to Senate.

H.136.1.2 Senate shall appoint:

H.136.1.2.1 A supervisor who, unless Senate decides otherwise, shall be a lecturer at the University, but should Senate appoint a supervisor from outside the University, it may appoint a co-supervisor, from the staff of the University;

H.136.1.2.2 An Assessment Panel consisting of such external and internal subject specialists as Senate, on the recommendation of the Faculty.

H.136.1.3 The thesis shall show proof of original work and shall be a distinct contribution to the knowledge of and insight into the subject.

H.136.1.4 The title of the thesis shall be approved for a period of five years, after which period the student must apply to the faculty for an extension.

H.136.1.5 The thesis shall be submitted no later than the dates stipulated in the University Calendar.

H.136.1.6 No thesis which has previously been submitted for a degree at another university shall be accepted, but material taken from publications of the candidate may be incorporated therein.

H.136.1.7 The candidate may be required to submit, together with their thesis, any thesis or dissertation previously submitted by them for another degree, whether such previous thesis or dissertation has been accepted or not.

H.136.8 Together with the submission of a candidate's research proposal to the Law Higher Degrees Committee, the candidate must present evidence of participation in research methodology training as determined by the Faculty.

MODULES LIST PER YEAR LEVEL:

MODULE TYPE:

Compulsory (**C**), Electives (**E**), Year Module (**YR**), Semester Module (**S**), Pre-requisites and Co-requisites, Service Module (**SM**)

ASSESSMENT TYPE:

Continuous Assessment (**CA**) or Final Assessment (**FA**) or Continuous Assessment and Final Assessment (**CFA**)

Module Code	Module Name	Compulsory	Credits	NQF Level	Enrolment Year	Duration	Assessment Type
CLL901	Comparative Constitutional Law 901	C	360	10	1	YR	FA
CLL902	Comparative Constitutional Law 902	C		10	2	YR	FA
CRJ901	Criminal Justice 901	C	360	10	1	YR	FA
CRJ902	Criminal Justice 902	C		10	2	YR	FA
DSL901	Disability Law 901	C	360	10	1	YR	FA
DSL902	Disability Law 902	C		10	2	YR	FA
IEL901	Environment Law 901	C	360	10	1	YR	FA
IEL902	Environment Law 902	C		10	2	YR	FA
IHR901	International Human Rights Protection 901	C	360	10	1	YR	FA
IHR902	International Human Rights Protection 902	C		10	2	YR	FA
LAB901	Comparative Labour Law 901	C	360	10	1	YR	FA
LAB902	Comparative Labour Law 902	C		10	2	YR	FA
MER901	Mercantile Law 901	C	360	10	1	YR	FA
MER902	Mercantile Law 902	C		10	2	YR	FA
MLG901	Law, State and Multi-level Government 901	C	360	10	1	YR	FA
MLG902	Law, State and Multi-level Government 902	C		10	2	YR	FA
TCJ901	Criminal Justice 901	C	360	10	1	YR	FA
TCJ902	Criminal Justice 902	C		10	2	YR	FA

DEPARTMENTS AND MODULES OFFERED WITHIN DEPARTMENTS

CRIMINAL JUSTICE AND PROCEDURE

Advanced Criminal Law
Advanced Law of Civil Procedure
Advanced Law of Criminal Procedure
Anti-Corruption Law
Anti-Money Laundering Law
Basic Skills for Law
Child Justice
Clinical Law
Comparative Criminal Justice (Missouri Programme)
Constitutional Rights and Criminal Justice
Conveyancing
Criminal Justice (Missouri Programme)
Criminal Law
International Anti-Corruption Law
International Anti-Money Laundering Law
Law of Civil Procedure
Law of Criminal Procedure
Law of Economic Crime
Law of Evidence
Legal Process
Preparing for Legal Practice
Punishment and Sentencing

MERCANTILE AND LABOUR LAW

Administrative Law
Advanced Dispute Resolution Procedure
Advanced Labour Law
Alternative Dispute Resolution
Basic Principles of Labour Law
Collective Labour Law
Commercial Transactions Law
Company Law
Comparative Regional Integration and Development
Competition and Information Law
Competition Law
Competition Law and Work
Corporate Financial Regulation
Corporate Governance and Remedies
Corporate Insolvency Law
Corporate Law
Criminal Law
Digitalising Labour Law
Disability Law and the Workplace
Dispute Resolution
Dispute Settlement in International Transactions
Employment Law
Entrepreneurial Legal Practice
Individual Labour Law

Internal Auditing
International Business and Regional Trade Law
International Business Law
International Economic and Investment Law
International Taxation Law
International Trade
Internet Law
Investigation of Crime
Labour Conflict and Dispute Resolution
Labour Dispute Resolution
Labour Law
Labour Law in Context
Labour Law in the New Global Market
Labour and Social Security Law
Law of Evidence
Law of Insolvency
Law of Insurance
Law of Unfair Dismissal
Mercantile Law
Mergers and Acquisitions
Regional Integration
Social Security Law
Tax Administration
Tax Law
The Extension of Social Protection
The Right to Fair Labour Practices
Workplace Equality and Discrimination
Concepts in Fintech Law
Banking and Financial Regulation
Fintech Payment Regulation
Trade-offs in Fintech Regulation

PRIVATE LAW

Advanced Family Law
Advanced Law of Contract
Conflict of Laws
Constitutional Property Law
Customary Law
Family Law
Housing, Land and Property Reform
Intellectual Property Law
International Family Law
Islamic Law and Jurisprudence
Land Reform and Housing Law
Law of Contract
Law of Delict
Law of Persons
Law of Property
Law of Sale and Lease
Law of Succession
Law of Trusts

Law of Unjustified Enrichment
Legal and Cultural Pluralism
Legal and Religious Pluralism
Private Law and the Bill of Rights
Welfare Law

PUBLIC LAW AND JURISPRUDENCE

Administrative Law
Advanced Legal Interpretation
Advanced Public Law
Comparative Constitutional Law
Comparative Law (Missouri programme)
Constitutional Design in Divided Societies
Constitutional Law
Constitutional Litigation
Constitutional Law, Politics and Theory
Constitutional Rights Interpretation
Environmental Law
Gender Equality and Women's Rights
Gender Law
International Human Rights Law
International Protection of Human Rights Law
Interpretation of Statutes
Introduction to Law
Jurisprudence
Law and Social Transformation
Public International Law
Research Methodology
South African Bill of Rights

DULLAH OMAR INSTITUTE FOR CONSTITUTIONAL LAW, GOVERNANCE AND HUMAN RIGHTS

Administrative Law
Children's Rights
Constitutional Law
Constitutional Law Practice
Criminal Justice Systems and Human Rights in Africa
Detention and Oversight
Economic, Social and Cultural Rights
Global Human Rights Issues
International Protection of Human Rights Law
Local Government
Multi-level Governance
Rule of Law and Good Governance

AFRICAN CENTRE FOR TRANSNATIONAL CRIMINAL JUSTICE

International Criminal Law
International Humanitarian Law
Transitional Justice

CENTRE FOR AFRICAN FINTECH, INNOVATION AND LAW (CAFIL)

Concepts in Fintech Law

Banking and Financial Regulation

Fintech Payment Regulation

Trade-offs in Fintech Regulation

CENTRE FOR LEGAL INTEGRATION IN AFRICA (CLIA)

Legal and Cultural Pluralism

International Family Law

GLOBAL ENVIRONMENTAL LAW CENTRE

Advanced Environmental Law

Animal Law and Rights

Climate Law and Governance

Constitutional Law and Nature

International Environmental Law

UNDERGRADUATE MODULE DESCRIPTORS

Faculty	Law		Home Department			Criminal Justice and Procedure	
Module Name	Advanced Law of Civil Procedure 412		Module Code			ACP412	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to:						
	• Interpret and present the general structure and core concepts of civil procedure in light of social transformation. • Compare and present competing approaches to and philosophies of civil procedure. • Where applicable, describe and apply critical knowledge of the historical development of civil procedural law. • Demonstrate detailed knowledge of selected procedural law controversies in the context of Africanisation • Analyse and apply legal procedural controversies and their application in relation to practical situations. • Construct arguments in relation to contested areas of civil procedural law • Interpret the relationship between civil procedure and constitutional jurisprudence and the discourse of human rights.						
Main Content	The module focuses on: • Capita selecta from the field of civil procedural law encompassing but not limited to such topics as: • The underlying principles dictating the structure and content of civil procedure • Historical evolution of civil procedure • Advanced jurisdictional questions • Special procedures • The impact of the constitution on civil procedure						
Pre-requisite	CIV302, CON202		Prohibited module Combination			None	
Co-requisite	EVI402						
Timetable Requirement per week			3	Lectures p.w.			
			1	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	50%
						FA	50%

Faculty	Law		Home Department			Criminal Justice and Procedure	
Module Name	Advanced Law of Criminal Procedure 412		Module Code			ACR412	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Interpret and present the general structure and core concepts of criminal procedure considering the influence of the Constitution. • Compare and present competing approaches to and philosophies of criminal procedure. • Demonstrate critical knowledge of the historical development of procedural criminal law (where applicable) • Interpret and apply detailed knowledge of selected procedural law controversies. • Analyse and critique legal procedural controversies and their application in relation to practical situations. • Construct and present defence and prosecutorial arguments in relation to contested areas of procedural law in light of social transformation. • Interpret the relationship between criminal procedure, evidence and constitutional jurisprudence and the discourse of human rights.						
Main Content	The module focuses on: • Capita selecta from the field of criminal procedural law encompassing but not limited to such topics as: • The underlying principles dictating the structure and content of criminal procedure • Historical evolution of criminal procedure • Complex bail-related questions • Plea and sentence bargaining • Punishment and sentencing • The impact of the constitution on criminal procedure						
Pre-requisite	LCP204, CON202		Prohibited module Combination			None	
Co-requisite	EVI402						
Timetable Requirement per week			3	Lectures p.w.			
			1	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	50%
						FA	50%

Faculty	Law		Home Department			Public Law and Jurisprudence	
Module Name	Administrative Law 311		Module Code			ADL311	
Module Type	Core	NQF Level	7	Year Level	3/4	NQF Credit	15
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	150 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Apply the relevant administrative law principles to formulate a legal argument when solving administrative law problems • Apply the relevant statutory laws, case law and common law to formulate legal arguments in relation to factual scenarios • Critically analyse prescribed case law and journal articles • Evaluate whether the exercise of public power constitutes administrative action • Critically discuss the way in which administrative justice promotes Africanisation through means of the provisions of section 195 of the Constitution and the concept of Ubuntu						
Main Content	• The body of law governing the exercise and control of public power on the part of an organ of state, natural person or juristic entity • The extent to which courts are required to defer to the Legislature and Executive • Defining conduct that constitutes administrative action and its requirements • Just administrative action under section 33 of the Constitution • The Promotion of Administrative Justice Act 3 of 2000 • The use of the principle of legality in judicial review • Administrative justice promoting social transformation • Various forms of judicial review						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			3	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	50%
						FA	50%

Faculty	Law		Home Department				Public Law and Jurisprudence	
Module Name	Advanced Public Law 431		Module Code				ADL431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10	
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours	
Duration	Semester		Proposed Semester			First Semester		
Main Learning Outcomes	On completion of this module, students should be able to: • Discuss the possibilities and limits of social transformation through the Africanisation, decolonisation and constitutionalisation of South African law							

	Analyse and interpret legislation, case law, international jurisprudence and academic writing within specific fields in public law and their relation to the constitution.			
Main Content	Capita selecta from the following areas of law: - Constitutional history, - Constitutional theory, - Comparative Constitutional Law, - Minority rights, - Elections and electoral systems, - Federalism, - Language rights, - Law, politics and the judicial process, - Sub-national constitutions and Indigenous rights.			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Alternative Dispute Resolution 431		Module Code			ADR431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: - Identify which dispute resolution mechanism is appropriate in a scenario - Distinguish between different types of dispute resolution mechanisms - Explain the steps of different dispute resolution mechanisms - Critically analyse relevant case law and the impact of the Constitution - Describe the role of parties to various dispute resolution mechanisms - Explain those dispute resolution mechanisms that have been used in the African context - Demonstrate sound knowledge of the institutions involved in dispute resolution in South Africa						
Main Content	- The module focuses on: - Conciliation - Mediation process - Arbitration process - Arbitration awards (content and process) - Role of the mediator - Role of the arbitrator - ADR in the African context						
Pre-requisite	LAB321		Prohibited module Combination			None	
Co-requisite	None						

Timetable Requirement per week	2	Lectures p.w.		
	0	Practicals p.w.		
	0	Tutorials p.w.		
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Criminal Justice and Procedure	
Module Name	Basic Skills for Law 100 (ECP)		Module Code			BSL100	
Module Type	Core	NQF Level	5	Year Level	1	NQF Credit	15
Programme in which the module will be offered		LLB (7172)				Total Learning Time	150 hours
Duration	Year		Proposed Semester			Both Semesters	
Main Learning Outcomes	On completion of this module, students should be able to: • Demonstrate effective note-taking skills and the application of study methods enabling an understanding of law studies in the context of Africanisation. • Apply basic information technology skills in finding law sources and developing information literacy skills. • Describe the structure of statutes, case law and unwritten customs as well as demonstrate the ability to find, read, summarise and explain these legal texts. • Solve legal problems by applying primary and secondary legal sources using effective communication skills through essay writing. • Effectively develop legal arguments and writing legal essays while applying referencing techniques, recognising academic integrity and ethical considerations. • Demonstrate effective use of legal concepts through verbal communication. • Demonstrate the ability to execute basic numerical calculations relevant to the study and practice of law Students should be able to meet the outcomes through the provision of among other, the following foundation activities: • The professional support of the Centre for Student Support Services will develop time management activities. • Survey the different learning and study styles. • Guided demonstration of effective study skills. • Forming study groups and describing dynamics of group work. • Support of the Writing Centre in editing activities to improve writing skills. • Information technology sessions with the e-learning unit to enhance online learning and information searches.						
Main Content	• Basic research skills and research methodologies in law. • The basic genres and skills of legal writing (legal opinions; heads of argument). • Basic skills for effective study in law (note taking; time management; plagiarism; essay writing); • Information technology skills. • Finding and reading case law precedents, statutes and living customs.						

	• Numeracy skills.			
Pre-requisite	None	Prohibited module Combination	None	
Co-requisite	None			
Timetable Requirement per week	4	Lectures p.w.		
	0	Practicals p.w.		
	1	Tutorials p.w.		
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Criminal Justice and Procedure	
Module Name	Basic Skills for Law 101		Module Code			BSL101	
Module Type	Core	NQF Level	5	Year Level	1	NQF Credit	15
Programmes in which the module will be offered		LLB (7162), BCom (Law) (7211), BA (Law) (7221)				Total Learning Time	150 hours
Duration	Year		Proposed Semester			Both Semesters	
Main Learning Outcomes	On completion of this module, students should be able to: • Demonstrate effective note-taking skills and the application of study methods enabling an understanding of law studies in the context of Africanisation. • Apply basic information technology skills in finding law sources and developing information literacy skills. • Describe the structure of statutes, case law and unwritten customs as well as demonstrate the ability to find, read, summarise and explain these legal texts. • Solve legal problems by applying primary and secondary legal sources using effective communication skills through essay writing. • Effectively develop legal arguments and writing legal essays while applying referencing techniques, recognising academic integrity and ethical considerations. • Demonstrate effective use of legal concepts through verbal communication. • Execute basic numerical calculations in the context of law						
Main Content	• Basic research skills and research methodologies in law • The basic genres and skills of legal writing (legal opinions; letters of demand; heads of argument) • Basic skills for effective study in law (note taking; time management; plagiarism; essay writing) • Information technology skills • Finding and reading case law precedents, statutes and living customs • Numeracy skills						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			2 - S1		Lectures p.w.		
			1 - S2				
			0		Practicals p.w.		
			1		Tutorials p.w.		

Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA FA	50% 50%

Faculty	Law		Home Department			Public Law and Jurisprudence	
Module Name	Comparative Law 412		Module Code			CCR412	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module students should be able to: • Critically assess the nature and value of comparative law as an approach to the study, development and interpretation of law; • Identify and describe key differences and similarities between the legal systems of South Africa and the United States of America (US) • Conceptualise and undertake an advanced and critical comparative analysis of contemporary problems in South African and American law and Jurisprudence.						
Main Content	• Comparative law methodology • Introduction to the legal system of the United States of America • Contemporary problems in law and jurisprudence in comparative perspective such as race and the law; bioethics and the law						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			0	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			

Other teaching modes that does not require time-table				
The module is presented by means of block teaching during the winter recess as part of the University of Missouri programme.				
The module is presented in 11 sessions of two hours each over a period of 10 days.				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA FA	50% 50%

Faculty	Law		Home Department			Criminal Justice and Procedure	
Module Name	Child Justice 431		Module Code			CHJ431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)			Total Learning Time		100 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to:						
	• Demonstrate an understanding of the legal content of current South African legislation, and in addition acquired an understanding of the socio-political context in which children are in conflict with the law in South Africa.						

	• Evaluate the historical antecedents to present institutions for children in trouble with the law, as well as the main tenets of diversion and reintegration services in practical context of social transformation. • Demonstrate knowledge of theories of child justice, will be able to explain the basic tenets of international and constitutional law in this area, and will be able to use this knowledge in practical context in the prosecution of child offenders.				
Main Content	The module focuses on: International rules pertaining to Child Justice reform since 1990 • The Child Justice bill, including age and capacity, police procedures, assessment and the role of probation services • The preliminary inquiry and court procedures, sentencing and legal representation of children • Diversion theory and practice • Restorative justice and its place in contemporary child justice • Institutions linked to child justice and the interface between the child justice system and the welfare system • Sentencing theory and practice • The role of probation services in child justice in South				
Pre-requisite	None	Prohibited module Combination		None	
Co-requisite	None				
Timetable Requirement per week		3	Lectures p.w.		
		1	Practicals p.w.		
		0	Tutorials p.w.		
Other teaching modes that does not require time-table					
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment		CA	50%
				FA	50%

Faculty	Law		Home Department				Criminal Justice and Procedure	
Module Name	Law of Civil Procedure 302		Module Code				CIV302	
Module Type	Core	NQF Level	7	Year Level	3/4	NQF Credit	20	
Programmes in which the module will be offered		LLB (7162, 7172), BCom (Law) (7211)				Total Learning Time	200 hours	
Duration	Year		Proposed Semester			Both Semesters		
Main Learning Outcomes	On completion of this module, students should be able to: • Explain the South African judicial system; • Describe jurisdiction specific procedures; • Distinguish between the cause of actions and applications; • Critically evaluate the procedure of preparing for hearings and trials; • Explain the conduct of a hearing or trial in the context of South Africa; • Assess costs of proceedings; • Describe changing of orders; • Demonstrate the process of instituting civil actions and applications; • Describe the influence of the Constitution on the Law of Civil Procedure • Analyse the application of the legal rules and legislation in the context of an observation of a live client consultation.							
Main Content	• The role and context of civil procedure in the legal system; • Sources of the law of civil procedure:							

	• Various courts and court officials; • Inaccessibility of the courts and attempts to overcome the problem; • Matters which must be considered before proceedings are instituted; • Parties; • Jurisdiction; • Manner in which proceedings may be commenced; • Delivery of process; • Application procedure; • Interdicts and some other procedures for which applications are often used; • Summons procedure; • Undefended actions; • The course of a defended action; • Judgment; • Provisional sentence procedure; • Extraordinary procedures; • Costs; • Execution; • Rescission and changing of orders and judgments; • Review and appeal; • Capita selecta from the procedure in other courts; • Basic aspects of drafting pleadings; • The impact of the Constitution on the law of civil procedure • Practical application of legal principles and legislation to live client consultations and analysed through observations.			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		2	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Criminal Justice and Procedure	
Module Name	Clinical Law 431		Module Code			CLN431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	20
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	200 hours
Duration	Year		Proposed Semester			Both Semesters	
Main Learning Outcomes	On completion of this module, students should be able to:						
	• Apply appropriate consultation techniques in the spirit of uBuntu within a live client environment • Demonstrate the drafting process • Apply negotiating skills • Assess trial advocacy approaches • Demonstrate strategic and analytical thinking skills • Express arguments effectively through oral and written communication • Apply substantive law, facts and procedure to factual scenarios						

	• Demonstrate professional responsibility • Calculate bills of costs using emerging technologies • Apply office management skills				
Main Content	Lecturing Component • Consultation techniques with an emphasis on client-centred interviewing/ consultation underpinned by principles of the Constitution • Diversity training • Trial Advocacy • Capita selecta from the Law of Civil Procedure, aspects of substantive law, Gender law, Socio-economic rights, HIV/Aids as it relates to clinic work, aspects of practice and litigation, professional ethics Practical Component • Exposure to live-client clinical teaching methods • participation in lawyer-client dynamics • communicating with clients • file structures, office systems and management • interviewing clients • drafting correspondence and pleadings • developing a theory of cases • preparation for trial • preparing bills of costs NOTE: Registration will be limited to 90 students, subject to the discretion of the Faculty Board to increase this number.				
	Pre-requisite	CIV302	Prohibited module Combination		None
	Co-requisite	None			
	Timetable Requirement per week		1	Lectures p.w.	
			0	Practicals p.w.	
0			Tutorials p.w.		
Other teaching modes that does not require time-table					
Practicals: Minimum hours (56) in Law Clinic					
Assessment	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%	
Module Type			FA	50%	

Faculty	Law		Home Department			Public Law and Jurisprudence	
Module Name	Constitutional Litigation 431		Module Code			CLL431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Successfully litigate a constitutional matter and draft the necessary court pleadings, including heads of argument. • Identify and critique the main types of interpretive arguments used in constitutional litigation. • Explain, the manner in which constitutional issues arise for determination, and the jurisdiction of the Superior Courts to deal with those issues.						

	• Explain the powers of Superior Courts when a constitutional issue is presented for determination. • Analyse the distinction between constitutional questions and non-constitutional questions. • Critically discuss how the Courts resolve disputes concerning infringements of the rights in the Bill of Rights. • Explain and critique how the Courts approach constitutional issues that concern the various branches of the State.				
Main Content	The core aspects of constitutional litigation, as applied to selected human rights, with specific reference to: - Access; - Standing; - Mootness; - Jurisdiction; - Approaches to constitutional interpretation; - Limitation analysis; and - Constitutional remedies				
Pre-requisite	CON202	Prohibited module Combination		None	
Co-requisite	None				
Timetable Requirement per week		2	Lectures p.w.		
		0	Practicals p.w.		
		0	Tutorials p.w.		
Other teaching modes that does not require time-table					
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA		50%
			FA		50%

Faculty	Law		Home Department			Private Law	
Module Name	Conflict of Laws 431		Module Code			CNL431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Describe the place of conflicts of law within South African law and the Constitution of the Republic of South Africa; • Evaluate the internal logic of the Conflict of Laws as a branch of jurisprudence; • Demonstrate an advanced level of skill in the construction and development of legal argument; • Display advanced case reading, analytical, comprehension and legal reasoning skills; • Display a clear mastery of the basic application of the relevant legal principles against the background of social transformation; • Differentiate between the connections of the various branches of the law and the relevant principles of the Conflict of Laws; • Apply the appropriate rules examined in this discipline to inform an explanation of the rules, principles and conclusions in other disciplines.						
Main Content	• General principles of Conflict of Laws: • Introduction and theories: characterisation. <i>renvoi</i>:						

	• Proof of foreign law; exclusions of foreign law; the time factor; • Choice of law in national and international context; • Law of domicile; jurisdiction; • Recognition and enforcement of foreign judgements.			
Pre-requisite	None	Prohibited module Combination	None	
Co-requisite	None			
Timetable Requirement per week	2	Lectures p.w.		
	0	Practicals p.w.		
	0	Tutorials p.w.		
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Private Law	
Module Name	Law of Contract 301		Module Code			CNT301	
Module Type	Core	NQF Level	7	Year Level	3/4	NQF Credit	20
Programmes in which the module will be offered		LLB (7162, 7172), BCom (Law) (7211), BA (Law) (7221)				Total Learning Time	200 hours
Duration	Year		Proposed Semester			Both Semesters	
Main Content	• The general principles of SA law of contract: principles and policies underlying the law of contract; • The scope and content of the constitutional values of, inter alia, fairness, certainty, legality and good faith and its application to the Law of contract; • The meaning of transformative constitutionalism and its impact on relevant legislation regulating contractual relationships; • The basis of contract and mistake; • Offer and acceptance: consensus obtained by improper means relating to voidable contracts in South Africa and Africa; • Misrepresentation, remedies, duress, undue influence, commercial bribery in Law of Contract; • Contractual capacity, possibility; • Rules relating to parties to a contract; breach of contract; and remedies for breach of contract and termination.						
Main Learning Outcomes	On completion of this module, students should be able to: • Understand the principles of offer and acceptance in light of Africanisation; • Explain the basis of contract and mistake in the Law of Contract; • Investigate and analyse contractual delicts and remedies; • Illustrate the application of contractual capacity, possibility, certainty and legality to factual scenarios through the use of technology based learning; • Explain the transformative role of the Constitution and its values in the Law of Contract, and the impact of selected legislation on the principles of the Law of Contract; • Apply fundamental research techniques principles to written and oral presentations; • Design a research essay to evaluate the rules relating to parties to a contract, breach of contract and remedies and termination.						

	• Drafting a basic contract (such as a sale or lease) that complies with prescribed formalities and other essential requirements for validity.				
Pre-requisite	None	Prohibited module Combination		None	
Co-requisite	None				
Timetable Requirement per week		2	Lectures p.w.		
		0	Practicals p.w.		
		1	Tutorials p.w.		
Other teaching modes that does not require time-table					
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA		50%
			FA		50%

Faculty	Law		Home Department			Private Law	
Module Name	Advanced Law of Contract 431		Module Code			CNT431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: - Examine the boundaries between the Law of Contract and the Law of Delict, Unjustified Enrichment and the Law of Property. - Critically analyse the interface between private law and public law, as well as the potential influence of the Constitution on the Law of Contract. - Evaluate the existence of contractual justice in the South African Law of Contract (or lack thereof) in view of the tension between certainty and fairness. - Analyse the impact of the Constitution of the Republic of South Africa and specific legislation on the general principles of the Law of Contract. - Analyze the accommodation of error in the Law of Contract. - Examine the rules relating to restraint of trade agreements and public policy. - Critically discuss the role of writing and other formalities in the Law of Contract. - Explain the concept of ubuntu and contractual obligations in the African Customary Law of Contract; - Draft basic contracts; - Articulate a legal argument in oral or written form based on independent or collaborative research; - Explain and apply the relevant legal principles to a factual scenario making reference to legislation and case law.						
Main Content	An in-depth analysis of capita selecta from the following: - The place of the Law of Contract within South African Private Law; - The relationship between the Constitution and the Law of Contract; - Consumer protection with specific reference to the Consumer Protection Act 68 of 2008; - Restraint of trade agreements and public policy; - The basis of contract and the accommodation of error in the Law of Contract; - The role of writing and other formalities in the Law of Contract						

	• African Customary Law of Contract; • Drafting of contracts			
Pre-requisite	CNT301	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Criminal Justice and Procedure		
Module Name	Conveyancing 431		Module Code			CNY431		
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10	
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours	
Duration	Semester		Proposed Semester			Second Semester		
Main Learning Outcomes	On completion of this module, students should be able to:							
	• Demonstrate a proper understanding of the procedures in the Deeds Office and the transferring of titles to land in light of the Constitution.							
	• Draft powers of attorney, deeds of title and other documents that are required at the Deeds Office for lodgment before properties are transferred from one entity to another.							
	• Explain the practical aspects of conveyancing and calculate transfer duty.							
	• Explain the principles relating to sectional titles, mortgage bonds, subdivision of land and estate transfers.							
Main Content	• Demonstrate an understanding of various statutes applicable in transfer of ownership of land in the context of social transformation							
	The module focuses on:							
	• Deeds Office procedures							
	• Drafting of documents							
	• Calculation of transfer duty							
Pre-requisite	THI211		Prohibited module Combination			None		
	Co-requisite							None
	Timetable Requirement per week		3	Lectures p.w.				
			1	Practicals p.w.				
			0	Tutorials p.w.				
Other teaching modes that does not require time-table								
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	50%	
						FA	50%	

Faculty	Law		Home Department			Public Law and Jurisprudence	
Module Name	Constitutional Law 202		Module Code			CON202	
Module Type	Core	NQF Level	6	Year Level	2/3	NQF Credit	20
Programmes in which the module will be offered		LLB (7162, 7172), BA (Law) (7221)				Total Learning Time	200 hours
Duration	Year		Proposed Semester			Both Semesters	
Main Learning Outcomes	On completion of this module, students should be able to: • Discuss and apply the values underlying the Constitution • Explain, examine and apply the basic constitutional principles; • Describe the making of the Constitution and its role in decolonisation and transformation; • Explain and apply the interpretation of the Constitution with a specific focus on transformative constitutionalism; • Apply and evaluate the law regarding the structure of government and the relation between the different organs of state as well as the different spheres of government and their powers; • Describe and apply the application and limitation of the rights in the Bill of Rights, as well as the available constitutional remedies; • Articulate the scope, content and application of selected rights in the Bill of Rights and apply this knowledge in particular factual situations with reference to relevant case law; • Discuss and analyse case law; • Prepare an argument based on collaborative research; • Identify and discuss social justice and ethical issues arising out of human rights matters; • Describe and apply the constitutional rules regarding customary law; • Describe the effect of globalisation and digitalisation on constitutional law and litigation.						
Main Content	• Basic constitutional principles • Survey of the historical development of the South African Constitution and the Constitution's role in decolonisation and transformation; • Constitutional interpretation and transformative constitutionalism; • The structure of government; • The application and limitation of rights in the Bill of Rights, as well as the available constitutional remedies; • Rights in the Bill of Rights, including social justice and ethical issues arising out of human rights matters; • Customary law and the Constitution; • Globalisation and digitalisation and the Constitution.						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			2	Lectures p.w.			
			0	Practicals p.w.			
			1	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	50%
						FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Corporate Law 401		Module Code			COR401	
Module Type	Core	NQF Level	8	Year Level	4/5	NQF Credit	20
Programmes in which the module will be offered		LLB (7162, 7172)			Total Learning Time		200 hours
Duration	Year		Proposed Semester			Both Semesters	
Main Learning Outcomes	On completion of this module, students should be able to: • Critically analyse fundamental legal concepts, principles and theories of the law of business entities and demonstrate an understanding of how they apply in corporate practice in light of social transformation; • Describe the foundational principles, key statutory materials, the influence of the Constitution and case law relating to the structure, procedure and requirements for the formation and capitalisation of the main types and forms of companies and other business entities in South Africa, including Close Corporations, Partnerships and Business Trusts; • Apply basic corporate law principles and rules to the resolution of practical corporate law problems and be able to advise a client about the South-African and international rules applicable to business entities' issues, the formation of business entities and the provisions of South African corporate legislation. • Explain the management and administration of companies and close corporations, particularly in so far as company meetings, corporate governance and issues to do with corporate finance including financial reporting standards & the functions of auditors; • Engage in legal research and writing exercises using appropriate techniques such as review written literature, electronic information search and retrieval and statute and case analysis; • Compare and contrast foreign corporate structures with that used in South Africa in light of social transformation; • Read and summarise case law and demonstrate adequate scholarship skills in applying knowledge acquired therefrom in writing a well-reasoned, coherent, researched legal opinion.						
Main Content	The syllabus will consist of a discussion and analysis of: • Introduction to SA business entities: companies; close corporations; business trusts; partnerships; • Legal personality, legal capacity and representation; • Types of companies; groups of companies; • Pre- and post-incorporation contracts; • Incorporation of companies; • Share capital, shares and debentures; share capital maintenance; • Share issues and membership; • Transfer of shares and shares as security; • Corporate governance (directors duties, board committees & director liability, shareholders and company meetings); • Corporate finance; • Financial records and reporting standards; • Minority protection; • Business rescue; • Fundamental transactions; • Insider trading and market abuse;						

	- Enhanced accountability – auditors, audit committees & company secretary; - Winding up of companies; - Impact of the Constitution (transformative constitutionalism), africanisation/decolonisation and internationalisation on corporate/company law development; - Corporate social responsibility.			
Pre-requisite	CNT301	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		1	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Company Law 211		Module Code			CPL211	
Module Type	Core	NQF Level	6	Year Level	2/3	NQF Credit	10
Programmes in which the module will be offered		BCom (1008) (1751), BCom (Financial Accounting) (1175), BCom (Law) (7211)				Total Learning Time	100 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to have mastered the following knowledge, skills and values: • Fundamental rules, principles and concepts of South African Company Law. • Procedure and requirements for the formation of companies/close corporations. • Management and administration of companies/close corporations, particularly in so far as company meetings and the function of auditors are concerned.						
Main Content	Company law and the law relating to close corporations and/or such other capita selecta from advanced company law as the department may determine.						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			3	Lectures p.w.			
			0	Practicals p.w.			
			4	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	50%
						FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Competition Law 431		Module Code			CPT431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)			Total Learning Time		100 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: - Identify the principles of law that seek to regulate and promote competition in the economy (from a South African perspective). - Demonstrate a sound knowledge of the economic foundations of and justifications for competition law, policy and practice in the context of social transformation. - Demonstrate a sound knowledge, as well as the ability to analyse and interpret legislation relevant to the field of competition law and the influence of the Constitution. - Demonstrate a sound knowledge of the structures and institutions relevant to competition law and practice. - Explore the decolonisation/ Africanisation conversation in relation to recent developments in competition law to promote the interests of previously disadvantaged persons in South Africa, ensuring a greater spread of ownership and de-concentrating markets. - Demonstrate a sound knowledge of the interactions between globalisation, digitisation and the field of competition law. - Appraise professional skills suitable for the field of competition practice.						
Main Content	- Introduction to Competition Law (The history of competition/ anti-trust law, The Competition Act, The Competition Amendment Bill, competition policy, relevant structures, unpacking how competition law relates to the discourse on Africanisation and decolonisation, vis a viz locating transformative constitutionalism within competition law. Emphasis is place on Competition Amendment Bill, which seeks to promote transformation and growth). - Competition Economics (Macro-and micro-economic policy, theories of the firm, game theory). - Horizontal Restrictive Practices (price fixing, allocation of markets). - Collusive tendering - Vertical Restrictive Practices (Exclusive Dealing, Exclusive Distribution, Typing Restrictions). - Abuse of Dominance (Price Discrimination, Excessive Pricing, inducing not to deal, provision of scare resources, sale of scare goods. Emphasis will be made on the need to remove the qualifier “substantial” prevention or lessening of competition in proving dominance so as to address concentration of markets and improve economic transformation in specific markets or industries). - Mergers (a focus will be placed on mergers in the digital environment such as that of Kalahari.com and takealot.com and the need for such mergers in a borderless environment where competition comes from foreign companies. Furthermore, the provisions in the Competition Amendment Bill that all mergers instead of only anticompetitive mergers will be considered and the enhanced role of the Minister in merger proceedings).						

	• Jurisdiction			
Pre-requisite	None	Prohibited module Combination	None	
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Public Law and Jurisprudence	
Module Name	Law and Social Transformation 431		Module Code			CRI431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: - Analyse legal texts and arguments to identify and critique the underlying theoretical assumptions about law and its role in the transformation of a postcolonial society, with specific reference to issues of migration and spatial justice. - Identify and critique the theoretical assumptions about legality, the rule of law and the separation of powers that influence the relationship between law, transformation and social justice in a transitional context.						
Main Content	The underlying theoretical assumptions about law and its role in the transformation of a postcolonial society - The history and development of Critical Theory and Critical Legal Theory. - Theories of social justice and transformation with specific reference to contemporary problems in migration and spatial justice						
Pre-requisite	ILL111, ILL121 and CON202		Prohibited module Combination			None	
Co-requisite	JUR312						
Timetable Requirement per week			2	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous Assessment (CA)		Method of Student Assessment			CA	100%

Faculty	Law		Home Department		Criminal Justice and Procedure		
Module Name	Comparative Criminal Justice 411		Module Code		CRJ411		
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10

Programmes in which the module will be offered		LLB (7162, 7172)		Total Learning Time	100 hours
Duration	Semester	Proposed Semester		Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Identify and describe key differences in the South African and United States of America (USA) criminal justice systems; • Explain the requirements and procedure for plea bargaining in South Africa and the USA; • Identify and evaluate the differences between the requirements and procedures for plea bargaining in South Africa and the USA; • Discuss and critically analyse the right to legal representation in South Africa and the USA; • Identify and evaluate the differences between pro bono legal representation in South Africa and the USA; • Critically assess sentencing and incarceration policies in South Africa and the USA; • Identify and evaluate the differences between sentencing and incarceration policy in South Africa and the USA; • Critically assess the death penalty policies in South Africa and the USA; • Discuss and critically analyse the impact of the South African and USA Constitutions on criminal justice and procedure; • Discuss the possibilities and limits of social transformation through decolonisation and constitutionalisation of Criminal Justice.				
Main Content	Advanced criminal justice and procedure in South Africa and the USA; • the delivery of defense services; • plea-bargaining; • sentencing and incarceration policies; • corrections; • the death penalty • policing; • the administration of justice; • prosecuting authority; • the courts; • correctional services; • right to legal representation and pro bono legal representation; • sexual offences. NOTE: This module shall be presented by way of seminars and/or lectures. Registration will be limited to 15 students. Applicants shall be selected on academic merit.				
Pre-requisite	CRL202 and LCP204		Prohibited module Combination	None	
Co-requisite	None				
Timetable Requirement per week			13	Lectures p.w.	
			0	Practicals p.w.	
			0	Tutorials p.w.	
Other teaching modes that does not require time-table					
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA		50%
			FA		50%

Faculty	Law		Home Department			Criminal Justice and Procedure	
Module Name	Criminal Law 202		Module Code			CRL202	
Module Type	Core	NQF Level	6	Year Level	2/3	NQF Credit	20
Programmes in which the module will be offered	LLB (7162, 7172), BA (Law) (7221)					Total Learning Time	200 hours
Duration	Year		Proposed Semester			Both Semesters	
Main Learning Outcomes	On completion of this module, students should be able to: • Discuss and explain the general structure and core concepts of criminal law; • Describe the historical development of criminal law with specific reference to the impact of the Constitution on criminal law; • Predict and explain the controversial issues in criminal law; • Apply the current criminal law to practical situations; • Construct defence and prosecutorial arguments; • Evaluate criminal liability in given scenarios; • Compare and evaluate given texts pertaining to criminal law matters; • Discuss the fundamental values of criminal law, including the presumption of innocence and the principle of legality; • Describe the impact of transformative constitutionalism on criminal law; • Explain the applicability, importance and impact of criminal law in the African context and vice versa; • Analyse selected legislation, judgments and legal writings applicable to criminal law; • Prepare legal essays on applicable criminal law topics using appropriate referencing.						
Main Content	General principles of criminal law and selected offences; • The constitutionality and influence of the Constitution on the principles of criminal law and selected defences; • Contextualising criminal law in Africa in relation to its applicability, importance and impact; and • Acquisition of reading, writing, analytical and argument skills for the application of criminal law principles and defences to a set of facts						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			2	Lectures p.w.			
			0	Practicals p.w.			
			1	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	50%
						FA	50%

Faculty	Law		Home Department			Criminal Justice and Procedure	
Module Name	Advanced Criminal Law 431		Module Code			CRL431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered	LLB (7162, 7172)					Total Learning Time	100 hours
Duration	Semester		Proposed Semester			Second Semester	

Main Learning Outcomes	On completion of this module, students should be able to:				
	• Discuss and analyse the general structure and core concepts of criminal law in the context of Africanisation. • Describe the competing approaches to and philosophies of criminal law. • Demonstrate a critical knowledge of the historical development of criminal law (where applicable). • Demonstrate a full understanding of the current law (where applicable) and the impact of the Constitution. • Explain selected criminal law controversies. • Analyse critically the competing approaches to criminal law. • Analyse criminal law controversies and their implications in relation to practical situations. • Construct defence and prosecutorial arguments in relation to contested areas of criminal law. • Appraise the idea of the social construction of the rules and values of criminal law. • Appraise the relationship between criminal law, constitutional jurisprudence and the discourse of human rights.				
	Main Content				
	The module focuses on: • <i>Capita selecta</i> from the fields of criminal law and criminology.				
	Pre-requisite	THI211	Prohibited module Combination	None	
	Co-requisite	None			
	Timetable Requirement per week				
			3	Lectures p.w.	
			1	Practicals p.w.	
			0	Tutorials p.w.	
Other teaching modes that does not require time-table					
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%	
			FA	50%	

Faculty	Law		Home Department				Mercantile and Labour Law	
Module Name	Commercial Transactions Law 421		Module Code				CTL421	
Module Type	Core	NQF Level	8	Year Level	4/5	NQF Credit	10	
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours	
Duration	Semester		Proposed Semester			Second Semester		
Main Learning Outcomes	On completion of this module, students should be able to: • Explain the essential elements of a valid contract of agency, and how the agency contract differs from other forms of contract in light of social transformation; • Describe the sources of agency power [authority]; • Discuss the legal duties that are imposed upon principals and agents in terms of the principal - agent relationship, as well as the consequences if such duties are breached; • Explain the relationship between a principal and the third party; • Explain the relationship between an agent and the third party;							

	• Evaluate the features of certain special forms of agency relationship, especially those regulated by statute and the influence of the Constitution; • Describe how and when a contract of agency is terminated; • Apply the knowledge acquired during the course to solve practical problems with regard to agency contracts; • List and describe the requirements for a valid cession; • Discuss the application of an agreement which prohibits cession; • Evaluate the effect of security cessions; • Apply the knowledge acquired during the course to solve practical problems with regard to transfer agreements; • Demonstrate critical legal analysis skills, the ability to develop logical, coherent and well-reasoned argument in light of South African commercial law. • Identify the different types of negotiable instruments. • Distinguish between a valid bill of exchange, cheque and promissory note. • Explain the negotiability and transferability of instruments. • Distinguish between cession and negotiability. • Explain the liabilities of the respective parties on the instruments. • Describe the banker-customer relationship and the liability of collecting banks. • Distinguish between and explain overdraft facilities; credit cards transactions; and electronic fund transfers and electronic banking in the context of social transformation issues. • Analyse the legal nature of documentary letters of credit in South African commercial law.
Main Content	<u>Agency:</u> • Introduction and historical background; • Agency and related matters; • Sources of authority; Particular kinds of agent; • Relationships between principal, agent and third party; • Rights and duties of principal and agent; • Termination of authority <u>Cession:</u> • Historical background; • Formalities; • Effect of cession; • Subject matter of cession; • Relationship between cedent, cessionary and third party; • Cession in <i>securitatem debiti</i> <u>Payment Instruments</u> • The history of payment instruments, types of negotiable instruments: • bills of exchange, cheques, promissory notes; • parties; • signatures; • transfer and negotiation; • liability;

	• defences, banker-customer relationship; • banks and financing; • letters of credit; • credit cards; • electronic fund transfers; • electronic banking and ATM			
Pre-requisite	CNT301	Prohibited module Combination	None	
Co-requisite	None			
Timetable Requirement per week				
		2	Lectures p.w.	
		0	Practicals p.w.	
		1	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Private Law	
Module Name	Customary Law 311		Module Code			CUS311	
Module Type	Core	NQF Level	7	Year Level	3/4	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: - Identify the foundational values of the Constitution, the Bill of Rights and the customary law of South Africa; - Discuss the impact of the Bill of Rights on the application of customary law norms and practices; - Identify provisions in the Bill of Rights that affect customary law rules and practices in the light of social transformation; - Compare and contrast the norms and practices between customary law and constitutional rights; - Analyse legal problems pertaining to the application of Customary law in South Africa's constitutional democracy and apply constitutional principles and provisions to solve those problems; - Identify and analyse emerging constitutional developments that affect customary rules that regulate women, children, traditional leadership, marriage, succession, and property (land) rights.						
Main Content	- The Application and Nature of Customary Law - Foundational values of customary law and the Bill of Rights - Customary Law as a Constitutional Right - The Relationship between Customary Law and the Bill of Rights - Traditional Leadership under customary law and the Bill of Rights - Women under customary law and the Bill of Rights - Children under customary law and the Bill of Rights - Marriage and succession under customary law and the Bill of Rights - Property Rights and Land under customary law and the Bill of Rights						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						

Timetable Requirement per week	2	Lectures p.w.		
	0	Practicals p.w.		
	0	Tutorials p.w.		
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Private Law	
Module Name	Law of Delict 201		Module Code			DEL201	
Module Type	Core	NQF Level	6	Year Level	2/3	NQF Credit	20
Programmes in which the module will be offered		LLB (7162, 7172), BA (Law) (7221)				Total Learning Time	200 hours
Duration	Year		Proposed Semester			Both Semesters	
Main Learning Outcomes	On completion of this module, students should be able to:						
	• Demonstrate basic knowledge of the fundamental concepts and common law principles pertaining to the Law of Delict in the context of Africanisation						
	• Explain the transformative impact of the Constitution and multiculturalism on the Law of Delict in South Africa.						
	• Distinguish between fault and strict liability.						
	• Distinguish between different special forms of liability.						
	• Critically review the impact of customary law on special forms of liability						
	• Distinguish between applicable remedies in a logically written essay.						
	• Apply delictual principles to analyse and solve legal problems.						
	• Evaluate and interpret applicable legislation and case law, and the influence of the Constitution.						
	• Develop and defend legal arguments either individually or in a group.						
Main Content	• Delict and the Constitution						
	• Delict in a multicultural society						
	• General principles governing the Law of Delict, including the:						
	◦ distinction between fault and strict liability						
	◦ elements of a delict						
	• Special forms of liability, including aspects of customary law						
	• Strict and vicarious liability						
	• Remedies						
	• Apportionment						
	• Statutory forms of compensation						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			2	Lectures p.w.			
			0	Practicals p.w.			
			1	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	50%
						FA	50%

Faculty	Law		Home Department			English	
Module Name	English for Educational Development (Law) 101		Module Code			EED101	
Module Type	Core	NQF Level	5	Year Level	1/2	NQF Credit	15
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	150 hours
Duration	Year		Proposed Semester			Both Semesters	
Main Learning Outcomes	On completion of this module, students should be able to: Demonstrate basic English language communicative competence and academic literacy skills (writing, reading, listening, speaking) within a legal context – with particular emphasis on argument and counter argument – as necessary conditions for the English for academic and occupational legal purposes that students acquire directly and indirectly through their LLB subjects.						
Main Content	The module components are set in legal context defined by material such as: the Constitution; films, graphics, fiction and journalism on the law and morality; articles on legal matters collected in course readers; legal textbooks.						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			2	Lectures p.w.			
			0	Practicals p.w.			
			1	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	60%
						FA	40%

Faculty	Law		Home Department				Mercantile and Labour Law	
Module Name	Entrepreneurial Legal Practice 431		Module Code				ELP431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10	
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours	
Duration	Semester		Proposed Semester			Second Semester		
Main Learning Outcomes	On completion of this module, students should be able to: • Demonstrate the ability to apply substantive law, facts and procedures to factual scenarios. • Demonstrate the ability to draft the legal and administrative documents, as required by the relevant governing authorities in South Africa, to establish each of the below mentioned entrepreneurial ventures (i.e. a partnership agreement, a trust deed, a company MOI and a shareholders agreement). • Apply negotiation skills in relation to the legal agreements and related documents to be drafted in order to establish the above- mentioned entrepreneurial ventures. • Demonstrate the ability to amend legal agreements and related documents after they have been executed and the process for registering these amended legal agreements and related documents							

	with the relevant governing authorities (i.e. drafting deeds of amendment etc.). • Successfully communicate with hypothetical clients (writing letters, giving advice etc) on aspects relating to the below mentioned business forms.				
Main Content	Lecturing component: The lecturing component will be based on the substantive legal and regulatory frameworks mentioned in the Main Outcomes above. These will include the law on: • Sole Proprietorships • Partnerships • Trusts • Companies • Charitable vehicles • Intellectual Property Practical component: The practical component will focus on practicing the skills and abilities mentioned above in the main outcomes.				
Pre-requisite	None	Prohibited module Combination		None	
Co-requisite	None				
Timetable Requirement per week		1	Lectures p.w.		
		0	Practicals p.w.		
		1	Tutorials p.w.		
Other teaching modes that does not require time-table					
18 hours (1 hour lecture per week and 1 hour Google Meet meeting per week) The lecturer will be available online via Google Meet for one hour per week to answer any questions that may arise from the students' self-study and given assignments.					
Assessment Module Type	Continuous Assessment (CA)	Method of Student Assessment		CA	100%

Faculty	Law		Home Department			Public Law and Jurisprudence	
Module Name	Environmental Law 431		Module Code			ENV431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)			Total Learning Time		100 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Explain and examine the meaning of the term "environment"; • Describe and evaluate the law and policy pertaining to the "environment" in its many-faceted definition and the impact of the Constitution; • Describe the global (in particular international and regional African) environmental regulatory context and its implications for South African environmental law; • Examine, explain and apply ethical duties that human beings have with regard to the environment; • Describe and evaluate the manner in which the environmental right in the Constitution promotes sustainable development in the context of transformative constitutionalism:						

	- Identify environmental racism and apply measures to promote environmental justice; - Describe and discuss the implementation and enforcement of South African environmental law; - Identify environmentally related problems and apply current law concerning biological diversity, land use and planning, climate change, energy as well as pollution control and management; - Interpret and apply case law.			
Main Content	- The nature and scope of environmental law in the context of sustainable development; - The global dimensions of environmental law; - The human rights dimensions of environmental law; - The implementation and enforcement of environmental law; - Land use and planning; - Biological diversity; - Pollution control and waste management; - Climate change; - Energy law and the environment and - Environmental justice and environmental racism			
Pre-requisite	None	Prohibited module Combination	None	
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Regional Integration 431		Module Code			EUR431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Demonstrate an understanding of the rationale for the integration of regions by means of the Southern African Development Community, the African Union, (including the African Continental Free Trade Agreement as well as the Tripartite Free Trade Agreement) and the European Union including the functioning of these unions and knowledge of the body of law applicable thereto. • Demonstrate the relationship between the municipal legal system and regional law. • Analyse the impact of regional integration and in particular European Union Law on the rights of citizens. • Explain fundamental questions concerning integration, the functionality thereof and effect thereof in general.						

	• Demonstrate an understanding of and ability to use the relevant methods, techniques and strategies involved in legal research and problem solving in theoretical and applied situations, in both individual as well as group context. • Conduct research using appropriate techniques such as review written literature, electronic information search and retrieval and statute and case analysis, and be able to present their results to their peers • Argue and verbalise the dynamics of regional integration with specific emphasis on the position of African / developing countries.			
Main Content	• The history of the design of the Southern African Development Community, African Union (including the African Continental Free Trade Agreement as well as the Tripartite Free Trade Agreement) and European Union, • The institutions of the Southern African Development Community, African Union (including the African Continental Free Trade Agreement as well as the Tripartite Free Trade Agreement) and European Union. • Sources of European Union Law • The relationship between European Law and Members' Municipal legal systems • The effect of the so-called fundamental freedoms. • Selected topics related but not limited to the African Continental Free Trade Agreement, as well as the Tripartite Free Trade Agreement			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department				Criminal Justice and Procedure	
Module Name	Law of Evidence 402		Module Code				EVI402	
Module Type	Core	NQF Level	8	Year Level	4/5	NQF Credit	20	
Programmes in which the module will be offered	LLB (7162, 7172)					Total Learning Time	200 hours	
Duration	Year			Proposed Semester		Both Semesters		
Main Learning Outcomes	On completion of this module, students should be able to: • Construct and defend a position based on evidence. • Illustrate the use of concepts from the Law of Evidence to arrive at logical solutions considering the influence of the Constitution. • Analyse factual situations to arrive at legal solutions in light of social transformation through Africanisation. • Apply legal knowledge to situations. • Demonstrate an understanding of the facts.							
Main Content	Rules of the Law of Evidence in civil and criminal cases in South Africa, more specifically: • The functions of the Law of Evidence. Relevance and the admissibility of evidence.							

	• The exclusion of relevant evidence, e.g. privileges • Unconstitutionally obtained evidence • Hearsay evidence • Informal admissions and confessions • Types of evidence and how they are presented • The calling and examining of witnesses • Proof without evidence • The evaluation of evidence and the burden of proof in civil and criminal cases.			
Pre-requisite	LCP204 or CIV302	Prohibited module Combination	None	
Co-requisite	None			
Timetable Requirement per week		4	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Private Law	
Module Name	Family Law 100 (ECP)		Module Code			FAM100	
Module Type	Core	NQF Level	5	Year Level	2	NQF Credit	15
Programme in which the module will be offered	LLB (7172)					Total Learning Time	300 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Explain the impact of the Constitution on notions of marriage and family; • List the fundamental principles pertaining to civil marriages; • List the fundamental principles pertaining to customary marriages; • Compare the fundamental principles relating to civil and customary marriages; • List the fundamental principles pertaining to divorce; • Identify and discuss applicable legislation and case law; • Apply relevant principles to analyse factual scenarios. Students should be able to meet the outcomes through the provision of among other, the following foundation strategies: • Describe using presentations how their family is structured • Group reading activities to identify fundamental principles • Poster presentations reflecting the collection, organization and evaluation of information • Guided intervention in formulating summaries • Approaches to application type problems						
Main Content	• The Role of the Constitution in Family Law; • Requirement for and the termination of an Engagement; • The requirements for a valid civil and customary law marriage; • Void, voidable and putative marriages; • Consequences of a valid civil and customary marriage; • Matrimonial Property Law; • Dissolution (death and divorce) of a civil and customary marriage; • Consequences of the dissolution of a civil and customary marriage; • Parent-child relationship						

Pre-requisite	None	Prohibited module Combination		None	
Co-requisite	None				
Timetable Requirement per week	6	Lectures p.w.			
	0	Practicals p.w.			
	1	Tutorials p.w.			
Other teaching modes that does not require time-table					
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA		50%
			FA		50%

Faculty	Law		Home Department			Private Law	
Module Name	Family Law 121		Module Code			FAM121	
Module Type	Core	NQF Level	5	Year Level	1/2	NQF Credit	15
Programmes in which the module will be offered		LLB (7162), BCom (Law) (7211), BA (Law) (7221)			Total Learning Time		150 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to:						
	• Explain the impact of the Constitution on notions of marriage and family; • Identify the fundamental principles pertaining to civil and customary marriages as well as divorce in the context of South Africa and Africa; • Evaluate applicable legislation and case law; Apply relevant principles to analyse and solve legal problems considering social transformation approaches.						
Main Content	• The Role of the Constitution in Family Law; • Requirement for and the termination of an Engagement; • The requirements for a valid civil and customary law marriage; • Void, voidable and putative marriages; • Consequences of a valid civil and customary marriage; • Matrimonial Property Law; • Dissolution (death and divorce) of a civil and customary marriage; • Consequences of the dissolution of a civil and customary marriage Parent-child relationship.						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			3	Lectures p.w.			
			0	Practicals p.w.			
			1	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment		CA		50%
					FA		50%

Faculty	Law		Home Department		Private Law		
Module Name	Advanced Family Law 431		Module Code		FAM431		
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)			Total Learning Time		100 hours
Duration	Semester		Proposed Semester		First Semester		

Main Learning Outcomes	On completion of this module, students should be able to:				
• Critically evaluate the evolving influence of the Constitution on notions of marriage and family. • Analyse the various family forms, as well as the practical difficulties that persist in various types of unions. • Formulate legal arguments on topics either individually or in a group. • Interpret and apply applicable legislation and case law to the various topics. • Apply applicable family law principles to analyse and solve legal problems in the context of social transformation. • Apply research techniques in developing a legal argument. • Demonstrate the ability to use various technologies in the learning process.					
Main Content	The module focuses on:				
• The impact of the Constitution in transforming the notions of marriage and family; • Various types of unions, e.g. civil unions, domestic partnerships, and customary unions; • Matters related to families, e.g. mediation, domestic violence. • Parent-Child Relationship; • Relocation Disputes; • Paternity Disputes; • ART and the family, including surrogacy					
Pre-requisite	FAM121	Prohibited module Combination		None	
Co-requisite	None				
Timetable Requirement per week		2	Lectures p.w.		
		0	Practicals p.w.		
		0	Tutorials p.w.		
Other teaching modes that does not require time-table					
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%	
			FA	50%	

Faculty	Law		Home Department			Public Law and Jurisprudence	
Module Name	Gender Law 431		Module Code			GEN431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)			Total Learning Time		100 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Discuss the thinking and reasoning peculiar to feminist legal and political thinkers. • Analyse the rights of women under national, regional (African) and international human rights and humanitarian legal instruments. • Critically evaluate the values that typically underpin patriarchal legal and political designs within the context of Africa and transformative constitutionalism.						
Main Content	• Feminist legal and political thinking. • Critical perspectives on women's rights under national, regional and international human rights and humanitarian legal instruments (with						

	particular reference to women in Africa and Agenda 2063). • Selected topics from the following - equality, differentiation and non-discrimination; sexuality, gender and agency; violence against women and the right to personal autonomy and security; the gender-specific impact of custom, culture and religion.				
Pre-requisite	JUR312	Prohibited module Combination		None	
Co-requisite	None				
Timetable Requirement per week		2	Lectures p.w.		
		0	Practicals p.w.		
		0	Tutorials p.w.		
Other teaching modes that does not require time-table					
Assessment Module Type	Continuous Assessment (CA)	Method of Student Assessment		CA	100%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	International Business Law 431			Module Code		IBL431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Analyse fundamental legal concepts, principles, theories and their relationship to international business law and practice. • Apply the relevant methods, techniques and strategies involved in legal research and problem solving in theoretical and applied situations, in both individual as well as group context. • Conduct research using appropriate techniques such as review written literature, electronic information search and retrieval and statute and case analysis, and be able to present their results to their peers. • Identify, distinguish between and critically discuss the functions of and the need for / relevance of the international institutions, conventions and rules governing international trade, business, investments and dispute resolution • Discuss and verbalise the dynamics of international trade and business with specific emphasis on the position of African / developing countries. • Advise countries / traders on the rules / agreements relevant to international trade across borders, applying these rules to practical scenarios, taking cognizance of specific challenges facing African / Developing countries and regions within global trade and business						
Main Content	The module focuses on: • Legal framework of international trade and business UN; World Bank; IMF; GATT; WTO; Regional Organizations; • International trade; Introduction and theories of international trade; Trade Remedies • International sales Transactions; Formation of Contracts; CISG, Choice of Law and Choice of Forum; Incoterms • Foreign direct investment regulation • International dispute resolution; Arbitration and Litigation; Enforcement						

	and recognition of judgments/ awards • Challenges of African / developing countries in global context				
Pre-requisite	CNT301	Prohibited module Combination		None	
Co-requisite	None				
Timetable Requirement per week		2	Lectures p.w.		
		0	Practicals p.w.		
		0	Tutorials p.w.		
Other teaching modes that does not require time-table					
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA		50%
			FA		50%

Faculty	Law		Home Department			Public Law and Jurisprudence	
Module Name	Introduction to Law 100 (ECP)		Module Code			ILL100	
Module Type	Core	NQF Level	5	Year Level	1	NQF Credit	15
Programme in which the module will be offered		LLB (7172)				Total Learning Time	400 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to:						
	• Discuss the possibilities and limits of social transformation through the Africanisation, decolonisation and constitutionisation of South African law. • Discuss the processes of globalisation and digitalisation as factors influencing the nature and future of the state, society and the law. • Define selected legal concepts in light of their broader contexts. • Define the concept of law. • Explain the history of South African law from a post-colonial perspective. • List and identify the sources of South African law. • Discuss the basic debates in legal philosophy (natural law vs positivism; formalism v realism) and the place of African jurisprudence within these debates. • Discuss the classifications of the various disciplines of law. • List and discuss the structures of government provided for in terms of the Constitution. • Discuss the most important human rights provided for under the Bill of Rights of the Constitution.						
	Students should be able to meet the outcomes through the provision of among other, the following foundation activities:						
	• Visual stimulation through images to have a class discussion on what is the law. • Create an activity to distinguish between law and rules. • Interactive class reading on the history of South African law. • Creating a story of our law – reading and writing skills. • Schematically reflect the classifications of the discipline of law – posters • Unpacking the Constitution in designated time slots – overview. • A visit to parliament or live streaming of parliament as an example of the structure of government. • Review Chapter 2 of the Constitution in light of a personal reflection.						

Main Content	• A history of South Africa's law and legal system including pre-colonial customs and practices, the introduction of Roman-Dutch law and English law in South Africa. • The pre-democratic relationship between the different legal systems in South Africa and how these legal systems influenced the forms and institutions of law in South Africa. • The impact of the Constitution on the forms, substance and institutions of law. • Theories of social change: revolutions, negotiated transitions, transformative constitutionalism and law in the global economy. • Formal Sources of law • Separation of powers • Branches of law • The impact of the Constitution on basic methodologies of law.				
	Pre-requisite	None	Prohibited module Combination	None	
	Co-requisite	None			
	Timetable Requirement per week		6	Lectures p.w.	
			0	Practicals p.w.	
			1	Tutorials p.w.	
	Other teaching modes that does not require time-table				
	Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
FA				50%	

Faculty	Law		Home Department			Public Law and Jurisprudence	
Module Name	Introduction to Law 111		Module Code			ILL111	
Module Type	Core	NQF Level	5	Year Level	1	NQF Credit	15
Programmes in which the module will be offered		LLB (7162), BCom (Law) (7211), BA (Law) (7221)			Total Learning Time		150 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Discuss the possibilities and limits of social transformation through the Africanisation, decolonisation and constitutionalisation of South African law. • Discuss the processes of globalisation and digitalisation as factors influencing the nature and future of the state, society and the law. • Define selected legal concepts in light of their broader contexts. • Define the concept of law. • Explain the history of South African law from a post-colonial perspective. • List and identify the sources of South African law. • Discuss the basic debates in legal philosophy (natural law vs positivism; formalism v realism) and the place of African jurisprudence within these debates. • Discuss the classifications of the various disciplines of law. • List and discuss the structures of government provided for in terms of the Constitution. • Discuss the most important human rights provided for under the Bill of Rights of the Constitution.						

Main Content	• A history of South Africa's law and legal system including pre-colonial customs and practices, the introduction of Roman-Dutch law and English law in South Africa. • The pre-democratic relationship between the different legal systems in South Africa and how these legal systems influenced the forms and institutions of law in South Africa. • The impact of the Constitution on the forms, substance and institutions of law. • Theories of social change: revolutions, negotiated transitions, transformative constitutionalism and law in the global economy. • Formal Sources of law • Separation of powers • Branches of law • The impact of the Constitution on basic methodologies of law.				
	Pre-requisite	None		Prohibited module Combination	None
	Co-requisite	None			
	Timetable Requirement per week			3	Lectures p.w.
				0	Practicals p.w.
				1	Tutorials p.w.
	Other teaching modes that does not require time-table				
	Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
FA				50%	

Faculty	Law		Home Department			Public Law and Jurisprudence	
Module Name	Introduction to Law 121		Module Code			ILL121	
Module Type	Core	NQF Level	5	Year Level	1	NQF Credit	15
Programmes in which the module will be offered	LLB (7162), BCom (Law) (7211), BA (Law) (7221)					Total Learning Time	150 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Discuss the possibilities and limits of social transformation through the Africanisation, decolonisation and constitutionalisation of South African law • Describe the different divisions of South African law • Identify the subdivisions and other areas of the law • Discuss selected legal concepts in light of their broader contexts • Discuss the role played by Private law • Identify how the business world functions and operates with reference to the law • List and discuss the various procedures to be found in civil procedure • Identify the role played by criminal law • List and discuss the various procedures to be found in criminal procedure • Identify the role played by the law of evidence • List and compare the differences between courts and Appropriate Dispute Resolution • Discuss the role played by the legal profession						
Main Content	• Outline of private law • Law and the business world						

	• Law and civil procedure • Outline of criminal law • Law of criminal procedure • Law of evidence • Courts and Appropriate Dispute Resolution • The legal profession, an outline of professional ethics, and the fit and proper person standard			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		3	Lectures p.w.	
		0	Practicals p.w.	
		1	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Public Law	
Module Name	Introduction to Law 200 (ECP)		Module Code			ILL200	
Module Type	Core	NQF Level	5	Year Level	1	NQF Credit	15
Programme in which the module will be offered		LLB (7172)				Total Learning Time	400 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to:						
	• Discuss the possibilities and limits of social transformation through the Africanisation, decolonisation and constitutionalisation of South African law. • Describe the different divisions of South African law. • Identify the subdivisions and other areas of the law. • Discuss selected legal concepts in light of their broader contexts. • Discuss the role played by private law. • Identify how the business world functions and operates with reference to the role played by mercantile law. • List and discuss the various procedures to be found in civil procedure. • Identify the role played by criminal law. • List and discuss the various procedures to be found in criminal procedure. • Identify the role played by the law of evidence. • List and compare the differences between courts and Appropriate Dispute Resolution. • Discuss the role played by the legal profession.						
	Students should be able to meet the outcomes through the provision of among other, the following foundation activities:						
	• Seminar activities on debating social transformation aspects. • Group presentations on divisions and sub-divisions of South African law. • Visits to different courts and do observations. • Prepare a role-play depicting effective Alternative Dispute Resolution. • Oral presentations on defining and explaining the legal profession in South Africa.						

Main Content	• Outline of private law • Law and the business world • Law and civil procedure • Outline of criminal law • Law of criminal procedure • Law of evidence • Courts and Appropriate Dispute Resolution • The legal profession, an outline of professional ethics, and the fit and proper person standard				
	Pre-requisite	None	Prohibited module Combination	None	
	Co-requisite	None			
	Timetable Requirement per week		6	Lectures p.w.	
			0	Practicals p.w.	
			1	Tutorials p.w.	
	Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment	CA	50%
				FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Law of Insolvency 311		Module Code			INS311	
Module Type	Core	NQF Level	7	Year Level	3/4	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172), BCom (Law) (7211)				Total Learning Time	100 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Explain the main principles and rules regulating the Law of Insolvency in the context of South Africa and Africa; • Apply the foundational principles underpinning the law of insolvency to solving practical insolvency law problems considering transformative constitutional principles. These include, <i>inter alia</i>, the types of insolvency; application for the voluntary surrender or compulsory sequestration or friendly sequestration of an insolvent estate; legal consequences relating to the insolvent, the insolvent estate, the solvent spouse; composition and rehabilitation of the insolvent, and the liquidation of juristic persons. • Apply the relevant methods, techniques and strategies involved in legal research and problem solving in theoretical and applied situations of insolvency practice; • Engage in legal research and writing exercises using appropriate techniques such as review written literature, electronic information search and retrieval and statute and case analysis; • Read and summarise case law and demonstrate adequate scholarship skills in applying knowledge acquired therefrom in writing a well-reasoned, coherent, researched legal opinion.						
Main Content	• Historical background to insolvency law in South Africa and Africa • Voluntary surrender, including formalities to be applied • Compulsory sequestration • Effects of sequestration						

	• Impeachable transactions, • Appointment and function of trustee • Composition • Rehabilitation • Liquidation of juristic persons • Impact of the Constitution on the law of insolvency			
Pre-requisite	None	Prohibited module Combination	None	
Co-requisite	CNT301			
Timetable Requirement per week	2	Lectures p.w.		
	0	Practicals p.w.		
	1	Tutorials p.w.		
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Internet Law 431		Module Code			INT431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: - Analyse fundamental legal concepts, principles, theories and their relationship to internet law and practice in the context of social transformation. - Explain the manners in which the Constitution transforms Internet Law. - Apply the relevant methods, techniques and strategies involved in legal research and problem solving in theoretical and applied situations. - Do independent research using appropriate techniques such as review written literature, electronic information search and retrieval and statute and case analysis. - Demonstrate a basic knowledge of the law applicable to the protection of personal information on the internet, online contracts, consumer protection, internet-based transactions, copyright, dispute resolution and cybercrime. - Apply these rules when confronted with practical problems and advise a client about the South African and international rules applicable to internet-based contracts, the formation of international business transactions via the internet, the rules governing these contracts / transactions and the settlement of internet disputes.						
Main Content	- General Introduction to the workings of the Internet and the law surrounding it - Internet Law and the Constitution - The Internet and Personal Information - The Internet and Interception - Electronic Contracts and Formalities - The Internet and Consumer Protection - Taxation of E-Commerce - Trade Marks and Domain Names						

	• The Internet, Copyright and Databases • Evidence and Security • Jurisdiction and Liability on the Internet • Cybercrime			
Pre-requisite	CNT301	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Private Law	
Module Name	Intellectual Property Law 431		Module Code			IPL431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: - Analyse the founding theories relating to Intellectual Property Law and the application of the Constitution; - Examine the different forms of intellectual property; - Identify and discuss the global intellectual property regime and the debates that have arisen with respect to the implementation of the current system; - Critically discuss the ways in which traditional knowledge may be protected in the light of Africanisation; - Prepare and present a legal argument on selected topics individually or in collaboration; - Explain and apply the relevant legal principles to a factual scenario making reference to legislation and case law.						
Main Content	- Founding theories of Intellectual Property Law; - Basic principles of Copyright Law; - Basic principles of Patent Law and Industrial Designs; - Basic principles of Trade Mark Law and Unlawful Competition; - Introduction to the protection of Traditional Knowledge.						
Pre-requisite	THI211		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			2	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment		CA		50%
					FA		50%

Faculty	Law				Home Department		Public Law and Jurisprudence	
Module Name	Jurisprudence 312				Module Code		JUR312	
Module Type	Core	NQF Level	7	Year Level	3/4	NQF Credit	15	
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	150 hours	
Duration	Semester			Proposed Semester		First Semester		
Main Learning Outcomes	On completion of this module, students should be able to: • Discuss the possibilities and limits of social transformation through the Africanisation, decolonisation and constitution-lisation of South African law • Reflect on the relationship between law and morality in different schools of legal thought • Explain the philosophical foundations used to justify legal reasoning and adjudication in South Africa by identifying the legal philosophies and the underlying political theories tacitly invoked in selected judgments from South African case law • Analyse texts in order to develop a critical approach to law and an in-depth understanding of the relationship between law and transformation and to construct independent jurisprudential arguments							
Main Content	The relationship between law, Western modernity and colonialism • The relationship between law and morality • The relationship between law, politics and society • The relationship between law and transformation • The relationship between law and critique • The reading, writing and critical thinking competency to critically engage with legal and academic texts							
Pre-requisite	None			Prohibited module Combination		None		
Co-requisite	None							
Timetable Requirement per week				3	Lectures p.w.	2.25 per week for 13 weeks		
				0	Practicals p.w.	5 x 3		
				1	Tutorials p.w.			
Other teaching modes that does not require time-table								
Assessment Module Type	Continuous Assessment (CA)			Method of Student Assessment			CA	100%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Labour Law 321		Module Code			LAB321	
Module Type	Core	NQF Level	7	Year Level	2/3/4	NQF Credit	15
Programmes in which the module will be offered		LLB (7162, 7172), BCom (Law) (7211), BA (Law) (7221)				Total Learning Time	150 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to:						
	• Explain the basic principles of labour law in South Africa and how these are used in practice. • Understand the primary sources of information on labour law in South Africa.						

	• Analyse and comment upon the law as it stands at present. • Assess and comment on possible future changes or controversial issues arising in this area of law as influenced by the Constitution. • Understand the manners in which conditions of employment are negotiated and the manners in which labour disputes are resolved. • Evaluate resource material (evidentiary material, case law and academic commentary) to determine its relevance to particular legal issues. • Arrange legal principles, case law and academic commentary to support a coherent and persuasive argument in response to particular legal problems. • Communicate, deliberate and work effectively in the course of group work. • Demonstrate thorough knowledge of the primary sources of information on labour law in South Africa.						
Main Content	• Individual employment law • Collective bargaining law • Industrial action • Dispute resolution • Consultation and worker participation • The manners in which Labour Law is transformed by the Constitution in accordance with the ideals of Africanisation, decolonisation and the principles of transformative constitutionalism.						
Pre-requisite	None	Prohibited module Combination		None			
Co-requisite	None						
Timetable Requirement per week		3	Lectures p.w.				
		0	Practicals p.w.				
		0	Tutorials p.w.				
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment		CA	50%	
					FA	50%	
Faculty	Law		Home Department		Mercantile and Labour Law		
Module Name	Digitalising Labour Law 431		Module Code		LAB431		
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)			Total Learning Time	100 hours	
Duration	Semester		Proposed Semester		Second Semester		
Main Learning Outcomes	On completion of this module, students should be able to: • Explain the legal and social relevance of access to justice and the nature of its practical deficits, particularly in the labour field. • Apply principles and theories relevant to legal logic, technology, and main digital trends. • Critically appraise the role and the importance of software quality and user-friendliness features in the design of digital decision- making systems.						

	• Demonstrate the application of legal logic in the design of applications for decision-making systems and the digitalisation of legal procedures, with practical reference to labour dispute resolution. • Identify and analyse the inclusion of high-quality legal content, including relevant legislation, jurisprudence and commentary in digital decision-making tools, particularly in the field of labour law. • Evaluate the process of filtering laws and regulations, making their content accessible for laypersons. • Test the process whereby individual entitlement to a legal remedy and procedures to be followed in pursuing it can be ascertained by digital decision-making mechanisms				
Main Content	Substantive component • Access to justice: legal and practical aspects • Digitalisation as a means of access to justice • Legal logic • Digital decision-making systems building on existing Labour Law knowledge • Research and analyse the inclusion of high-quality legal content, including relevant legislation, jurisprudence and commentary in digital decision-making tools • The development of digital decision-making systems in the field of Labour Law Procedural component • Digitalisation of legal procedures, with practical reference to labour dispute resolution building on existing Labour Law knowledge				
	Pre-requisite	LAB321	Prohibited module Combination		None
	Co-requisite	None			
	Timetable Requirement per week		2	Lectures p.w.	
0			Practicals p.w.		
0			Tutorials p.w.		
Other teaching modes that does not require time-table					
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%	
			FA	50%	

Faculty	Law		Home Department				Mercantile and Labour Law	
Module Name	Advanced Labour Law 431		Module Code				LBL431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10	
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours	
Duration	Semester		Proposed Semester			First Semester		
Main Learning Outcomes	On completion of this module, students should be able to:							
	• Demonstrate a detailed understanding of current debates and themes in South African Labour Law. • Explain which factors impact on the development of Labour Law in specific areas in South Africa and the influence of the Constitution. • Analyse significant cases and comment on the direction the law should take in this regard considering social transformation.							

	• Demonstrate an enhanced understanding and knowledge of existing Labour Laws as well as the specific areas under discussion. • Describe what to expect should labour-related issues be encountered in practice. • Critically analyse case studies and express opinions on various issues. • Demonstrate an understanding of, and ability to use, relevant methods, techniques and strategies involved in legal research and problem solving in theoretical and applied situations, in both individual as well as group context. • Conduct research using appropriate techniques, such as, review written literature, electronic information search and retrieval, and statute and case analysis, and be able to present their results to their peers.			
Main Content	The module will provide a more in-depth and detailed understanding of various topics that were dealt with in the Labour Law 321 module. New topics not discussed in detail in the Labour Law 321 module shall be introduced. The module focuses on: • The changing forms of work and atypical employment - the scope of application of labour legislation, which workers are 'employees' and who should be protected. • Business restructuring - changing terms and conditions of employment, retrenchment, transfer of businesses. • Selected issues in dismissal law - the scope of protection, what is a 'dismissal', what are the appropriate remedies for unfair dismissal. • Selected issues in discrimination law - what is discrimination, what is 'unfair' discrimination, what are the defences and what are appropriate remedies. • Selected issues in collective bargaining - the duty to bargain, what are collective agreements and what is their status, bargaining institutions under the Labour Relations Act 66 of 1995. • The resurgence of the common law contract of employment. • Dispute resolution under the Labour Relations Act 66 of 1995 - pre-dismissal arbitration, con-arb, the interaction between the CCMA, bargaining councils and private arbitration, the status of the Labour Court. • The interpretation of labour rights in a constitutional and international law framework. Note: The topics selected for discussion may vary from year to year in keeping with current debates in labour law and shall be examined in a comparative light.			
Pre-requisite	LAB321	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Criminal Justice and Procedure	
Module Name	Law of Criminal Procedure 204		Module Code			LCP204	
Module Type	Core	NQF Level	6	Year Level	2/3	NQF Credit	20
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	200 hours
Duration	Year		Proposed Semester			Both Semesters	
Main Learning Outcomes	On completion of this module, students should be able to: • Identify the applicable rules and procedures of different phases of the law of criminal procedure in the context of South Africa; • Discuss the impact of the Constitution on the Law of Criminal Procedure; • Identify the various procedures within the law of criminal procedure. • Apply themself to a given set of facts in respect of which documents such as Bail Affidavits or a Plea Explanation must be drafted in light of social transformation principles; • Analyse the interaction between the Law of Criminal Procedure, Law of Evidence and Criminal Law. • Observe, record and critically review a live bail application in an appropriate forum.						
Main Content	• General principles, rules and different sanctions of the criminal justice system. • The application of criminal procedures in all South African criminal courts. • The value and impact of the Constitution on case law and relevant statutes in the criminal justice system. • Practical exposure to authentic court in the context of Work Integrated Learning						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			2	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	50%
						FA	50%

Faculty	Law		Home Department			Criminal Justice and Procedure	
Module Name	Law of Economic Crime 431		Module Code			LEC431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: Understand the meaning, causes and effects of economic criminality						

	- Identify and understand the various types of economic crimes, particularly corruption and money laundering, nationally, regionally and internationally - Analyse the socio-economic and political impact of economic crime - Comprehend the international legal and institutional framework dealing with economic criminality - Understand the relationship between economic criminality, sustainable development and human rights - Evaluate the effectiveness of the regional and international strategies to combat economic criminality - Demonstrate the ability to develop recommendations to promote the prevention, reduction and eradication of economic criminality				
Main Content	The module focuses on: 1. The problem of economic criminality in contemporary society 2. The impact of economic criminality on socio-economic rights and development 3.1 Money laundering - Meaning, typologies and aims of money laundering - Stages of money laundering - Predicate offences for money laundering - Anti-money laundering legal and institutional framework - Investigation and prosecution of money laundering 3.2 Corruption - Meaning and scope of corruption - Forms of corruption - Anti-corruption legal and institutional framework - Prevention and criminalisation of corruption - Anti-corruption collaboration and mutual legal assistance 3.3 Recovery of assets lost to corruption and money laundering				
	Pre-requisite	None	Prohibited module Combination		
	Co-requisite	None	None		
	Timetable Requirement per week		2	Lectures p.w.	
			0	Practicals p.w.	
0			Tutorials p.w.		
Other teaching modes that does not require time-table					
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%	
			FA	50%	

Faculty	Law		Home Department			Private Law	
Module Name	Housing, Land and Property Reform 431		Module Code			LLW431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)			Total Learning Time		100 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: Critically discuss the colonial and apartheid history of land holding and control in South Africa.						

	• Critically apply the Constitutional property clause to address contemporary land issues specifically land reform and access to housing, in South Africa. • Demonstrate an excellent understanding of current land and housing laws. • Contribute to discussions on how the law can be applied and developed to address access to land and housing problems. • Illustrate a sound knowledge of policy documents and legislation relating to the land and property reform in South Africa. • Discuss customary land use and tenure systems.				
Main Content	The module focuses on: • Historical overview of the South African land tenure system • Formal and informal land tenure (dual systems of land rights) • Land and housing reform in terms of the Constitution • Land reform: restitution, redistribution and tenure reform • Constitutional property law (Deprivations and Expropriations) • Customary land tenure systems				
Pre-requisite	THI211	Prohibited module Combination		None	
Co-requisite	None				
Timetable Requirement per week		2	Lectures p.w.		
		0	Practicals p.w.		
		0	Tutorials p.w.		
Other teaching modes that does not require time-table					
Assessment Module Type	Continuous Assessment (CA)	Method of Student Assessment		CA	100%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Law of Insurance 431		Module Code			LOI431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)			Total Learning Time		100 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Identify when a contract amounts to a valid insurance policy • Explain and apply the test for insurable interest • Explain and apply the test for materiality of misrepresentations and non-disclosures in the light of social transformation • Analyse factual scenarios and apply judicial decisions and legislation considering the Constitution to come to a resolution						
Main Content	The module focuses on: • Requirements for a valid insurance policy • Policy interpretation • Insurable interest • Risk • Misrepresentation and non-disclosures in negotiating an insurance policy • African life insurance • Digitisation of insurance in South Africa						

Pre-requisite	CNT301	Prohibited module Combination		None	
Co-requisite	None				
Timetable Requirement per week		2	Lectures p.w.		
		0	Practicals p.w.		
		0	Tutorials p.w.		
Other teaching modes that does not require time-table					
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA		50%
			FA		50%

Faculty	Law		Home Department			Private Law	
Module Name	Law of Persons 100 (ECP)		Module Code			LOP100	
Module Type	Core	NQF Level	5	Year Level	2	NQF Credit	15
Programme in which the module will be offered		LLB (7172)				Total Learning Time	375 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to:						
	- List the fundamental concepts of the common law principles pertaining to the Law of Persons; - List the fundamental concepts of the customary law principles pertaining to the Law of Persons; - Compare the fundamental concepts of the common law as well as customary law principles pertaining to the Law of Persons. - Identify applicable legislation and case law, and the influence of the Constitution on these sources; - Apply principles relevant to the Law of Persons to discuss and solve legal problems; - Apply and implement basic research techniques in developing a legal argument. Students should be able to meet the outcomes through the provision of among other, the following foundation activities: - Concepts of Law of Persons through video material and their environment. - Additional library support to search and access legislation and case law. - Factual scenarios presented through role-play and actual court cases. - Guided research techniques in groups by the lecturer to develop a legal argument.						
Main Content	- The Law of Persons and the Constitution. - Terminology and definition of concepts. - The beginning of legal subjectivity and the interests of the unborn fetus. - The end of legal subjectivity. - Factors influencing status, namely age, domicile, birth and adoption, mental illness, physical disability, drunkenness and drug addiction, prodigality, insolvency and curatorship. - Factors that determine a person's status, rights and obligations under customary law.						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						

Timetable Requirement per week	6	Lectures p.w.		
	0	Practicals p.w.		
	1	Tutorials p.w.		
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Private Law	
Module Name	Law of Persons 112		Module Code			LOP112	
Module Type	Core	NQF Level	5	Year Level	1/2	NQF Credit	15
Programmes in which the module will be offered	LLB (7162), BCom (Law) (7211), BA (Law) (7221)				Total Learning Time	150 hours	
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: - Identify fundamental concepts, common law as well as customary law principles pertaining to the Law of Persons; - Identify applicable legislation and case law, and the influence of the Constitution on these sources; - Apply principles relevant to the Law of Persons to analyse and solve legal problems considering social transformation approaches; - Apply basic research techniques in developing a legal argument in light of the possibilities and limits of Africanisation.						
Main Content	- The Law of Persons and the Constitution - Terminology and definition of concepts - The beginning of legal subjectivity and the interests of the unborn - The end of legal subjectivity - Factors influencing status, namely age, domicile, birth and adoption, mental illness, physical disability, drunkenness and drug addiction, prodigality, insolvency and curatorship - Factors that determine a person's status, rights and obligations under customary law						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			3	Lectures p.w.			
			0	Practicals p.w.			
			1	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment		CA		50%
					FA		50%

Faculty	Law		Home Department			Private Law	
Module Name	Legal and Religious Pluralism 431		Module Code			LPL431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered	LLB (7162, 7172)					Total Learning Time	100 hours
Duration	Semester		Proposed Semester			Second Semester	

Main Learning Outcomes	On completion of this module, students should be able to: • Illustrate the principles of transformative constitutionalism by applying the Constitution to relevant topics in indigenous laws and Islamic Law. • Critically evaluate legal pluralism as the product of European colonisation of Africa and, latterly, of globalisation • Analyse the major theories of normative coexistence by scholars in both the Global South and Global North • Explain the historical context of the interaction of legal orders in South Africa and sub-Saharan Africa • Explain the relationship between indigenous laws, Muslim Personal Laws and European laws imposed as state laws in South Africa • Appraise the way people's normative behaviour under indigenous norms adapt to socio-economic changes, especially in issues of marriage, succession, property, and contract • Analyse the relationship between indigenous norms and imposed state laws as a cultural struggle with significance for the future of legal pluralism in Africa • Apply research methodology and develop and practically defend legal arguments related to legal pluralism either individually or in a group.			
Main Content	• Historical and philosophical context of legal pluralism in South Africa • Overview of the impact of colonial rule on African political economies • Relevant topics covering Muslim Personal Law • Cultural relativism and the Bill of Rights as contradictions • Critique the conceptualisation of African customary law • Dissonance between the communal values of indigenous norms and the individualistic, agency-driven nature of state human rights laws • Critical overview of legal identity in the context of people's adaptations to socio-economic changes • Influence of the Constitution on principles of Muslim Personal Law. • Predicting the future of legal pluralism in Africa, using legal history and experiences in the Global North			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Criminal Justice and Procedure	
Module Name	Legal Process 411		Module Code			LPP411	
Module Type	Core	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered	LLB (7162, 7172)					Total Learning Time	100 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Apply appropriate consultation techniques in the spirit of uBuntu within a simulated client situation.						

	• Manage the drafting process. • Negotiate with skill. • Assess different trial advocacy approaches. • Demonstrate strategic and analytical thinking skills. • Express arguments effectively through oral and written communication. • Apply substantive law, facts and procedure to factual scenarios. • Demonstrate professional responsibility. • Calculate bills of costs using emerging technologies • Demonstrate office management skills.			
Main Content	• Communication skills to enable students to explain legal concepts to lay persons in a simulated environment. • Basic trial advocacy skills. • Consultation techniques with an emphasis on client-centred interviewing /consultation underpinned by principles of the Constitution. • Diversity training. • Trial Advocacy. • Capita selecta from the Law of Civil Procedure, aspects of substantive law, Gender law, Socio-economic rights, HIV/Aids as it relates to clinic work, aspects of practice and litigation, professional ethics.			
Pre-requisite	CIV302	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Mercantile Law	
Module Name	Mercantile Law 221		Module Code			MCR221	
Module Type	Core	NQF Level	6	Year Level	2/3	NQF Credit	10
Programmes in which the module will be offered		BCom (Accounting) (1021) (1753) (1762), BCom (Financial Accounting) (1175), BCom (1008) (1751)				Total Learning Time	100 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: - Understand the general principles, basic aspects and rules regulating the Law relating to Insolvency, Negotiable Instruments, including Electronic Payments and Transactions. - Understand how these principles operate in practice.						
Main Content	- The Law of Insolvency which includes (inter alia) a comparison between voluntary surrender and compulsory sequestration, effect and consequence of sequestration on the insolvent, the insolvent estate and the solvent spouse, rehabilitation. - The Law of Negotiable Instruments, including basic principles of cheque law and including the law relating to Electronic Payments and Transactions.						
Pre-requisite	MER102		Prohibited module Combination			None	
Co-requisite	None						

Timetable Requirement per week	3	Lectures p.w.		
	0	Practicals p.w.		
	0	Tutorials p.w.		
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Mercantile Law 102		Module Code			MER102	
Module Type	Core	NQF Level	5	Year Level	1/2	NQF Credit	15
Programmes in which the module will be offered		BCom (Accounting) (1021) (1753), BCom (Financial Accounting) (1175), BCom (1008) (1751)				Total Learning Time	150 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to demonstrate: • An understanding of the basic structure of our legal system • An understanding and application of the general principles of contract • An understanding and application of the consequences and remedies for breach of contract • Be familiar with the rights and duties of parties to common commercial contracts • Be aware of basic concepts of property and security law						
Main Content	Introduction to the SA legal system; general requirements for a valid contract; breach of contract; specific contracts; cession; property law; security law						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			4	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment		CA		50%
					FA		50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Mercantile Law 103		Module Code			MER103	
Module Type	Core	NQF Level	5	Year Level	2	NQF Credit	15
Programme in which the module will be offered	BCom Accounting Extended Curriculum (1762)					Total Learning Time	150 hours
Duration	Year		Proposed Semester			Both Semesters	
Main Learning Outcomes	On completion of this module students, should be able to:						
	• Explain the basic structure of our legal system • Identify and apply the general principles of contract • List the consequences for the breach of contract • Apply the appropriate remedies for the breach of contract						

	• List and explain the rights and duties of parties to common commercial contracts • Identify the basic concepts of property law • Identify the basic concepts of security law Students should be able to meet the outcomes through the provision of among other, the following foundation activities: • Visual stimulation through images to have a class discussion on the structure of the legal system • Create an activity to distinguish between law and rules • Interactive class reading on the history of South African law • Collaborative oral presentations on what are requirements for a valid contract - reading and articulation skills • Match appropriate remedies to the type of breach identified (Class quiz) • Unpacking a commercial contract in practice • Schematically reflect the classifications of the property ownership and different types of security – posters • Additional formative assessments to determine progress.			
Main Content	• Introduction to the SA legal system; • General requirements for a valid contract; • Breach of contract; • Specific contracts; • Cession; • Property law; • Security law			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		4	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Criminal Justice and Procedure	
Module Name	Preparing for Legal Practice 401		Module Code			PLP401	
Module Type	Core	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours
Duration	Year		Proposed Semester			Both Semesters	
Main Learning Outcomes	On completion of this module, students should be able to: - Assess the relevance of numeracy systems and record-keeping systems in law and legal practice and apply them using emerging technologies; - Explain the process of the administration of deceased estates and key rules and principles applicable thereto in light of social transformation; - Apply and explain the formal requirements of certain basic court documents in the context of South Africa; - Draft basic court documents;						

	• Evaluate the necessity of legal work ethics and practice management. • Discuss the possibilities and limits of social transformation through the Africanisation, decolonisation and constitutionalisation of Legal Practice Law, including being able to explain how the Constitution has aided in the development of legislation on legal practice • Discuss and resolve typical ethical problems in a legal professional context			
Main Content	• Legally relevant numeracy, including aspects of Accountancy • Legal work ethics and practice management • Deceased Estates • Personal Injury Claims • The impact of the Constitution and legislation in a post-apartheid South Africa on decolonising legal practice and Africanising the legal profession in accordance with the principles of transformative constitutionalism through, inter alia, unification of the Attorneys and Advocates branches of the profession • Professional legal ethics, the Legal Practice Act and the Code of Conduct for legal practitioners • Professional ethics for lawyers			
Pre-requisite	None	Prohibited module Combination	None	
Co-requisite	None			
Timetable Requirement per week	1		Lectures p.w.	
	0		Practicals p.w.	
	1		Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Public Law and Jurisprudence	
Module Name	Public International Law 321		Module Code			PUB321	
Module Type	Core	NQF Level	7	Year Level	3/4	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Describe the meaning and significance of Public International Law and its relationship with philosophy, history, economy and politics in the African and global context. • Explain the sources, principles and rules of Public International Law. • Evaluate the subjects, legal and political institutions and other major role-players of the African and international legal system. • Apply the principles and rules in substantive areas and specialised topics of Public International Law. • Develop an interpretation of global and regional politics and the relationship between states and other political actors on the international and regional stage. • Critically analyse and evaluate Public International Law in the South African legal, political and constitutional context.						

Main Content	The theory, history, nature and scope of Public International Law.				
	• The context, sources, principles and norms of Public International law with particular reference to treaty law, custom, subsidiary sources, jus cogens and obligations erga omnes. • The place of Public International Law in the South African legal and constitutional context. • The subjects of Public International Law: states and statehood, the recognition of states, land and territory. • Jurisdiction and international crimes: general principles, extradition, immunity from jurisdiction, sovereign and diplomatic immunity. • State responsibility in respect of own nationals and foreign nationals/aliens. • International adjudication: the establishment of jurisdiction, contentious proceedings and advisory opinions. • The United Nations and the maintenance of international peace and security. • The law of armed conflict and constraints on the waging of war. • The use of force by states in Public International Law: general principles. • Self-defence and humanitarian intervention.				
	Pre-requisite	None	Prohibited module Combination		None
	Co-requisite	None			
	Timetable Requirement per week		2	Lectures p.w.	
			0	Practicals p.w.	
			0	Tutorials p.w.	
	Other teaching modes that does not require time-table				
	Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
FA				50%	

Faculty	Law		Home Department			Law	
Module Name	Research Paper 431		Module Code			REP431	
Module Type	Core	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours
Duration	Year		Proposed Semester			Both Semesters	
Main Learning Outcomes	On completion of this module, students should be able to: • Submit a feasible topic for research in the area of Law. • Conduct a literature review of the selected area of research in Law. • Design a research project. • Utilise the appropriate methods and techniques to gather the relevant information. • Utilise the appropriate ethical considerations when conducting research. • Submit a research project.						
Main Content	• Research methods and analysis, • Ethical considerations in research • Research proposal • Publishable research article between 5000 and 6000 words						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	RSM311						

Timetable Requirement per week		0	Lectures p.w.				
		0	Practicals p.w.				
		0	Tutorials p.w.				
Other teaching modes that does not require time-table							
Assessment Module Type	Final Assessment (FA)		Method of Student Assessment			FA	100%
Faculty	Law		Home Department			Public Law and Jurisprudence	
Module Name	Research Methodology 311		Module Code			RSM311	
Module Type	Core	NQF Level	7	Year Level	3/4	NQF Credit	5
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	50 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: - Describe the process and demands of legal research in the post-colonial African state. - Demonstrate the ability to design a research project. - Distinguish between a research topic and a research question. - Identify a research problem. - Apply critical reading strategies and techniques. - Conduct a literature review in line with the demands of decolonisation and Africanisation of law. - Differentiate between different research methodologies in the discipline of law and identify how each methodology contributes to the constitutional demand of transformation and decolonisation. - Analyse theoretical approaches to research. - Employ effective referencing techniques. - Construct a research proposal. - Discuss the roles of the supervisor and supervisee.						
Main Content	- The components of the research process. - Developing a research question from a research topic. - Exploring a research problem. - Critical reading strategies. - Effective use of electronic research technologies. - Research methodologies specific to the legal profession with emphasis on historical, comparative and interdisciplinary research. - Broad theoretical considerations to research design including indigenous knowledge systems. Africanisation and decolonisation. - Citations, referencing and ethics. - Research proposal development						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			1	Lectures p.w.			
			0	Practicals p.w.			
			1	Tutorials p.w.			

Other teaching modes that does not require time-table			
Assessment Module type	Continuous Assessment (CA)	Method of Student Assessment	Continuous assessment by means of a portfolio 100% (includes a final research proposal).

Faculty	Law		Home Department			Public Law and Jurisprudence	
Module Name	South African Bill of Rights 431		Module Code			SAB431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Explain, discuss and apply the scope and content of the various rights in the South African Bill of Rights • Explain, discuss and apply the limitations clause and constitutional remedies • Identify fundamental rights based violations in the light of social transformation • Formulate an argument based on research						
Main Content	• Deeper understanding of fundamental rights in the constitution and the manner in which these rights can be employed to address societal inequities and injustices • Transformative constitutionalism • The ways in which law intersect with politics and its implications for social justice • The influence of globalisation and digitalisation in relation to fundamental rights.						
Pre-requisite	CON202		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			2	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			

Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Private Law	
Module Name	Law of Sale and Lease 431		Module Code			SAL431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)			Total Learning Time	100 hours	
Duration	Semester		Proposed Semester			Second Semester	

Main Learning Outcomes	On completion of this module, students should be able to:				
	• Distinguish between the contract of sale and lease from other specific contracts; • Explain the common law principles of contracts of sale and lease and the cases pertaining thereto; • Describe and explain the <i>essentialia</i> of a contract of sale and lease; • Explain the <i>naturalia</i> of a contract of sale; • Identify and explain the remedies available to the parties to a contract of sale; • List and explain the rights and duties of the parties in a contract of lease; • Describe and explain the remedies of the parties in a contract of lease; • Analyse the impact of the Constitution of the Republic of South Africa, especially section 26 thereof, and legislation, especially the Prevention of Illegal Eviction From and Unlawful Occupation of Land Act, 19 of 1998, on the common law rights of a lessor to evict a tenant; • Evaluate the relationship between tenants and third parties and the role of the <i>huur gaat voor koop</i> principle; • Summarize and explain the impact of the Rental Housing Act, 50 of 1999 on the common law principles of lease; • Summarize cases and apply case law to problems; • Apply the knowledge gained above to solve practical problems; solve complex legal problems; and to write legal opinions; • Explore that the various law modules are inter-related and that rules and principles learnt in one discipline inform the rules, principles and conclusions in other disciplines				
	Main Content				
	Definition of a contract of sale; Essentialia of a sale; Duties of seller and buyer; Remedies of seller and buyer; Termination; Special sales; Definition of lease; Essentialia of a lease; Duties of lessor and lessee; Remedies of lessor and lessee; Relations with third parties; Termination of renewal; Effect of the Constitution of the Republic of South Africa and of other legislation, especially the Prevention of Illegal Eviction from and Unlawful Occupation of Land Act, 19 of 1998				
	Pre-requisite	CNT301	Prohibited module Combination		None
	Co-requisite	None			
	Timetable Requirement per week		2	Lectures p.w.	
			0	Practicals p.w.	
			0	Tutorials p.w.	
	Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%	
			FA	50%	

Faculty	Law		Home Department	Mercantile and Labour Law	
Module Name	Social Security Law 431		Module Code	SSL431	
Module Type	Elective	NQF Level	8	Year Level	4/5
Programmes in which the module will be offered		LLB (7162, 7172)		NQF Credit	10
Programmes in which the module will be offered				Total Learning Time	100 hours
Duration	Semester		Proposed Semester	First Semester	

Main Learning Outcomes	On completion of this module, students should be able to:			
	• Define, illustrate and explain the need for and context of the regulatory framework within which the right of access to social security is realised. • Demonstrate an understanding of the relationship between international law, statutory social security measures and Indigenous Social Security Systems. • Demonstrate detailed knowledge of selected statutory social security systems. • Critically analyse and assess current statutory social security schemes in the context of transformative constitutionalism and the changing world of work in the Fourth Industrial Revolution. • Advise clients on the requirements for each of the statutory social security schemes; apply the requirements to factual scenarios. • Demonstrate practical skills such as the ability to provide assistance to clients in completing application forms and lodging complaints, as well as numerical skills in determining the levels of certain benefits • Demonstrate an understanding of and ability to use the relevant methods, techniques and strategies involved in legal research and problem solving in theoretical and applied situations, in both individual as well as group context.			
Main Content	• Introduction to the concept of social security, the sources of social security law, the right of access to social security, and the administration and funding of social security; • Statutory social security schemes, including: Compensation for occupational injuries and diseases; unemployment insurance; social assistance; pensions and retirement funds • Indigenous Social Security Systems • Statutory social security schemes in the context of transformative constitutionalism • Statutory social security schemes in the context of the changing world of work in the Fourth Industrial Revolution.			
Pre-requisite	LAB321	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Public Law and Jurisprudence	
Module Name	Interpretation of Statutes 221		Module Code			STI221	
Module Type	Core	NQF Level	6	Year Level	2/3	NQF Credit	15
Programmes in which the module will be offered		LLB (7162, 7172), BA (Law) (7221), BCom (Law) (7211)			Total Learning Time	150 hours	
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Identify and apply the canons of statutory interpretation to find the						

	prevailing statute(s) in a case scenario and thereafter to determine the legal meaning and implications of the statute(s) in question. • Distinguish between grammatical, structural, purposive and teleological arguments. • Evaluate the sequential (linear) and the iterative (holistic) methods of integrating the basic argument types of modalities of interpretation. • Compare and contrast the basic theories of statutory interpretation in light of the demands of decolonization and transformative constitutionalism • Compile a legislative or drafting history of a statute and identify changes in the legal history of a statutory provision.						
Main Content	The nature and place of statutory law as a source of law under a transformative constitution in a post- colonial state when compared with customary forms of law (unwritten customary law and uncoded common law) • The legislative process and the commencement of statutes • Conflicts between statutes (repealed; inoperative, and prevailing statutory provisions) • The canons of grammatical, schematic, purposive and teleological interpretation • Basic theories of statutory interpretation dealing with the nature and role of statutory law under a transformative constitution in the postcolonial African state • Research skills (finding statutory law; describing a legal history; compiling a legislative or drafting history)						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			3	Lectures p.w.	2.25 p.w. for 13 weeks		
			0	Practicals p.w.	1.5 p.w. x 13 weeks		
			1	Tutorials p.w.	0.75 x 4		
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	50%
						FA	50%
Faculty	Law		Home Department			Private Law	
Module Name	Law of Succession 211		Module Code			SUC211	
Module Type	Core	NQF Level	6	Year Level	2/3	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Identify the basic principles of the South African law of succession; • Explain and evaluate the impact of constitutionalism and public policy on succession law; • Evaluate a set of given facts and be able to divide an intestate estate in accordance with the Intestate Succession Act, other legislative provisions, common law rules and legal precedent; • Analyse and apply the provisions of the Wills Act as supplemented by other legislative provisions and legal precedent, specifically those that						

	pertain to the execution, amendment, revocation and condonation of wills; • Apply the legal constructions and provisions frequently included in wills in relation to a set of facts in light of Africanisation; • Identify and apply the legal rules pertaining to succession by contract; • Identify and apply the legal rules pertaining to the interpretation and rectification of wills			
Main Content	• The general principles of the law of succession and the administration of deceased estates • Succession, public policy and constitutionalism • The law of intestate succession • The law of the estate succession: • Testamentary capacity and factors influencing free testamentary expression • The capacity to inherit • Testamentary execution and amendment formalities • The condonation of formally-irregular wills • The revocation of wills • The contents of wills in light of Africa and South Africa • The right to accrual • Election, joint and mutual wills and the massing of estates • Succession by contract • The interpretation and rectification of wills			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		1	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Private Law	
Module Name	Law of Property 211		Module Code			THI211	
Module Type	Core	NQF Level	6	Year Level	2/3	NQF Credit	15
Programmes in which the module will be offered		LLB (7162, 7172), BA (Law) (7221)				Total Learning Time	150 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to:						
	• Define and classify Things; • Define and distinguish the various kinds of real rights; • Understand and explain the acquisition, contents, protection and termination of various real rights; • Analyse the impact of the Constitution of the Republic of South Africa, particularly section 25 thereof, and applicable legislation, especially the Prevention of Illegal Eviction from and Unlawful Occupation of Land Act, 19 of 1998, Restitution of Land Rights Act 22 of 1994; • Summarise cases and apply case law to problems; • Apply the knowledge gained above to solve practical problems; solve complex legal problems; and to write legal opinions;						

	• Appreciate that the various law modules are inter-related and that rules and principles learnt in one discipline inform the rules, principles and conclusions in other disciplines as well as the influence of the Constitution on the Law of Property.			
Main Content	• Introduction to Things and their classification • Real rights • Ownership • Possession • Servitudes • Real security • Constitutional Property Law			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		3	Lectures p.w.	
		0	Practicals p.w.	
		1	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Private Law	
Module Name	Law of Trusts 431		Module Code			TRU431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Critically evaluate the basic principles of South African trust law. • Explain the development of South African trust law by the courts. • Analyse and apply the provisions of the Trust Property Control Act in light of the influence of the Constitution. • Analyse and evaluate the utility of the trust as an instrument of legal and commercial practice in a critical, coherent and well-reasoned manner by way of written argumentation. • Identify and analyse the challenges posed by the trust as an instrument of legal and commercial practice and engage these challenges in a critical, coherent and well-reasoned manner by way of written argumentation.						
Main Content	• General introduction • The historical origin of the trust and its reception into South African law • The creation of a trust • The amendment of trust provisions and the termination of a trust • The legal position of the trustee • The legal position of the trust beneficiary • Particular trust problems and challenges: ◦ The violation of the trust's core idea and going behind the trust form ◦ The sham trust and the alter ego trust ◦ The trust, public policy and constitutionalism						
Pre-requisite	SUC211 and CNT301				None		

Co-requisite	None	Prohibited module Combination		
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Tax Law 431		Module Code			TXL431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10
Programmes in which the module will be offered		LLB (7162, 7172)				Total Learning Time	100 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: - Describe and explain the general principles of income taxation - Demonstrate how to research and read an income tax case - Apply the principles of the General Deduction Formula of income tax - Solve a practical problem in the context of social transformation. - Interpret tax statutes, including interpretations from a transformative constitutionalism perspective. - Discuss the need for a decolonised income taxation suitable for this global, digitalised economy.						
Main Content	The module focuses on: - The introduction, history and theory of tax; - Interpretation of statutes, - Definition of gross income; - The general deduction formula; specific inclusions and deductions; - Taxation of: individuals, insolvency and death, trusts, companies/close corporations, donation tax, tax avoiders; and - The future of taxation in a digital environment						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			2	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	50%
						FA	50%

Faculty	Law		Home Department			Private Law	
Module Name	Law of Unjustified Enrichment 431		Module Code			UNJ431	
Module Type	Elective	NQF Level	8	Year Level	4/5	NQF Credit	10

Programmes in which the module will be offered		LLB (7162, 7172)		Total Learning Time	100 hours
Duration	Semester	Proposed Semester		First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Appraise the fundamental concepts from the law of obligations which impact on the Law of Unjustified Enrichment; • Demonstrate a full understanding and application of legal principles in the context of social transformation; • Explain and evaluate the impact of constitutionalism and public policy on the Law of Unjustified Enrichment; • Construct, articulate and defend a legal opinion/argument independently or in a group; • Analyse case law and legal literature • Recognise that the various law modules are interrelated and that rules and principles learnt in one discipline inform the rules, principles and conclusions in other discipline.				
Main Content	• The enrichment idea and its historical development • General requirements for liability and the general enrichment action • The <i>condictiones</i> and their requirements • Enrichment liability of persons who have limited capacity • The action of the <i>negotiorum gestor</i> • Enrichment by improvements to property • Enrichment by work done or services rendered • The Law of Unjustified Enrichment, the Constitution and public policy				
Pre-requisite	CNT301 and DEL201	Prohibited module Combination		None	
Co-requisite	None				
Timetable Requirement per week		2	Lectures p.w.		
		0	Practicals p.w.		
		0	Tutorials p.w.		
Other teaching modes that does not require time-table					
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment		CA	50%
				FA	50%

Faculty	Law		Home Department			Private Law	
Module Name	Welfare Law 321		Module Code			WEL321	
Module Type	Core	NQF Level	7	Year Level	3/4	NQF Credit	10
Programmes in which the module will be offered		BSW (8411) (8560)			Total Learning Time		100 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: Demonstrate familiarity with and comprehension of the legal and policy environment affecting social inclusion, HIV/Aids, child and youth well-being, and family well-being						
Main Content	• Introduction to the South African legal system and an overview of the principal legislation directly administered by the Department of Social Development; laws relating to the non-profit sector and the delivery of welfare services. • Social inclusion: Legislation and policy related to the aged; constitutional interpretation of 'family' in South Africa; social assistance; legal issues related to mental health and substance abuse; equality and						

	social inclusion in specific areas such as disability and sexual orientation. • HIV/Aids: Constitutional issues; child-headed households; consent to testing and treatment. • Child and youth well-being: Children's constitutional rights; the Children's Act 38 of 2005 and the Children's Court; forms of alternative care (adoption, foster care, residential care); the Hague Convention on International Child Abduction and the Hague Convention on International Child Adoption; trafficking of children; corporal punishment. • Family well-being: Maintenance laws; domestic violence laws; legislation affecting the social work profession relating to divorce proceedings; rights of fathers of children born out of wedlock; family courts; sexual offences against women and children and evidentiary issues in sexual offences cases.			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

HIGHER CERTIFICATE IN FORENSIC EXAMINATION

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Administrative Law 113		Module Code			ADL113	
Module Type	Core	NQF Level	5	Year Level	1	NQF Credit	20
Programme in which the module will be offered	HCert (Forensic Examination) (7115)					Total Learning Time	200 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: - Describe and explain the principles of Administrative Justice as contained in section 33 of the Constitution. - Distinguish between review and appeal. - Explain the principle of legality. - Explore the grounds of a Judicial Review.						
Main Content	- The principle of legality; the distinction between review and appeal; - The requirements of section 33 of the Constitution; - The validity of Administrative Action: - Judicial Review; - The grounds of Judicial Review; - The Promotion of Administrative Justice Act; - Locus Standi.						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			1	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	50%
						FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Criminal Law 112		Module Code			CRI112	
Module Type	Core	NQF Level	5	Year Level	1	NQF Credit	20
Programme in which the module will be offered		HCert (Forensic Examination) (7115)			Total Learning Time		200 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: - Describe and explain the elementary aspects of Criminal Law - Identify and discuss the elements of various crimes.						
Main Content	- The general elements of criminal liability; - Inchoate crimes; - Participation, Strict and Vicarious Liability; - Specific crimes: Fraud, Forgery and Uttering, Theft, Receiving stolen property - Unauthorized borrowing; - Corruption, Money Laundering.						

Pre-requisite	None	Prohibited module Combination		None	
Co-requisite	None				
Timetable Requirement per week		1	Lectures p.w.		
		0	Practicals p.w.		
		0	Tutorials p.w.		
Other teaching modes that does not require time-table					
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%	
			FA	50%	

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Law of Evidence 122		Module Code			EVI122	
Module Type	Core	NQF Level	5	Year Level	1	NQF Credit	20
Programme in which the module will be offered		HCert (Forensic Examination) (7115)				Total Learning Time	200 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: - Describe and explain the principles and procedures relating to the gathering of evidence. - Explain and apply the different rules of evidence and the presentation of evidence. - Explain the rules governing compellability of witnesses and judicial discretion.						
Main Content	- The quantum of evidence - Real and documentary evidence - General rules of admissibility - Hearsay rule - Parole evidence rule - Evidence of character - Right against self-incrimination - Spousal Privilege - Judicial Notice.						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			1	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment		CA		50%
					FA		50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Internal Auditing 124		Module Code			INT124	
Module Type	Core	NQF Level	5	Year Level	1	NQF Credit	20
Programme in which the module will be offered		HCert (Forensic Examination) (7115)			Total Learning Time		200 hours
Duration	Semester		Proposed Semester			Second Semester	

Main Learning Outcomes	On completion of this module, students should be able to: • Explain the differences between internal and external auditors; • Describe the organization of the Institute of Internal Auditors, the IIA Code of Ethics; • Illustrate the manner in which an internal audit is conducted; • Interpret Risks and Enterprise Risk Management; • Describe the detection of fraud and irregularities; • Discuss Internal Controls.			
Main Content	• The role and function of the Internal Auditor. • The organization of the profession, the code of Ethics, • The analysis of business processes; • The principles of drafting, risk analysis, compliance and substantive tests of business processes.			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		1	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Investigation of Crime 123		Module Code			INV123	
Module Type	Core	NQF Level	5	Year Level	1	NQF Credit	20
Programme in which the module will be offered		HCert (Forensic Examination) (7115)			Total Learning Time		200 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Analyse the international Conventions and local legislation passed to counter corruption. • Identify the operation of the anti-corruption compliance methods contained in legislation. • Apply loss-recovery techniques provided for in legislation. • Explain information-gathering techniques available from interviews with suspects. • Evaluate the global and local anti-corruption initiatives as well as loss-recovery methods.						
Main Content	• The relevant provisions of international Anti-Corruption Conventions such as the UN Convention against Corruption and the OECD Anti-Bribery Convention; • The SA asset forfeiture legislation such as The Prevention of Organised Crime Act; • The Financial Intelligence Centre Act and the Prevention and Combating of Corrupt Activities Act • Best practice in fraud prevention and deception detection; • Provisions of local and global anti-corruption legislation; • Loss-recovery techniques available in legislation;						

	• Techniques to obtain information.			
Pre-requisite	None	Prohibited module Combination	None	
Co-requisite	None			
Timetable Requirement per week		1	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Labour Law 112		Module Code			LAB112	
Module Type	Core	NQF Level	5	Year Level	1	NQF Credit	20
Programme in which the module will be offered		HCert (Forensic Examination) (7115)			Total Learning Time		200 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Evaluate the operation of the Employment contract. • List the duties of the parties to the Employment Contract. • Identify the grounds for dismissal. • Describe unfair labour practices. • Explain the key features of the Protected Disclosures Act.						
Main Content	• The duties of the parties to the Employment Contract; • The grounds of dismissal; • Specific acts of misconduct; • Unfair labour practices; • The provisions of the Labour Relations Act; • The Protected Disclosures Act.						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			1	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment		CA		50%
					FA		50%

ADVANCED DIPLOMA IN LABOUR LAW

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Introduction to Law 611		Module Code			LAB611	
Module Type	Core	NQF Level	7	Year Level	1	NQF Credit	15
Programme in which the module will be offered		AdvDip (Labour Law) (7311)			Total Learning Time		150 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Distinguish between law and other norm setting mechanisms in society. • Identify sources and branches of South African law. • Explain the operation of judicial precedent. • Find, access, read and reference cases from various sources. • Read and offer a basic interpretation of legislation and the Constitution using appropriate academic and professional discourse. • Demonstrate a knowledge of and explain the Constitutional right to fair labour practices and the related objective of social justice. • Demonstrate the ability to conduct basic legal research using a range of sources and techniques and to be able to manage the information. • Articulate the outcomes of legal decisions in selected cases.						
Main Content	• Law and related concepts • International Law • The pre-democratic relationship between different legal systems in South Africa and how these legal systems influenced the forms and institutions of law in South Africa • Private and Public Law • History, sources (primary and secondary) and branches of South African law • The impact of the Constitution on the forms, substance and institutions of law • Hierarchy, procedure, and jurisdiction of the courts. • Theories of social change: revolutions, negotiated transitions, transformative constitutionalism and law in the global economy • Separation of powers • The impact of the Constitution on basic methodologies of law • Basic numeracy skills						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			2	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
• Lectures take place on Saturdays • Lecturers and academic support available for consultations, in person and/or online							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	50%
						FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Basic Legal Skills 612		Module Code			LAB612	
Module Type	Core	NQF Level	7	Year Level	1	NQF Credit	15
Programme in which the module will be offered		AdvDip (Labour Law) (7311)				Total Learning Time	150 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Demonstrate effective note-taking skills and the application of study methods enabling an understanding of law studies in the context of Africanisation. • Apply basic information technology skills in finding law sources and developing information literacy skills. • Describe the structure of statutes, case law and unwritten customs as well as demonstrate the ability to find, read, summarise and explain these legal texts. • Solve legal problems by applying primary and secondary legal sources using effective communication skills through essay writing. • Effectively develop legal arguments and writing legal essays while applying referencing techniques, recognising academic integrity and ethical considerations. • Demonstrate effective use of legal concepts through verbal communication. • Execute basic numerical calculations in the context of law.						
Main Content	• Basic research skills and research methodologies in law • The basic genres and skills of legal writing (legal opinions; letters of demand; heads of argument); • Basic skills for effective study in law (note taking; time management; plagiarism; essay writing); • Information technology skills • Finding and reading case law precedents, statutes and living customs • Numeracy skills						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			2	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
• Lectures take place on Saturdays • Lecturers and academic support available for consultations, in person and/or online							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	50%
						FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Basic Principles of Labour Law 613		Module Code			LAB613	
Module Type	Core	NQF Level	7	Year Level	1	NQF Credit	15
Programme in which the module will be offered		AdvDip (Labour Law) (7311)				Total Learning Time	150 hours
Duration	Semester		Proposed Semester			First Semester	

Main Learning Outcomes	On completion of this module, students should be able to: • Understand the principles of Labour Law in South Africa and its operation in practice. • Demonstrate that they are familiar with the primary sources of information on labour law in South Africa. • Understand the manners in which the Constitution transforms labour law. • Analyse and comment upon the law as it stands at present. • Assess and comment on possible future changes or controversial issues arising in the area of labour law. • Understand different ways in which conditions of employment are negotiated and in which labour disputes are resolved. • Evaluate resource material (evidentiary material, case law and academic commentary) to determine its relevance to particular labour law issues. • Arrange legal principles, case law and academic commentary to support a coherent and persuasive argument in response to particular labour law problems • Communicate, deliberate and work effectively in the course of group work.			
Main Content	• The historical development of labour law in South Africa. • Different sources of South African labour law and their relationship to each other • The concept of social justice and its relationship to labour rights • The SA Constitution and labour law • Unfair labour practices, unfair dismissals, and non-standard employment. • Labour law and the 4th Industrial Revolution. • Collective Bargaining and industrial action • Dispute Resolution			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
• Lectures take place on Saturdays • Lecturers and academic support available for consultations, in person and/or online				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Collective Labour Law 614		Module Code			LAB614	
Module Type	Core	NQF Level	7	Year Level	1	NQF Credit	15
Programme in which the module will be offered		AdvDip (Labour Law) (7311)				Total Learning Time	150 hours
Duration	Semester		Proposed Semester			First Semester	

Main Learning Outcomes	On completion of this module, students should be able to:			
	• Explain the principles of collective labour law in South Africa and its operation in practice. • Discuss the changing nature of work and its impact on collective labour law. • Apply and justify the statutory provisions applicable to business transfers. • Evaluate resource material (evidentiary material, case law and academic commentary) to determine its relevance to particular labour law issues.			
Main Content	• Collective bargaining law • Industrial action • Dispute resolution • Consultation and worker participation • Organisational Rights • New forms of work • Transfer of a business as a going concern and issues arising there from • Negotiating theories			
Pre-requisite	None	Prohibited module Combination	None	
Co-requisite	None			
Timetable Requirement per week	2		Lectures p.w.	
	0		Practicals p.w.	
	0		Tutorials p.w.	
Other teaching modes that does not require time-table				
• Lectures take place on Saturdays • Lecturers and academic support available for consultations, in person and/or online				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department				Mercantile and Labour Law	
Module Name	Individual Labour Law 615		Module Code				LAB615	
Module Type	Core	NQF Level	7	Year Level	1	NQF Credit	15	
Programme in which the module will be offered		AdvDip (Labour Law) (7311)				Total Learning Time	150 hours	
Duration	Semester		Proposed Semester			Second Semester		
Main Learning Outcomes	On completion of this module, students should be able to: • Explain and apply the principles and theories relevant to existing labour law when evaluating cases of unfair dismissals and unfair labour practices. • Explain the role of the common law in relation to the law of dismissal in South Africa. • Justify the concept of automatically unfair dismissals as provided for in South African labour law. • Identify and analyze appropriate remedies in the event of an unfair dismissal and/or an unfair labour practice. • Explain and apply the legal principles applicable to non-standard forms of work.							
Main Content	• The role of the common law in relation to the law of dismissal in South Africa							

	- Unfair dismissals in relation to misconduct and incapacity: (a) Substantive and procedural fairness in dismissals for misconduct and incapacity (b) Remedies for unfair dismissals and limits on compensation - Dismissals due to operational requirements - Automatically unfair dismissals - Scope of automatically unfair dismissals - The meaning and the scope of unfair labour practices - Remedies for unfair labour practices - Non-standard employment				
Pre-requisite	None	Prohibited module Combination		None	
Co-requisite	None				
Timetable Requirement per week		2	Lectures p.w.		
		0	Practicals p.w.		
		0	Tutorials p.w.		
Other teaching modes that does not require time-table					
- Lectures take place on Saturdays - Lecturers and academic support available for consultations, in person and/or online					
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%	
			FA	50%	

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Dispute Resolution 616			Module Code		LAB616	
Module Type	Core	NQF Level	7	Year Level	1	NQF Credit	15
Programme in which the module will be offered		AdvDip (Labour Law) (7311)			Total Learning Time		150 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Demonstrate appropriate knowledge of different sources of conflict and its dynamics within the workplace. • Apply appropriate skills required for prevention, management and resolution of different forms of workplace conflict. • Evaluate and compare formal and non-formal conflict and dispute resolution processes. • Identify and apply the dispute resolution processes to be followed in particular labour disputes.						
Main Content	• Statutory dispute resolution institutions and rules and procedures in South Africa: a. Commission for Conciliation, Mediation and Arbitration (CCMA); b. Bargaining Councils c. Labour Court • Dispute resolution processes in South African labour law • Sources of workplace conflict within a legal, economic and social context • Preventing, managing and resolving workplace conflicts • Statutory and non-statutory dispute resolution processes e.g. conciliation; arbitration; adjudication						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						

Timetable Requirement per week	2	Lectures p.w.		
	0	Practicals p.w.		
	0	Tutorials p.w.		
Other teaching modes that does not require time-table				
- Lectures take place on Saturdays - Lecturers and academic support available for consultations, in person and/or online				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department				Mercantile and Labour Law	
Module Name	Workplace Equality and Discrimination 617		Module Code				LAB617	
Module Type	Core	NQF Level	7	Year Level	1	NQF Credit	15	
Programme in which the module will be offered		AdvDip (Labour Law) (7311)				Total Learning Time	150 hours	
Duration	Semester		Proposed Semester			Second Semester		
Main Learning Outcomes	On completion of this module, students should be able to: - Explain and apply the concept of substantive equality as enshrined in the South African Constitution, within the context of the workplace. - Apply the relevant provisions of the Employment Equity Act (EEA) relating to: - discrimination - income inequality - affirmative action - statutory defences to claims of unfair discrimination							
Main Content	- Substantive Equality: - Defining substantive equality; - The difference between formal and substantive equality; - Interpretation by the courts - Discrimination on listed and unlisted grounds: - Direct and indirect discrimination; - Fair and unfair discrimination; - Sexual Harassment; - Discrimination on the grounds of race, gender, religion and cultural beliefs, HIV status; - The burden of proof in discrimination claims - Affirmative Action: - The relationship between substantive equality and affirmative action; - The duties of designated employers; - Employment Equity plans - Defenses against claims of discrimination: - Affirmative action in accordance with the EEA; - Inherent requirements of the job - Income Inequality: - Income differentials; - The role of the Employment Conditions Commission - Employment Equity: Aligning workplace policies and practices							
Pre-requisite	None		Prohibited module Combination			None		
Co-requisite	None							

Timetable Requirement per week	2	Lectures p.w.		
	0	Practicals p.w.		
	0	Tutorials p.w.		
Other teaching modes that does not require time-table				
• Lectures take place on Saturdays • Lecturers and academic support available for consultations, in person and/or online				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Labour and Social Security Law 618		Module Code			LAB618	
Module Type	Core	NQF Level	7	Year Level	1	NQF Credit	15
Programme in which the module will be offered		AdvDip (Labour Law) (7311)				Total Learning Time	150 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to:						
	• Demonstrate a knowledge of different forms of social security and the link to labour rights. • Understand and analyse the fundamental legal concepts governing social security law and its practice in relation to the workplace. • Display detailed knowledge of selected statutory social security provisions and how these are applied and enforced in the workplace.						
Main Content	• The concept of social security • Compensation for occupational injuries and diseases • Unemployment Insurance • Health and safety at the workplace • Pensions and retirement funds • Social assistance						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			2	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
• Lectures take place on Saturdays • Lecturers and academic support available for consultations, in person and/or online							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	50%
						FA	50%

POSTGRADUATE MODULE DESCRIPTORS

Faculty	Law		Home Department			Dullah Omar Institute for Constitutional Law, Governance and Human Rights	
Module Name	Administrative Law 711		Module Code			ADL711	
Module Type	Core	NQF Level	8	Year Level	1	NQF Credit	30
Programme in which the module will be offered		PGDip (Public Law) (7711)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Discuss the main principles of administrative law; • Evaluate administrative powers and jurisdiction; • Analyze administrative action as per the Promotion of Administrative Justice Act; • Apply the requirements for valid administrative actions to practical scenarios						
Main Content	• Foundations of administrative law; • Promotion of Administrative Justice Act; • Administrative powers and jurisdiction; • Administrative action; • Control over administrative action; • Requirements for valid administrative action; • Standing and procedure in administrative law litigation; • Remedies						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			2	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	50%
						FA	50%

Faculty	Law		Home Department			Dullah Omar Institute for Constitutional Law, Governance and Human Rights	
Module Name	Constitutional Law 713		Module Code			CLL713	
Module Type	Core	NQF Level	8	Year Level	1	NQF Credit	30
Programme in which the module will be offered		PGDip (Public Law) (7711)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to:						
	• Articulate the values underlying the Constitution with reference to its historical background. • Evaluate the basic constitutional principles. • Interpret the Constitution in hypothetical scenarios						

	• Articulate and evaluate the structure of government and the relation between the different organs of state, as well as the different spheres of government and their powers • Evaluate the scope, content and limitation of the rights in the Bill of Rights • Compare and evaluate the South African constitution within its comparative and international context.			
Main Content	• Constitutional values and principles; • Constitutional history; • Constitutional interpretation; • Bill of Rights • Federalism; • Separation of powers			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Dullah Omar Institute for Constitutional Law, Governance and Human Rights	
Module Name	Criminal Justice Systems and Human Rights in Africa 711		Module Code			CRJ711	
Module Type	Elective	NQF Level	8	Year Level	1	NQF Credit	30
Programme in which the module will be offered		PGDip (Public Law) (7711)			Total Learning Time		300 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Critically evaluate the intersection between criminal justice system operations and human rights in the Africa region, paying particular attention to the rights to liberty, a free and fair trial, and to be free from torture. • Analyse the aims and objectives of criminalisation, and how these relate to the reality of implementation • Articulate and evaluate the socio-economic and wider impact of criminal justice processes on suspects, victims and witnesses. • Critically examine the impact and value of laws target behaviour in a public space. • Critically explain the linkages between informal justice processes and formal criminal justice processes in the Africa region • Assess and analyse data on criminal justice system processes.						
Main Content	• Comparative overview of criminal justice processes and agencies in the African region.						

	• International, regional and comparative domestic standards concerning criminal justice and criminalisation. • Domestic law, case law and research findings concerning the right to a free and fair trial and the right to be free from torture. • Overview of examples and trends in intersections of formal and informal criminal justice • Criminal justice standards and good practice examples during emergencies, disasters and unusual circumstances. • Methods of analysis of criminal justice system data. • Case studies on criminal justice and human rights intersections with reference to vulnerable groups (e.g., poor and marginalised, women, children, etc.) and unusual circumstances (e.g. states of emergency and disaster).			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Public Law and Jurisprudence – in coordination with the Global Environmental Law Centre	
Module Name	Advanced Environmental Law 711		Module Code			ENL711	
Module Type	Core	NQF Level	8	Year Level	1	NQF Credit	30
Programme in which the module will be offered		PGDip (Environmental Law and Management) (7712, 7713)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			First Semesters	
Main Learning Outcomes	On completion of this module students should be able to: • Identify and critically discuss the main rules and procedures of South African Environmental Law • Identify and critically discuss the main principles of South African Environmental Law • Critically discuss the meaning of “environment” as underpinned in the National Environmental Management Act 107 of 1998 • Critically analyse the Constitutional Environmental Right in the context of the Bill of Rights and in the context of the National Environmental Management Act 107 of 1998 • Evaluate the ‘rule of law’ as it pertains to environmental law • Identify and analyse environmentally related problems in law and apply the relevant legal rule or principle to solve the problem • Critically evaluate the purpose, scope and function of sectoral environmental laws • Apply the findings of case law to real life (practical) environmental problems						

Main Content	• Foundations, core principles and rules of South African Environmental Law • Constitutional Environmental right in the context of the Bill of Rights and Framework Environmental Legislation • Constitution of the Republic of South Africa, 1996 (particularly Chapter 2 The Bill of Rights, Chapter 3 Cooperative Government and Schedule 4 Functional Areas of Concurrent National and Provincial Legislative Competence, and Schedule 5 Functional Areas of Exclusive Provincial Legislative Competence) • Framework Environmental Legislation: National Environmental Management Act 107 of 1998 • Sectoral Environmental Legislation pertaining to waste management, water management, biodiversity, air quality, mining and energy. • Environmental Conservation Act 73 of 1989 • Foundational and recent case law related to the environment in South Africa.				
	Pre-requisite	None	Prohibited module Combination		None
	Co-requisite	None			
	Timetable Requirement per week		2	Lectures p.w.	
			0	Practicals p.w.	
			0	Tutorials p.w.	
	Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%	
			FA	50%	

Faculty	Law		Home Department			Public Law and Jurisprudence – in coordination with the Global Environmental Law Centre	
Module Name	Environmental Governance 712		Module Code			ENL712	
Module Type	Core	NQF Level	8	Year Level	1	NQF Credit	30
Programme in which the module will be offered		PGDip (Environmental Law and Management) (7712, 7713)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			First Semesters	
Main Learning Outcomes	On completion of this module students should be able to: • Critically discuss the nature, scope and function of environmental governance • Critically analyse the rules, theories and foundations of environmental governance in South Africa • Evaluate the Constitution and enabling legal framework for Environmental Governance in South Africa • Critically evaluate the distribution of power between the national, provincial and local government for environmental governance and related matters – particularly in relation to current debates on decentralization, federalism and intergovernmental relations • Critically analyse the role and function of key government departments and institutional role players including the judiciary in environmental governance						

	• Apply the knowledge gained in the module to practical situations and problem scenarios			
Main Content	• The nature, scope and function of environmental governance in South Africa • Environmental governance rules, theories, principles and foundations in South Africa • The distribution of power between the national, provincial and local government for environmental governance and related matters • An overview of key government departments and institutional role players, including the judiciary in environmental governance • The law and policy framework relevant for environmental governance in South Africa • Intergovernmental relations and the principles of good governance and cooperative governance • Current debates on decentralization, federalism and intergovernmental relations • Constitution of the Republic of South Africa, 1996 (particularly Chapter 2 The Bill of Rights, Chapter 3 Cooperative Government, Chapter 7 Local Government, Chapter 8 Courts and Administration of Justice, and Schedule 4 Functional Areas of Concurrent National and Provincial Legislative Competence, and Schedule 5 Functional Areas of Exclusive Provincial Legislative, Competence) • Intergovernmental Framework Relations Act 13 of 2005			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Public Law and Jurisprudence – in coordination with the Global Environmental Law Centre	
Module Name	Environmental Administrative Law 713		Module Code			ENL713	
Module Type	Core	NQF Level	8	Year Level	1	NQF Credit	30
Programme in which the module will be offered		PGDip (Environmental Law and Management) (7712, 7713)			Total Learning Time		300 hours
Duration	Semester		Proposed Semester			Second Semesters	
Main Learning Outcomes	On completion of this module students should be able to: • Critically discuss and apply the main principles, rules and procedures of Administrative Law to the Environmental Law context • Evaluate the administrative powers and jurisdiction of public/governing authorities • Analyse just administrative action as per the relevant South African Law and Policy Framework						

	- Analyse the right of access to information as per the relevant South African Law and Policy Framework Apply the requirements for valid administrative action to practical scenarios related to environmental management and governance - Critically discuss and evaluate the remedies available for infringement of the administrative law rules, procedures and principles as they apply to the context of environmental management and governance - Apply the knowledge gained in the module to practical situations and problem scenarios			
Main Content	- Foundations, core principles and rules of Administrative Law – also as it relates to public decision making in the environmental context - Constitution of the Republic of South Africa, 1996 (particularly the environmental right, the right to access to information and just administrative action in the Bill of Rights) - South Africa's law and policy relevant to Administrative Law and Administrative Law in the Environmental Context - The nature and scope of administrative action - Requirements for valid administrative action - Administrative powers and responsibilities of government institutions - Control over administrative action - Standing and procedure in administrative law litigation - Remedies – administrative appeal and liability for damages - Foundational and recent case law related to administrative and environmental matters.			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Public Law and Jurisprudence – in coordination with the Global Environmental Law Centre	
Module Name	Environmental Management 714		Module Code			ENL714	
Module Type	Core	NQF Level	8	Year Level	1	NQF Credit	30
Programme in which the module will be offered		PGDip (Environmental Law and Management) (7712, 7713)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			Second Semesters	
Main Learning Outcomes	On completion of this module students should be able to: • Critically discuss the principles of environmental management and consider their link to environmental governance • Critically discuss the principle of integrated environmental management • Critically discuss the rationale behind an Environmental Impact Assessment, Strategic Environmental Assessment, and the so called						

	Project Lifecycle approach and identify the distinguishing features of these			
	• Critically discuss the function of Environmental Implementation Plans, Environmental Management Plans and Environmental Management Frameworks and identify the distinguishing features of these • Relate the Environmental Impact Assessment phases to the operational, closure and decommissioning phases of the project life cycle • Evaluate the significance of public participation in environmental management • Apply the knowledge gained in the module to practical situations and problem scenarios			
Main Content	• Principles of Environmental Management and Integrated Environmental Management • Environmental Management Programmes, Environmental Management Frameworks, Environmental Implementation Plans • Project Life Cycle • Environmental Impact Assessment • Strategic Environmental Assessment • Public participation • National Environmental Management Act 107 of 1998 • The relevant Environmental Impact assessment Regulations • Environmental Conservation Act 73 of 1989 • Foundational and recent case law related to environmental impact assessment and general environmental management, including amongst others.			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law			Home Department		Mercantile Law	
Module Name	Concepts in Fintech Law 711			Module Code		FTL711	
Module Type	Core	NQF Level	8	Year Level	1	NQF Credit	30
Programme in which the module will be offered			PGDip (Fintech Law and Regulation) (7702, 7703)			Total Learning Time	300 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module students should be able to:						
	• Display a good understanding and appreciation of the concepts central to fintech payments including fintech, digital financial services, financial technologies, artificial intelligence, Blockchain, Cryptography, digital signatures, encryption, cryptocurrency etc • Identify and differentiate between the concepts of payment, money, legal tender and currencies • Conceptualise the business of a bank and the shadow banking system						

	• Apply the knowledge gained in the module to practical situations and problem scenarios.				
Main Content	• Introduction to the 4th Industrial Revolution • Introduction to fintech, digital financial services, financial technologies, • Introduction to Blockchain, distributed ledger technology and cryptography, digital signatures, encryption, cryptocurrency • Blockchain and the Law: Regulation of Cryptoassets and mobile money • Introduction to Artificial Intelligence: AI and payments, international remittances • Appraisal of Artificial Intelligence and its impact on fintech and the regulation of money and payments • Overview of the concept of money, currency and legal tender • Virtual currencies, the birth of cryptocurrencies and central, bank digital currencies • The business of a bank and “shadow banks”				
Pre-requisite	None	Prohibited module	None		
Co-requisite	None	Combination			
Timetable Requirement per week	2		Lectures p.w.		
	0		Practicals p.w.		
	0		Tutorials p.w.		
Other teaching modes that does not require time-table					
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment	CA	50%
				FA	50%
Faculty					
Law		Home Department		Mercantile Law	
Module Name		Banking and Financial Regulation 712		Module Code	
FTL712		Module Type		Core	
NQF Level		8		Year Level	
1		NQF Credit		30	
Programme in which the module will be offered		PGDip (Fintech Law and Regulation) (7702, 7703)		Total Learning Time	
300 hours		Duration		Semester	
Proposed Semester		First Semester		Main Learning Outcomes	
On completion of this module students should be able to: • Critically discuss the theories and principles of banking and financial regulation and the need for financial supervision • Understand and evaluate the legislation, rules, principles and foundations of banking and financial regulation in South Africa and selected other African jurisdictions • Analyse the role and function of key regulators in banking and financial regulation: in South Africa and selected African jurisdictions • Critically evaluate the current debates on global banking and financial regulation and emerging technologies • Conceptualise the challenges of regulating emerging forms of money and the shadow banking system • Understand the complexities of the regulation of virtual currencies and the birth of cryptocurrencies and central bank digital currencies • Evaluate the impact of mobile money on financial inclusion in Africa • Apply the knowledge gained in the module to practical situations and problem scenarios.					

Main Content	• The legislation, rules, principles and foundations of banking and financial regulation in South Africa and selected other African jurisdictions • Regulation and supervision distinguished • Distinction between Principle or rules-based regulation • Banking and financial regulation relevant to fintech • An overview of key regulators and global and local role players in financial market regulation • Challenges of regulating emerging forms of money and the shadow banking system • Virtual currencies, the birth of cryptocurrencies and central bank digital currencies. • Mobile Money and financial inclusion				
	Pre-requisite	None	Prohibited module Combination		None
	Co-requisite	None			
	Timetable Requirement per week		2	Lectures p.w.	
			0	Practicals p.w.	
			0	Tutorials p.w.	
	Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%	
			FA	50%	

Faculty	Law		Home Department			Mercantile Law	
Module Name	Fintech Payment Regulation 713		Module Code			FTL713	
Module Type	Core	NQF Level	8	Year Level	1	NQF Credit	30
Programme in which the module will be offered	PGDip (Fintech Law and Regulation) (7702, 7703)			Total Learning Time		300 hours	
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module students should be able to: • Distinguish between payment systems regulation and oversight. • Critically discuss and evaluate the meaning and legal nature of emerging fintech payments such as international remittances and mobile money, cryptocurrencies and central bank digital currencies. • Understand and evaluate the relevant payments legislation, rules and principles applicable to fintech payments in South Africa and selected other African jurisdictions. • Critically evaluate the current policy, legal and regulatory issues of fintech payments, such as payment system-related issues, systemic risk and financial stability issues, monetary policy considerations, issuance of fintech payments, payments to third parties, data privacy and protection, hacking and cybersecurity issues and consumer protection etc. • Understand the regulatory challenges relating to regulating emerging payment systems and service providers, including the impact on price stability, the smooth operation of payment systems, the stability of the financial system and the exclusive right of the central bank to issue base money or fiat currency. • Conceptualise and evaluate the legal and operational risks relating to fintech payments.						

	• Apply the knowledge gained in the module to practical situations and problem scenarios.			
Main Content	• The distinction between payments regulation and oversight • Analysis and application of the legal nature of “money, payment and currency” to emerging fintech payments. • Analysis of the relevant payment systems legislation, rules and principles in South Africa and selected other African jurisdictions. • Systemic payment system issues and other regulatory and policy issues relating to fintech payments. • Regulatory risks and challenges pertaining to emerging fintech payments. • Practical scenarios and application of principles to fintech payments.			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Mercantile Law	
Module Name	Trade-offs in Fintech Regulation 714		Module Code			FTL714	
Module Type	Core	NQF Level	8	Year Level	1	NQF Credit	30
Programme in which the module will be offered		PGDip (Fintech Law and Regulation) (7702, 7703)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module students should be able to: • Critically discuss the meaning and nature of financial inclusion and financial integrity • Analyse the relationship of financial inclusion and financial integrity with fintech and the implications of fintech for financial inclusion and financial integrity • Evaluate the" trade-off" of financial inclusion and financial integrity and the legislative environment in South Africa and selected other African jurisdictions • Critically evaluate and discuss the alignment and tensions between privacy, financial inclusion and financial integrity • Critically evaluate the current debates on global regulation of anti-money laundering (AML) and combatting of the financing of terrorism (CFT) versus financial inclusion as a policy imperative • Analyse the role and function of key regulators, such as the Financial Action Task Force, central banks (prudential and market conduct regulators) and institutional role-players such as the Financial Intelligence Centre in South Africa, non-governmental legal advocacy groups etc. • Apply the knowledge gained in the module to practical situations and problem scenarios.						

Main Content	• The nature, meaning and function of financial inclusion and financial integrity as policy imperatives in South Africa • The legislation, rules, principles and foundations of financial inclusion and financial integrity in South Africa and selected other African jurisdictions • Financial integrity standards relevant to financial inclusion • The “trade-off” between financial inclusion and financial integrity pertaining to fintech • An overview of key regulators and global and local role players, in fintech, financial inclusion and financial integrity • The law and policy frameworks/trends relevant to financial inclusion, financial integrity and fintech for environmental governance in South Africa • An overview of the legislation and/or regulatory frameworks/trends in financial inclusion, financial integrity and fintech • Alignment and tensions between privacy, financial inclusion and financial integrity • An overview of International regulatory instruments such as the Financial Action Task Force (FATF) Forty Recommendations on Anti-Money Laundering and Eight Special Recommendations on the Combatting of the Financing of Terrorism, as well as related domestic legislation in South Africa and selected other African jurisdictions.				
	Pre-requisite	None	Prohibited module Combination		None
	Co-requisite	None			
	Timetable Requirement per week		2	Lectures p.w.	
			0	Practicals p.w.	
			0	Tutorials p.w.	
	Other teaching modes that does not require time-table				
	Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
				FA	50%

Faculty	Law		Home Department			Dullah Omar Institute for Constitutional Law, Governance and Human Rights	
Module Name	Multi-level Governance 714		Module Code			MLG714	
Module Type	Elective	NQF Level	8	Year Level	1	NQF Credit	30
Programme in which the module will be offered		PGDip (Public Law) (7711)			Total Learning Time		300 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Evaluate the constitution and enabling framework for multi-level government in South Africa. • Locate the South African system of provincial and local government within current international debates on decentralization, federalism and Intergovernmental relations • Articulate the legal framework for provincial governance • Compare and contrast the different sources of provincial government finance						

Main Content	• Distribution of power between the national, provincial and local government in selected countries, • The role of provincial and local government, • The constitutional framework and the political system, • Multi-level finance, • Intergovernmental relations and the principles of cooperative government			
	Pre-requisite	None	Prohibited module Combination	None
Co-requisite	None			
Timetable Requirement per week	2	Lectures p.w.		
	0	Practicals p.w.		
	0	Tutorials p.w.		
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Dullah Omar Institute for Constitutional Law, Governance and Human Rights	
Module Name	Local Government 712		Module Code			LGL712	
Module Type	Elective	NQF Level	8	Year Level	1	NQF Credit	30
Programme in which the module will be offered		PGDip (Public Law) (7711)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Articulate the constitution and enabling framework for local government in South Africa; • Identify strategies to integrate ethics and good governance into overall management and leadership culture within local government; • Locate the South African system of local government within current international debates on decentralization, federalism and the role of local government; • Elaborate on the legal framework for municipal governance; • Compare and contrast the different sources of local Government Finance						
Main Content	• Legal manifestation of local government in various jurisdictions, including South Africa • The history, politics and policy underlying the legal manifestation of local government in the international discourse on local and regional governments • Local government transformation • Institutions of local government (urban/rural) • Governance structures (municipal councils, municipal executives) • Local government authority (powers) • Municipal finance (revenue & expenditure)						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						

Timetable Requirement per week	2	Lectures p.w.		
	0	Practicals p.w.		
	0	Tutorials p.w.		
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Labour Law in Context 711		Module Code			PGL711	
Module Type	Core	NQF Level	8	Year Level	1	NQF Credit	30
Programme in which the module will be offered		PGDip (Labour Law) (7701)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Demonstrate an understanding of the sources and historical development of South African labour law • Analyse and apply the constitutional right to fair labour practices and the objectives of social justice • Demonstrate an understanding of and ability to apply the basic principles of legal interpretation, • Explain and critically engage with the framework, the key provisions and practical implications of the principal labour statutes • Critically analyse the various elements of the collective bargaining process, including industrial action, and demonstrate ability to engage with its practical requirements and, • Demonstrate knowledge of and ability to apply the statutory provisions applicable to business transfers						
Main Content	• The historical development of labour law in South Africa; • Fundamental principles of the contract of employment; • The constitutional framework of labour law and its statutory implementation with particular focus on the Labour Relations Act, the Basic Conditions of Employment Act and the Employment Equity Act • Basic principles of legal interpretation; • The right to engage in collective bargaining and its statutory regulation with particular focus on collective agreements, organizational rights and the right to strike; • Transfer of a business as a going concern and issues arising therefrom						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			0	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment		CA		50%
					FA		50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	The Right to Fair Labour Practices 712		Module Code			PGL712	
Module Type	Core	NQF Level	8	Year Level	1	NQF Credit	30
Programme in which the module will be offered		PGDip (Labour Law) (7701)			Total Learning Time		300 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: - Analyse fundamental legal concepts, principles and theories relevant to the dismissal of employees and the concept of unfair labour practices. - Demonstrate a basic knowledge of the content and effect of basic constitutional rights, and relevant international instruments, relating to the South African law applicable to fairness in the course and termination of employment. - Explain the role of common law in relation to dismissal in South African labour relations. - Explain and apply the provisions of South African labour legislation determining unfair labour practices and fairness in dismissal. - Identify, analyse, organize and critically evaluate information pertinent to determining the existence of unfair labour practices and the fairness of dismissal; and - Demonstrate an ability to apply to express the findings of research and/or the content of course work effectively and concisely in the form of written communication and/or oral persuasion.						
Main Content	- Introduction to aspects of common law, the Constitution and relevant international law applicable to dismissal and unfair labour practices; - What constitutes a dismissal; - The definition of an automatically unfair dismissal; - Substantive and procedural fairness in dismissal for misconduct; - Substantive and procedural fairness in dismissal based on incapacity; - Substantive and procedural fairness in dismissal based on the employer's operational requirements; - Dismissal in the context of the transfers of undertakings; - Remedies for unfair dismissal.						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			0	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	50%
						FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Labour Dispute Resolution 721		Module Code			PGL721	
Module Type	Core	NQF Level	8	Year Level	1	NQF Credits	30

Programme in which the module will be offered		PGDip (Labour Law) (7701)		Total Learning Time	300 hours
Duration	Semester	Proposed Semester		Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to:				
	• Demonstrate an understanding of conflict and its dynamics. • Critically analyse root causes of labour disputes and identify appropriate vehicles for dealing with such disputes. • Explain the principles, ethical values and objectives underlying different forms of disputes resolution and conflict transformation. • Critically evaluate and compare formal and informal processes of dispute resolution and conflict transformation. • Critically analyse the statutory labour dispute resolution processes in South Africa with reference to selected foreign jurisdictions and, • Demonstrate an understanding of skills necessary for preventing, managing, and resolving labour disputes.				
Main Content	• Labour disputes and their dynamics as manifestations of conflict; • Different forms off labour disputes, including disputes or right and interest, individual and collective disputes, and appropriate means of preventing or resolving them; • The statutory labour disputes resolution system in South Africa and its institutions, including the CCMA, bargaining councils, the Labour Court, the Labour Appeal Court and private dispute resolution; • Labour disputes resolution processes, including negotiation, mediation, arbitration and adjudication, and the applicable legal procedures; • Strengths and weakness of the labour disputes resolution system in South Africa in comparative perspective				
	Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None				
Timetable Requirement per week	0		Lectures p.w.		
	0		Practicals p.w.		
	0		Tutorials p.w.		
Other teaching modes that does not require time-table					
(Assignments, tasks and assessments will be submitted electronically)					
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA		50%
			FA		50%

Faculty	Law		Home Department				Mercantile and Labour Law	
Module Name	Advanced Dispute Resolution Procedure 722		Module Code				PGL722	
Module Type	Core	NQF Level	8	Year Level	1	NQF Credit	30	
Programme in which the module will be offered		PGDip (Labour Law) (7701)				Total Learning Time	300 hours	
Duration	Semester		Proposed Semester			First Semester		
Main Learning Outcomes	On completion of this module, students should be able to: • Demonstrate an understanding of the ethical issues underlying conciliation and arbitration, • Explain and apply the essential elements of conciliation process, • Demonstrate the ability to conduct and conclude conciliation proceedings.							

	• Explain and apply the legal and practical requirements applicable to arbitration proceedings, including con-arb, • Demonstrate the ability to conduct arbitration proceedings, including the application of the relevant principles of the law of evidence, • Demonstrate the ability to write rulings and awards, • Explain and apply the legal provisions applicable to the variation and rescission of awards, and • Demonstrate an understanding of the certification and enforcement of awards.			
Main Content	The nature and practical content of conciliation; • Con-arb; • Conducting arbitration proceedings • Legal and other forms of representation; • Duties and powers of arbitration; • Reviewable defects in arbitration proceedings; • The onus of proof and the admissibility of evidence; • Arbitration awards and their variation, rescission and review; • The certification and enforcement of awards			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		0	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
(Assignments, tasks and assessments will be submitted electronically)				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Dullah Omar Institute	
Module Name	Detention and Oversight 711		Module Code			PUB711	
Module Type	Elective	NQF Level	8	Year Level	1	NQF Credit	30
Programme in which the module will be offered		PGDip (Public Law) (7711)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Articulate and evaluate the requirements for lawful detention under international human rights law and domestic law in selected African countries. • Critically evaluate the different forms of detention in context and interpret the applicable requirements. • Compare and critique domestic and international requirements for and forms of detention oversight. • Assess and apply the methods of qualitative and quantitative measurement of detention and detention oversight against legal requirements. • Analyse and review the impact of detention in general and on particular vulnerable groups.						
Main Content	• Deprivation of liberty and oversight standards under international, regional and comparative domestic law.						

	• The legal and regulatory framework with reference to principal law, regulations, standing orders and case law on detention and oversight. • The international, regional and domestic structures and standards for detention monitoring with regard to general mandates (e.g., Parliament) and designated mandates (e.g., Judicial Inspectorate for Correctional Services). • Methods of measuring detention against applicable standards • Case studies on monitoring and oversight including lessons learnt during emergency and disaster situations.			
Pre-requisite	None	Prohibited module Combination	None	
Co-requisite	None			
Timetable Requirement per week	2	Lectures p.w.		
	0	Practicals p.w.		
	0	Tutorials p.w.		
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Advanced Income Tax Law 711		Module Code			TXL711	
Module Type	Core	NQF Level	8	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		PGDip (Tax Law) (7721, 7722)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module students should be able to: • Critically analyse and apply the legal concept of “gross income” and its constituent elements in South African income tax law; • Understand the concept of residence in income tax law and the meaning of “place of effective management” in this context, both for domestic income tax purposes and under international law; • Interpret and understand the rules governing source of income; • Compare and contrast the concept of ‘revenue’ and ‘capital’ as a basis for income tax and capital gains tax under the Income Tax Act; • Apply relevant legal principles and rules of South African income tax law to solve problems identified in a scenario, as well as demonstrate critical and creative thinking skills in the course of doing so.						
Main Content	The syllabus will consist of the following: • The principles applicable to the interpretation of fiscal statutes; • The impact of the Constitution and its values on interpretation of income tax statutes; • The meaning of gross income for resident and non-resident income taxpayers; • The determination of source of income; • The tax treatment of partnerships for income tax purposes; • The difference between capital and revenue income; • The income tax rules applicable to the taxation of cryptocurrency.						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						

Timetable Requirement per week	2	Lectures p.w.		
	0	Practicals p.w.		
	0	Tutorials p.w.		
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	International Tax Law 712		Module Code			TXL712	
Module Type	Core	NQF Level	8	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		PGDip (Tax Law) (7721, 7722)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Critically analyse and apply fundamental legal concepts, principles and theories applicable in international taxation law; • Understand the Organisation for Economic Cooperation and Development (OECD) model tax conventions and compare it with the taxation model applied in SA; • Interpret and elucidate the rules governing double tax agreements and international transactions in a South African income tax context; • Evaluate and analyse international transactions from a tax law perspective with reference to factual scenarios sketched, as well as apply relevant legal principles and rules of international tax law to solve problems identified in the scenario, as well as demonstrate critical and creative thinking skills in the course of doing so.						
Main Content	The syllabus will consist of the following: • Jurisdiction in respect of international transactions: the principles of source and residence; • The tax treatment of income derived by different types of taxpayers involved in international transactions; • The concept of an international headquarter company and relief from relevant provisions of the Income Tax Act; • The transaction of foreign currency amounts including the general and specific translation rules; • Double tax agreements and international transactions; • The impact of the Constitution and its values on principles of taxation.						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			2	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment		CA		50%
					FA		50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Tax Administration 713		Module Code			TXL713	
Module Type	Core	NQF Level	8	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		PGDip (Tax Law) (7721, 7722)			Total Learning Time		300 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module students should be able to: - Analyse and apply fundamental legal concepts, principles and rules applicable to tax administration under the Tax Administration Act 28 of 2011 (TAA), the Promotion of Administrative Justice Act of 2003 (PAJA) and the Constitution, 1996; - Explain the fundamental rights of taxpayers to just administrative action, privacy, property and access to courts during, inter alia, warranted and warrantless inspections, searches and seizures by SARS officials; - Interpret and elucidate the rules governing taxpayer appeals and objections against a tax assessment, including alternate dispute resolution procedures; - Critically evaluate and analyse a tax dispute between SARS and taxpayers as sketched in factual scenarios, identify and apply relevant legal principles and rules of tax administration to solve the dispute, as demonstrate appropriate use of critical and creative thinking skills						
Main Content	The syllabus will consist of a discussion and analysis of: - Provisions of the TAA, PAJA and the Constitution; - The meaning of various concepts used in the TAA including, but not limited to, tax Acts, assessment, objection, appeal, SARS official, search, seizure and inspection, and administration of a tax Act; - The inter-relationship between the TAA, PAJA and the Constitution; - The nature and extent of the right of taxpayers to just administrative action, to privacy, to property and to access courts and other tribunals and fora; - The purpose of tax administration generally and searches, seizures and inspections in particular as tools in tax administration; - The debt collection procedures provided for in the TAA and whether it violates taxpayers' rights to property; - The rules and procedures applicable to dispute resolution, including an objection, appeal, and ADR and whether there is effective protection of taxpayers' rights of access to justice; - The rules governing inspections, searches and seizures and whether they violate taxpayers' rights to privacy and/or property.						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			2	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	50%
						FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Estate Planning Law 714		Module Code			TXL714	
Module Type	Core	NQF Level	8	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		PGDip (Tax Law) (7721, 7722)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module students should be able to: • Know and understand in a critical way the concept of estate duty and its operation in South Africa's system of taxation; • Know and critically understand the meaning of an "estate" for estate duty purposes; • Explain the components of a deceased estate that are relevant to determining the dutiable amount of an estate; • Know the items of an estate exempted from estate duty and critically discuss how an estate planner can effectively utilise same for maximum tax efficiency; • Know and understand the difference between a trust mortis causa and an inter vivos trust; • Understand in a practical way the operation of different types of trusts and how they may be used effectively for estate planning purposes. • Apply critical and analytical thinking when using relevant legal principles and rules of South African estate duty and trust law to solve complex estate planning problems identified in a scenario;						
Main Content	The syllabus will consist of the following: • The role and function of an executor for estate duty purposes; • The legal persona of a deceased estate for estate duty purposes; • Impact of the Constitution on estate administration; • Various provisions in the Estate Duty Act; • Principles applicable to the computation of estate duty; • A comparison between different types of trusts in South Africa and their treatment for income tax purposes; • The use of trusts as a vehicle for estate planning						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			2	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	50%
						FA	50%

Faculty	Law		Home Department			Criminal Justice and Procedure	
Module Name	Anti-Corruption Law 811		Module Code			ACL811	
Module Type	Core	NQF Level	9	Year Level	1	NQF Credit	30
Programme in which the module will be offered		LLM (7801)			Total Learning Time		300 hours

Duration	Semester	Proposed Semester	First Semester	
Main Learning Outcomes	On completion of this module, students should be able to:			
	• Comprehend the national and international dimensions of the problem of corruption. • Understand corruption as a barrier to socio-economic development and the consolidation of a human rights culture in South Africa. • Recognise and assess obstacles to successful anti-corruption practices in both the public and private sector in South Africa. • Evaluate critically the use of law as an anti-corruption tool. • Understand the causes of and the possible solutions to the problem of enforcement deficit in anti-corruption strategies and tactics. • Demonstrate and apply the essential skills needed for the identification, prevention, investigation and prosecution of corruption in South Africa. • Comprehend critically the philosophical and jurisprudential foundations of anti-corruption law.			
Main Content	The module focuses on several topics germane to corruption and anti-corruption, including, but not limited to, the following:			
	• The meaning of corruption. • The extent of corruption in South Africa and internationally. • The forms of corruption. • The evolution of international and South African anti-corruption law. • The primary South African anti-corruption statutes and cases. • Preventing corruption in South Africa. • Prosecuting corruption in South Africa. • Anti-corruption collaboration and mutual legal assistance. • National and transnational asset recovery.			
Pre-requisite	None	Prohibited module Combination	None	
Co-requisite	None			
Timetable Requirement per week	3	Lectures p.w.		
	0	Practicals p.w.		
	0	Tutorials p.w.		
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department				Criminal Justice and Procedure	
Module Name	Anti-Money Laundering Law 811		Module Code				AML811	
Module Type	Core	NQF Level	9	Year Level	1	NQF Credit	30	
Programme in which the module will be offered		LLM (7801)				Total Learning Time	300 hours	
Duration	Semester		Proposed Semester			First Semester		
Main Learning Outcomes	On completion of this module, students should be able to:							
	• Identify and understand the typologies of money laundering in South Africa. • Analyse critically the socio-economic and political impact of money laundering in South Africa and internationally. • Comprehend the international anti-money laundering legal framework. • Understand the South African anti-money laundering legal framework.							

	• Evaluate critically the South African strategy and tactics to combat money laundering and terrorist financing. • Demonstrate and apply the essential skills needed to investigate and prosecute money laundering and to formulate anti-money laundering policy.			
Main Content	• The theory of money laundering. • Aims and objectives of money laundering and terrorist financing. • Stages of money laundering • The evolution of international and South African anti-money laundering and financing of terrorism law • The primary South African anti-money laundering statutes and cases. • The key South African institutions tasked with combating money laundering and terrorist financing • Investigation and prosecution of money laundering offences in South Africa • The confiscation and forfeiture of proceeds of crime nationally and transnationally			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		3	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Public Law and Jurisprudence	
Module Name	Comparative Constitutional Law 811		Module Code			CCL811	
Module Type	Core	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)			Total Learning Time		300 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Apply the methodology of comparative constitutional law. Critically analyse and compare constitutions with respect to: - The possibilities and limits of constitutions; - The different options of organizing government - Different models of rights; - The power of constitutional review; and - Mechanisms of constitutional reform						
Main Content	• The methodologies of comparative law • The relevance and limits of comparative constitutionalism • Constitutional principles in comparative perspective • Constitution making • Forms of government • Systems of government • Judicial appointment and judicial independence • Rights in comparative perspective						

	• Emergency powers • Constitutional review models • Constitutional reform • Internationalization of constitutional law			
Pre-requisite	None	Prohibited module Combination	None	
Co-requisite	None			
Timetable Requirement per week	2	Lectures p.w.		
	0	Practicals p.w.		
	0	Tutorials p.w.		
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Public Law and Jurisprudence	
Module Name	Constitutional Design in Divided Societies 811		Module Code			CDS811	
Module Type	Core/ Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)			Total Learning Time		300 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: General outcomes: • Evaluate how a constitution of a divided society can design state institutions to manage different communities without posing a threat to the political and territorial integrity of the state. Specific outcomes • Students will be able to demonstrate an in-depth knowledge of the different combinations of constitutional choices that are available to multi-ethnic states in their endeavour to regulate and manage divided societies. • Students will develop the capacity to analyse the various options, problems and challenges that constitution-makers face in reordering a state in a context of deeply polarised societies						
Main Content	The course entails an examination of: • The challenges of divided societies; • Bill of rights: The liberal response to the challenges of divided societies; • Constitutionalism; • Federalism in divided societies; • Territorial pluralism; • Powers and functions; • Electoral systems; • Representation; • The courts; • Language policy in divided societies; • Intra-substate minorities and dispersed communities; • Secession and partition as an institutional solution to divided societies; • The internationalisation of constitutional design for divided societies						

Pre-requisite	None	Prohibited module Combination		None	
Co-requisite	None				
Timetable Requirement per week		3	Lectures p.w.		
		0	Practicals p.w.		
		0	Tutorials p.w.		
Other teaching modes that does not require time-table					
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA		60%
			FA		40%

Faculty	Law		Home Department			Public Law and Jurisprudence	
Module Name	Constitutional Rights Interpretation 800		Module Code			CIN800	
Module Type	Core/ Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)			Total Learning Time		300 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: Have an understanding of and the ability to analyse concepts, principles and theories relating to: - the nature and challenges facing constitutional rights interpretation in young constitutional democracies; - the hermeneutic and political factors that impact on the interpretation of constitutional rights; - an approach to constitutional rights interpretation that is appropriate to the transformative agenda of a development state. - the ability to identify and solve problems relating to the interpretation of specific constitutional rights; - the ability to express the findings of their research in written communication and oral presentation.						
Main Content	Part I: Theories of constitutional rights interpretation - Political and institutional doctrines influencing the interpretation of constitutional texts (the separation of powers; the counter-majoritarian difficulty; popular constitutionalism). - Hermeneutic factors influencing the interpretation of constitutional texts (the nature of the constitution as text; the text related to its animating values, purposes and intentions; value-based theories of constitutional interpretation (section 39(1) (a) of the Constitution); alternative theories of constitutional interpretation (including textualism, originalism, legal-process and deconstruction). Part II: Resources of constitutional rights interpretation - Inter-legality and the use of international law in constitutional rights interpretation (section 39(1)(b) of the Constitution) - The use of foreign law in constitutional rights interpretation (section 39(1)(c) of the Constitution) Part III: Strategies of constitutional rights interpretation - Judicial activism and judicial deference - Reading-down, subsidiarity and the duty to align legislation with the Bill of Rights (section 39(2) of the Constitution)						

	• Severance, reading-in and the duty to remedy constitutional defects in legislation (section 172 of the Constitution)			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		3	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Public Law and Jurisprudence	
Module Name	Constitutional Law, Politics and Theory 811		Module Code			CIN811	
Module Type	Core/ Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Critically evaluate the concepts and ideas which are central to modern constitutions. • Express the findings of their research in written communication, offering an in-depth analysis of the topics covered						
Main Content	• The concept of the 'political' • The concept of the 'constitution' • Sovereignty • Constituent power • Democracy • Contemporary problems in constitutional theory, such as the city as constitutional concept and the right to the city; decolonial perspectives on the state and constitutionalism						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			0	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
Two block sessions or four lectures per term							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	50%
						FA	50%

Faculty	Law		Home Department			Dullah Omar Institute for Constitutional Law, Governance and Human Rights	
Module Name	Constitutional Law Practice 811		Module Code			CLL811	
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered	LLM (7801)					Total Learning Time	400 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: General outcomes: • Students will have acquired an understanding of how Constitutional Law is applied in practice. • An understanding and application of the relevant methods and techniques involved in legal research and problem solving in an applied situation. Specific outcomes: • Demonstrating an in-depth knowledge of the application of the Constitution in practice. • The ability to provide legal advice and opinions on the interpretation of the Constitution in practical situations encountered by institutions of democracy, displaying original and independent research skills. • Identifying and solving problems in the area of Constitutional Law by using critical and creative thinking skills. • Expressing the findings of their research effectively and concisely in the form of written opinions and oral communication to the institutions of democracy.						
Main Content	The module consists of practical research in the field of Constitutional Law as an intern at one of the institutions of democracy that deals with Constitutional Law on a daily or regular basis. • A student serves a research internship of 400 hours at an institution of democracy, which may include the National Assembly, the National Council of Provinces, the Western Cape Legislature, the South African Human Rights Commission, a High Court or other state institutions which in the opinion of the Head of the department of Academic Planning and Research deals extensively with Constitutional Law. • The aim of the course is to combine the theoretical teaching component of the course with the experience of research on the practical implementation of the Constitution. The practical experience will deepen a student's understanding of both the role of the Constitution in society and the praxis of its application. • The terms and conditions of the internship will be determined by the Departmental Head of Academic Planning and Research and approved by the Law Faculty Board. • The number of internships available is restricted and allocations will be made on merit in conjunction with the institutions involved.						
Pre-requisite	None		Prohibited module			None	
Co-requisite	None		Combination				

Timetable Requirement per week	0	Lectures p.w.		
	0	Practicals p.w.		
	0	Tutorials p.w.		
Other teaching modes that does not require time-table				
Reports: 50 hours				
Hours at institution of democracy: 336 hours				
Assessment Module Type	Continuous and Final Assessment (FA)	Method of Student Assessment	FA	100%

Faculty	Law		Home Department			Criminal Justice and Procedure	
Module Name	Constitutional Rights and Criminal Justice 812		Module Code			CLL812	
Module Type	Core	NQF Level	9	Year Level	1	NQF Credit	30
Programme in which the module will be offered		LLM (7801)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to:						
	General outcomes: • Have an understanding of, and the ability to analyse, fundamental legal concepts, principles of constitutional interpretation in the field of criminal justice. • An understanding and application of the relevant methods and techniques involved in legal research and problem solving in theoretical and applied situations. Specific outcomes: • Demonstrating an in-depth knowledge of the Bill of Rights and jurisprudence in the area of criminal justice; • Analysing, organising and critically evaluating case law on the application of the Bill of Rights in the area of criminal justice, displaying original and independent research skills; • Identifying and solving problems in the area of constitutional criminal justice by using critical and creative thinking skills; • Expressing the findings of their research/content of course work effectively and concisely in the form of written communication an oral persuasion. • This module examines the various aspects of criminal justice in a human rights regime as enshrined in the Bill of Rights; • The right to privacy and police powers of search and seizure; the right to freedom and security of the person and the police power of arrest and the use of force; • the rights of detainees, including the right of access to legal services; • the right to bail, the right to a fair trial, including the right against self in crimination, • and the right against cruel, inhuman and degrading punishment.						
Main Content	Please consult Department.						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						

Timetable Requirement per week		3	Lectures p.w.				
		0	Practicals p.w.				
		0	Tutorials p.w.				
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment		CA		50%
					FA		50%
Faculty	Law		Home Department			Dullah Omar Institute for Constitutional Law, Governance and Human Rights	
Module Name	Multi-level Governance 814		Module Code			CLL814	
Module Type	Core	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Have an understanding of, and ability to analyse, fundamental legal concepts, principles, theories and practices of intergovernmental relations in South Africa. • An understanding and application of the relevant methods, techniques and strategies involved in legal research and problem solving in theoretical and applied situations. Specific outcomes: • Demonstrating an in-depth knowledge of intergovernmental relations, both in theory and in practice. • Collecting, analysing, organising and critically evaluating information, displaying original and independent research skills. • Identifying and solving problems in the field of the dispersal of powers, the exercise of relative autonomy and the reach of supervisory powers. • Expressing the findings of their research/content of course work effectively and concisely in the form of written communication and oral persuasion.						
Main Content	• In a radical break from the unitary state of pre-1994, the Constitution of 1996 established a decentralized system of government, distributing state power between the national, provincial and local spheres of government. • The course entails an examination, firstly, of the allocation of powers between the national, provincial and local spheres of government, secondly, of the financing of the different spheres of government, thirdly, of the practice of intergovernmental relations and the principles of co-operative government, including the settlement of intergovernmental disputes, and fourthly, the supervision of provincial and local government by the national and provincial governments respectively. • The establishment of local government as a distinct sphere of government receives specific attention.						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						

Timetable Requirement per week		3		Lectures p.w.			
		0		Practicals p.w.			
		0		Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	60%
						FA	40%
Faculty	Law		Home Department			Public Law and Jurisprudence	
Module Name	Gender Equality and Women's Rights 815		Module Code			CLL815	
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to:						
	- Critically evaluate, apply and reflect on the fundamental legal concepts, theories and principles relating to substantive gender equality and women's rights. - Conduct legal research and problem solving in theoretical and applied situations and analysis from a gender perspective. Specific outcomes: - Reflect critically on International Human Rights Law relating to gender equality and women's rights. - Comment on how the African human rights system as it relates to gender equality and women's rights. - An understanding of selected topics relating to gender equality and women's rights in South African Law. - Displaying original and independent legal research skills. - Identifying and solving applied multifaceted legal problems in the field of gender equality and women's rights.						
Main Content	- In depth study of the various feminist traditions and histories and their influence on law, legal theory and women's rights. - In depth study of gender theory. - A thorough analysis of the development of substantive equality globally. - A study of the development of substantive equality jurisprudence in the South African context with a focus on gender equality. - A reflection on the history and implementation of women's rights in International Human Rights since 1945 including the Convention on the Elimination of All Forms of Discrimination Against Women. - A critical engagement with women's rights in Africa. - A study of contemporary problem pertaining to women's rights and gender equality, for example Gender Based Violence; Spatial justice; Women and the city; Democracy; Climate change.						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			4	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			

Other teaching modes that does not require time-table								
Two block sessions or four lectures per term								
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	50%	
						FA	50%	
Faculty	Law		Home Department			Private Law		
Module Name	Legal Pluralism 816		Module Code			CLL816		
Module Type	Core/ Elective	NQF Level	9	Year Level	1	NQF Credit		30
Programmes in which the module will be offered		LLM (7801), MPhil (7871), LLM (Legal Pluralism and Family Law) (7832)				Total Learning Time		300 hours
Duration	Semester		Proposed Semester			First Semester		
Main Learning Outcomes	On completion of this module, students should be able to:							
	• Demonstrate knowledge of key theories of legal pluralism by scholars in both the global South and global North. • Challenge the mainstream conceptualisation of African customary law or demonstrate an independent opinion on the meaning customary law. • Explain legal and cultural pluralism as products of legal history – that is conquest, colonisation, globalization, and adaptation. • Critique the relationship between indigenous laws and state laws in and beyond South Africa, and compare it with legal pluralism in the global South. • Convincingly link legal theories to practical ways in which the normative behaviour of people subject to indigenous laws adapt to socioeconomic changes, especially in marriage, succession, property, and contract. • Critically present the interaction of indigenous norms and state laws as a cultural struggle with theoretical significance for the future of legal pluralism in Africa. • Demonstrate and apply independent research and data collection skills effectively and concisely in assignments, examinations, seminar/class presentations, research papers, and dissertations.							
Main Content	The module is organised around seminars as follows:							
	• Historical and philosophical context of legal and cultural pluralism. • Overview of the impact of colonial rule on African political economies, with emphasis on the communal nature of indigenous norms and the individualistic nature of state human rights laws. • Major theories of legal pluralism with reference to diversity and cultural relativism as values and contradictions in South Africa's liberal Constitution. • Critique of the conceptualisation of African customary law, including legal identity in the context of people's adaptations to socioeconomic changes in Africa. • Major areas of dialogue between state laws and indigenous laws. • Decolonisation as myth and memory, with emphasis on the lived realities of law in contemporary modernity. • Constitution as customary law? Exploring the future of legal pluralism in Africa, with insights from legal history in the Global North. • Revision and oral presentation							
Pre-requisite	None		Prohibited module Combination			None		
Co-requisite	None							

Timetable Requirement per week	0	Lectures p.w.		
	0	Practicals p.w.		
	0	Tutorials p.w.		
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Dullah Omar Institute for Constitutional Law, Governance and Human Rights	
Module Name	Children's Rights 817		Module Code			CLL817	
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871), LLM (Legal Pluralism and Family Law) (7832)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: General outcomes: - Have acquired an understanding of, and ability to analyse, fundamental legal concepts, principles, theories and their relationship to children's rights. - Application of the relevant methods, techniques and strategies involved in legal research and problem solving in theoretical and applied situations. Specific outcomes: - Demonstrating a basic knowledge of the international institutions, conventions, regional instruments and related documents relevant to children's rights law. - Collecting, analysing, organising and critically evaluating information, displaying original and independent research skills. - Identifying and solving problems in the field of children's rights law focused on issues specific to the issues surrounding children in the African Context - Expressing the findings of their research/content of course work effectively and concisely in the form of written communication and oral persuasion.						
Main Content	Introduction to children's rights in historical context: - Introduction to International Law via the Convention on the Rights of the Child, implementation agencies, the Optional Protocols to the Convention, and General Comments of the Committee on the Rights of the Child: - The African Charter on the Rights and Welfare of the Child and regional implementation of children's rights - Other relevant international treaties in the children's rights sphere; - Children's constitutional rights in South Africa; - Socio- economic rights and Child Law; - Child justice in African context; - Child care and protection in legal context in Africa:						

	• Capita selecta of themes drawn from: children deprived of liberty, child soldiers, migrant and refugee children, child labour and ILO convention 182 concerning the worst forms of child labour, corporal punishment and the rights of the child, sexual abuse and child pornography, children's rights and customary law and practice, the best interests of the child standard in South African jurisprudence, and HIV Aids and children's			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		3	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Global Environmental Law Centre	
Module Name	Climate Law and Governance 818		Module Code			CLL818	
Module Type	Core/ Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)			Total Learning Time		300 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: - Comprehensively and systematically demonstrate knowledge relating to the contents, application and execution of climate science (phenomena and governance in the South African, regional, and International Environmental Law context. - Demonstrate a coherent understanding of legal concepts, principles, approaches, themes and legal and policy instruments generally used to address climate change, in the South African, regional, and International Environmental Law context. - Critically evaluate how international law and policy for climate change applies to South Africa. - Identify the domestic (South African), regional, and international role-players in climate governance and critically analyse the scope of their governance functions. - Evaluate and articulate the scope of the protection afforded by South Africa's Constitutional Environmental Right to the effects of climate change. - Identify and critically analyse the sectoral environmental legislation relevant to climate change and climate governance in South Africa. - Critically evaluate and discuss the nature and scope of 'climate rights' and their relation to 'climate justice'.						

	• Critically argue the potential of climate litigation as a key lever for keeping governments and corporations on task in the fight against climate change. • Critically discuss the outcomes of recent domestic and international court cases relevant to climate change and apply the principles/arguments underpinned in the case law to real life (practical) scenarios.			
Main Content	• Climate change as a scientific phenomenon – causes, effects and responses including concepts of mitigation and adaptation • Defining climate law and climate change governance in the international, regional, and South African contexts • The international and regional climate change legal regimes • The South African domestic law and policy framework relevant to climate change – including framework environmental legislation and sectoral (specific) environmental legislation • Key principles underpinned in climate change law and relevant to climate change governance • Actors involved in climate change governance in the international context • Actors involved in climate change governance in South Africa • Conceptualising climate rights and climate justice • Climate litigation – recent case law • Climate damages and liability			
Pre-requisite	IEL812	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Global Environmental Law Centre	
Module Name	Constitutional Law and Nature 819		Module Code			CLL819	
Module Type	Core/ Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)			Total Learning Time		300 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Evaluate the nature, scope and limitations of domestic and international law for enhancing the protection of human rights, the environment/nature and non-human animals including environmental, constitutional (customary) and animal law.						

	• Analyse and critically discuss the taxonomy of environmental constitutionalism and other legal approaches to protecting the environment and its components. • Understand Earth Jurisprudence, the field of animal law and non-anthropocentric approaches to governance and justice and provide specialist legal insight into how these are reflected in legal systems and efforts around the world. • Identify and critically evaluate the limitations and challenges of, and opportunities for environmental constitutionalism and other legal approaches to protecting the environment and its components. • Evaluate the scope of enforcement for environmental constitutionalism its components including human and non-human animals. • Critically identify and discuss key challenges and opportunities for adjudicating environmental constitutionalism and other legal approaches to protecting the environment and its components. • With a comparative perspective, consider and evaluate the current and potential application of the South African constitution and regulatory framework away from a purely anthropocentric approach, towards a stronger more 'nature focused' context. • Critically discuss the outcomes of recent domestic, foreign and international case law relevant to environmental constitutionalism and other legal approaches to protecting the environment and its components and apply the principles/arguments underpinned in the case law to real life (practical) scenarios
Main Content	• The nature, scope and limits of existing governance for enhancing the protection of the environment/nature, human and non-human animals including through domestic, foreign and international environmental and human rights law. • The taxonomy of environmental constitutionalism [and justice] – right holders, legal objects, substantive rights, procedural rights, state and corporate duties and liabilities. • Opportunities and challenges of environmental constitutionalism and other legal approaches to protecting the environment and its components. • Core concepts related to the environmental constitutionalism debate – including, “Anthropocentrism”, “Democracy”, “State Sovereignty”, “Rule of Law”, “Public Trust”, “Earth Jurisprudence”, “Rights of Nature”, “Animal Welfare”, “Animal Rights” “Intrinsic Worth / Value”, “Sentience”, among others. • Enforcing environmental constitutionalism and pursuing justice including through the use of different legal tools and environmental duties and responsibilities. Analysing challenges and opportunities in enforcement • Adjudicating environmental constitutionalism – legal standing, identifying the appropriate defendant, justiciability, the role of the courts, and the range of remedies • Comparative approaches with regard to legislating and litigating for humans, non-human animals and Nature, and constitutionalising Nature and/or Rights of Nature including examples from Bolivia, Ecuador, Columbia, New Zealand, Canada, Uganda, Ethiopia, Brazil, India

	• Interrogating the concept of justice and different types of justice including environmental justice, social justice, animal justice and others				
Pre-requisite	None	Prohibited module Combination		None	
Co-requisite	None				
Timetable Requirement per week		2	Lectures p.w.		
		0	Practicals p.w.		
		0	Tutorials p.w.		
Other teaching modes that does not require time-table					
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA		50%
			FA		50%

Faculty	Law		Home Department			Global Environmental Law Centre	
Module Name	Animal Law and Rights		Module Code			CLL821	
Module Type	Core/ Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programme in which the module will be offered		LLM (7801)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module students should be able to: • Critically evaluate the philosophical, ethical, scientific and legal foundations for rights, duties and obligations towards non-human animals and how these concepts relate to larger conversations concerning social justice including environmental and climate justice, gender justice, and in the context of personhood, • Critically evaluate African philosophical concepts such as 'ubuntu' and 'eco ubuntu' in relation to animal welfare, wellbeing, rights, and personhood • Analyze and critically discuss the philosophical foundations of animal rights from a western perspective • With a comparative perspective, critically evaluate key debates and legal and scientific theory for animal protection including animal welfare, wellbeing and rights • Critically discuss the history of the legal status of animals in general and in South Africa • Critically evaluate the current place of animals in the South African Constitution and the possibilities that exist for their protection and legal personhood, with a focus on key case law and jurisprudence • Identify and evaluate the main animal laws and policy (pertaining to wild, domesticated and otherwise) in South Africa (and globally/internationally) and their gaps and deficiencies in providing protection for animals • With a comparative perspective, critically question and debate the legal status and protection of animals in Africa, North and South America, Australia, Europe, and Asia • Engage with and debate the need for global regulation around animals and relevant international law for animals • Critically evaluate the relationship between protection for animals and human rights including the right to environment, among others						

Main Content	This module is divided into a number of topics, each of which focuses in depth and critically on a specific issue of importance of climate law and governance. The following topics are addressed:			
	• Current deficiencies in the legal system relating to animals and their protection • Core concepts related to animal law and rights, including 'welfare', 'well-being', 'animal rights', 'legal personhood', 'sentience', 'dignity', 'speciesism', 'animal law reform', 'animal justice', 'intrinsic value', 'welfarism', 'abolitionism' and 'new welfarism' • Key debates surrounding animal protection (including welfare, well-being and animal rights) • Philosophical, legal and scientific foundations for animal protection (including welfare, well-being and rights) • The taxonomy of South Africa's Constitution and animal laws and opportunities for legal reform • Comparative approaches for animal protection, welfare and rights in Africa, North and South America, European Union, Australia and Asia • Comparative movements including social justice, environmental justice, gender justice, rights of Nature and others • International law and animals • Advancing animal law reform including animal protection, animal welfare, animal well-being and animal rights in the courts			
	Pre-requisite	CLL819	Prohibited module Combination	None
	Co-requisite	None		
	Timetable Requirement per week			
			0	Lectures p.w.
			0	Practicals p.w.
			0	Tutorials p.w.
	Other teaching modes that does not require time-table			
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Corporate Governance and Remedies 811		Module Code			COR811	
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Explain, apply and critically analyse the fundamental legal concepts, theories and principles of corporate governance. • Identify the main role players in corporate governance and critically examine their roles in and contributions to good corporate governance. • Critically evaluate South African corporate governance regulation in comparison with international best practice. • Identify and evaluate shortcomings in the existing Corporate. • Governance legal framework in South Africa and propose possible solutions.						

	- Contextualise corporate governance within financial frameworks and corporate liability. - Identify and advise on applicable corporate remedies.						
Main Content	- Introduction and background to corporate governance and legal/regulatory compliance - Theories of Corporate Governance - Principles of good corporate governance, King Reports I, II, III and IV - Laws and regulations applicable to corporate governance - Role players in corporate governance - Comparative studies in corporate governance, Corporate Social Responsibility, Ethical Leadership and Corporate Criminal Liability - The link between corporate governance and financial regulation - A selection of corporate law remedies relevant to the company as a separate legal person, remedies available to stakeholders such as shareholders, creditors etc						
Pre-requisite	None	Prohibited module Combination		None			
Co-requisite	None						
Timetable Requirement per week		2	Lectures p.w.				
		0	Practicals p.w.				
		0	Tutorials p.w.				
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment		CA	50%	
					FA	50%	
Faculty	Law		Home Department		Mercantile and Labour Law		
Module Name	Corporate Financial Regulation 812		Module Code		COR812		
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)			Total Learning Time		300 hours
Duration	Semester		Proposed Semester		First Semester		
Main Learning Outcomes	On completion of this module, students should be able to: - Conceptualise and explain the new approach to financial regulation for business entities in South Africa in terms of the Companies Act 71 of 2008. - Critically analyse and interpret statutory principles pertaining to corporate decision-making by directors relating to corporate finance. - Interpret and apply the overarching principles of solvency and liquidity to corporate decision-making. - Display specialist knowledge of the legal framework regulating capital and financial markets - inclusive of stock exchanges and the participants. - Explain and advise on the application of the rules and accountability pertaining to public offering of company securities. - Interpret, apply and advise on the rules regulating the prevention of market abuse and ensuring investor protection. - Assess and compare South African law with legal principles from selected international best practice jurisdictions. - Analyse case studies and advise on relevant corporate law remedies						

Main Content	Corporate Finance and Financial Markets regulation:			
	• Introduction and background to Corporate Finance • Fundamental principles of corporate finance in SA and international corporate finance principles • Sources of Company Funding – Equity (share capital, authorized shares, issuing of shares etc) • Capital regulation under the Companies Act 2008 – the solvency and liquidity test • Financial Assistance for purchasing of shares, loans or other financial assistance to directors • Distributions and applicable principles • Company or subsidiary acquiring company's shares • Policy objectives and the public law nature of securities and financial markets regulation • Securities markets in South Africa and their approach to self- regulation • The legal framework for regulating local financial markets and involvement of participants • Public offerings; prospectus, transparency and disclosure obligations, liability for misstatements in a prospectus; regulation of secondary offerings • Market abuse (Insider trading, offences & defences) and investor protection • Comparative overview of selected International capital/financial markets and their regulation • Credit Rating Services regulation – registration of agencies; duties of such agencies; endorsement of external credit ratings; independence and liability of registered credit agencies			
	Pre-requisite	None	Prohibited module Combination	None
	Co-requisite	None		
	Timetable Requirement per week		2	Lectures p.w.
			0	Practicals p.w.
			0	Tutorials p.w.
	Other teaching modes that does not require time-table			
	Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA
FA				50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Corporate Insolvency Law 813			Module Code		COR813	
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)			Total Learning Time		300 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to:						
	• Conceptualise and analyse the options available to company management and the board of directors when a company enters the zone of insolvency. • Critically analyse the policy rationales for prevention of reckless or insolvent trading by South African companies.						

	• Articulate/explain the concept of business rescue as a response to corporate insolvency. • Display special knowledge of the legal framework regulating business rescue. • Analyse, interpret and apply relevant case law and statutory law principles to simulated problems and practical situations. • Appreciate the contemporary legal and socio-economic challenges arising from business rescue practice in South Africa such as those related to post-commencement finance, and suggest solutions. • Analyse and apply the legal principles and policy. • Considerations on liquidations and winding up of companies in SA. • Compare and contrast South African corporate solvency laws with selected international best practices.						
Main Content	Corporate Insolvency Law: • Introduction to important principles and policy rationales for ensuring corporate solvency • Responses to corporate insolvency – options available, e.g. corporate restructuring • Business Rescue – concept, practice and regulation • The legal framework for business rescue • Company resolution to commence business rescue • Court order to commence business rescue proceedings • Legal consequences of business rescue • Post commencement finance • Business Rescue Practitioner – qualifications; powers, duties & liability of the business rescue practitioner; remuneration of the practitioner; removal of the practitioner • Business rescue plan • Duration and termination of business rescue proceedings • Liquidation and Winding up of companies – principles and policy considerations • Cross-border issues which can arise when assets and liabilities of a company are located in various jurisdictions • International best practices on corporate solvency						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			2	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	50%
						FA	50%
Faculty	Law		Home Department			Private Law	
Module Name	Constitutional Property Law 811		Module Code			CPL811	
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programme in which the module will be offered		LLM (7801)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			First Semester	

Main Learning Outcomes	On completion of this module, students should be able to:							
	• Demonstrate a specialist knowledge of the meaning of 'property' for purposes of the section 25 of the Constitution. • Interpret the regulatory control of property in relation to various legal frameworks, including land use planning, mining law, environmental law, neighbor law and intellectual property. • Critically analyse jurisprudential and legislative developments pertaining to deprivations and expropriations. • Contextualise the control of property rights and interests in a relational manner, with due regard for other fundamental rights. • Identify regulatory interferences and impositions that are in contravention with constitutional standards, drawing on what is permissible in terms of the property clause. • Compose views and specialist analyses on the Expropriation Bill of 2020 and the possibility of allowing expropriation without compensation. • Propose alternative regulatory mechanisms, with reference to comparative work, that enhance a property system conducive to fundamental rights, and economic growth. • Design alternative strategies to what is proposed in the property clause, focusing on land reform.							
	Main Content							
	• The South African Bill of Rights relating to property rights and interests • The South African legal framework relating to the regulatory control of property rights and interests • Methodological and theoretical approaches to property within its systemic position • Property and its dynamic relationship with other constitutional rights							
	Pre-requisite		None		Prohibited module Combination		None	
	Co-requisite		None					
	Timetable Requirement per week		2		Lectures p.w.			
			0		Practicals p.w.			
			0		Tutorials p.w.			
	Other teaching modes that does not require time-table							
Assessment Module Type		Continuous and Final Assessment (CFA)		Method of Student Assessment		CA	50%	
						FA	50%	
Faculty		Law		Home Department		Private Law		
Module Name		Land Reform and Housing Law 812		Module Code		CPL812		
Module Type		Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programme in which the module will be offered			LLM (7801)			Total Learning Time		300 hours
Duration		Semester		Proposed Semester		First Semester		
Main Learning Outcomes		On completion of this module, students should be able to: • Demonstrate a specialist knowledge of the South African land reform programme. • Demonstrate a specialist knowledge of the constitutional right of access to adequate housing. • Interpret the regulatory control of land in relation to other rights, including human dignity and existing property rights.						

	• Critically analyse jurisprudential and legislative developments pertaining to land reform and housing. • Contextualise the control of land in a relational manner, with due regard for other fundamental rights. • Identify incoherent land reform policies and practices. • Compose views and specialist analyses on evictions from farmland and the urban sphere. • Propose alternative regulatory mechanisms, with reference to comparative work, that enhance a property system conducive to fundamental rights, and economic growth. • Design alternative strategies to what is proposed in the property clause, focusing on land reform and housing.			
Main Content	• The South African Bill of Rights relating to property rights and interests, land reform and housing • The South African legal framework relating to the regulatory control of property, specifically land (for land reform purposes) and housing • Methodological and theoretical approaches to land occupation within its systemic position • Comparative analysis of land reform and evictions			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week	2		Lectures p.w.	
	0		Practicals p.w.	
	0		Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department				Mercantile and Labour Law	
Module Name	Competition Law and Regulation 811		Module Code				CPT811	
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30	
Programmes in which the module will be offered		LLM (7801), MPhil (7871)				Total Learning Time	300 hours	
Duration	Semester		Proposed Semester			First Semester		
Main Learning Outcomes	On completion of this module, students should be able to: • Demonstrate specialist knowledge of the theoretical underpinnings of competition law. • Understand and assess the implications of the various competition theories. • Assess the role of competition policy. • Explain the relevance of competition economics. • Demonstrate specialist knowledge in the application of competition law principles and rules, including the provisions of the Competition Act, to practical scenarios. • Demonstrate specialist knowledge of the structures and institutions relevant to competition law and policy. • Analyse and articulate the relation between competition law and social justice in an African context.							

	• Demonstrate Show knowledge of and evaluate various competition systems (other countries and regions). • Illustrate the connections between competition law and other branches of the law (i.e information law, labour law and intellectual property law). • Prepare a research paper on a select area in competition law.			
Main Content	• Introduction to and theoretical underpinnings (i.e. Harvard and Chicago schools) of competition law • Competition economics and structures • Horizontal and vertical restrictive practices • Mergers and acquisitions • Abuse of dominance • Jurisdiction • The history and role of competition policy • The relationship between South Africa's competition policy and other national, regional and international objectives • Comparative overview of competition law and institutions in selected jurisdictions • Social justice and competition law in the South African and African contexts • The relationship between competition law and intellectual property law, information law, and labour law			
Pre-requisite	None	Prohibited module Combination	None	
Co-requisite	None			
Timetable Requirement per week	2	Lectures p.w.		
	0	Practicals p.w.		
	0	Tutorials p.w.		
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Competition Law and Work 812		Module Code			CPT812	
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)			Total Learning Time		300 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to:						
	• Demonstrate a sound understanding of the basic principles of competition law. • Identify and critically analyse the link between competition law and labour law, both in South Africa, and internationally. • Critically evaluate and apply competition law principles to labour law problems. • Comprehend the importance of the interaction between labour law and competition law as being vital in promoting a fair labour market. • Evaluate and repurpose competition law for labour market power regulation.						

	• Recognising the fact that competition law is not only applicable to undertakings but also to workers. • Critically analyse the effects of employer monopsony power in labour markets. • Articulate the need for growing the boundaries of the legal protection for labour. • Conceptualise the impact that “platform work” may have on workers’ rights, identify possible anti-competitive behaviour and suggest solutions. • Explain the countervailing market power of workers and how it may be utilised. • Demonstrate the possibilities of monopsony power in digital markets. • Understand the new concept of worker. • Distinguish between employees and the self-employed. • Critically analyse the challenges regarding collective bargaining by self-employed workers. • Critically comment on the debate on whether employers can utilise their market power to reduce workers’ wages or working conditions below competitive levels. • Interrogate and assess the implementation of South Africa’s transformative Competition Law agenda in the area of labour law. • Evaluate the extent to which competition law can be applied to promote a fair labour market that especially works for historically disadvantaged persons. • Locate the role of the competition authorities, in particular, the Competition Commission, in ensuring labour input markets. • Illustrate the role of the Competition Commission in addressing monopsony power. • Display an understanding as to why cases involving monopsony power have been few and far between, not only locally, but internationally. • Indicate mergers that can lead to increased buyer power on the labour demand side. • Interpret, apply and advise clients on competition regulation, labour, and the rights of employees both from the South African and international contexts.
Main Content	• General principles of competition law • Basic economic principles (i.e. supply and demand, market power) • An overview of market structures (competitive markets, monopolies, monopolistic markets, monopsonies) • The enforcement of competition law (including institutional frameworks and penalties) • Defining workers in the contemporary context • The changing nature of work • Labour rights • The scope of competition regulation in labour law (an assessment of the relevant provisions in the Competition Act 89 of 1998) • Tensions between labour law and competition law • Competition law, labour law and transformation • Mergers and acquisitions • Monopsony power • Labour agreements in the competitive context Digitisation, competition and labour

	• Comparative law on competitive labour markets			
Pre-requisite	None	Prohibited module Combination	None	
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department				Mercantile and Labour Law	
Module Name	Mergers and Acquisitions 813		Module Code				CPT813	
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30	
Programmes in which the module will be offered		LLM (7801), MPhil (7871)				Total Learning Time	300 hours	
Duration	Semester		Proposed Semester				Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Conceptualise and analyse amalgamations or mergers of companies as fundamental transactions, and to explain the underpinning policies for such fundamental transactions; • Analyse, interpret and apply the legal framework and legal principles applicable to mergers and acquisitions in South Africa, including the impact of the Companies Act 71 of 2008, Chapter 3 of the Competition Act 89 of 1998 and international trends on the evolving mergers and acquisitions legal regime in South Africa. • Apply and explain the statutory merger procedure in terms of South African law (the Companies Act 2008 and the Competition Act) and to demonstrate an appreciation of the consequences of a merger. • Apply and explain take over regulation in South Africa – that is, the Takeover Regulations, their applicability to affected transactions and the role of the Takeover Regulation Panel as established by the Companies Act 71 of 2008. • Apply and advise on the remedies available to shareholders who are affected by fundamental transactions. • Apply specialist knowledge to case studies and advise on applicable solutions and remedies, taking into consideration the demands of transformative constitutionalism and the impact of mergers and acquisitions on society.							
Main Content	Mergers and Acquisitions Law: • Introduction to Fundamental Transactions in general • Amalgamation or merger – the concept, underpinning policy and international trends • Types of merger structures • Juridical nature and effect of a merger • The statutory merger procedure under the Companies Act 71 of 2008 • The statutory merger procedure under Chapter 3 of the Competition Act 89 of 1998 and the role of the competition authorities.							

	• Protection of key stakeholders and remedies available to especially shareholders and creditors in the merger process or procedure • Takeovers and offers, takeover regulations, the affected transactions and the role of the Takeover Regulation Panel			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week	2	Lectures p.w.		
	0	Practicals p.w.		
	0	Tutorials p.w.		
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Competition and Information Law 814		Module Code			CPT814	
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Understand the dynamic function of a modern economy and critically evaluate the role of information technology and competition in such economy. • Explain, apply and critically analyse the fundamental legal concepts, theories and principles of information law. • Conceptualise and advise on the key areas of information law in the digital age. • Display specialized knowledge of the connection between information law and competition law. • Critically evaluate competition in the digital economy. • Apply the relevant research methods, techniques and strategies involved in legal research and problem solving in theoretical and applied situations relating to competition in the digital economy. (case study analysis). • Interpret, apply and advise clients about the South African and international rules applicable to both business and law due to the advent of the internet and the information age in general.						
Main Content	Information Law • Consumer protection online • Privacy and data protection • Startup law • Internet human rights • Computer crime and evidence • Digital entertainment law • Trade in digital services • Intellectual property on the internet • Jurisdiction on the internet • Digital Taxation						

	• Artificial intelligence • Electronic contracts Competition and the internet • Competition law in the digital economy • Technological approaches to competition enforcement in digital markets • Comparative analysis of competition regulation in the digital economy						
Pre-requisite	None		Prohibited module Combination		None		
Co-requisite	None						
Timetable Requirement per week			2	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment		CA	50%	
					FA	50%	
Faculty	Law		Home Department		Mercantile and Labour Law		
Module Name	Disability Law and the Workplace 812		Module Code		DLP812		
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)			Total Learning Time	300 hours	
Duration	Semester		Proposed Semester		First Semester		
Main Learning Outcomes	On completion of this module, students should be able to: • Demonstrate a specialist knowledge of the international legal framework relating to disability rights in the workplace. • Interpret and critically analyse international law, specifically Article 27 of the United Nations Convention on the Rights of Persons with Disabilities (Work and Employment), to determine the rights of persons with disabilities in the workplace. • Demonstrate a sound knowledge of the South African legal framework relating to the rights of persons with disabilities in the workplace. • Critically analyse the provisions of the Employment Equity Act 55 of 1998 and the impact it has had on the advancement of persons with disabilities in the workplace. • Contextualise the Decent Work Agenda for persons with disabilities in South Africa. • Identify shortcomings in the existing legal framework in South Africa relating to the employment of persons with disabilities and propose possible solutions.						
Main Content	• The international law framework relating to persons with disabilities in the workplace • The South African legal framework relating to the rights of persons with disabilities in the workplace • Socio-economic factors impacting the employment of persons with disabilities in South Africa • The role of Supported Employment Enterprises in providing skills development opportunities to persons with disabilities in South Africa						

	• The content and implementation of the Decent Work Agenda Obstacles to the employment of persons with disabilities in South Africa and potential solutions to these obstacles			
Pre-requisite	None	Prohibited module Combination	None	
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Dispute Resolution 811		Module Code			DPR811	
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)			Total Learning Time		300 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Demonstrate an understanding of conflict and its dynamics. • Critically analyse and understand disputes in their various contexts. • Explain the meaning, principles and objectives of alternative dispute resolution. • Demonstrate an understanding of alternative dispute resolution processes in South Africa and selected foreign jurisdictions. • Compare legal and alternative processes for dispute resolution and conflict transformation. • Identify and critically analyse root causes of conflict and identify the appropriate vehicle for dealing with conflict. • Demonstrate skills necessary for preventing, managing, and resolving disputes and transforming conflict, and • Demonstrate primary research skills.						
Main Content	Providing theoretical understanding of disputes and their dynamics: • Disputes as manifestations of conflicts • Origins of disputes causes of disputes and their aggravation or mitigation approaches to dealing with disputes • Alternative Dispute Resolution (ADR) processes and skills: Negotiation; mediation; arbitration • Other forms of alternative dispute resolution • The SA Truth and Reconciliation Commission and related institutions • Restorative justice						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			3	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			

Other teaching modes that does not require time-table								
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	60%	
						FA	40%	
Faculty	Law		Home Department			Mercantile and Labour Law		
Module Name	The Extension of Social Protection 811		Module Code			ESP811		
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30	
Programmes in which the module will be offered		LLM (7801), MPhil (7871)				Total Learning Time	300 hours	
Duration	Semester		Proposed Semester			Second Semester		
Main Learning Outcomes	On completion of this module, students should be able to: • Demonstrate an understanding of, and ability to analyse the legal concepts, principles and theories, such as, the International Labour Organisation's 'Decent Work Agenda', relevant to the need to locate employment and labour rights within a broader complex of social processes and objectives; • Demonstrate an understanding of, and ability to apply the relevant methods, techniques and strategies involved in legal research and problem solving in theoretical and applied situations. • Demonstrate an understanding of the current deficit in social protection in South Africa in the context of the Fourth Industrial Revolution; • Demonstrate an understanding of the linkages between labour law, social security law and other branches of law as instruments to secure the well-being of (vulnerable) workers; • Collect, analyse, organise and critically evaluate relevant information, displaying original and independent research skills; • Express the findings of research and/or the content of course work effectively and concisely in the form of written communication and oral persuasion. • Demonstrate an understanding of the role played by Indigenous Social Security Systems in the extension of social protection;							
Main Content	• Introduction to theories about the nature and function of social protection; • The role of the International Labour Organisation in creating a framework of international labour and social security standards; • The existing legal framework for promoting social protection: the relevant constitutional provisions; legislation and statutory instruments giving effect to those provisions; the role of collective bargaining and the common law (including case law); • The extension of the scope and effectiveness of social security schemes in the context of the Fourth Industrial Revolution; • The protection of vulnerable groups, such as migrant workers and their families; and workers in the informal economy; • The implications of pursuing the International Labour Organisation's Decent Work Agenda in South Africa.							
Pre-requisite	None		Prohibited module Combination			None		
Co-requisite	None							

Timetable Requirement per week		2		Lectures p.w.			
		0		Practicals p.w.			
		0		Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment		CA		50%
					FA		50%
Faculty		Law		Home Department		Private Law	
Module Name		International Family Law 811		Module Code		FAM811	
Module Type	Core/ Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871), LLM (Legal Pluralism and Family Law) (7832)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester		First Semester		
Main Learning Outcomes	On completion of this module, students should be able to: • Understand the effects of globalization upon family law systems. • Demonstrate critical reflection about the relationship between law, and family structure and protection of the right to family life. • Demonstrate an understanding of the dynamics of asset division, the use of the family trust, and other financial devices utilised in the international family law arena. • Demonstrate skill in critiquing and advanced thinking about law and the family in the globalised world. • Develop insights into the law in action/ sociology of law, and research skills necessary to conduct legal research and problem solving in theoretical and applied situations related to international family law.						
Main Content	Historical development of family law reforms since 1900 in international context Theorizing family law Capita selecta including: • Relocation • Family property in global context • Dispute resolution in family matters global context, including choice of law related issues • The law pertaining to the civil aspects of international child abduction • Intercountry adoption • International recovery of maintenance/support • International family law practice • Regional family law systems with the European reforms as an example.						
Pre-requisite	None		Prohibited module Combination		None		
Co-requisite	CLL817						
Timetable Requirement per week			3		Lectures p.w.		
			0		Practicals p.w.		
			0		Tutorials p.w.		
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment		CA		50%
					FA		50%

Faculty	Law		Home Department			Criminal Justice and Procedure	
Module Name	International Anti-Corruption Law 812		Module Code			IAL812	
Module Type	Core	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Appreciate the significance of corruption as an aspect of the international crisis of criminality. • Understand the role of corruption as a barrier to socio-economic development. • Understand corruption as an obstacle to the development of a human rights culture; Recognize obstacles to successful anti-corruption practices in both the public and private sector. • Develop insights into the requirements of practicable anti-corruption strategies and tactics. • Appreciate the importance of the law and legal expertise as anti-corruption tools. • Develop some of the legal skills needed to design and establish programmes for the identification, prevention, investigation and prosecution of corruption. • Articulate an appreciation of the philosophical and jurisprudential dimensions of anti-corruption law.						
Main Content	• The module focuses on several topics germane to International Anti-Corruption law, including, inter alia, the following: • The meaning and scope of corruption • The historical evolution of International Anti-Corruption Law • Exegesis of International and Regional Anti-Corruption instruments • Jurisdictional issues • Victims of corruption • Whistleblowers • Bribery of foreign state officials • Corporate criminal liability • International co-operation • Extradition • Confiscation and seizure • Asset recovery						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			3	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	40%
						FA	60%

Faculty	Law		Home Department			Global Environmental Law Centre	
Module Name	International Environmental Law 811		Module Code			IEL811	
Module Type	Core/ Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)			Total Learning Time		300 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	Upon completion of this module, students will have mastered the following knowledge, skills and values (references to IEL include regional law wherever applicable, appropriate and/or necessary): • Evaluate what constitutes the 'environment' in the international context. • Critically discuss origins, nature, ethics and functions of International Environmental Law; • Identify the sources (including principles and norms) of International Environmental Law and critically discuss its relation to the South African context; • Critically evaluate the subjects and major general institutions in International Environmental Law; • Demonstrate specialist knowledge of the various International Environmental Law treaty and regimes particularly dealt with in the module – for example the IEL regimes relevant for Biodiversity Conservation, Waste Management, Law of the Sea, Wildlife Trafficking, Climate Change, etc..						
Main Content	The module focuses on the International Law, as well the regional law of the Southern African Development Community, pertaining to the environment from the perspective of South African law. The overall purpose of the module is the understanding of the application of the international and regional policies and legal norms in the South African domestic law. Where applicable, comparative references to the policies and laws of the national member states to the SADC treaty as well as other states outside the region are made. The module covers the following topics: • The nature and role of International Environmental Law; the sources of International Environmental Law; international environmental institutions; international environmental NGOs; and the position of International Environmental Law in South African law; • The regional Environmental Law of the African Union and SADC treaty regime and protocols and their application in South African law; • The principal international environmental treaty/conventional regimes relevant for Biodiversity Conservation, Waste Management, Law of the Sea, Wildlife Trafficking, Climate Change, etc. • International trade and development law and the environment.						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	ENV431 or equivalent						
Timetable Requirement per week			2	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			

Other teaching modes that does not require time-table									
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	50%		
						FA	50%		
Faculty	Law		Home Department			Global Environmental Law Centre			
Module Name	Advanced Environmental Law 812		Module Code			IEL812			
Module Type	Core/ Elective	NQF Level	9	Year Level	1	NQF Credit		30	
Programmes in which the module will be offered		LLM (7801), MPhil (7871)				Total Learning Time		300 hours	
Duration	Semester		Proposed Semester			First Semester			
Main Learning Outcomes	On completion of this module, students should be able to: • Critically evaluate what constitutes the “environment” in general; • Identify and critique the ethical duties that human beings have with regard to the environment; • Apply specialist legal knowledge of the law and policy pertaining to the “environment” in its many-faceted definition to enable engagement with and critique of current research or practices; • Provide specialist and critical insight into how policy is formed, “translated” into law, and implemented in South Africa; and of the role players in the environmental context in South Africa; • From a comparative perspective, critically evaluate the policies, laws and role players in the environmental context in selected foreign and national legal systems; • Identify complex and challenging environmentally related matters and problems in law and apply specialist legal knowledge to address and/or solve the problems, providing insight into the possible consequences of such solutions.								
Main Content	The module is divided into a number of topics, each which focuses in depth and critically on a specific issue of importance for the study of Environmental Law. The following topics are addressed: • The nature and scope of Environmental Law; • The international dimensions of Environmental Law; • The constitutional and human rights dimensions of Environmental Law; • Administrative Law and the environment; • The implementation and enforcement of Environmental Law; • Environmental management, planning and development; • The conservation, protection and utilization of natural and cultural resources; pollution and waste control and management.								
Pre-requisite	None		Prohibited module Combination			None			
Co-requisite	Preferably IEL811								
Timetable Requirement per week			3	Lectures p.w.					
			0	Practicals p.w.					
			0	Tutorials p.w.					

Other teaching modes that does not require time-table								
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	50%	
						FA	50%	
Faculty	Law		Home Department			African Centre for Transnational Criminal Justice		
Module Name	International Criminal Law 811		Module Code			IHR811		
Module Type	Core	NQF Level	9	Year Level	1	NQF Credit	30	
Programmes in which the module will be offered		LLM (7801), MPhil (7871)				Total Learning Time	300 hours	
Duration	Semester		Proposed Semester			First Semester		
Main Learning Outcomes	On completion of this module, students should be able to:							
	• Demonstrate advanced knowledge of the nature of international crimes and engage with the major theoretical issues of international criminal justice.							
	• Identify and systematically extract legal principles from the various sources of international criminal law and apply them to solve concrete international criminal law cases.							
	• Critically evaluate the purpose of international criminal law and the values protected by the norms and institutions of international criminal justice.							
	• Critically evaluate the mechanisms for the enforcement of international criminal law including the ICC and other international tribunals;							
	• Critically assess the limitations in existing knowledge and evaluate Africa's proposal for the decolonisation and reform of the international criminal justice system and the implications of broader extralegal considerations in international criminal law and justice;							
	• Independently plan and conduct research and present coherent research findings and recommendations reflecting independence, reasoned arguments, and advanced problem-solving abilities in professional international criminal justice law practice.							
	Main Content	The module focuses on several topics germane to International Criminal Law, including, inter alia, the following:						
• Historical evolution of International Criminal Law;								
• Nature of International Crimes;								
• Jurisdiction of international criminal tribunals;								
• Duty to prosecute under International Criminal Law;								
• Enforcement of International Criminal Law;								
• Structure of International Crimes;								
• Crime of Genocide;								
• Crimes against Humanity;								
• War Crimes;								
• Crime of Aggression.								
Pre-requisite	None		Prohibited module Combination			None		
Co-requisite	None							
Timetable Requirement per week			3	Lectures p.w.				
			0	Practicals p.w.				
			0	Tutorials p.w.				

Other teaching modes that does not require time-table										
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment			CA	50%			
						FA	50%			
Faculty	Law		Home Department			African Centre for Transnational Criminal Justice				
Module Name	Transitional Justice 812		Module Code			IHR812				
Module Type	Core	NQF Level	9	Year Level	1	NQF Credit	30			
Programmes in which the module will be offered		LLM (7801), MPhil (7871)				Total Learning Time	300 hours			
Duration	Semester		Proposed Semester			First Semester				
Main Learning Outcomes	On completion of this module students should be able to: • Demonstrate advanced knowledge of the meaning, origin, and major theoretical debates in transitional justice; • Critically analyse the main approaches and the African Union approach to transitional justice within a decolonised transformative transitional justice context; • Critically evaluate the limitations in existing knowledge, and proposals for the decolonisation and transformation of transitional justice and the implications of broader extra-legal considerations in professional transitional justice practice; • Apply appropriate research techniques and problem-solving skills to design legal and policy interventions to resolve complex dilemmas in transitional justice scenarios; • Articulate expert understanding of the methods for implementing different transitional justice processes and the ethical implications of such models within a specialised professional transitional justice practice; • Independently plan and conduct research and present coherent research findings and recommendations reflecting independence, reasoned arguments, and advanced problem-solving abilities in transitional justice scenarios.									
Main Content	Introduction to the relevant legal research and writing; Theories of transitional law and justice; democracy, amnesty, reconciliation, truth, justice, truth commissions, institution making, designing constitutions; Introduction to International Law: focusing on Public and private Law, especially Human Rights and Humanitarian Law; treaties, domestic law and institutions and design; Examining the transitional contexts of South Africa, Rwanda, East Timor, the Democratic Republic of the Congo, Burundi, Algeria, morocco, Myanmar, Germany, Greece, etc									
Pre-requisite	None		Prohibited module Combination			None				
Co-requisite	None									
Timetable Requirement per week			3	Lectures p.w.						
			0	Practicals p.w.						
			0	Tutorials p.w.						

Other teaching modes that does not require time-table									
Assessment Module Type	Continuous and Final Assessment (CFA)			Method of Student Assessment			CA	50%	
							FA	50%	
Faculty	Law			Home Department			Mercantile and Labour Law		
Module Name	Comparative Regional Integration and Development 813			Module Code			IHR813		
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30		
Programmes in which the module will be offered		LLM (7801), MPhil (7871)				Total Learning Time	300 hours		
Duration	Semester			Proposed Semester			Second Semester		
Main Learning Outcomes	On completion of this module, students should be able to: • Demonstrate an understanding of, and ability to analyse, fundamental legal concepts, principles, and theories in relation to regional integration from a comparative perspective in relation to the African context. This will be achieved by studying the model of European integration in the European Union; • Demonstrate an understanding and application of the relevant methods, techniques and strategies involved in legal research and problem solving in theoretical and applied situations. Specific outcomes: • Basic knowledge of the Treaties establishing the European Union and consecutive text, the relevant institutions governing the EU, the sources of EU Law applicable to the internal market and the external relationships of the EU; • Understanding of regional integration and the role thereof in advancing trade and the protection of human rights in Africa by means of a comparative analysis: • Collecting, analysing, organising and critically evaluating information, displaying original and independent research skills: • Identifying and solving problems in the field of regional integration with specific reference to trade and human rights in Africa, by using critical and creative thinking skills: • Expressing the findings of their research/content of course work effectively and concisely in the form of written communication and oral persuasion.								
Main Content	• Introduction to regional integration: focus on the European Union and the African Union; • European Union: overview of founding treaties establishing the EU; • Composition functions of the main institutions governing the EU; • Sources of European Community Law; • Creation of internal market and external relationships of the European Union; • Introduction to African Union; • Introduction to African economic relations, including GSP, AGOA, EPA, Cotonou, SA/EU TDCA, etc.; • Comparative analysis of impact of regional integration on economic trade and protection of human rights.								

Pre-requisite	None	Prohibited module Combination		None	
Co-requisite	None				
Timetable Requirement per week		3	Lectures p.w.		
		0	Practicals p.w.		
		0	Tutorials p.w.		
Other teaching modes that does not require time-table					
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA		50%
			FA		50%

Faculty	Law		Home Department			Public Law and Jurisprudence	
Module Name	International Protection of Human Rights Law 814		Module Code			IHR814	
Module Type	Core/ Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871), LLM (Legal Pluralism and Family Law) (7832)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Demonstrate an understanding of, and ability to analyse, fundamental legal concepts, principles, theories and their relationship to International Human Rights Law. • Demonstrate an understanding and application of the relevant methods, techniques and strategies involved in legal research and problem solving in theoretical and applied situations. Specific outcomes: • A basic knowledge of the institutions that affect international human rights at international, regional and domestic level. • know the conventions, laws, and rules governing international human rights. • An understanding of International Law and its affect on International Human Rights Law, regional human rights law and domestic law in a number of countries. • Collecting, analysing, organising and critically evaluating information, displaying original and independent research skills. • Identifying and solving problems in the field of international human rights law by using critical and creative thinking skills. • Expressing the findings of their research/content of course work effectively and concisely in the form of written and communication.						
Main Content	• Forms of International Human Rights Law, institutions, structures, mechanisms, courts, tribunals, procedures, treaties, customary law, and court decisions; • Able to discern violations, and able to solve problems in International Human Rights Law at international, regional and domestic level; • Introduction to International Law, international systems, international courts, and the various treaties and other laws that impact on Human Rights Law. International Criminal Law. etc;						

	• Introduction to African, European, Inter-American, Asian, and Arab systems for the protection of human rights.				
Pre-requisite	None	Prohibited module Combination		None	
Co-requisite	None				
Timetable Requirement per week		3	Lectures p.w.		
		0	Practicals p.w.		
		0	Tutorials p.w.		
Other teaching modes that does not require time-table					
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%	
			FA	50%	

Faculty	Law		Home Department			African Centre for Transnational Criminal Justice	
Module Name	International Humanitarian Law 815		Module Code			IHR815	
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Demonstrate an understanding of, and ability to analyse, fundamental legal concepts, principles, theories and their relationship to the law of international and non-international ("internal") armed conflicts. • An understanding and application of the relevant methods, techniques and strategies involved in legal research and problem solving in theoretical and applied situations relating to armed conflicts. Specific outcomes: • A basic knowledge of the international institutions, conventions, rules and customs governing International Humanitarian Law; • An understanding of International Humanitarian Law in Africa as part of a set of inter-related systems by recognising that problem-solving contexts do not exist in isolation. • Collecting, analysing, organising and critically evaluating information, displaying original and independent research skills. • Identifying and solving problems in the field of International Humanitarian Law in Africa, by using critical and creative thinking skills. • Expressing the findings of their research/content of course work effectively and concisely in the form of written communication and oral persuasion.						
Main Content	This module deals with the various rules, principles and customs of International Humanitarian Law applicable during international and non-international ("internal") armed conflicts. The following topics will be addressed: • The nature, scope and basic principles of International Humanitarian Law; • The main currents of International Humanitarian Law: the "Law of the Hague", the "Law of Geneva" and the "Law of New York"; • The distinction: ius ad bellum and ius in bello.						

	• The relationship between International Humanitarian Law, International Human Rights Law, Refugee Law and International Criminal Law; • Constraints on the waging of war: the principle of distinction (combatants versus civilians); prisoners of war; civilian internees, means and methods of warfare; the protection of women; protection of the wounded, sick and shipwrecked; • The main humanitarian actors: the United Nations and the International Committee of the Red Cross; • The prosecution of International Humanitarian Law violations and the establishment of minimum humanitarian standards; • The relevance/applicability of International Humanitarian Law after the cessation of armed conflicts				
Pre-requisite	None	Prohibited module Combination		None	
Co-requisite	None				
Timetable Requirement per week		3	Lectures p.w.		
		0	Practicals p.w.		
		0	Tutorials p.w.		
Other teaching modes that does not require time-table					
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment		CA	50%
				FA	50%

Faculty	Law		Home Department			Dullah Omar Institute for Constitutional Law, Governance and Human Rights	
Module Name	Global Human Rights Issues 816		Module Code			IHR816	
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)			Total Learning Time		300 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to:						
	• Critically analyze contemporary human rights issues based on principles and theories of human rights • Evaluate the limits of human rights monitoring its implementation and the politicization of human rights • Critically analyze the link between human rights, development and humanitarian contexts. • Evaluate the role of non-state actors including corporations in Human Rights • Research and investigate human rights violations • Contrast the links between human rights and other fields such as international criminal law, international humanitarian law. • Articulate the role of interdisciplinary research for the conceptualization of Human Rights						
Main Content	• International institutions for monitoring human rights implementation • Islam and human rights • Human rights in field work • Forms of government • Privatization						

	• Social media and human rights • Climate justice • Counter-terrorism and human rights • Human rights and foreign policy • Peacekeepers and sexual abuse • Sustainable Development Goals and human rights • Cross-border human rights issues			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Private Law	
Module Name	Intellectual Property Law 831		Module Code			IPL831	
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Critically discuss the fundamental legal theories, concepts and principles relating to intellectual property (IP) within the developing nations context; • Application of the relevant methods, techniques and strategies involved in legal research and problem-solving in theoretical and practical situations. • Critically evaluating the context within which the specific IP topics considered and analysed are situated; • Critically conducting a comprehensive review of the international and regional IP instruments and organisations; • Critically evaluating IP protection within the context of Africa as part of the developing world, the challenging problems within the field and how they can be addressed; • Conducting critical independent research and presenting the findings of their research effectively and concisely in the form of written and oral submissions.						
Main Content	• An in-depth analysis of certain topics from the following: • International and regional intellectual property institutions and instruments; • Intellectual property and human rights; • Patent Law and public health; • Copyright Law and Performers' Rights; • Artificial Intelligence in the context of Patent Law and Copyright Law; • Geographical indications; • Plant breeders' rights; • The protection of indigenous knowledge;						

	• Competition law and Intellectual Property law; • Intellectual Property and Information Technology • Alternative dispute resolution for Intellectual Property disputes; • Intellectual property and Data protection. • Trademark and brand protection in a digital world; • Design law.						
Pre-requisite	None		Prohibited module Combination		None		
Co-requisite	None						
Timetable Requirement per week			0	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment		CA	50%	
					FA	50%	
Faculty	Law		Home Department		Mercantile and Labour Law		
Module Name	International Trade 811		Module Code		ITB811		
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)			Total Learning Time	300 hours	
Duration	Semester		Proposed Semester		Second Semester		
Main Learning Outcomes	On completion of this module, students should be able to:						
	• Demonstrate an understanding of, and ability to analyse, fundamental legal concepts, principles, theories and their relationship to International Trade Law Practices; • Demonstrate an understanding of and ability to apply the relevant methods, techniques and strategies involved in legal research and problem solving in theoretical and applied situations. Students will be able to: • Demonstrate a basic knowledge of the international institutions, conventions and rules governing international trade; • Demonstrate an understanding of international trade and regional agreements from an African perspective, as part of a set of inter-related systems by recognising that problem solving contexts do not exist in isolation; • Collect, analyse, organise and critically evaluate information, displaying original and independent research skills; • Identify and solve problems in the field of International Trade Law in Africa, by using critical and creative thinking skills; • Express the findings of their research/content of course work effectively and concisely in the form of written communication and oral persuasion.						
Main Content	The module focuses, from a South African and African regional perspective, on the areas of interface between International Economic and Trade Law which are important to economic and trade development in Africa: To that end it deals with: • the nature and sources of International Economic and Trade Law; • the legal regulation of the international economy and international trade;						

	• the institutions of international and African regional economics and trade; • international economic and trade transactions; • the international insurance of goods in transit; • the international carriage of goods; • money and methods of payment in international economic and trade law; • the settlement of international economic and trade disputes (international arbitration and the enforcement of international legal transactions).			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week	3	Lectures p.w.		
	0	Practicals p.w.		
	0	Tutorials p.w.		
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	International Business and Regional Trade Law 812		Module Code			ITB812	
Module Type	Core	NQF Level	9	Year Level	1	NQF Credit	30
Programme in which the module will be offered		LLM (7811)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to:						
	General outcomes: • Demonstrate an understanding of, and ability to analyse, fundamental legal concepts, principles, theories and their relationship to international business practices. • Demonstrate an understanding of and ability to apply the relevant methods, techniques and strategies involved in legal research and problem solving in theoretical and applied situations. Specific outcomes: • Demonstrate a basic knowledge of the international institutions, conventions and rules governing international business transactions, dispute resolution and regional agreements. • Demonstrate an understanding of international business, dispute resolution and regional agreements in Africa, as part of a set of inter-related systems by recognising that problem-solving contexts do not exist in isolation. • Collect, analyse, organise and critically evaluate information, displaying original and independent research skills. • Identify and solve problems in the field of International Business Law in Africa, by using critical and creative thinking skills. • Express the findings of their research/content of course work effectively and concisely in the form of written communication and oral persuasion.						

Main Content	• Forms of international business: international sales, international finance, competition. • Dispute settlement in international business transactions: overview of public and private aspects, arbitration. • International business and environmental and social considerations: environment, ethics, human rights etc. • Introduction to European Union Law. • Introduction to African economic relations, including GSP, AGOA, EPA, Cotonou, SA/EUTDCA, etc. African regional and sub-regional organisations: AU, PTA, SADC etc. • Implementation of international economic agreements into domestic law in Africa. • The role of Africa and African lawyers in international trade negotiations. • The role of lawyers in international economic and business transactions.				
	Pre-requisite	None	Prohibited module Combination	None	
	Co-requisite	None			
	Timetable Requirement per week		3	Lectures p.w.	
			0	Practicals p.w.	
			0	Tutorials p.w.	
	Other teaching modes that does not require time-table				
	Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	40%
FA				60%	

Faculty	Law		Home Department				Mercantile and Labour Law	
Module Name	International Economic and Investment Law 813		Module Code				ITB813	
Module Type	Core	NQF Level	9	Year Level	1	NQF Credit	30	
Programme in which the module will be offered		LLM (7811)				Total Learning Time	300 hours	
Duration	Semester		Proposed Semester			First Semester		
Main Learning Outcomes	On completion of this module, students should be able to: • Demonstrate an understanding of, and ability to analyse, fundamental legal concepts, principles, theories and their relationship to international trade practices; • Demonstrate an understanding of and ability to apply the relevant methods, techniques and strategies involved in legal research and problem solving in theoretical and applied situations. Students will be able to: • Demonstrate a basic knowledge of the international institutions, conventions and rules governing International Trade, Economic and Investment Law; • Demonstrate an understanding of International Economic and Investment Law in Africa as part of a set of inter-related systems by recognising that problem-solving contexts do not exist in isolation; • Collect, analyse, organise and critically evaluate information, displaying original and independent research skills; • Identify and solve problems in the field of International Economic and Investment Law in Africa, by using critical and creative thinking skills;							

	Express the findings of their research/content of course work effectively and concisely in the form of written communication and oral persuasion.			
Main Content	Introduction: to legal research and writing (including general aspects of project management); to computer skills; and to basic communication through short presentation (e.g. on cultural diversity); - Accounting and international development economics: basic accounting, reading financial statements, principles of international economic. - Introduction to International Law: focus on public and private law; state responsibility, treaties, sovereignty, nationalisation, Private International Law, international development of law; - Global economic institutes: overview of institutions and changing functions; - Role of UNCTAD (development in Africa, independence), African Development Bank, IMF etc; - Regulation of international trade: WTO - general introduction, concept of free trade, agriculture, dumping etc; - International Intellectual Property Law and transfers of technology: TRIPS, WIPO, WTO etc., licensing, pharmaceuticals; - Regulation of foreign investment in Africa: private and public aspects; agreements and privatisation, international insolvencies.			
Pre-requisite	None	Prohibited module Combination	None	
Co-requisite	None			
Timetable Requirement per week		3	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	40%
			FA	60%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	International Taxation Law 811		Module Code			ITT811	
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programme in which the module will be offered		LLM (7801)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Critically analyze and apply fundamental legal concepts, principles and theories applicable in international taxation law; • Evaluate the OECD model tax conventions and compare it with the taxation model applied in SA; • Interpret and elucidate the rules governing double tax agreements and international transactions in a South African income tax context; • Evaluate and analyze international transactions from a tax law perspective with reference to factual scenarios sketched, as well as apply relevant legal principles and rules of international tax law to solve problems identified in the scenario, as well as demonstrate critical and creative thinking skills in the course of doing so:						

	Skillfully argue for the development of decolonized and/or Africanised principles of taxation.			
Main Content	The syllabus will consist of the following: • Jurisdiction in respect of international transactions: the principles of source and residence; • The tax treatment of income derived by different types of taxpayers involved in international transactions; • The concept of an international headquarter company and relief from relevant provisions of the Income Tax Act; • The transaction of foreign currency amounts including the general and specific translation rules; • Double tax agreements and international transactions; • The impact of the Constitution and its values on principles of taxation.			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Labour Law in the New Global Market 811		Module Code			LAB811	
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to demonstrate:						
	• An understanding of, and ability to analyse, fundamental legal concepts, principles and theories relevant to the evolution of Labour Law under the impact of an integrating global economy in an international and comparative perspective. • An understanding and application of the relevant methods, techniques and strategies involved in legal research and problem solving in theoretical and applied situations. • A basic knowledge of the competitive pressures and constraints impacting on the development of labour law in national legal systems. • An understanding of changing patterns of employment and legal regulation in the context of the Fourth Industrial Revolution. • An understanding of the impact of fundamental constitutional rights on the development of labour law in a changing environment. • An ability to collect, analyse, organise and critically evaluate relevant information, displaying original and independent research skills. • An ability to understand and resolve problems of Labour Law in relation to new challenges by using critical and creative thinking skills.						

	Ability to express the findings of research and/or the content of course work effectively and concisely in the form of written communication and oral persuasion.						
Main Content	• Introduction to theories about the nature and function of Labour Law. • The relationship between legal regulation of the labour market and the demands of flexibility under the pressure of international competition. • The contract of employment, its function and relevance within a labour market increasingly regulated by statute. • The role of collective bargaining and the setting of minimum standards in labour markets increasingly characterized by non-standard employment. • The quest for substantive equality in the workplace, the prohibition of unfair discrimination and the implementation of affirmative action measures in relation to competitive pressures. • Labour Law in the context of the Fourth Industrial Revolution						
Pre-requisite	None	Prohibited module Combination		None			
Co-requisite	None						
Timetable Requirement per week		2	Lectures p.w.				
		0	Practicals p.w.				
		0	Tutorials p.w.				
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment		CA	50%	
					FA	50%	
Faculty	Law		Home Department		Mercantile and Labour Law		
Module Name	Law of Unfair Dismissal 812		Module Code		LAB812		
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)			Total Learning Time	300 hours	
Duration	Semester		Proposed Semester		First Semester		
Main Learning Outcomes	On completion of this module, students should be able to: • Analyse fundamental legal concepts, principles and theories relevant to the development and content of the law applicable to the dismissal of employees in South Africa. • Demonstrate an understanding and of, and ability to apply, the relevant methods, techniques and strategies involved in legal research and problem solving in theoretical and applied situations. Specific outcomes: • Demonstrate a basic knowledge of the role and impact of fundamental constitutional rights, and relevant international instruments, with respect to the South African law applicable to the termination of employment contracts. • Explain the role of the common law relating to the termination of contracts in the South African labour landscape. • Explain the contents and nature of the labour legislation determining the fairness of a dismissal. • Collect, analyse, organise and critically evaluate relevant information.						

	• Demonstrate an ability to understand and resolve problems of labour law in relation to new challenges by using critical and creative thinking skills. • Demonstrate an ability to express the findings of research and/or the content of course work effectively and concisely in the form of written communication and oral persuasion.			
Main Content	• Introduction to the Common Law and relevant International Law; • What constitutes a dismissal; • The definition of an automatically unfair dismissal; • Substantive and procedural fairness in dismissals for misconduct; • Substantive and procedural fairness in dismissals based on incapacity (poor performance and ill-health); • Substantive and procedural fairness in dismissals based on the employer's operational requirements; • Dismissals in the context of the transfers of undertakings; • Remedies for unfair dismissal			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		3	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	60%
			FA	40%

Faculty	Law		Home Department			Dullah Omar Institute for Constitutional Law, Governance and Human Rights	
Module Name	Constitutional Governance 811		Module Code			LGG811	
Module Type	Core	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)			Total Learning Time	300 hours	
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Demonstrate a clear understanding of the underlying principles of constitutional governance and the rule of law • Critically discuss principles, theories and practices of constitutionalism in South Africa • Apply the relevant methods, techniques and strategies involved in legal research and problem solving in theoretical and applied situations • Critically discuss the nature of constitutional governance in the context of the South African Constitution • Evaluate the South African system of constitutional governance in international debates on transparency, anticorruption and effective constitutional governance • Critically apply the legal framework to governance at national, provincial and local government						

	• Critically analyse and solve problems in the field of constitutional governance • Formulate and articulate such solutions in a coherent and concise manner.			
Main Content	• Constitutional governance • The rule of law • Transparent system of government to facilitate both internal and external accountability • Chapter 9 State Institutions Supporting Democracy • The Promotion of Access to Information Act 2 of 2000 • Procurement in terms of section 217 of the Constitution • The Promotion of Administrative Justice Act 3 of 2000. • Judicial review • Administrative justice • Transformative constitutionalism and adjudication. • Ubuntu in the context of constitutionalism • The impact of the digital revolution on constitutionalism			
Pre-requisite	None	Prohibited module Combination	None	
Co-requisite	None			
Timetable Requirement per week	2		Lectures p.w.	
	0		Practicals p.w.	
	0		Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Dullah Omar Institute for Constitutional Law, Governance and Human Rights	
Module Name	Local Government 812		Module Code			LGL812	
Module Type	Core	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)			Total Learning Time		300 hours
Duration	Semester		Proposed Semester			First Semester	
Main Learning Outcomes	On completion of this module, students should be able to: General outcomes: • An understanding of, and ability to analyse, fundamental legal concepts, principles, theories and practices of local government in South Africa. • An understanding and application of the relevant methods, techniques and strategies involved in legal research and problem solving in theoretical and applied situations. Specific outcomes: • Understanding of, and ability to apply, the constitutional framework for local government in South Africa. • Ability to locate the South African system of local government in international debates on decentralisation, federalism and the role of local government. • Understanding and ability to apply the legal framework for municipal governance						

	• Ability to analyse and solve problems in the field of local government law. • Ability to articulate such solutions in a coherent and concise manner.			
Main Content	• The 1996 Constitution establishes local government as a fully-fledged sphere of government with constitutionally protected powers. In 2000, an elaborate legal framework for local government came into operation and has been developing ever since. The course entails an examination of this constitutional and legal framework and equips students to locate, analyse and apply the legal framework on the following topics: • Municipal governance structures, i.e. political structures, elections and governance arrangements in municipalities. • Powers and functions of municipalities. • Community participation and municipal management tools. • Municipal administration • Municipal services • Municipal financial management, including budgeting and financial. • Reporting • Municipal revenue, including property rates, service fees, taxes and intergovernmental finance. • Municipal expenditure, including procurement • Supervision of municipalities • Municipalities and cooperative government. • Furthermore, the module examines the historical development of Local Government and uses comparative examples to strengthen the analysis of the South African system.			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		3	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Criminal Justice and Procedure	
Module Name	Punishment and Sentencing 812		Module Code			LPS812	
Module Type	Core	NQF Level	9	Year Level	1	NQF Credit	30
Programme in which the module will be offered		LLM (7801)				Total Learning Time	300 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Demonstrate a clear understanding of the concepts of punishment and sentencing. • Comprehend critically the philosophies underlying the practice of punishment in its legal context. • Evaluate critically the constitutional jurisprudence on punishment and sentencing.						

	• Comprehend the key legislative sources of sentencing practice in South Africa. • Display an essential knowledge of the relevant sentencing provisions in international treaties to which South Africa is a party.					
Main Content	• Teleology and deontology in punishment • Utilitarian and retributive theories of punishment • Principles of restorative justice • The general principles of sentencing • Penalty clauses in the Criminal Procedure Act and other relevant statutes • Penalty clauses in international treaties to which South Africa is a party • Minimum and mandatory sentences • Judicial discretion in sentencing • Mitigation and aggravation • The relationship between the Bill of Rights and sentencing					
Pre-requisite	None		Prohibited module Combination		None	
Co-requisite	None					
Timetable Requirement per week			3	Lectures p.w.		
			0	Practicals p.w.		
			0	Tutorials p.w.		
Other teaching modes that does not require time-table						
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment		CA	50%
					FA	50%
Faculty	Law		Home Department		Criminal Justice and Procedure	
Module Name	International Anti-Money Laundering Law 811		Module Code		OML811	
Module Type	Core	NQF Level	9	Year Level	1	NQF Credit 30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)			Total Learning Time	300 hours
Duration	Semester		Proposed Semester		Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Demonstrate an understanding of how the crime of money laundering manifests itself in its various typologies; • An appreciation of how organised crime and money laundering relate to each other; • A grasp of the international, regional and domestic legal framework directed against money laundering and how to implement the law; • A critical understanding of the international initiatives to combat money laundering and the financing of organised crime; • An ability to give legal advice on policy formulation with respect to anti-money laundering initiatives at state level.					
Main Content	The theory of money laundering, confiscation and forfeiture; Money laundering and links to the illicit drugs trade; Typologies of money laundering in the Southern African Development Community (SADC) region; The regulatory and framework and SADC Protocols; The three-tiered structure of international conventions in the area of criminal law.					

	comprising the obligation to criminalise a certain conduct under domestic law (1) the obligation to exercise criminal (extra-territorial) jurisdiction (2) and the obligation to co-operate effectively horizontally, that is in relation to their state parties (3) the Financial Action Task Force's (FATF) recommendations and assessment of the methodology for compliance; The role of Financial Intelligence Units and the Egmont Group: issues relating to the regulation of banks and the finance industry self-regulation; the legal basis of the bank-customer relationship, including the contractual/or delictual duties that may be imposed on bankers with regard to banking and associated activities; legal professional privilege; Risks attached to common lending practices; Global investigation, prosecution and confiscation: civil recovery procedures and presenting evidence						
Pre-requisite	None		Prohibited module Combination		None		
Co-requisite	None						
Timetable Requirement per week							
			3	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (CFA)		Method of Student Assessment		CA	50%	
					FA	50%	
Faculty	Law		Home Department		Private Law		
Module Name	Islamic Law and Jurisprudence 811		Module Code		PRL811		
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871), LLM (Legal Pluralism and Family Law) (7832)			Total Learning Time	300 hours	
Duration	Semester		Proposed Semester		Second Semester		
Main Learning Outcomes	On completion of this module, students should be able to: • Critically analyze and apply fundamental legal concepts, principles and theories applicable to Islamic Law and Jurisprudence relating to the interpretation of the various schools of religious thought found in Islam, • Evaluate and recognize the provisions on the various national, regional and international human rights instruments, • Interpret and elucidate the difference between the more dominant Sunni and Shia sects found in Islam, • Assess possible conflict between the national, regional and international human rights approach to the scriptural interpretation of Islamic Law and Jurisprudence, • Conduct a comparative assessment of global constitutions and its compatibility relating Islamic law and Jurisprudence, • Evaluate the role of the state and non-state actors in countries where Islam is the dominant faith, • Evaluate the role of the state and non-state actors in countries where Islam is not the dominant faith.						

	• Contrast the links between Islamic law and Jurisprudence and other fields of law such as International law, International humanitarian law and Constitutional Law, • Assess the impact of social media relating to Islamic law and Jurisprudence, • Provide arguments on whether Islamic law and Jurisprudence could and should be codified into Muslim Personal Law in countries where Islam is not the dominant religion, • Assess whether the global constitutions cater for this type of codification and whether Islamic Law and Jurisprudence falls under the banner of legal pluralism.			
Main Content	• The sources of Islamic Law and Jurisprudence • The interpretation of Islamic Law and Jurisprudence • Provisions of the various national, regional and international human rights instruments • The protection of the individual and the group • The role of the state and Muslim clerics • Marriage • Islam and human rights • Divorce • Succession • Violations in the name of Islamic law and Jurisprudence • The status of women and children in Islamic and Jurisprudence • The maintenance of women in Islamic Law and Jurisprudence • The codification of Islamic Law and Jurisprudence into a that could be referred to as Muslim Personal Law			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		2	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Dullah Omar Institute for Constitutional Law, Governance and Human Rights	
Module Name	Economic, Social and Cultural Rights 811		Module Code			SER811	
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)			Total Learning Time		300 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Demonstrate an understanding of, and ability to analyse, fundamental legal concepts, principles, and theories relating to the conceptualisation and enforcement of economic, social and cultural rights:						

	• An understanding and application of the relevant methods, techniques and strategies involved in legal research and problem solving in theoretical and applied situations. Specific outcomes: • A basic knowledge of the relevant international human rights instruments and the bodies tasked with overseeing the implementation of economic, social and cultural rights; • An understanding of the South African Bill of Rights litigation and the relevant jurisprudence of South Africa's Constitutional Court; • Insight into the interaction between International jurisprudence on the enforcement of economic, social and cultural rights and the enforcement of such rights through South Africa's Constitutional Court; • Identifying and solving problems in the field of economic, social and cultural rights in both domestic and international law settings; • An ability to engage critically with issues around the conceptualisation and enforcement of social and economic rights vis-à-vis questions around the separation of powers and institutional competency of Courts.			
Main Content	• Context: the realization of economic, social and cultural rights, globalization and neo-liberalism; • Conceptualization and enforcement of economic social and cultural rights domestically and internationally; • Substantive equality, gender and the realization of economic, social and cultural rights; • Specific enforcement of selected social and economic rights including the right to housing, health care, social security and food; • Role of human rights commissions and other extra-judicial bodies in the enforcement of economic, social and cultural rights; • Realization of children's economic, social and cultural rights.			
Pre-requisite	None	Prohibited module Combination		None
Co-requisite	None			
Timetable Requirement per week		3	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department			Mercantile and Labour Law	
Module Name	Dispute Settlement in International Transactions 811		Module Code			SIT811	
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30
Programmes in which the module will be offered		LLM (7801), MPhil (7871)			Total Learning Time		300 hours
Duration	Semester		Proposed Semester			Second Semester	
Main Learning Outcomes	On completion of this module, students should be able to: • Demonstrate an understanding of the nature of specific areas of International Trade Law, as well as that of International Investment and Business Transactions						

	• Evaluate the possible conflicts that may arise from such International Trade, Investment and Business Transactions. • Analyse the nature and legitimacy of the current dispute settlements used to solve such disputes, based on current jurisprudence • Formulate their own views on appropriate ways of addressing the shortcomings in the current International Dispute Settlement Mechanisms in International Trade, Investment and Business Transactions.			
Main Content	The governance of selected relevant topics in International Trade Law, including: • Trade in Agriculture • Trade in Services • Trade Related aspects of Intellectual Property • Trade and Environment • State-State Dispute Settlement at the WTO The governance of and requirements for International Investment Transactions, as well as current controversies around international investor-state dispute settlement. The governance of and requirements for International Business Transactions, including payment systems and transport of goods, as well as the regulation of International Commercial Dispute Settlement between private parties.			
	Pre-requisite	None	Prohibited module Combination	None
	Co-requisite	None		
	Timetable Requirement per week		3	Lectures p.w.
0			Practicals p.w.	
0			Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%
			FA	50%

Faculty	Law		Home Department				Mercantile and Labour Law	
Module Name	Tax Administration 812			Module Code			TLA812	
Module Type	Elective	NQF Level	9	Year Level	1	NQF Credit	30	
Programme in which the module will be offered		LLM (7801)				Total Learning Time	300 hours	
Duration	Semester		Proposed Semester			Second Semester		
Main Learning Outcomes	On completion of this module, students should be able to:							
	- Analyse and apply fundamental legal concepts, principles and rules applicable to tax administration under the Tax Administration Act 28 of 2011 (TAA), the Promotion of Administrative Justice Act of 2003 (PAJA) and the Constitution, 1996; - Explain the fundamental rights of taxpayers to just administrative action, privacy, property and access to courts during, inter alia, warranted and warrantless inspections, searches and seizures by SARS officials; - Interpret and elucidate the rules governing taxpayer appeals and objections against a tax assessment, including alternate dispute resolution procedures; - Critically evaluate and analyze a tax dispute between SARS and							

	taxpayers as sketched in factual scenarios, identify and apply relevant legal principles and rules of tax administration to solve the dispute, as demonstrate appropriate use of critical and creative thinking skills.				
Main Content	The syllabus will consist of a discussion and analysis of: • Provisions of the TAA, PAJA and the Constitution; • The meaning of various concepts used in the TAA including, but not limited to, tax Acts, assessment, objection, appeal, SARS official, search, seizure and inspection, and administration of a tax Act; • The inter-relationship between the TAA, PAJA and the Constitution; • The nature and extent of the right of taxpayers to just administrative action, to privacy, to property and to access courts and other tribunals and fora; • The purpose of tax administration generally and searches, seizures and inspections in particular as tools in tax administration; • The debt collection procedures provided for in the TAA and whether it violates taxpayers' rights to property; • The rules and procedures applicable to dispute resolution, including an objection, appeal, and ADR and whether there is effective protection of taxpayers' rights of access to justice; • The rules governing inspections, searches and seizures and whether they violate taxpayers' rights to privacy and/or property.				
	Pre-requisite	None	Prohibited module Combination		None
	Co-requisite	None			
	Timetable Requirement per week		2	Lectures p.w.	
			0	Practicals p.w.	
0			Tutorials p.w.		
Other teaching modes that does not require time-table					
Assessment Module Type	Continuous and Final Assessment (CFA)	Method of Student Assessment	CA	50%	
			FA	50%	

Faculty	Law		Home Department			Law	
Module Name	Full Thesis 801 / 802		Module Code			ADJ/ CLL/ CML/ COR/ DSL/ IEL/ IHR/ LAB/ LPF/ MER/ MLG/ PUB/ ROL/ TCJ (801 / 802)	
Module Type	Core	NQF Level	9	Year Level	1/2	NQF Credit	180
Programmes in which the module will be offered		LLM (7821) (7822), MPhil (7860) (7861), LLM (Legal Pluralism and Family Law) (7831)				Total Learning Time	1800 hours
Duration	Year		Proposed Semester			Both Semesters	
Main Learning Outcomes	On completion of this module, students should be able to:						
	• Have made a satisfactory contribution to knowledge in the field of Law, or Law and its interaction with another field or discipline. To achieve this, the student may EITHER: • Propose a research question with the potential to make such a satisfactory contribution to knowledge in the field of Law, or Law and its interaction with another field or discipline; and • Carry out and report on this research in an approximately 50 000 word thesis, in a format suitable for publication. OR						

	The student may: Propose a research question or a theme, that represents such a satisfactory contribution to knowledge in the field of Law, or Law in its interaction with another field or discipline, already published by the student; and • Prepare a thesis incorporating such publication(s) in a coherently argued format. Concomitant outcomes will normally include personal skills development supporting the required research and writing activities under the guidance of the supervisor(s).				
Main Content	• The primary task is to develop the research proposal towards its envisaged goal(s), conducting the master's research and preparing the master's thesis under the guidance of the supervisor(s), before submitting it for assessment; • Research proposals may derive from any area of Law, or Law in interaction with another field or discipline, and may include substantial historical and/or comparative studies.				
Pre-requisite	None	Prohibited module Combination		None	
Co-requisite	None				
Timetable Requirement per week		0	Lectures p.w.		
		0	Practicals p.w.		
		0	Tutorials p.w.		
Other teaching modes that does not require time-table					
Assessment Module Type	Final Assessment (FA)	Method of Student Assessment		FA	100%

Faculty	Law		Home Department			Law	
Module Name	Mini Thesis 803 / 804		Module Code			ADJ/ CLL/ CML/ COR/ DSL/ IEL/ IHR/ LAB/ MER/ MLG/ PUB/ ROL/ TCJ (803 / 804)	
Module Type	Core	NQF Level	9	Year Level	1/2	NQF Credit	120
Programme in which the module will be offered		LLM (7821) (7822), MPhil (7860) (7861), LLM (Legal Pluralism and Family Law) (7831)			Total Learning Time	1200 hours	
Duration	Year		Proposed Semester			Both Semesters	
Main Learning Outcomes	On completion of this module, students should be able to: • Have made a contribution with limited scope to knowledge in the field of Law, or Law and its interaction with another field or discipline, following upon a research question with the potential to make such a satisfactory contribution; and • Carry out and report on this research in an approximately 30 000 word thesis, in a format suitable for publication. • Concomitant outcomes will normally include personal skills development supporting the required research and writing activities under the guidance of the supervisor(s).						
Main Content	• The primary task is to develop the research proposal towards its envisaged goal(s), conducting the research and preparing the mini thesis under the guidance of the supervisor(s), before submitting it for assessment:						

	• Research proposals may derive from any area of Law, or Law in interaction with another field or discipline, and may include substantial historical and/or comparative studies.			
Pre-requisite	None	Prohibited module Combination	None	
Co-requisite	None			
Timetable Requirement per week		0	Lectures p.w.	
		0	Practicals p.w.	
		0	Tutorials p.w.	
Other teaching modes that does not require time-table				
Assessment Module Type	Final Assessment (FA)	Method of Student Assessment	FA	100%

Faculty	Law		Home Department			Law	
Module Name	Legal Pluralism and Family Mini Thesis 803/804		Module Code			LPF803 / 804	
Module Type	Core	NQF Level	9	Year Level	1/2	NQF Credit	60
Programme in which the module will be offered		LLM (Legal Pluralism and Family Law) (7832)			Total Learning Time		600 hours
Duration	Year		Proposed Semester			Both Semesters	
Main Learning Outcomes	On completion of this module, students should be able to: • Have made a contribution with limited scope to knowledge in the field of Law, or Law and its interaction with another field or discipline, following upon a research question with the potential to make such a satisfactory contribution; and • Carry out and report with limited scope on this research in an approximately 18 000 word thesis, in a format suitable for publication. • Concomitant outcomes will normally include personal skills development supporting the required research and writing activities under the guidance of the supervisor(s).						
Main Content	• The primary task is to develop the research proposal towards its envisaged goal(s), conducting the research and preparing the research paper under the guidance of the supervisor(s), before submitting it for assessment; • Research proposals may derive from any area of Law, or Law in interaction with another field or discipline, and may include substantial historical and/or comparative studies.						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			0	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Continuous and Final Assessment (FA)		Method of Student Assessment			FA	100%

Faculty	Law		Home Department			Law	
Module Name	Research Paper 805/806		Module Code			ADJ/ CLL/ CML/ COR/ DSL/ IEL/ IHR/ LAB/ MER/ MLG/ PUB/ ROL/ TCJ (805 / 806)	
Module Type	Core	NQF Level	9	Year Level	1/2	NQF Credit	60
Programmes in which the module will be offered		LLM (7821) (7822), MPhil (7860) (7861)			Total Learning Time		600 hours
Duration	Year		Proposed Semester			Both Semesters	
Main Learning Outcomes	On completion of this module, students should be able to: • Have made a contribution with limited scope to knowledge in the field of Law, or Law and its interaction with another field or discipline, following upon a research question with the potential to make such a satisfactory contribution; and • Carry out and report with limited scope on this research in an approximately 18 000 word thesis, in a format suitable for publication. • Concomitant outcomes will normally include personal skills development supporting the required research and writing activities under the guidance of the supervisor(s).						
Main Content	• The primary task is to develop the research proposal towards its envisaged goal(s), conducting the research and preparing the research paper under the guidance of the supervisor(s), before submitting it for assessment; • Research proposals may derive from any area of Law, or Law in interaction with another field or discipline, and may include substantial historical and/or comparative studies.						
Pre-requisite	None		Prohibited module Combination			None	
Co-requisite	None						
Timetable Requirement per week			0	Lectures p.w.			
			0	Practicals p.w.			
			0	Tutorials p.w.			
Other teaching modes that does not require time-table							
Assessment Module Type	Final Assessment (FA)		Method of Student Assessment			FA	100%

MODULES FROM OTHER FACULTIES

Refer to Faculty of Arts and Humanities Calendar

English for Educational Development (Law)	EED101
English	ENG111/ ENG121/ ENG211/ ENG221/ ENG311/ ENG321
Ethics	ETH111/ ETH121
Forensic and General Linguistics	FGL111/ FGL121/ FGL211/ FGL311
History	HIS153/ HIS154
Philosophy	PHI111/ PHI122/ PHI212/ PHI213/ PHI221/ PHI222/ PHI311/ PHI312/ PHI321/ PHI322
Sociology	SOC151/ SOC152/ SOC233/ SOC234/ SOC323/ SOC324
Xhosa Language Acquisition	XHA111/ XHA121

Refer to Faculty of Community and Health Sciences Calendar

Psychology	PSY111/ PSY112/ PSY121 /PSY122/ PSY123/ PSY211/ PSY213/ PSY214/ PSY221/ PSY311/ PSY312/ PSY321/ PSY322
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Refer to Faculty of Economic and Management Sciences Calendar

Academic Literacy for Commerce	ALC131/ ALC132
Introduction to Microeconomics	ECO151/ ECO152
Microeconomics	ECO231/ ECO232/ECO331/ECO332
Intermediate Mathematical Economics	ECO235
Econometrics	ECO242/ECO311
Public Sector Economics	ECO334
International Trade Economics	ECO335
Development Economics	ECO336
Financial Accounting	FIA141/ FIA143
Principles of Finance	FIN211
Principles of Investments	FIN212
Introductory Statistics for Finance	FIN213
Financial and Analytical Techniques	FIN305
Investment Analysis	FIN308
Corporate Finance	FIN311
International Finance	FIN321

Introduction to Economics and Business 131	IEB131
Introduction to Psychology in the Workplace	IPS131/132
Career Psychology	IPS231
Psychometrics	IPS232
Human Resource Management	IPS233
Labour Relations	IPS234
Organisational Behaviour	IPS331
Research Methodology	IPS333
Consumer Behaviour	IPS335
Training Management	IPS337
Principles of Business Management	MAN131/132
Entrepreneurship	MAN201
Finance for Small and Medium Enterprises	MAN206
Marketing	MAN231
Operations Management	MAN233
Services Marketing	MAN303
Strategic Management	MAN304
Investment Management	MAN307
Financial Management	MAN312
Research and Communication for Business	MAN314
Project Management	MAN325
Political Studies	POL131/ POL142/ POL231/ POL235/ POL332/ POL334

Refer to Faculty of Natural Sciences Calendar

Business Statistics	BUS132
Quantitative Skills for Commerce	QSC131/132

EXPLANATION OF SYMBOLS AND REMARKS ON ACADEMIC TRANSCRIPT

A	75-100%	Pass with Distinction
B	70-74%	Pass
C	60-69%	Pass
D	50-59%	Pass
E	45-49%	Fail
F	40-44%	Fail
G	39-0%	Fail
No Year mark		Absent from the examination: No results
SPG		Absent from the examination but with special permission to write the supplementary examination on medical or non-medical grounds.
SAG		Supplementary examination granted on academic grounds.
SUB		Failed to obtain the required sub minimum and have to repeat the course.
Ceased Programme		Ceased studying the programme.
DNQ		Did not qualify to write the examination
ABS		Absent from the examination
SDA		Senate Discretionary Assessment granted
External Credit Transfer		An external module completed at another institution deemed equivalent to be credited toward a qualification for which the student is registered.
Internal Credit Transfer		A module completed at this institution credited toward a qualification for which the student is registered.

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